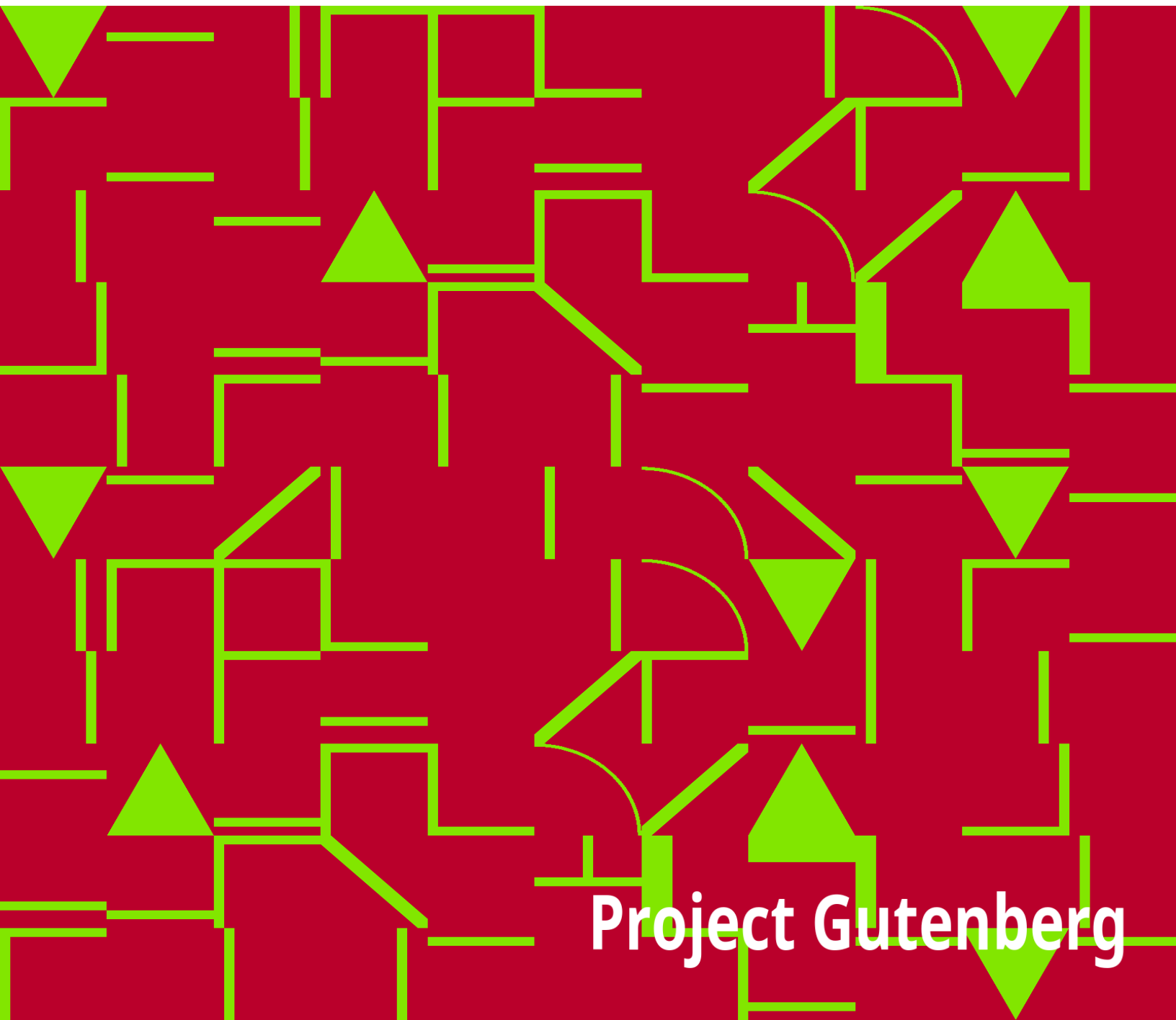


# School History of North Carolina : from 1584 to the present time

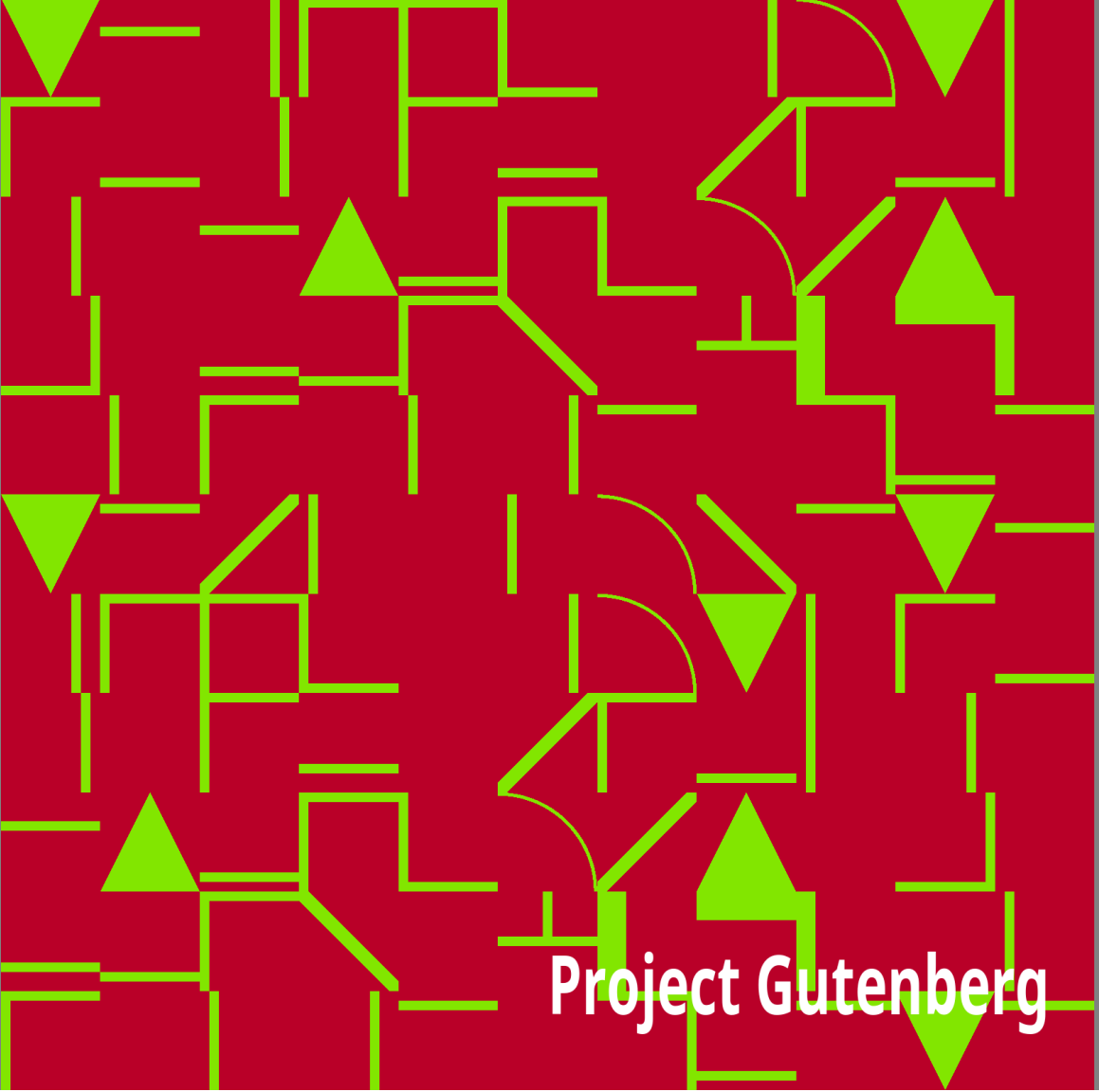
John W. Moore

The background of the lower half of the cover is a solid black field. Overlaid on this is a complex, repeating pattern of bright yellow geometric shapes. These shapes include squares, rectangles, triangles, and circular arcs, some of which are nested or overlapping to create a sense of depth and movement. The pattern is reminiscent of a stylized, abstract architectural or mechanical design.

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# School History of North Carolina : from 1584 to the present time

John W. Moore



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HISTORY OF NORTH CAROLINA : FROM 1584 TO THE PRESENT  
TIME \*\*\*

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# **SCHOOL HISTORY OF NORTH CAROLINA, FROM 1584 TO THE PRESENT TIME.**

**BY JOHN W. MOORE. REVISED AND ENLARGED.**

## **PREFACE TO REVISED EDITION.**

In the publication of a fourteenth edition it seems proper that something should be said as to changes made in this work. At a session of the North Carolina Board of Education, held November 22d, 1881, it was resolved that "the Board expressly reserve to itself the right to require further revisions" in Moore's School History of North Carolina, the second edition of which was then adopted for use in the public schools.

Conforming to this requirement of the State Board of Education, the author has diligently sought aid and counsel in the effort to perfect this work. To Mrs. C. P. Spencer, E. J. Hale, Esq., of New York, and Hon. Montford McGehee, Commissioner of Agriculture, the work is indebted for many valuable suggestions, but still more largely to Col. W. L. Saunders, Secretary of State, who has aided assiduously not only in its revision, but in its progress through the press.

The teacher of North Carolina History will be greatly aided in the work by having a wall map of North Carolina before the class, and to this end the publishers have prepared a good and accurate school map, which will be furnished at a special low price.

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## HINTS TO TEACHERS.

It is well known that any subject can be more thoroughly taught when both the eye and the mind of the pupil are used as mediums for imparting the knowledge; and the teacher of "North Carolina History" will find a valuable help in a wall map of the State hung in convenient position for reference while the history class is reciting.

Require the pupils to go to the map and point out localities when mentioned, also places adjoining; trace the courses of the rivers which have a historical interest, and name important towns upon their banks. A good, reliable wall map of North Carolina can be procured at a moderate price from the publishers of this work.

It has been deemed proper to make the chapters short, that each may form one lesson. At the close of each chapter will be found questions upon the main points of the lesson. These will furnish thought for many other questions which will suggest themselves to the teacher. There are many small matters of local State history which can be given with interest to the class, from time to time, as appropriate periods are reached. These minor facts could not be included in the compass of a school book, but a teacher will be helped by referring occasionally to "Moore's Library History of North Carolina."

Inspire your pupils with a spirit of patriotism and love for their native State. A little effort in this direction will show you how easily it can be done. In every boy and girl is a latent feeling of pride in whatever pertains to the welfare of their native State, and this feeling should be cultivated and enlarged, and thus the children make better citizens when grown. The history of our State is filled with events which, told to the young, will fix their attention, and awaken a desire to know more of the troubles and noble deeds of the people who laid the foundation of this Commonwealth.

The Appendix contains the present "Constitution of North Carolina." Then follows a series of "Questions on the Constitution," prepared expressly for this work by Hon. Kemp P. Battle, LL. D., President of the University of North Carolina. This is an entirely new and valuable feature in a school book, and contains an analysis of our State government. This is just the information that every citizen of North Carolina ought to possess, and teachers should require all their students of this history to read and study the Constitution and endeavor to answer the questions thereon.

No State in the Union possesses a record of nobler achievements than North Carolina. Her people have always loved liberty for themselves, and they offered the same priceless boon to all who came within her borders; and it was a full knowledge of this trait of our people which made Bancroft say "North Carolina was settled by the freest of the free."



# CHAPTER I.

## PHYSICAL DESCRIPTION OF NORTH CAROLINA.

The State of North Carolina is included between the parallels 34° and 362° north latitude, and between the meridians 752° and 842° west longitude. Its western boundary is the crest of the Smoky Mountains, which, with the Blue Ridge, forms a part of the great Appalachian system, extending almost from the mouth of the St. Lawrence to the Gulf of Mexico; its eastern is the Atlantic Ocean. Its mean breadth from north to south is about one hundred miles; its extreme breadth is one hundred and eighty-eight miles. The extreme length of the State from east to west is five hundred miles. The area embraced within its boundaries is fifty-two thousand two hundred and eighty-six square miles.

2. The climate of North Carolina is mild and equable. This is due in part to its geographical position; midway, as it were, between the northern and southern limits of the Union. Two other causes concur to modify it; the one, the lofty Appalachian chain, which forms, to some extent, a shield from the bleak winds of the northwest; the other, the softening influence of the Gulf Stream, the current of which sweeps along near its shores.

3. The result of these combined causes is shown in the character of the seasons. Fogs are almost unknown; frosts occur not until the middle of October; ice rarely forms of a sufficient thickness to be gathered; snows are

light, seldom remaining on the ground more than two or three days. The average rainfall is about fifty- three inches, which is pretty uniformly distributed throughout the year. The climate is eminently favorable to health and longevity.

4. The State falls naturally into three divisions or sections— the Western or Mountain section, the Middle or Piedmont section, and the Eastern or Tidewater section. The first consists of mountains, many of them rising to towering heights, the highest, indeed, east of the Rocky Mountains. It is bounded on the east by the Blue Ridge and on the west by the Smoky Mountains. The section inclosed within these limits is in shape somewhat like an ellipse. Its length is about one hundred and eighty miles; its average breadth from twenty to fifty miles. It is a high plateau, from the plane of which many lofty mountains everywhere rise, and on its border the culminating points of the Appalachian system—the Roau, the Grandfather and the Black—lift their heads to the sky. Between the mountains are fertile valleys, plentifully watered by streams, many of them remarkable for their beauty. The mountains themselves are wooded, except a few which have prairies on their summits, locally distinguished as "balds." This section has long been one of the favorite resorts of the tourist and the painter.

5. The Middle section lies between the Blue Ridge and the falls where the rivers make their descent into the great plain which forms the Eastern section of the State. Its area comprises nearly one-half of the territory of the State. Throughout the greater part it presents an endless succession of hills and dales, though the surface near the mountains is of a bolder and sometimes of a rugged cast. The scenery of this section is as remarkable for quiet, picturesque beauty, as that of the Western is for sublimity and grandeur.

6. The Eastern section is a Champaign country; relieved, however, by gentle undulations. Its breadth is about one hundred miles. Its principal beauty lies in its river scenery and extensive water prospects.

7. The cultivated productions of the Mountain section are corn, wheat, oats, barley, hay, tobacco, fruits and vegetables. Cattle are also reared quite extensively for market. In the Middle section are found all the productions of the former, and over the southern half cotton appears as the staple product. In the Eastern section cotton, corn, oats and rice are staple crops, and the "trucking business" (growing fruits and vegetables for the Northern markets), constitutes a flourishing industry. The lumber business, and the various industries to which the long- leaf pine gives rise, tar, pitch and turpentine, have long been, and still continue to be, great resources of wealth for this section. Of the crops produced in the United States all are grown in North Carolina except sugar and some semi-tropical fruits, as the orange, the lemon and the banana. The wine grapes of America may be said to have their home in North Carolina; four of them, the Catawba, Isabella, Lincoln and Scuppernong, originated here.

8. The physical characteristics of the State will be better understood by picturing to the mind its surface as spread out upon a vast declivity, sloping down from the summits of the Smoky Mountains, an altitude of near seven thousand feet, to the ocean level. Through the range of elevation thus afforded, the plants and trees (or what is comprehended under the term flora) vary from those peculiar to Alpine regions to those peculiar to semi-tropical regions.

9. The variety of trees is most marked, including all those which yield timber employed in the useful and many of those employed in the ornamental arts. Indeed, nearly all the species found in the United States, east of the Rocky Mountains, are found in North Carolina. Her wealth in

this respect will be appreciated when the striking fact is mentioned that there are more species of oaks in North Carolina than in all the States north of us, and only one less than in all the Southern States east of the Mississippi. This range of elevation affords also a great variety of medicinal herbs. In fact, the mountains of North Carolina are the 'storehouse' of the United States for plants of this description.

## **QUESTIONS.**

1. Of what does this chapter treat? Give the latitude and longitude of North Carolina. What are its eastern and western boundaries? Give its dimensions.

2. What is said of the climate of North Carolina? Name the causes of this mildness of climate.

3. What is said of the seasons? Of fogs, snow and ice? Of the rainfall?

4. Into how many natural divisions is the State formed? Name them. Describe the Mountain section. Point it out on the map.

5. Give a description of the Middle or Piedmont section. Locate this section on the map.

6. What is said of the Eastern or 'Tidewater' section? Point it out on the map.

7. What are some of the productions of the Mountain section? Of the Piedmont? Of the Tidewater? What is said of the grapes of North Carolina?

8. How may the physical characteristics of the State be easily understood?

9. What is said of the plants and trees? What further is said of this particular branch of North Carolina's wealth?

## CHAPTER II.

### PHYSICAL DESCRIPTION-Continued.

The mountains of North Carolina may be conveniently classed as four separate chains: the Smoky, forming the western boundary of the State; the Blue Ridge, running across the State in a very tortuous course, and shooting out spurs of great elevation; the Brushy (which divides, for the greater part of its course, the waters of the Catawba and Yadkin), beginning at a point near Lenoir and terminating in the Pilot and Sauratown Mountains; and an inferior range of much lower elevation, which may be termed, from its local name at different points, the Uwharrie or Oconeechee Mountains beginning in Montgomery county and terminating in the heights about Roxboro, in Person county.

2. Each of these mountain ranges is marked by distinct characteristics. The Smoky chain, as contrasted with the next highest—the Blue Ridge—is more continuous, more elevated, more regular in its direction and height, and rises very uniformly from five thousand to nearly six thousand seven hundred feet. The Blue Ridge is composed of many fragments scarcely connected into a continuous and regular chain. Its loftier summits range from five thousand to five thousand nine hundred feet. The Brushy range presents, throughout the greater part of its course, a remarkable uniformity in direction and elevation, many of its peaks rising above two thousand feet. The last, the Oconeechee or Uwharrie range, sometimes presents a

succession of elevated ridges, then a number of bold and isolated knobs, whose heights are one thousand feet above the sea level.

3. There are three distinct systems of rivers in the State: those that find their way to the Gulf of Mexico through the Mississippi, those that flow through South Carolina to the sea and those that reach the sea along our own coast. The divide between the first and the second is the Blue Ridge chain of mountains; that between the second and third systems is found in an elevation extending from the Blue Ridge, near the Virginia line, just between the sources of the Yadkin and the Roanoke, in a south-easterly direction some two hundred miles, almost to the sea-coast below Wilmington. In the divide between the first and second systems, which is also the great watershed between the Atlantic slope and the Mississippi Valley, a singular anomaly is presented, for it is formed not by the lofty Smoky range, but by the Blue Ridge—not, therefore, at the crest of the great slope which the surface of the State presents, but on a line lower down. On the western flank of this lower range the beautiful French Broad and the other rivers of the first section, including the headwaters of the Great Khanawha, have their rise. In their course through the Smoky Mountains to the Mississippi they pass along chasms or "gaps" from three thousand to four thousand feet in depth. These chasms or "gaps" are more than a thousand feet lower than those of the corresponding parts of the Blue Ridge.

4. The rivers of the second system rise on the eastern flank of the Blue Ridge. These rivers—the Catawba and the Yadkin, with their tributaries stretching from the Broad River, near the mountains in the west, to the Lumber near the seacoast—water some thirty counties in the State, a fan-shaped territory, embracing much the greater portion of the Piedmont section of the State.

5. The rivers of the third system are the Chowan, the Roanoke, the Tar, the Neuse and the Cape Fear, usually navigable some for fifty and others to near one hundred miles for boats of light draught. Of these the three last have their rise near the northern boundary of the State, in a comparatively small area, near the eastern source of the Yadkin. The Chowan has its rise in Virginia, below Appomattox Court House. The principal sources of the Roanoke, also, are in Virginia, in the Blue Ridge, though some of its head streams are in North Carolina, and very near those of the Yadkin. Only one of these rivers, the Cape Fear, flows directly into the ocean in this State; the others, after reaching the low country, move on with diminished current and empty into large bodies of water known as sounds.

6. The great rivers of these three systems, with their network of countless tributaries, great and small, afford a truly magnificent water supply. Flat lands border the streams in every section; they are everywhere exceptionally rich, and in the Tidewater section, of great breadth. In their course from the high plateaus to the low country all the rivers of the State have a descent of many hundred feet, made by frequent falls and rapids. These falls and rapids afford all unlimited motive power for machinery of every description; and here many cotton mills and other factories have been established, and are multiplying every year.

7. The sounds, and the rivers which empty into them, constitute a network of waterway for steam and sailing vessels of eleven hundred miles. They are separated from the ocean by a line of sand banks, varying in breadth from one hundred yards to two miles, and in height from a few feet above the tide level to twenty-five or thirty feet, on which horses of a small breed, called "Bank Ponies," are reared in great numbers, and in a half wild state. These banks extend along the entire shore a distance of three hundred miles. Through them there are a number of inlets from the sea to the sounds, but they are usually too shallow except for vessels of light burden. Along its



northern coast the commerce of the State has, in consequence, been restricted; it has, however, an extensive commerce through Beaufort Harbor and the Cape Fear River.

8. The sounds, and the rivers in their lower courses, abound with fish and waterfowl. Hunting the canvas-back duck and other fowls for the Northern cities is a regular and profitable branch of industry; while herring, shad and rock-fishing is pursued, especially along Albemarle Sound, with spirit, skill and energy, and a large outlay of capital.

## **QUESTIONS.**

1. What is the subject of this chapter? How may the mountains of North Carolina be classed? Describe each chain. Point out these mountains on the map.

2. Describe the Smoky Mountains. The Blue Ridge. The Brushy. The Oconeechee.

3. Describe the river systems of the State. Give the dividing lines between the systems. Describe the flow of the rivers of Western North Carolina. Trace the courses of these rivers on the map. What is said of the mountain gaps?

4. Where are the Catawba and Yadkin Rivers? What portion of the State do they water? Point them out on the map.

5. Describe the rivers of the third system. Where do they empty?

6. What do our rivers afford? What is said of our water power?

7. What mention is made of the sounds? Describe the banks. Point out on the map the sounds and the banks.

8. With what do the sounds and rivers abound? What important branches of industry are mentioned?

## CHAPTER III.

### GEOLOGICAL CHARACTERISTICS.

A knowledge of the geology of a State affords the key to its soils; since the soils are formed by the disintegration of the underlying rocks, more or less mixed with animal or vegetable matter. The peculiar geological structure of the State furnishes the material for every possible variety of soil. In fact, there is no description or combination unrepresented. There are, first, the black and deep peaty soils of Hyde county and the great swamp tracts along the eastern border of the Tidewater section; then come the alluvious marls and light sandy soils of the more elevated portions of the same section; then the clayey, sandy and gravelly soils of the Piedmont and Mountain section, the result of the decomposition of every variety of rock.

2. From its western boundary to the last falls of its rivers, the rocks generally belong to that formation known as "primitive". Primitive rocks are easily distinguished; they are crystalline in structure, and have no animal or vegetable remains (called fossils) imbedded or preserved in them. The soils of this formation are not very fertile, nor yet are they sterile; they are of medium quality, and susceptible, under skilful culture, of the highest improvement. The primitive rocks are chiefly represented by granite and gneiss.

3. The rocks of the secondary formation appear in certain counties of the Piedmont section, and here the coal-fields occur, embracing many hundred square miles. This formation consists of the primitive rocks, broken down by natural agents, and subsequently deposited in beds of a thickness from a few feet to many hundred, and abounds in organic remains. The soils of this formation vary more than the former, as the one or the other of the materials of which they are made up happens to predominate.

4. The eastern section belongs to that which is known as the "quaternary" formation. Here no rocks like those mentioned above are found; indeed, rocks, in the ordinary sense of that term, are unknown. This formation will be best understood by regarding it as an ocean bed laid bare by upheaval through some convulsion of nature, and thus made dry land. Sandy soils predominate somewhat in this section, though there are tracts in which clay is in great excess, and other tracts in which vegetable matter is in great excess. Between these extremes there exist, also, the usual mixtures in various proportions.

5. Geology also affords a key to the mineral resources of a State. Those of the Tidewater section are summed up in its marls. That whole section is underlaid with marl at a depth of a few feet, and in quantity sufficient to raise and keep it, when regularly applied to the surface, for all time to come at the highest point of productiveness. Of all resources for wealth this is the most durable; and, on account of the industry to which it is subservient—the agricultural—is best calculated to promote the happiness of man.

6. It is in the primitive rocks, however, that minerals abound. Those of North Carolina surpass any in the Union. In the last Report on the Geology of the State one hundred and seventy-eight are numbered and described. Among these are gold, silver, copper, lead, iron, mica, corundum, graphite, manganese, kaolin, mill-stone grits, marble, barytes, oil shale, buhrstones,

roofing slate, etc. The most of these are the subjects of great mining industries, which are daily developing to greater proportions.

7. Of some of these minerals, as corundum and mica, North Carolina has already become the chief source of supply. Among the principal sources of the future mineral wealth of the State, copper, gold and iron are clearly indicated. The ores of these metals are found in abundance over extensive tracts of country. Lastly, in North Carolina many beautiful specimens of the precious stones have been found, and a large capital has been raised to carry on mining as a regular business for one of these—the hiddenite gem.

8. North Carolina will thus be seen to be a State of vast resources, whether we regard the variety and value of her natural or cultivated productions, the immense range of her minerals or her facilities for manufacturing industries. It would, perhaps, be safe to say that no equal portion of the earth's surface will, in half a century, be the scene of industries so various and of such value.

## **QUESTIONS.**

1. Of what does this chapter treat? What does the knowledge of the geology of a State afford? Mention the variety of soils found in North Carolina.

2. Where are the primitive rocks found? Describe them. How are they chiefly represented? What are the soils of this division?

3. Where do the rocks of the secondary formation appear? Describe this formation. What is said of the soils of the secondary formation?

4. To what class do the rocks of the Eastern section belong? What is said of this section? Describe the quaternary formation. What is said of the soil?

5. What else is afforded by geology? Where is marl found and what is said of it?

6. Where do the minerals abound? How many kinds of minerals are located in this State? Can you name the principal ones? What is said of mining?

7. What is said of corundum and mica? Of gold and iron? Of precious gems?

8. What great resources does North Carolina possess?

## CHAPTER IV.

### THE INDIANS.

That portion of America now known as the State of North Carolina was once inhabited by Indians. For many ages before Columbus came across the seas in the year 1492, they had held undisputed possession of all the Western Continent, except those Arctic regions where the Esquimaux dwelt.

2. Nearly a century had gone by since the Spaniards had begun their settlements, and yet, north of St. Augustine, in Florida, not a white man was to be found. Cortez and Pizarro had founded great states in Mexico and Peru, but the vast region stretching from the Rio Grande to the St. Lawrence was still the home of only red men and the wild beasts of the forest.

3. There were many different tribes and languages to be found among the Indians. In North Carolina, the Tuscaroras lived in the east, the Catawbas in the middle, and the Cherokees in the western portion of the territory as now defined. There were Corees, Meherrins, Chowanokes, and other small tribes in the east, but they were weak in numbers and occupied but a small portion of our present State limits.

4. The treacherous Tuscaroras were a portion of a powerful race known as the Iroquois. The other five nations of this family dwelt in the lake

country of New York, and were the most daring and dangerous confederation among all Indians then known to the white people. These Iroquois of the North were generally friendly to the English, but waged almost ceaseless war upon the French and a tribe of Indians called the Algonquins.

5. The Tuscaroras were generally to be found in the country watered by the Roanoke and Neuse Rivers, and were the terror of all other tribes. It is not known when they had separated from their northern relatives. They kept up amicable relations with them, and messengers and embassies occasionally passed between the banks of the Roanoke and the settlements on the northern lakes.

6. The Catawbas roamed over the fair regions through which flow the Catawba and Yadkin Rivers. Westward of them were to be found, in the mountains, the numerous bands of the Cherokees. Amid the towering peaks, and along the beautiful French Broad and other rivers, lived and hunted these simple children of the hills. They were generally disposed to peace, and were averse to leaving the paradise they inhabited for the dangerous honor of the warpath.

7. The Indians were, in many respects, a peculiar people. Though ignorant and savage, they were not idolaters. They believed in one God, whom they called the "Great Spirit." They were not shepherds or farmers, for they had no domestic animals except dogs, and their corn fields were but insignificant patches, cleared and cultivated by their women. They cleared these little patches of land by burning down the trees, and their plow was a crooked stick with which they scratched over the ground for planting the corn. The men hunted, and fought with other tribes, but disdained to be found engaged in any useful labor.



8. Such habits made large areas of land necessary for the subsistence of the people. Thus all of the tribes were jealous of the intrusion of others upon their hunting grounds, and whenever one found another getting closer than usual war was begun. Their lives were filled with terror and apprehension; not knowing when some enemy would kill and scalp every person in the tribe.

9. The Meherrins lived in the fork of Meherrin and Chowan Rivers. They were long at war with the Nottoways, who lived in Virginia, south of James River. The Meherrins at last left their old men, women and children and went on the warpath against their enemies, who happened to be approaching them on a similar errand. They chanced to miss each other, and the Nottoways therefore found the lodges of their foes completely undefended, and they slew every human being in the captured village. The Meherrins left their old homes in despair and disappeared in the west. This occurred after many white people had settled in the Albemarle country.

10. Such a state of society necessitated the control of one leader; so the Indian tribes were governed by chiefs, who led them to battle and in pursuit of game. Some of these chiefs, like Powhatan and King Philip, were men of marked ability, and extended their power over other tribes. When a chief died his son succeeded to his office only when fitted for the place; if weak or cowardly, some other brave was chosen. In this way the honor was not strictly hereditary.

11. The Indians had no knowledge as to the working of iron. They had only bows, arrows, stone tomahawks and such weapons for war. They lived in small communities, embracing from ten to thirty cabins, for protection, but had no large towns, because of the impossibility of feeding great numbers at one point. They held it a part of their religion to seek vengeance for all injuries, real and imaginary, and their general traits of character were

as savage as their habits. In war they had no pity on captives, no reverence for helpless age, and were strangers to the sentiments of honor and justice. They were brave, yet much given to cunning and treachery. They rarely forgot benefits or forgave injuries.

12. Many relics of these savages are yet to be found in almost every county throughout the State. Broken pieces of pottery, arrowheads and tomahawks are often plowed up in the fields; and mounds of various sizes, made by the Indians, are still seen in some sections. There had long been a tradition among the Indians that, in the course of time, pale-faced strangers from beyond the seas would possess their land; and so, after ages of petty warfare among themselves, as the sixteenth century drew to its close, they were confronted by men who built ships that withstood the ocean's storms, and shook the solid earth with the roar of their artillery.

## **QUESTIONS.**

1. Who were the original inhabitants of the country now known as North Carolina?

2. Who had made settlements on the American continent a century before the English? What two great men were leaders in making those settlements?

3. Give the location of the various tribes of Indians in North Carolina.

4. Who were the Tuscaroras? What was the feeling of the Indians toward the white people?

5. In what part of North Carolina were the Tuscaroras found? What were their habits?

6. What tribes were found in the western portion of the State? What were their habits?

7. What kind of people were the Indians? How did they cultivate the soil?

8. Give further description of their habits.

9. Where was the home of the Meherrin Indians? The Nottoways? What were the relations existing between these two tribes?

10. Describe the government of the Indians.

11. How did they live? What were some of their traits in war?

12. What relics of the Indians are still to be found in the State? What tradition existed among the Indians? How was that tradition beginning to be fulfilled ? Point out on the map the ancient homes of the Tuscarora Indians. The Catawbas. The Cherokees. The Corees. The Meherrins. The Chowanokes. Trace the course of the Roanoke River. The Neuse. The Meherrin. The Chowan. The Catawba. The Yadkin. The French Broad.

## **CHAPTER V.**

**SIR WALTER RALEIGH**

**A. D. 1570 TO 1583.**

1570. The sixteenth century of the Christian era was one of the most wonderful periods in the world's history. The recent invention of the printing-press had scattered books and knowledge over Christendom, a larger liberty in religions matters had been achieved by the Reformation, and daring navigators sailed with their ships into many regions never before visited by civilized men.

2. The Portuguese and Spaniards sent expeditions to many lands. In America, thousands of men and women were living who had come from Europe, or had been born of white parents since the first settlements in the West Indies, Mexico and Peru. As Columbus had discovered the new world with Spanish ships, the kings of Spain laid claim to all the continent.

3. England, in that time, was ruled by Queen Elizabeth, who began her reign in 1558. Ireland and the small islands in the British Channel were the only dependencies of the Crown. Scotland was still an independent monarchy. With a few millions of subjects, and this small territory as her realm, this queen was in great danger of dethronement and death. The Pope, the Catholic kings and her own people belonging to the Church of Rome

denied her title to be queen and sought her overthrow and that of the Protestant religion she upheld.

4. Amid so many dangers and difficulties, Queen Elizabeth, by wisdom and prudence, not only managed to defend herself, but became one of the greatest rulers of any age. She devoted her energies to the government of her people, and, though courted by many princes, would never marry, for fear such a relation would impair her usefulness as a queen.

5. Among her greatest gifts as a ruler was her clear insight into the characters of men. She knew whom to employ as her agents, and was rarely deceived as to how far she could trust them in a season so full of treason and danger. But this great queen, who humbled the most powerful monarchs, and in whose presence the sternest men would sometimes tremble, was, after all, a very vain woman. Nothing pleased her more, even in her old age, than praise of her personal appearance.

6. One evening she was walking at the head of a procession composed of ladies and gentlemen of her court, when she encountered a muddy place in her pathway. The stately queen paused a moment, seeming in doubt as to whether she should step in the mud or pass around. A handsome young man, who was standing near by, snatched a velvet cloak from his shoulders, and, throwing it in the mud for Her Majesty to step upon, she passed over with dry feet.

7. Queen Elizabeth was charmed with the ready gallantry of the youth. She made inquiries concerning him, and found that it was young Walter Raleigh, who had just come to London from his home in the country. It was the beginning of his fortunes at court, and he soon won the queen's confidence and respect.

8. Walter Raleigh had many noble and generous qualities. He was, by nature, brave, ambitious and enterprising, and soon became a great and learned man. He was a gallant soldier, a skilful navigator and the statesman who first conceived the plan for extending the British Empire. While serving as a soldier in behalf of the French Protestants, on the continent of Europe, he heard and read so much of the wondrous lands across the Atlantic Ocean that he resolved that England should share in the glory and profit of future discoveries.

1578-83.

9. When Raleigh went back to England he communicated his desires and feelings to his half-brother, Sir Humphrey Gilbert, who had made reputation as a commander of ships. In the year 1578, the queen granted leave to these two men to sail in search of lands yet undiscovered by civilized nations. In 1583 they sent out a large vessel called the Raleigh, [It is said that the vessel was commanded by Sir Walter Raleigh in person, and this was the only attempt ever made by him to visit the shores of North America. ] which was compelled to return in a few days, on account of disease among the crew.

10. English sailors, at that time, were easily discouraged in efforts to navigate the Atlantic Ocean. They had never crossed it, and were full of superstition concerning that unknown and mysterious sea.

11. Again, in 1583, Sir Humphrey Gilbert, with three ships, ventured out upon the waste of waters that lay to the west of their island homes. He discovered the island of Newfoundland, and thence sailed southward. Off the coast of Maine he was overtaken by a storm which sunk one of his ships. This disaster induced him to turn his prow for the voyage homeward; but the storm continued, and the darkness and horrors of the sea

grew tenfold worse when they found themselves amid drifting icebergs. Brave Sir Humphrey, from the deck of his ship, the Squirrel, to the last cheered the men of her consort, crying out, "Cheer up, my lads! We are as near heaven at sea as on land."

12. When the terrible night had passed, it was found that Sir Humphrey Gilbert and his crew had perished, and only the Hind was left to carry back the disheartening tidings to Raleigh and the English queen. The vessel which carried Sir Humphrey Gilbert and his crew was of only ten tons burden, and very poorly able to stand the gales along the American coast. The Delight, another one of the fleet, had gone down a few days before the loss of the Squirrel.

[NOTE—In the year 1520 a Spanish vessel, commanded by Vasques de Ayllon, was driven by a violent storm upon the coast of Carolina. The commander was kindly treated by the natives, and, in return, he enticed a number of them on board his ship and tried to carry them to Hispaniola. But the Indians preferred death to captivity; they all refused to partake of any food, and thus died of voluntary starvation. The scene of this occurrence is within the present borders of South Carolina.]

## **QUESTIONS.**

1. What is said of the sixteenth century of the world's history?

2. What was the condition of the "new world"? What people laid claim to the American continent, and why?

3. Who was Queen of England, and what was the condition of her kingdom? What was Queen Elizabeth's trouble with the Pope of Rome?

4. What is said of Queen Elizabeth as a ruler?

5. What other traits of character did she possess?
6. What interesting circumstance is relayed of the queen?
7. Who was the young man, and what did the queen think of him?
8. What was the character of Walter Raleigh?
9. To whom did he communicate his plans? What did the queen grant to these two men? When was the first expedition started, and with what result?
10. How did sailors of that period regard the Atlantic Ocean?
11. What occurred in 1583? What island was discovered? What disaster befell the expedition?
12. What did daylight reveal? Give the names of the three ships.



## CHAPTER VI.

### DISCOVERY OF NORTH CAROLINA.

#### A. D. 1584 TO 1585.

1584. When the little ship *Hind* reached England, and it was known how Sir Humphrey Gilbert and so many of his men had gone down into the depths of that mysterious ocean which was so much dreaded, there was great grief; and, possibly many bitter speeches were made by the people who stayed at home and predicted disaster to the daring enterprise. Raleigh was sorely afflicted at the loss of his brother and men, and had he been weak or selfish this disaster would have unmanned him, and he would have ventured on no more such projects.

2. He had lost many thousands of dollars in the foundered ships; and many a gallant friend that had trusted him and cheered him in his mighty schemes had perished. But the hearts of heroes are not cast in common moulds. Instead of abandoning his enterprise, he obtained, on March 25, 1584, letters-patent from the queen favoring another expedition, and he at once began to fit out another fleet. This consisted of two vessels, and they were put under the command of Philip Amadas and Arthur Barlowe.

[NOTE—The queen's "Letters-Patent" to Raleigh gave him "Free liberty to discover such remote heathen and barbarous lands not actually possessed by any Christian prince, nor inhabited by Christian people.]

3. The fleet sailed from England on the 27th day of April, 1584, and, avoiding the dangers of drift-ice in the northern waters, steered for the Canary Islands and the West Indies. They had the good fortune to escape the Spanish cruisers, which were so dangerous to English vessels sailing at that day upon this course. On the 14th day of July they first saw the coast of North Carolina, probably at a point just below Old Topsail Inlet. They continued northward along the low, barren barriers of sand which divide the waters of the ocean from those of Pamlica and Croatan Sounds, and, two days later, came to anchor off an island called Wocoken, in what was an inlet at that day.

4. They called this place Trinity Harbor. Across the desolate sand ridges were fair landlocked waters, and great forests that sent far out to sea the odors of countless flowers. The weary toilers who had sailed so far, with nothing to look upon but the sky and the great stretches of the sea, were charmed with the richness of the vegetation, the balmy air, and the ceaseless songs of the mockingbirds.

5. For two whole days it seemed that the country was uninhabited, for no one had been seen by the Englishmen. At the expiration of that period they saw a canoe approaching from the north, in which were three Indians. One of them landed and came down the beach toward the ships. By signs he was invited aboard the vessels, and went with the white men to survey some of the wonders of civilization found in various parts of the vessel.

6. It must have been a notable day in this Indian's life, when, for the first time, he, who had seen nothing of the kind larger than his canoe, beheld the tall poops, the towering masts and the great sails of vessels that had come from such distant lands beyond the seas. Nothing so astonished the Indians of that day as the roar of artillery. It was something entirely beyond their comprehension, and filled them with terror. They had no guns or knowledge

of their use. So, when a cannon was fired, they were ready to believe that men who could do such things were possessed of supernatural powers.

7. The officers of the vessel gave to the Indian a hat, shirt and several other articles, besides treating him to wine and meat, which he seemed to greatly relish. As a return for their kindness, the Indian took his canoe and showed the white men how to catch fish. In a half hour he had nearly filled his boat with those delicious fish which have always so remarkably abounded in all the waters of that portion of North Carolina. By signs he made known his wish that they should be divided between the men of the two ships, and then he took his departure.

8. The next day many Indians, with much ceremony, visited the ships. Among them was Granganimeo, a brother of the chief who ruled in that portion of the country. He was an honest and kindly Indian, faithful to his promises, and affording a strong contrast to Wingina, the Indian king, who was full of suspicion and duplicity. The Indians were clothed in mantles and aprons of deerskins. They were gentle, unsuspicious and hospitable. A few days later Amadas, with eight of his men in a boat, visited the home of Granganimeo, about twenty miles distant, on the shore of Roanoke Island. The chief was not at home, but his wife gave them a cordial and hospitable reception. She prepared a feast for them of fruits, melons, fish and venison, and showed them every kindness.

9. Amadas and Barlowe proceeded, in the presence of many Indians, to lay claim to the country for their queen. This whole pageant was probably a dumb show to the astonished and ignorant natives. They neither knew nor cared what the white men were celebrating with beating drums, flaunting banners and salvos of artillery.

10. This expedition had not been sent with any purpose of settlement; so, in a few weeks after the ceremony of taking possession, the fleet weighed

anchor and sailed back to England. They carried with them a large cargo of skins and valuable woods, which they had obtained in trading with the Indians. For a bright tin dish the Indians gave twenty skins, worth about thirty- five dollars, and fifty valuable skins were given for an old copper kettle. Amadas and Barlowe also carried to England the first knowledge of the potato and tobacco.

11. With their own consent, two Indians, named Manteo and Wanchese, were taken aboard and carried to England, that they might see something of the world across the sea. They afforded a singular test of human nature. They were of equal abilities, and yet, by the visit to England, Manteo became the friend, Wanchese the implacable enemy of the white men.

[NOTE—The Indians were greatly amazed at the sight of gunpowder, the cause of all the noise in the artillery. On one of their expeditions they captured a quantity of powder from the colonists, and, to increase the supply, they made rows in the ground and carefully planted the black grains of powder, expecting to reap a full harvest of it in season. ]

12. Queen Elizabeth was greatly pleased by the glowing descriptions of the new country as given by the returned mariners, especially by the accounts of the abundance of fruits, vines hanging with luscious grapes, great forests, rich shrubbery and bright flowers, and she gave the country the name of Virginia, in honor of herself, the "Virgin Queen."

13. Walter Raleigh was, soon after, elected a member of Parliament in the House of Commons, of which body he became a leader. The queen, in recognition of his services, confirmed his patent for prosecuting discoveries in foreign lands, and, in conferring upon him the honor of knighthood, made him Sir Walter Raleigh.

## QUESTIONS.

1. How did the people of England receive the news of Sir Humphrey Gilbert's death? How did it affect Raleigh?

2. What did the expeditions cost him? Whom did he next send out to the new world?

3. When did this fleet leave England? Describe their course and trace it on the map. When did they reach the coast of North Carolina? Where did they land? Can you point out this place on the map? Wocoken? Croatan? Pamlico Sound?

4. What did they name this place? What is said of the new land?

5. What occurred on the second day after their arrival?

6. How did this visit impress the Indians? How were the Indians affected by the roar of the artillery?

7. What return did the Indian make for the kindness of the white men?

8. Who next visited the ships? What kind of man was he? How did this Indian's wife treat the white men? Locate Roanoke Island on the map.

9. What formal ceremony did Amadas and Barlowe conduct?

10. What did the ships carry back to Europe?

11. What two Indians were taken on a visit to England? How was each of them affected by the visit?

12. What account did the mariners give of the new country? What did Queen Elizabeth think of the description? What name did she give to the

new country, and why?

13. Of what body did Raleigh soon become a member? What title was then conferred upon him, and why?

## CHAPTER VII.

### GOVERNOR LANE'S COLONY.

A. D. 1585 TO 1586.

We cannot easily realize, in our day, what excitement and enthusiasm were felt in England when the two ships returned and exhibited the Indians, the potatoes, the tobacco and other new and strange productions that had been gathered by Amadas and Barlowe, to prove the value and fertility of the newly discovered land. It is strange, but true, that more value was set upon the discovery of the sassafras tree than upon anything else, and wonderful things were expected of its virtues as a tea, a medicine and for the manufacture of perfume.

[NOTE—Sir Walter Raleigh planted some of the potatoes upon his own estate, and found them very palatable. Other people afterwards obtained seed from him, and now the potato forms a principal part of the food of Ireland. Raleigh was also the first Englishman who ever used tobacco. An amusing incident is related of his using it. His servant entered the room one day, bringing a mug of ale, while Raleigh was enjoying his pipe and tobacco, and the smoke was issuing from his mouth and filling the room. The servant, thinking, that his master was on fire, immediately dashed the ale in his face and ran out, crying for help, for his master "would be burnt to ashes."]

2. Sir Walter Raleigh hastened to send over a colony of men to take possession of Roanoke. Ralph Lane, a gentleman of courage and experience, was appointed Governor. The seven ships, conveying one hundred and eight emigrants and the two Indians who had visited England, sailed on the 9th of April; they were commanded by Sir Richard Grenville, who was a cousin of Raleigh, and famous as a seaman.

3. This fleet also came over by the southern route, and was in considerable danger off Cape Fear during a great storm, but the ships all safely rode out the gale, and, on the 26th of July, 1585, they dropped their anchors in Trinity Harbor, off the coast where the fleet had lain during the visit of the previous year. News of the arrival was at once sent to Wingina, at Roanoke Island.

4. Governor Lane had one hundred and eight men to remain with him, among whom was Thomas Hariot, the celebrated mathematician and historian. With these colonists he landed upon Roanoke Island, and began to build and fortify a town upon the northern part of the island, which he named the "City of Raleigh." The island is twelve miles long and about four broad, and is to this day fertile and pleasant as a place of residence. It then abounded in game, and countless and choice varieties of fish were to be caught in the sounds and sea at all seasons of the year.

5. Admiral Grenville was active during his stay at Roanoke in visiting many Indian towns and in exploring the many broad waters that are found connected with one another in that portion of North Carolina. On one of his expeditions he lost a silver cup, which was stolen from him during his stay at an Indian town. The passionate seaman, in a rage, demanded its return by the Indians, whom he charged with stealing it. They did not comply, and he, with great imprudence and injustice, burned the whole village and destroyed all the corn.



6. This was the first taste afforded the Indians of how harshly they might expect to be treated, and, though no war followed immediately, they neither forgot nor forgave Grenville's punishment, and many unexpected injuries were inflicted upon the poor settlers by the Indians on account of this rash and cruel act.

7. Governor Lane, after the admiral's departure, continued his explorations, in order to learn the geography and nature of the country. He ascended the Chowan River to near the mouth of the Nottoway and penetrated the interior as far as the Indian village of Chowanoke. Instead of clearing fields and making provisions for his people; he was laboriously searching for gold mines and jewels. He was told by the chief of the Chowanoke Indians, whom he held as prisoner for two days, that such things abounded along the upper reaches of Roanoke River (then called the "Moratock"), and that the headwaters of that stream extended to within an arrow's flight of a great ocean to the west, and along the banks of the river lived a very great and wealthy race of people, whose walled cities glittered with pearls and gold.

8. Fired in imagination by this false and wicked Indian story, preparations were made for a journey in boats, longer than had yet been attempted. They found the swift current of the Roanoke difficult to ascend, and their small store of provisions was exhausted by the time they had reached where the town of Williamston now stands. They could procure none from the Tuscaroras, who dwelt upon the banks, and, while in this dilemma, the savages made a night attack upon their camp, and with great difficulty the adventurers succeeded in escaping destruction.

9. Thus perished Governor Lane's dreams of gold. He hurried back to Roanoke and soon found the hostility of the Tuscaroras extending to the tribe under Wingina. Granganimeo was dead, and Manteo was the only

Indian of any influence who manifested friendship for the colonists. They had previously brought an abundance of fish, game and fruits; but these supplies now ceased, and Governor Lane realized that he was surrounded by a people who had become his enemies.

1586.

10. By some means he discovered that Wingina was concerting with the Tuscaroras for an attack upon Roanoke Island. Concealing this knowledge, he invited the unsuspecting plotter to come, with certain of his people, to a feast at the City of Raleigh. They accepted the invitation, and Wingina, with eight of his headmen, was put to death. This occurred on the first of June, 1586.

11. This was a stern and bloody punishment of their foes, but it gave the white men deliverance from attack until Sir Francis Drake came, with a large fleet, and anchored in Trinity Harbor, finding the colony almost in a perishing condition.

12. Ralph Lane was not a hero, but Francis Drake was. If the Governor lacked resolution, no man ever supposed the great admiral deficient in this respect. After a long consultation, Drake approved the resolution of the colonists to abandon the settlement, and, on the 19th of June, 1586, taking them aboard his ships, he steered for England, leaving the City of Raleigh untenanted. Thus failed the first attempt at forming a permanent settlement upon this great territory forming the present limits of the United States.

## **QUESTIONS.**

1. What occurred in England on the return of the ships? Mention some things exhibited by the mariners.

2. What did Sir Walter Raleigh next do? Who was appointed Governor? Who commanded the expedition?

3. What was the route of the fleet? When and where did they land?

4. How many men were landed upon Roanoke Island? What did they name their city? Describe Roanoke Island.

5. Mention some of Grenville's exploits during his stay.

6. What did the Indians think of this treatment? How did the settlers suffer in consequence?

7. How did Governor Lane occupy himself? What wonderful story was told Lane by the Indians?

8. How did Lane regard this story? Give an account of his expedition up the Roanoke River. Point out Williamston.

9. What did Governor Lane find to be the condition of affairs upon his return to the settlement?

10. What plot was discovered? How did Governor Lane prevent it?

11. What was the effect of this treatment? What help arrived from England?

12. What did the colonists resolve to do? What is said of this attempt to found a colony?

## **CHAPTER VIII.**

### **GOVERNOR WHITE'S COLONY.**

**A. D. 1586 TO 1590.**

It must have been a sore trial to Sir Walter Raleigh when he learned that his colonists had returned to England. He had sent over a ship with abundant supplies, which reached Roanoke only a few days after Sir Francis Drake sailed away with his fleet. Finding no white people upon the island, the ships returned to England. Sir Richard Grenville also touched at the same point, with three other ships, about fifteen days later. The folly, avarice and timidity of agents such as Ralph Lane have, in all ages, crippled the noblest efforts for human advancement.

2. Sir Richard Grenville left fifteen men in the fort built at Roanoke by Lane, lest the English claim to the country should be lost through want of its being occupied. They soon fell victims to Indian vengeance after Grenville had hoisted his sails and gone in search of Spanish treasure ships.

1587.

3. Once again, in 1587, Raleigh collected a fleet of transports, and, with John White as Governor, sent about one hundred and fifty men, women and children to Roanoke for permanent settlement. They brought over farming implements, wisely determining to give up the useless search for gold, and

to look to husbandry as a means of livelihood in their new home. On arriving at Roanoke, on the 22d of July, Governor White, with forty of his best men, went ashore for the purpose of finding the men who had been left there by Grenville. The fort was destroyed, the houses were in a dilapidated condition and no trace of the colonists was found except a single skeleton which lay bleaching in the sun in front of one of the cabins, indicating that some fearful tragedy had been enacted.

4. Sir Walter Raleigh had ordered White to go to Hampton Roads, in the region of Chesapeake Bay, instead of Roanoke, but this command was disregarded under the plea that, their pilot, a Spaniard, would not show the way. But as Governor Lane had sent a party there the year before, the location must have been known to others of the expedition besides Fernando, the pilot. It was like everything else done by John White while connected with the effort of colonization—very foolish and culpable.

5. Manteo was still the warm friend of the English, and, with his mother, welcomed them to his home on Croatan. He was, on the 13th of August, as a reward for his faithful services, baptized by order of Sir Walter Raleigh, and created a nobleman, with the title of "Lord of Roanoke," which was the first title of nobility ever conferred by the English in America.

6. Governor White had, among the colonists, a daughter named Eleanor, wife of Ananias Dare, one of his assistants. On August 18th, a few days after their arrival, she gave birth to a little girl, who, in honor of the land of her birth, was named "Virginia Dare." This is about all we know of the little girl who will ever be famous as the first of all the children born to English speaking people within the borders of the United States. One of the counties of this State bears the name of "Dare" in honor of this little girl, and includes in its area the scene of her birth.

7. Governor White had been at Roanoke only a few weeks, when he became convinced that he should at once return to England in the interest of the people he had been sent over here to govern. He said they would need provisions and additions to their numbers, and a larger supply of implements of civilized life; therefore, after a stay of but thirty-six days with the colony, he set sail for England.

8. He should have manifested even more haste to return to America, as members of his own family were included among the settlers who were at Roanoke looking to him for guidance and safety amid so many dangers. But when he reached England, and Raleigh had furnished him with two ships and men and stores for his speedy return, John White found excuse for long stay before revisiting the stormy neighborhood of Cape Hatteras.

9. When he was ready to sail for America a great Spanish fleet, called the "Invincible Armada," was drawing near the English coast, with the avowed purpose of dethroning the queen and subjugating the people. John White preferred to take the chances of plunder in the coming engagement to fulfilling his duty to the poor people at Roanoke who were waiting so anxiously for his return.

10. British heroism, aided by a severe storm, drove off and destroyed the great Spanish fleet, and Governor White, with his two ships which Raleigh had with great difficulty fitted out for him with stores for the colony, joined in pursuit of the fugitives. He gained neither gold nor glory, and his ships were so battered that they had to be carried into port and repaired before they were fit to venture on a voyage across the Atlantic Ocean. Sir Walter Raleigh expressed very great displeasure at the conduct of Governor White.

1590.

11. Three years had elapsed before Governor White came back to Roanoke. He found the "City of Raleigh" as desolate as upon his first arrival. There was no trace of the colonists left except the word "CROATAN," carved upon a tree. It had been agreed that if the colonists should find it necessary to remove before his return, they would thus designate the place to which they had gone. Governor White, in his search, found three of his chests which had been buried by the colonists and afterwards dug up and partly broken open. They contained books, maps and pictures, all of which were badly torn and spoiled.

12. Croatan was a peninsula about fifty miles from Roanoke Island, and Governor White had good reason to believe that the people whom he left had gone there; but he sailed down the coast in sight of the place, and went back to England with no further efforts to discover the nature of their fate. Thus, again, Roanoke was left to the savage and the wild beast. It will never be known what became of the colonists. Sir Walter Raleigh for a long time did not despair of finding them, and sent out five expeditions for this purpose, but all were unsuccessful. Their fate is one of those sealed secrets which will only be known when all our ignorance shall be enlightened and the sea gives up its dead.

[NOTE—There was a tradition among the Indians that these people, after great suffering for food, were adopted by the Hatteras tribe of Indians, and became mingled with them; and, it is said that later generations of these Indians possessed many physical characteristics which indicated a mixture of the European and Indian races; but this may be, after all, fanciful surmises of the early historian. ]

## QUESTIONS.

1. What ships had been sent over to relieve the colony?

2. How did Grenville continue English claims to Roanoke? What was the fate of his settlers?

3. What was Raleigh's next attempt at settlement? Who was appointed Governor? How many people composed the colony? How was this colony better prepared for permanent settlement than any of its predecessors? What became of this colony?

4. Where had White been ordered to make settlement? Point out Hampton Roads on the map. Why did he land at Roanoke Island? What is said of Manteo?

6. What is said of little Virginia Dare? How is her name still honored in this State? Point out Dare county on the map.

7. What did Governor White do in a few weeks after his arrival at Roanoke?

8. What was furnished to him on his arrival in England? Did he at once go back to relieve the colonists?



9. Why did not Governor White immediately return to his suffering people?

10. What became of the "Spanish Armada"? How did Governor White become engaged in this conflict?

11. How long was Governor White away from Roanoke? What did he find on his return? What is supposed to have been the meaning of the word "Croatan"? What did Governor White find?

12. Where is "Croatan"? Can you locate it on the map? Did Governor White go to this place to seek his people? Was any settlement on Roanoke at this time? What effort did Raleigh make to find these people?

## **CHAPTER IX.**

### **THE FATE OF RALEIGH.**

**A. D. 1590 TO 1653.**

The story of the attempted settlement on Roanoke Island is the story of one of the world's tragedies. Misfortune seemed to be the doom, not only of the colonists, but of many gallant men who sought to aid Sir Walter Raleigh in his enterprise. Sir Humphrey Gilbert, with two of his ships, was the first to perish at sea; Sir Francis Drake and his compeer, Sir John Hawkins, both died of pestilence in the West Indies; and, to the baffled and broken-hearted originator of the scheme, the coming years were black with disaster and death.

2. With the loss of Governor White's colony, Raleigh found that his expenditures had greatly impaired his wealth. He had lost more than two hundred thousand dollars (£40,000 sterling), and, no longer able to fit out costly and fruitless expeditions, was forced to solicit aid from others, joining them in the rights and privileges granted him by the queen in his charter.

[NOTE—It must also be remembered that money in the sixteenth century was worth at least five times more than at present. Forty thousand pounds

expended by Sir Walter Raleigh would, at that time, purchase about what one million dollars would now command in England or the United States. ]

1603.

3. But Raleigh found his greatest disaster in the death of Elizabeth. After ruling England so wisely and well for more than fifty years, she died on March 24th, 1603. This great queen left her throne to one of the most paltry and contemptible of men.

4. King James I, was an ungainly Scotch pedant, who was incapable of appreciating heroism and manliness in others, because of his own deficiency in all such qualities. He lavished favors and titles on unworthy favorites, and incurred the contempt of wise men for his follies and vices.

1618.

5. Sir Walter Raleigh had long treated the Spaniards as the enemies of his country. The King of Spain hated him on that account, and King James, to please His Catholic Majesty and secure the marriage of Prince Charles to a Spanish princess, caused the great lawyer, Sir Edward Coke, to procure the wrongful conviction of Raleigh, his greatest subject. After lying in prison for twelve years under this conviction, Raleigh was released by King James, and although not pardoned, was put in command of an expedition to the coast of Guiana. The expedition was unsuccessful, and on his return, to satisfy the King of Spain, James signed the warrant for Raleigh's execution upon his former sentence. Accordingly, Raleigh was beheaded, at the age of sixty-five, as a traitor to the land for whose good he had accomplished more than any one else in all its limits.

[NOTE—Sir Walter Raleigh occupied the twelve years of his imprisonment in writing a "history of the world." This work gave great

offence to King James, who endeavored to suppress its circulation. When Raleigh was carried to execution, while on the scaffold, he asked to see the axe. He closely examined its bright, keen edge, and said, with a smile: "This is a sharp medicine, but a sound cure for all diseases." He then laid his head composedly on the block, moved his lips as if in prayer, and gave the signal for the blow. ]

6. Thus suffered and died the man who first sent ships and men to the soil of North Carolina. That he failed in what he desired to accomplish should not detract from the gratitude and reverence due to his memory. If incompetent and unworthy agents, and the accidents of fortune, thwarted him in his designs, the fault is not his. He was the greatest and most illustrious man connected with our annals as a State, and should ever receive the applause and remembrance of our people.

7. After the death of Sir Walter Raleigh no more efforts were made to plant a colony at Roanoke. The spot was never favorable for such a purpose. No coast in the world is much more dangerous to ships than that of North Carolina. Cape Hatteras is even now the dread of all mariners. It is visited by many storms, and sends its deadly sandbars for fifteen miles out into the ocean to surprise and wreck the ill-fated vessel that has approached too near the coast.

8. Governor Lane, while at Roanoke, discovered the broad, deep inlet and safe anchorage at Hampton Roads, within the present limits of Virginia. This port lies, but little to the north of that inlet which Amadas and Barlowe entered on the first English visit to Carolina. Into Hampton Roads, in 1607, went another colony, sent over by men who had succeeded the unfortunate Raleigh in the royal permission to plant settlements in America. To the genius and bravery of the leader, Captain John Smith, was due the permanence of the settlement at Jamestown. The name of "Virginia," which

had been applied to all the territory claimed by England under the discoveries of Gilbert and Raleigh, was then confined to the colony on James River.

9. In the course of a few years many places on the Atlantic coast were occupied by expeditions sent out from England and other countries of Europe. Those of England, at Plymouth, of the Dutch, at New Amsterdam, and of the Swedes, in New Jersey, were speedily seen, while yet roamed the Tuscarora in undisturbed possession of North Carolina.

10. As Virginia grew more populous there were hardships and troubles concerning religion. Men and women were persecuted on account of their religious practices. If people did not conform to the "English" or Episcopal Church they were punished by fine and imprisonment. Sometimes cruel whipping became the portion of men who were found preaching Quaker and Baptist doctrines.

11. Sir William Berkeley, who was Governor of Virginia, had no authority over men who dwelt in the region south of a line a few miles below where the ships approached the inland waters of Virginia. When this became known many people around the Nansemond River and adjacent localities went southward, towards the Albemarle Sound, seeking homes where the tyrant of Virginia had no jurisdiction.

1653.

12. For this cause Roger Green, a clergyman, in 1653, led a considerable colony to the banks of the Chowan and Roanoke Rivers; but even before this, there were probably scattered settlements over most all the region north of the Albemarle Sound, of which we have no reliable account.

## **QUESTIONS.**

1. What is said of the attempted settlement upon Roanoke Island?
2. What had the expedition cost Raleigh?
3. What was Raleigh's greatest loss?
4. Who succeeded Queen Elizabeth? What kind of a man was King James I. ?
5. What new trouble came upon Raleigh? Describe his conviction and death.
6. How should the people of North Carolina ever think of Sir Walter Raleigh?
7. Were any further efforts made to plant a colony at Roanoke? What is said of the place?
8. What safe anchorage had Governor Lane discovered? What colony entered Hampton Roads in 1607? What town was settled in Virginia, and by whom? To what locality was the name "Virginia" then confined?
9. Mention some settlements made on the Atlantic coast about this time.
10. What persecutions were common in Virginia?
11. Over what section of country did Governor Berkeley have no authority? When this became known to the people what did many of them do?
12. What settlement was made by Roger Green, and when? Were there any settlements in North Carolina before this time?

## **CHAPTER X.**

### **KING CHARLES II. AND THE LORDS PROPRIETORS.**

**A. D. 1663.**

After the discovery of North Carolina, in 1584, by Amadas and Barlowe, many years had gone by before the period now reached in this narrative. Not only had James succeeded Elizabeth, but Charles had succeeded James and had been beheaded as a traitor to the land he pretended to rule. Cromwell had lived, ruled and died, and Charles II. was on the throne of his fathers, and thus again royal bounties became possible and fashionable.

2. Many men in England had heard of the goodly land which was being peopled around Albemarle Sound, beyond the jurisdiction of Governor Berkeley. He, too, with his bitter and envenomed soul, took part in a scheme which was to give him some authority over the refugees who had imagined themselves beyond the reach of his cruel rule.

1663

3. In the year 1663, His Majesty Charles II., King of England, Scotland and Ireland, granted to George, Duke of Albemarle; Edward, Earl of Clarendon; William, Earl of Craven; John, Lord Berkeley; Anthony, Lord Ashley; Sir George Carteret, Sir John Colleton, and Sir William Berkeley,

as "Lords Proprietors," all the territory south of the lands not already granted to the province of Virginia, down to the Spanish line of Florida.

4. There were some remarkable men among these titular owners of the land we now inhabit. The Duke of Albemarle had been General George Monk before the restoration of King Charles, and was made a nobleman on account of his part in that transaction. He was not possessed of very great ability, and only became famous by the accidents of fortune.

5. Very different was the astute lawyer, Edward Hyde, who, for his abilities, was made the Earl of Clarendon and Lord High Chancellor of England. He was a selfish and crafty man, and lost his offices in his old age, but had two granddaughters who became queens of Great Britain.

6. Lord Ashley, afterward the Earl of Shaftesbury, will ever be remembered for the part he bore in establishing the writ of habeas corpus as a part of the British Constitution. He was a bold, able and profligate man, who marred great abilities by greater vices. He combined within himself all that is dangerous and detestable in a demagogue.

7. Sir William Berkeley, then Governor of the province of Virginia, was another of these Lords Proprietors. He was the embodiment of the cruelty and religious prejudice of that age. He whipped and imprisoned people who worshipped God in a way not pleasing to himself, and was immortalized by the remark of King Charles II., who said of him: "That old fool has taken more lives without offence in that naked country than I, in all England, for the murder of my father."

8. To these men, as Lords Proprietors, a great territory was granted, which they called "Carolina," in compliment to King Charles II. [Many years before this time the name of "Carolina" had been applied to the territory between Virginia and Florida, in honor of King Charles IX. of



France. ] All of them except Governor Berkeley lived in England, but they ruled the new country and sold the lands at the highest rate of money they could get, with a tax of seventy-five cents on each hundred acres to be paid every year.

9. Many fine promises were made to the English and other people to induce them to go to Carolina and settle. Freedom to worship God in the way that seemed best to each individual was especially held out to poor sufferers like John Bunyan, who, in those days, were too often kept for long years in loathsome prisons because of their differing with the civil magistrates as to certain matters of faith and practice in the churches.

NOTE—Governor Berkeley exhibited some traits of his character by saying, while Governor of Virginia: "I thank God there are no free schools nor printing here, and I hope we shall have none of them these hundred years."

10. Religious persecutions were practiced in most of the American colonies. It had been decreed in some of the New England colonies that Quakers, upon coming into the province, should have their tongues bored with a hot iron and be banished. Any person bringing a Quaker into the province was fined one hundred pounds sterling (about five hundred dollars), and the Quaker was given twenty lashes and imprisoned at hard labor. In Virginia the persecutions were equally as bad, if not worse, and some of the punishments were almost as severe as Indian tortures. The Assembly of this colony (Virginia) levied upon all Quakers a monthly tax of one hundred dollars.

11. To escape persecution, many men who were Quakers and Baptists had already gone to the region around the Albemarle Sound; and others followed from various inducements. Their settlements were known as the

"Albemarle Colony." The whole country was still roamed over by Indians, and even in Albemarle the rude farmhouses were widely scattered.

12. There was not even a village in the new province. No churches, courthouses or public schools were to be seen; but the men and women of that day loved liberty. They preferred to undergo danger from the Indians and the privations of lonely homes in the forest to the persecution which they found in England and in many portions of America.

13. It can hardly be realized amid the present luxuries and enjoyments of the American people, what dangers and privations were encountered by the white settlers in North Carolina two hundred years ago; for while now thronging cities, teeming fields and busy highways of a people numbering many millions cover the land, then cruel and crafty Indians, always hostile at heart to the tread of the white man, surrounded the defenceless homes of the scattered colonists and filled the great forest stretching three thousand miles toward the setting sun.

## **QUESTIONS.**

1. What period have we now reached in our history? What changes had taken place in the English government?

2. In what new scheme do we find Governor Berkeley taking part?

3. What new grant of this territory was made in 1663? What was the new government called?

4. What kind of a man was George, Duke of Albemarle?

5. Who was Edward, Earl of Clarendon?

6. Who was Lord Ashley? What was his character?

7. What was Governor Berkeley's character? What was said of him by King Charles II. ?

8. What name was given to the territory now granted? In whose honor was Carolina named? Where did the Lords Proprietors live? What tax was to be paid to them?

9. What inducements were offered to the English to go to Carolina and settle? Why was "religious freedom" an inducement for them to leave their comfortable homes and settle in a savage country?

10. What religious persecutions were seen in most of the American colonies?

11. What two religious sects had emigrated to this section? What did they call their colony?

12. What was the condition of the colony? What sacrifices had the colonists made, and why?

13. How did the condition of the colonists differ from ours?

## CHAPTER XI.

### GOVERNOR DRUMMOND AND SIR JOHN YEAMANS.

A. D. 1663 TO 1667.

1. King Charles II., who thus bestowed this vast dominion upon a few of his friends, was in marked contrast, as a sovereign, to Queen Elizabeth. He was a gay, dissolute, shameless libertine, who despised all that is valuable in human duties, and spent his life in the paltriest amusements. He could be polite and entertaining in conversation, but abundantly justified Lord Rochester's remark that "he never did a wise thing or said a foolish one."

2. Under instructions from the other Lords Proprietors, Sir William Berkeley, in 1663, appointed William Drummond the first "Governor of Albemarle." He was a Scotch settler in Virginia, and was a man who deserved the respect and confidence of the people whom he governed. He was plain and prudent in his style of life, and seems to have given satisfaction to the people who had been previously uncontrolled by law or magistrate.

3. After a stay of three years, Governor Drummond returned to Virginia. A great trouble arose in Virginia at this period, known as "Bacon's Rebellion." A brave young man, Nathaniel Bacon, was at the head of a force resisting the presumption and illegal authority of Governor Berkeley. William Drummond, seeing the justness of the resistance, warmly

supported Bacon's cause. Mrs. Sarah Drummond, wife of the Governor, nobly sustained her husband. Bacon died before the close of the "Rebellion," and a large number of the leaders were put to death. Governor Drummond was, by order of Berkeley, hanged within two hours after his capture. The entire property of Mrs. Drummond was confiscated and herself and five children were turned out to starve.

4. This tragic culmination of Berkeley's ruthless cruelties was the occasion of the bitter censure by the king, already recorded. After the death of Berkeley, Mrs. Drummond brought suit against his wife, Lady Frances Berkeley, for recovery of her property, and a verdict in her favor was given by a Virginia jury. Governor Drummond is commemorated by the lake in the Dismal Swamp which still bears his name.

5. It was discovered soon after the king's grant to the Lords Proprietors, that a belt of land extending southward from the present Virginia boundary to a point on a line with the mouth of Chowan River, and extending indefinitely west, was not included in that charter; so, in 1665 another charter was granted joining this strip of territory to North Carolina.

6. In 1663 there was an expedition formed in the island of Barbadoes, which came to the shores of Carolina and explored to the distance of about one hundred and fifty miles the courses of the northeast branch of the Cape Fear River. This expedition was under command of an experienced navigator named Hilton, who was assisted by Long and Fabian, and returned to Barbadoes in February, 1664.

7. Among the planters who had fitted out this expedition was John Yeamans. He was a young man of good connections in England. His father had been Sheriff of the City of Bristol during the war of King Charles I. with Parliament, and was put to death by the order of Fairfax on account of his stubborn defence of his city in the king's behalf.

1666.

8. Yeamans had emigrated to Barbadoes, hoping to mend his broken fortunes, and being pleased with the report of Captain Hilton's expedition, he determined to remove to Carolina. He went to England to negotiate with the Lords Proprietors and receive from them a grant of large tracts of land, and at the same time he was knighted by the king in reward for the loyalty and misfortunes of his family. Returning from England in the autumn of 1665, he led a band of colonists from Barbadoes to the Cape Fear, and purchasing from the Indians a tract of land thirty-two miles square, settled at Old Town, in the present county of Brunswick. The settlement was afterwards known as the "Clarendon Colony." This village, which was called Charlestown, soon came to number eight hundred inhabitants, and they occupied their time in clearing the land for cultivation and preparing lumber, staves, hoops and shingles for shipment to Barbadoes. The colony greatly prospered under the excellent and prudent management of Sir John Yeamans, but was afterwards deserted, when Yeamans was ordered by the Lords Proprietors to the government of a colony on Cooper and Ashley Rivers, South Carolina.

9. There had been, as early as 1660, a New England settlement for the purpose of raising cattle, on the Cape Fear; but this colony incurred the resentment of the Indians, it is said, by kidnapping their children under the pretence of sending them to Boston to be educated; and the colonists were all gone when the men from Barbadoes visited the Cape Fear. Whether the New Englanders were driven from the settlement by the Indians, or left because their enterprise was unprofitable, is not known with certainty. These men left attached to a post a writing discouraging "all such as should hereafter come into these parts to settle."

1667.

10. During Governor Drummond's stay in Albemarle there was entire satisfaction manifested by the people with his rule, and also with that of the Lords Proprietors. He exerted himself to arrange matters so as not to disturb the titles acquired in the time previous to the king's grant; and there was full sympathy between him and the class represented by George Durant.

11. This sturdy Quaker had, some years before, bought from the Yeoppim Indians the place known as "Durant's Neck," on Perquimans River; and he was a leader in wealth and influence among the settlers. He was prosperous in his affairs, and largely controlled the views of the people belonging to his religious sect.

12. The rivers were full of fish every spring, and with little trouble large supplies were caught in the nets and weirs. Indian corn, tobacco and lumber were sent in vessels to New England and the West Indies. In return sugar, coffee and rum were brought to Albemarle, and an active trade grew up, which was almost wholly conducted by the New England vessels.

13. These vessels all passed through the inlet at Nag's Head, where, as late as 1729, twenty-five feet of water was found upon the bar. This afforded entrance to ships of considerable size. Cape Hatteras was then, as now, a place of great peril to ships, and many were wrecked upon the terrible outlying sand bars; but this did not deter the brave mariners from the trade which they found was growing each year more profitable.

## **QUESTIONS.**

1. What was the character of King Charles II. ? What was said of him by Lord Rochester?

2. Who was appointed the first Governor of Albemarle? What kind of man was he?

3. How long did Governor Drummond stay in North Carolina? Can you tell something of "Bacon's Rebellion"? What part did Governor Drummond take, and what was the result? What can you tell of Mrs. Sarah Drummond?

4. What further is said of Mrs. Drummond? How is Governor Drummond's name commemorated in the State? Point out this lake.

5. What additional piece of land was given to the Lords Proprietors in 1665?

6. What expedition came to Carolina in 1663?

7. What is said of Sir John Yeamans?

8. What was the object of Yeamans' visit? What colony did he form in 1665? Where was it located? What is the history of this colony?

9. What previous settlement had been made in this same vicinity? Why was it deserted?

10. How had the people of Albemarle been pleased with the administration of Governor Drummond?

11. Who was George Durant? Point out "Durant's Neck" on the map.

12. Give some account of the prosperity of Albemarle. What vessels conducted the trade?

13. Through what inlet did vessels enter the sound? Describe the neighborhood of Cape Hatteras.



## **CHAPTER XII.**

### **GOVERNOR STEPHENS AND THE FUNDAMENTAL CONSTITUTIONS.**

#### **A. D. 1667 TO 1674.**

After Sir William Berkeley had put Governor Drummond to death in the manner described, Governor Stephens was sent in 1667 to take his place. Stephens was a ruler of ordinary abilities, and probably did his best for the interests of the province, so far as was consistent with a keen regard for instructions from the Lords Proprietors.

1668.

2. The government, in his day, consisted of the Governor, his council of twelve, and twelve members of the House of Assembly, elected by the freeholders. Every white man having an estate of inheritance, or for life, in fifty acres of land, was a freeholder. Perfect religious liberty was allowed, and there was no check at that day upon the government, provided it preserved its fealty to the King and the Lords Proprietors.

3. A wide margin was left to the Grand Assembly of Albemarle for the display of its power. Neither the Legislature nor the Governor had any capital city for the transaction of business. The Governor lived on any farm he pleased, and the General Assembly met at such place as it deemed most convenient.

1669.

4. Their earliest known legislation allowed no settlers to be disturbed for the collection of debts contracted before coming to live in Albemarle. Another law exempted all newcomers from taxes for one year; and prohibited the transfer of any land by a settler during the first two years of his residence. These laws were evidently passed to encourage immigration.

5. As there were no Church of England preachers then in the colony, another statute allowed people to get married by simply going before the Governor, or any of his council, and declaring a purpose to become man and wife.

1670.

6. Albemarle at that time was divided into the precincts of Carteret, Berkeley and Shaftesbury. The settlements extended rapidly down the seacoast, and soon reached as far south as the present town of Beaufort, on old Topsail Inlet.

7. Governor Stephens soon reached the conclusion of his administration and the term of his natural life. The closing months of his rule were embittered by the nature of the instructions he received from the Lords Proprietors and the Board of Trade in London.

8. One of these instructions, materially changing the simple government previously existing in the province, was concerning the colonial trade. English merchants saw that New England vessels were visiting the scattered settlements on the watercourses and establishing a lucrative exchange of manufactured goods for the tobacco, corn and lumber of Carolina.

9. It was determined in London to stop this, and appropriate to English factors whatever of profit might be realized. The old English Navigation Act, passed under Cromwell, to break down the Dutch trade, was revived against the Boston skippers. Governor Stephens accordingly told the colonists they must exchange the products of their farms with none but English traders, but he quickly found that the people were resolute in refusing obedience to any such regulations.

10. It was further announced that a new scheme of rule had been prepared in England. This was the work of Lord Shaftesbury and a distinguished philosopher named John Locke. This, familiarly known as "Locke's Grand Model," was called by the Proprietors "The Fundamental Constitutions of Carolina," and was a cumbrous and elaborate system, full of titles and dignities. It involved a large expenditure, and was as unsuited to the Carolina wilderness as St. Paul's Cathedral in London was for a meetinghouse for the Quakers of Pasquotank!

11. The people who were constantly enduring danger and privations in Albemarle at once resolved that they would have no part in the titles and pageants concocted by these wise men of England. They had been promised freedom if they would come to America, both by the king in the Great Deed of Grant and by the Lords Proprietors, and nothing less than the privileges of Englishmen would satisfy them.

12. The "Navigation Act" was intended to destroy their commerce and manufactures, and the "Fundamental Constitutions," if submitted to, would have put an end to their home rule. They waged a long opposition to these two things, and a century went by before, in the blood of the Revolution, American commerce became free. They were denounced as unruly subjects, but they were, in all truth, wise and resolute patriots. They were protecting not only themselves, but the generations of the future.

## QUESTIONS.

1. Who succeeded Governor Drummond as Governor of Albemarle?  
What kind of a man was Governor Stephens?
2. In what did the government consist at that time?
3. What is said of the Grand Assembly? Where did the General Assembly usually meet?
4. Mention some of the earliest laws.
5. What law was enacted concerning marriage?
6. How was Albemarle divided? How far had the settlement extended?
7. What trouble came to Governor Stephens?
8. What kind of trade was carried on between Carolina and New England?
9. What was determined by the Lords Proprietors? What old law was revived? How did the people receive the orders from Governor Stephens?
10. What two celebrated Englishmen prepared a form of government for Carolina? What was this system called? State its nature.
11. What was resolved by the colonists concerning the Grand Model?
12. What was the intent of the Navigation Act? Of the Fundamental Constitutions?

## **CHAPTER XIII.**

### **EARLY GOVERNORS AND THEIR TROUBLES.**

#### **A. D. 1674 TO 1680.**

1674. Samuel Stephens, upon his death in 1674, was succeeded by George Carteret as Governor of Albemarle. The oldest member of the council was entitled by law to the place, but the members of the House of Assembly succeeded in obtaining the position for their speaker. Governor Carteret found many difficulties in the office he had assumed; and becoming disgusted with the continued opposition of the people to the Fundamental Constitutions and the navigation laws of 1670, he went over to London and resigned his place as Governor.

1676.

2. When he reached England he found Eastchurch, who, as Speaker, of the House of Assembly, had been sent over to remonstrate with the Proprietors against the innovations they were proposing. His friend Miller, who was accused of indulging in rebellious language, had been carried out of the province for trial at Williamsburg, in Virginia, and was also in London at this time seeking redress for his alleged grievances.

3. Eastchurch was in London as the agent for Albemarle. The people were paying him to procure the assent of the Proprietors to some remission

in the hard measure of the navigation laws; also for the abrogation of the Fundamental Constitutions. He and Miller betrayed their trusts, and became the willing tools of Lord Shaftesbury and the Board of Trade.

4. As the price of their subservience, Eastchurch was appointed Governor of Albemarle and Miller was made Secretary of State. The authorities in London were fully resolved that the New England vessels should be excluded from Carolina waters and that the Fundamental Constitutions should be accepted as the system of government.

5. This betrayal of a high trust was to bring its own punishment on the heads of both Eastchurch and Miller. On their way to America they stopped at the Island of Nevis, where the new Governor of Albemarle met a Creole lady. His conduct in London had been weak enough, but complete insanity seemed to have fallen upon him at Nevis. For two years he was oblivious to all the disorders and distresses of the people committed to his government; and he surrendered everything else to his lovemaking.

1677.

6. Miller went on to Albemarle, and in July, 1677, assumed control of public affairs. There were then in the colony two thousand taxpayers. Besides Indian corn, which was the staple production, eight hundred thousand pounds of tobacco were made that year. The whole colony was enjoying such prosperity as a fertile soil and good climate always give.

7. The new Governor conducted matters in an outrageous manner. He imposed taxes upon all goods sent to other colonies, and in this way soon realized five thousand dollars on the tobacco which was sent to Virginia and Boston.

8. He was particularly emphatic in his orders forbidding trade with New England vessels. George Durant, with a large majority of the people, was determined to thwart him in this matter. Governor Miller, on the other hand, was so determined in enforcing his orders that he in person boarded a Boston vessel and arrested the skipper.

1678.

9. Thereupon John Culpepper, with his followers, seized Miller, and having put him in prison, assumed the government himself. He imprisoned all the deputies of the Lords Proprietors. The king's revenue, also, amounting to fifteen thousand dollars, was appropriated by him; Culpepper, like Gillam, the skipper who had caused the outbreak, was from New England.

1680.

10. At last, after two years delay upon his journey, Eastchurch made his appearance in Albemarle. He had won his bride, but lost everything else. Culpepper scouted his claims to the government. He went to Williamsburg, in Virginia, to beg the Governor of that province to aid him in regaining the place he had lost by his folly; but so slow and ceremonious was his lordship, that Eastchurch died of vexation before anything substantial had been accomplished in his behalf.

11. Miller escaped from the confinement to which he had been subjected by Culpepper, and again went to England to utter his complaints. Culpepper followed him there, and though indicted and tried for treason, was acquitted by aid of Lord Shaftesbury.

12. Thus it was, in the earliest days of our history as a people, that the men of North Carolina found means to resist the execution of laws enacted

abroad for their oppression, and commenced a struggle which was to continue for a century.

**QUESTIONS.**

1. Who succeeded Samuel Stephens as Governor? How did he obtain the place? Why did Governor Carteret go to England?

2. What two men from Carolina did he find in England and what was their mission?

3. What duty had the colonists entrusted to Eastchurch? How did he fulfill the trust?

4. How were Eastchurch and Miller rewarded for their betrayal? What was the determination of the London authorities?

5. What was the conduct of Eastchurch while on his way to Carolina?

6. What did Miller do in the meantime? What was the condition of the colony at this period?

7. How did the new Governor manage affairs?

8. What trade did he forbid? By whom was his command thwarted? What violent act was done by Miller?

9. What was done to Miller? Who assumed the government?

10. When did Eastchurch arrive at Carolina? How did he find matters? To whom did he go for aid, and with what success?

11. What became of Miller and Culpepper?



12. What do the events of this lesson teach us?

## CHAPTER XIV.

### LORD CARTERET ADDS A NEW TROUBLE.

A. D. 1680 TO 1704.

When John Culpepper had ended his administration the authorities in England sent over John Harvey as Governor. Little is known of him or of his successors, John Jenkins and Henry Wilkinson. There were still misrule and confusion in Albemarle. A few men of wealth, who acted as deputies in the Council for the absent Lords Proprietors, were their advocates and defenders in everything they proposed; but the people still traded with New England vessels and vented their scorn upon the Fundamental Constitutions.

1681.

2. At last, in 1681, the authorities in England concluded that if one of their own number went over he might exert more influence upon the people than a hired agent. Therefore, they induced Seth Sothel, who had bought the interest first granted to the Earl of Clarendon, to venture on the doubtful expedient.

1683-88.

3. To the great good fortune of the province, this abandoned man was captured at sea by Algerine pirates. Thus he became the slave of these corsairs for two years. When he arrived it was soon seen what a beastly and detestable monster had been sent as a reformer of the morals of the people of Albemarle. He was the most shameless reprobate ever seen as a Governor in America. He took bribes, stole property and appropriated the Indian trade to his own uses, growing worse and worse until the people, in 1688, could no longer endure his iniquities, and drove him from the place he disgraced. He went to South Carolina, and after his sentence to twelve months exile had expired, returned to North Carolina and died in 1692.

1689-93.

4. Philip Ludwell and Alexander Lillington were the next rulers in North Carolina, and the administration of the latter witnessed the triumph of the colonists in the consent of the Lords Proprietors to the abolition of the Fundamental Constitutions. This event occurred in 1693, and brought no little joy to the men who had so long and successfully opposed it as the Constitution of North Carolina.

1695-96.

5. Thomas Harvey ruled next in Albemarle, while John Archdale, a wise and benevolent Quaker, was put in charge of all the settlements in what was North Carolina, and also those on Cooper and Ashley Rivers, in South Carolina. In the year 1696 a severe pestilential fever visited all the tribes of Indians along Pamlico Sound and destroyed nearly all of them. The Colonists, soon after this, feeling somewhat safer from Indian attacks, began to form settlements southward.

1704.

6. Henderson Walker succeeded to the rule by virtue of his place as President of the Council. After him Colonel Robert Daniel, who had made reputation in an expedition against the Spaniards in Florida, became, in 1704, the Governor of the province.

7. Governor Daniel was probably the mistaken and ignorant agent of Lord Carteret, who happened then to be the Palatine, or chief of the Lords Proprietors, in a foolish effort at reform. Carteret, like James II., was by no means a pattern in morality, but became impressed with his duty to cause the Assembly to pass a law making the Episcopal Church the State Church in the province, as it was in England.

8. The Baptists and Quakers were numerous, and both of these sects were sternly opposed to any such regulation. The law was passed in spite of their votes to the contrary, and provided for building churches, buying glebe lands, and public taxation to pay the rectors' salaries, but did not visit any disqualification or punishment upon nonconformists. The first Episcopal preacher arrived at Albemarle in 1703, and the first church was built in 1705, in Chowan county.

9. These persons, who were not members of the Episcopal Church, said they were already paying for the support of their pastors, and at once declared that they would not submit to the injustice of paying money to men who were the leaders in the persecutions of Baptists and Quakers in England and America.

10. The Presbyterians of South Carolina sent John Ashe, of that section, to London to resist the confirmation of the law, and Edmund Porter was sent, for the same purpose, by the people of Albemarle. Ashe died in London before he knew of his success. Both Queen Anne and the House of Lords denounced the innovation as unjust and impolitic, and the law was therefore annulled by Her Majesty in her privy council.

11. It was thus, year by year, that the Carolinians kept up their struggle for freedom and equality before the law. The ocean stretched between them and the men who sought their oppression, and large expenditures, both in money and heartwearing efforts, were undergone, as the dangerous and alarming years went by; but these men of the woods never wavered in their determination to be free.

#### **QUESTIONS.**

1. Who was sent from England to succeed John Culpepper as Governor of Carolina? Who followed Governor Harvey in office? What was the condition of affairs in the colony under these Governors?

2. Who became Governor in 1681? Who was Seth Sothel, and why was he selected?

3. What befell Sothel on his way to Carolina? What kind of man was Governor Sothel? What did the people do?

4. Who next took charge of Carolina? What important thing was accomplished under this administration?

5. Who was Governor in 1696? Who had charge of all the settlements?

6. What two Governors are next mentioned?

7. Whose agent was Governor Daniel? What law was passed by the Assembly?

8. What two religious sects were strongest opposers of the act? What was provided for in the statute?

9. What complaint was made by the Baptists and Quakers?

10. Who was sent to London in the interest of the Presbyterians? What man from Albemarle? What was the success of the mission to London?

11. What was the almost constant struggle of the people of Carolina?

## **CHAPTER XV.**

### **THOMAS CAREY AND THE TUSCARORA WAR**

**A. D. 1704 TO 1712.**

Thomas Carey, who had already reached the positions of Speaker of the House of Assembly and Lieutenant-Governor, was promoted to be Governor in 1705. He had been a leader in opposition to Governor Daniel's church scheme, and for that reason John Archdale and the Quakers had procured his elevation to the latter position. It may be imagined what was their disgust and surprise when it was found that Carey had changed sides and become the willing tool of Lord Carteret.

1705.

2. In 1705 the town of Bath, in Beaufort county, was settled, and this was the first incorporated town in North Carolina. One of the oldest churches in the State is at Bath. The bricks used in the building were brought from England. The edifice is still in a good condition, and is regularly used for public worship.

3. When the General Assembly met, Governor Carey announced that, under English laws, none but members of the English or Episcopal Church could be allowed to take the oaths necessary to qualification for a seat in

either House. John Porter was thereupon sent to London to make known this fresh outrage and betrayal of the people.

4. He was soon back with orders for Carey's removal; and the General Assembly elected William Glover by the votes of John Porter and the men he influenced. It is sickening to add that Glover also immediately deceived the men who were his supporters, and was found acting and talking exactly as Carey had done. The next thing seen was the pacification of Carey and the Quakers, and their re-election of him as Governor.

5. Two rival governments were thus at open rupture, each claiming to be the local government in Albemarle. They both took up arms, and it seemed that bloodshed must ensue. A General Assembly was called to decide the question of authority. Members were present with certificates of election signed by Glover, and another set whose certificates were issued by Carey. Glover and Carey, with their adherents, occupied separate rooms in the same building, and great confusion and bitterness prevailed. Finally the members of Glover's council were compelled to seek refuge in Virginia.

6. In such a state of affairs, Edward Hyde arrived from England with papers directing Edward Tynte, the Governor of both South and North Carolina, to commission him as Governor of North Carolina. In the meantime Carey, having heard of Governor Tynte's death, refused to acknowledge Hyde's claims, and proceeded to arm and equip his followers.

1711.

7. The cruel and crafty Tuscaroras now resolved to avail themselves of the divisions among the white people. They procured the Meherrins, Corees, Mattarnuskeets and other tribes to unite with them in an effort to murder all they could of the settlers. They kept the secret so well that on the night of the 11th of September, 1711, according to the calendar of that day,



more than two hundred whites were butchered. The Tuscaroras mustered in their ranks a strong force, which was increased by their allies to sixteen hundred warriors. The Indians continued this terrible slaughter for three days, and only ceased when fatigue and drunkenness rendered them incapable of further continuance.

8. The Baron de Graffenreid, a nobleman from Bern, had just established (in 1710) a flourishing colony, comprising about six hundred persons, Germans and Swedes, at New Bern, at the confluence of the Neuse and Trent Rivers. De Graffenreid and John Lawson, the surveyor-general, while on an exploring voyage up the Neuse River, a few days before the massacre of September 11th, were seized by the Indians. The war council decided that both the men should be put to death. De Graffenreid made claim that he was king of the Swiss settlement just established, and escaped death by promising that no more land should be taken from the Indians without their consent. The unfortunate Lawson and a negro servant were put to death by the most horrible cruelties.

9. Baron de Graffenreid was held a captive for several weeks, and was set at liberty upon application of Governor Spottswood. On his return to his settlement he found it in a condition of almost desolation. He became so disheartened at the prospect that he soon sold his interest in Carolina and returned to Switzerland.

1712.

10. The South Carolina militia and near a thousand Yemassee Indians, under Colonel John Barnwell, came as swiftly as they could to the rescue, and inflicted a stunning blow upon the savages. They were attacked in a fort near New Bern, and more than three hundred of the Indians were killed and a hundred made prisoners. Thinking the league crushed, Colonel Barnwell

went home with his forces, after making a treaty with the Indians, which was quickly broken.

11. In this terrible emergency, which threatened the destruction of so many settlers, Governor Spottswood, of Virginia, did nothing to aid the colony except keep the Five Nations and Tom Blount's Tuscaroras neutral in the war. The great danger was in the possible adhesion of the New York Iroquois to the savage league. With Albemarle divided, and consequently in a measure helpless, it was seen that it would be impossible to meet the Five Nations in battle.

12. When the next spring had opened, some hundreds of men in North Carolina were joined by Colonel James Moore, from South Carolina, with another force of a hundred and fifty of his white neighbors and the Yemassee, who again were willing to make war upon their hated enemies, the Tuscaroras.

13. Another bloody attack upon a fort made of earthworks and palisades resulted in such slaughter of the Indians that Handcock, their chief, who had boldly led them before, was so disheartened at the loss of his braves that, with his tribe, he abandoned Carolina and rejoined his brethren in the lake country of New York, who were from that time known as the Six Nations. They ventured no more among the men who had so fearfully broken their strength and power as belligerents. The fort occupied by Handcock and his force was situated where the village of Snow Hill, Greene county, now stands, and was called by the Indians "Nahucke." The siege began March 20th, and in a few days the fort, with eight hundred prisoners, was taken by storm. Colonel Moore's loss was twenty white men and thirty-six Indians killed and about one hundred wounded.

14. In the midst of the danger, in this second year of the war, yellow fever was seen for the first time in Albemarle. Governor Hyde fell a victim to its

virulence. He died September 8, 1712, and was succeeded by Thomas Pollock, who had long been known as one of the richest and most influential of the settlers. Pollock and Edward Moseley, who was the leading lawyer and ablest man in Albemarle, were in deadly enmity concerning the quarrels between the contending Governors.

15. During this turbulent period among their rulers the people of Albemarle were giving their principal attention to growing corn and other farm products. They were improving their settlements and reaping the full reward of industry and perseverance. In 1704 the manufacture of tar began, and it was soon discovered that this native article was destined to become a very valuable commodity, both at home and in foreign countries.

16. During the years just considered North Carolina received large accessions to her population. As early as 1690 French Protestant refugees purchased lands and began to form settlements in Pamlico. In 1707 another body of French emigrants, under the guidance of their clergymen, Phillipe de Richebourg, located in the same section. A good number of French Huguenots, also, had formed thrifty settlements in the Pamlico region and along the banks of the Neuse and Trent Rivers.

#### **QUESTIONS.**

1. How did Thomas Carey become Governor of Albemarle? How did he disappoint the people who elected him?
2. Where was the first town incorporated in the State?
3. What announcement was made by Carey at the meeting of the Assembly? How was this received by the people?

4. What orders were brought by Porter? Who was elected as Carey's successor? How were the people disappointed in Governor Glover?

5. What was the condition of affairs?

6. Who arrived from England, and for what purpose? How did Carey receive Governor Hyde's demand?

7. How were the Tuscaroras acting during this public trouble? What calamity befell the colony?

8. What befell Baron de Graffenreid and John Lawson?

9. What further is said of de Graffenreid?

10. What aid came from South Carolina? Describe the battle.

11. How did Governor Spottswood, of Virginia, act during this trouble? What was specially feared by the people?

12. How was the colony preparing for war?

13. Describe the second battle and the result.

14. What terrible sickness visited Carolina in 1712? Who was one of the victims? Who succeeded Governor Hyde? What is said of Governor Pollock?

15. How were the people of Albemarle occupying themselves during these troublesome times?

16. Give some account of the growth of the settlements in North Carolina.

## **CHAPTER XVI.**

### **GOVERNOR EDEN AND BLACK-BEARD.**

**A. D. 1712 TO 1722.**

With the conquest of the Tuscaroras and their allies, a great danger was removed from the settlements in Carolina. Tom Blount and his people were assigned a tract of land as a token of the gratitude of the whites for their refusal to join in the war. This reservation was first located south of Albemarle Sound, but was afterwards changed to the region still known as the "Indian Woods," in Bertie county.

1713.

2. In 1713, Colonel Pollock was relieved of his office as Governor by the arrival of Charles Eden, with full powers from the Duke of Beaufort, who was then Palatine. Governor Eden was instructed by the Proprietors to discourage much expansion of the settlements. He became popular with a large portion of the people. He lived some years at Queen Annie's Creek, which town was called Edenton, as a compliment to him. He afterwards bought a place on Salmon Creek, in Bertie county, and dwelt there. This place is still known as "Eden House."

1715.

3. In 1715 the same Yemassee Indians who had so signally aided in the overthrow of the Tuscaroras, repeated, in South Carolina, the bloody work of their old enemies in Albemarle. They were aided by other tribes, and murdered many white people. The Indians in the Bath precinct also, taking advantage of the alarm caused by this outbreak in the southern province, raised the war cry and murdered several white people on the Pamlico plantations before they could be checked.

4. At the request of the Governor of South Carolina, Governor Eden immediately sent a strong force of both cavalry and infantry to aid the South Carolinians. Colonel Maurice Moore, who was the brother of Colonel James Moore, the late commander against the Tuscaroras, and had become a resident of Albemarle, was in command.

5. The oldest statutes of which we have copies were enacted in 1715, at the house of Captain Richard Sanderson, in Perquimans. Edward Moseley was Speaker of the House of Assembly and differed with Governor Eden in many matters of provincial policy. Through all his life as a public man he was intensely devoted to the interest of the colony; and though warmly attached to the English or Episcopal Church, was resolute in his advocacy of complete religious liberty. He formed a strong party of men, who regarded the Governor as simply the agent of the Lords Proprietors; and therefore, to be vigilantly watched and checked in any innovation upon established privileges.

6. There had been, for years, many crimes committed by pirates upon the ocean just along the North Carolina Coast. They sometimes extended their infamous practices to the sounds and rivers. One Edward Teach, who was also called "Black-Beard," was the chief of these bloody robbers. He had a fleet of armed vessels; the largest of which was called Queen Anne's

Revenge. This formidable craft carried a crew of one hundred men, and forty cannon.

7. Edward Moseley and others were clamorous for the arrest and punishment of such horrid offenders against the law, and denounced Governor Eden as their accomplice. It was brought to the knowledge of Capt. Ellis Brand, who came in command of a British squadron in Hampton Roads, that Teach was to be found near Ocracoke.

8. Lieutenant Robert Maynard was ordered to go to that point and capture the outlaws. He found the pirates, who saluted him with so deadly a broadside that a large portion of the royal men were slain. Maynard unfortunately got his ship aground in the action, and his deck was terribly raked by his antagonists' fire. His case seemed well nigh hopeless, when he resorted to a stratagem. All of his men were ordered to go below, and soon the pirates saw nothing but dead men upon the deck. They hastened to board what they thought was another prize.

9. But Maynard and his men met them as they crowded upon the deck, and after a bloody struggle, captured nine men, who were the survivors of the prolonged and desperate conflict. Among these was a gigantic negro, who was on the point of blowing up the pirate vessel when arrested in his desperate purpose.

10. Black-Beard was slain during the battle, and Maynard sailed away from the scene of his victory with the corsair's head fixed upon his bowsprit. The captured offenders were carried to Williamsburg, Virginia, and there tried and executed, as they deserved to be.

11. In the early portion of the eighteenth century the whole Atlantic coast of America was more or less infested by these buccaneers. In some quarters they congregated in great numbers, and made expeditions in which they laid

cities under contribution, and endangered all legitimate commerce in the new world. They were as cruel desperadoes as have been seen in any age of the world's history. After long and costly effort by the English and other governments, they were driven from the seas.

**QUESTIONS.**

1. What reservation was given to the Indians?
2. Who became Governor in 1713? How had Governor Eden been instructed by the Lords Proprietors? Where did he live?
3. What occurred in 1715?
4. Who was sent to aid the people of South Carolina?
5. At whose house did the Legislature meet? What noted man was Speaker of the House? Give some description of Edward Moseley.
6. What famous pirate was ravaging the coast about this time?
7. Of what had Governor Eden been charged?
8. Who was sent to capture the pirate? Describe the battle.
9. How did the engagement result?
10. What disposition was made of the captives?
11. What is said of the Atlantic coast during this period?



## **CHAPTER XVII.**

### **GOVERNOR GABRIEL JOHNSTON.**

**A. D. 1722 TO 1748.**

Upon the death of Governor Eden in 1722, Colonel Thomas Pollock, as President of His Majesty's Council for North Carolina, assumed the place of Governor, but he died in a short while and was succeeded by William Reed. That year Bertie precinct was erected west of Chowan River, and court houses were, for the first time, ordered to be built. Not only the General Assembly, but courts and all public affairs, up to this time, had been held in private houses.

2. North Carolina then comprised three counties. These were Albemarle, Bath and Clarendon. Albemarle contained Currituck, Pasquotank, Perquimans, Chowan and Bertie precincts. Bath and Clarendon, though counties, were not subdivided at this time.

1724.

3. The Lords Proprietors, as the last evidence of their lack of wisdom and interest in the province they had so long cursed with their misrule, sent over George Burrington. After the creation of the counties of Bath and Clarendon the representative of the Lords Proprietors was called "Governor of North Carolina."

4. Governor Burrington's character was very bad; he had been indicted and punished in the Old Bailey, in London, for beating an old woman, and was, all his life, drunken and quarrelsome. Yet such a man came over to be the guardian of a people who knew not when they were to be tomahawked by the savages or driven into further exile by the zealots who were disturbed at the nature of their religious belief.

1725.

5. This weak and wicked ruler only remained one year in charge, when Sir Richard Everhard came to replace him. They were brothers in iniquity, and before Burrington left Edenton these two men disgraced themselves by fighting in the streets of that village. The General Assembly met at Edenton, and by enactment of law the dividing line between North Carolina and Virginia was run in November of this year.

1729.

6. Such rulers as have just been mentioned so utterly disgusted every one in the colony that the King and Parliament were petitioned to buy the province and abolish the rule of those who had only hindered its growth. So, in 1729, for the sum of forty- five thousand dollars, all of the proprietors except Lord Carteret, sold to the crown their interest in Carolina . Thus, after sixty-six years of unbounded misrule, these men in London who had so greatly cursed North Carolina by their ignorance and mistakes, surrendered their title to property which had never paid them more than about one hundred dollars a piece in any one year.

7. They had never really cared for the people whom they were so anxious to disturb with their crude notions of religion. The schemes of London merchants were of far more moment than the welfare of Albemarle, and the

folly of the Fundamental Constitutions was to be upheld even at the ruin of the province.

8. As an earnest of the want of care King George I. was to exhibit towards the colony, Governor Burrington was sent back to the people who were already so well acquainted with his faults of temper and character. He soon got into trouble with the leading men of the province, and pretending to go to South Carolina, returned to England, where he was soon after killed in a night- brawl in the city of London.

1734.

9. Nathaniel Rice was Governor until the arrival and qualification of Gabriel Johnston, who took the oaths of office at Brunswick, on the Cape Fear River. Governor Johnston was a Scotchman, who had lived for several years in London, and was to prove the wisest and best of all the men sent over to rule the people in Carolina. He married Penelope Eden, daughter of the late Governor, and dwelt at her home on the Chowan River.

10. There were no troubles between the Governor and people in the time of Governor Johnston's administration. Sometimes Edward Moseley, always a stickler for the rights of the colonists, would carry some dispute into the General Assembly, but the measures of Governor Johnston, as a general thing, were pleasing to all classes of the people and received their support.

11. At this period, Dr. John Brickell, with a party of white men and Indians, was sent by the General Assembly to explore the mountain region of Western North Carolina. He went into East Tennessee in his travels among the Cherokees. He brought back wondrous accounts of the beauty of the region and of the simplicity and kindness of the natives. Dr. Brickell practiced medicine in Edenton and wrote an interesting book about the North Carolina of that day.

1740.

12. During the Spanish war Governor Johnston enlisted four hundred North Carolina troops for the expedition that was led by Governor Oglethorpe against the Spaniards at St. Augustine, in Florida. They formed a battalion of the regiment commanded by Colonel Vanderclussen. They were carried under Admiral Vernon to the siege of Carthagen and participated in the dangers and horrors of that expedition. But few returned to tell the story of their disasters.

1746.

13. In consequence of the great defeat of the Scotch by the English at the battle of Culloden, many Scotch emigrants began to settle in North America. The captives in the struggle mentioned had been offered choice between death and exile to America. The emigrants landed at Wilmington in large numbers and formed settlements along the Cape Fear River. One of their principal towns was at Cross Creek, now known as Fayetteville. These Scotch people were brave, industrious, and frugal, and North Carolina has always esteemed them as a part of her best population.

1748.

14. The province had never grown so rapidly, or been so prosperous, as in the rule of this wise and excellent man who now conducted public affairs. The provinces of North and South Carolina were formally separated in Governor Burrington's time, and upon the death of Governor Johnston, in 1752, it was found that the population had been multiplied several times over what it had been twenty years before, and it now numbered nearly fifty thousand people. Great quantities of tar, pitch and turpentine, also staves, corn, tobacco and other products of the farm, besides pork, beef, bacon and lard were exported.

## QUESTIONS.

1. Who became Governor on the death of Governor Eden? What changes were noticed in the colony?
2. Into what precincts and counties was North Carolina divided?
3. Who was sent over by the Lords Proprietors in 1724 as Governor?
4. Can you tell something of Governor Burrington's past life?
5. How long was Governor Burrington in office, and who succeeded him? How did these officers conduct themselves in Edenton?
6. What large purchase was made in 1729? Which of the Lords Proprietors reserved his right? What had been the annual profit to the Proprietors from the colony?
7. How had these men always felt toward their province?
8. What was the first act of George I. in the government of North Carolina? How did Burrington's administration terminate?
9. Who was Burrington's successor? Who followed Governor Rice? Tell something of Governor Johnston.
10. How did Governor Johnston conduct affairs?
11. What expedition was sent out at this time? What account of the western country was given by Dr, Brickell on his return?
12. What occurred in 1740?
13. How and by whom was the Cape Fear region now being settled?

14. Give an account of the prosperity of the province during period.

## CHAPTER XVIII.

### THE PIRATES AND OTHER ENEMIES.

A. D. 1748 TO 1754.

During the government of North Carolina by Gabriel Johnston, there was still much trouble from the buccaneers. These were pirates who chiefly infested the West Indies, where they were sometimes congregated by thousands at a single place. They were daring enough to invade cities and countries, and caused great terror and danger to all honest people within their reach.

2. In 1748 a fleet of the pirates, under the pretext of a war between England and Spain, sailed into the mouth of the Cape Fear River. Instead of the plunder they expected to obtain from firms and towns, they were bravely met by the people, as the fleet lay off the village of Brunswick, and after a bloody fight, were driven back to sea with the loss of one of their ships. From this demolished craft were taken a number of negroes and valuables. These spoils which rewarded the gallant defence of the men of Cape Fear were, by act of Assembly, given to the churches in Wilmington and Brunswick.

[NOTE—The pirate chief left his vessel and crew off at Brunswick, and in a small boat, with a few men, ascended the Cape Fear River to ravage the farm of Maurice Moore. Col. Moore learned of the coming of the robbers

and boldly met them on the shore with gun in hand, and compelled them to return without even landing. While the chief was up the river the fight occurred off Brunswick, his vessel was captured, and forty men, comprising the crew were sold by the victors at public auction. ]

1749.

3. The year 1749 is memorable because then, for the first time, a printing press was erected in North Carolina. James Davis brought this press to New Bern from Virginia, and began, years later, the publication of a weekly newspaper, called The North Carolina Magazine or Universal Intelligencer. This occurred in 1765, and the press was used until that time in printing the laws and proceedings of the General Assembly.

4. The first movements toward peopling the western sections of the province were seen this year in the purchase, by the Moravians, of a large tract of land from Earl Granville. They called it Wachovia, in compliment to Count Zinzendorf's estate in Germany. The same region was peopled rapidly by other German Settlers, with a large addition of Scotch-Irish emigrants. Their town was named Salem, and is now the county seat of Forsyth.

1752-53.

5. Upon the death of Governor Johnston, President Rice was in charge until the next year, when, upon his death, Colonel Matthew Rowan succeeded to the place thus made vacant. Colonel Rowan lived in Bladen, and was a planter of large means. He was greatly valued, and his name is perpetuated in a county which has long been important in North Carolina.

1754.



6. At this time there was great rivalry between France and England for supremacy in America. Large as was the area of unoccupied territory for division between them, they were fast maturing schemes for each other's expulsion from the Western Continent.

7. All around the English settlements, from New England along the great lakes, and down the Mississippi River, a chain of forts was being constructed by the French, and the aid of all the Indian tribes had already been secured except in the instance of the Iroquois or Six Nations in New York. Lord Dinwiddie, then Governor of Virginia, sent a messenger to say that these enemies were even encroaching upon the Old Dominion and erecting a fort at the junction of the two streams which form the Ohio River.

8. Pittsburg stands upon the spot where this famous Fort Du Quesne was constructed. His lordship applied for aid from North Carolina in an expedition which he proposed to send against these intruders. Governor Rowan and the General Assembly responded nobly and promptly to the call.

9. Colonel James Innes, who had served gallantly under Lord Vernon at Carthagen, in South America, was put in command of a regiment mustering more than nine hundred men. Two hundred thousand dollars was voted for their equipment and supplies, and with high hopes, the long march for the Ohio River was begun.

10. When the army reached Winchester, in Virginia, Colonel Joshua Fry, who was in command of all the forces, died, and Governor Dinwiddie appointed Colonel Innes his successor. But this appointment gave offence to the Virginians, who wished Colonel George Washington, already a favorite of the people, to take command. The Virginia Legislature, under the circumstances, would make no provision for the support of Colonel Innes'

regiment, and it was forced to return home. In this way the generous purpose of North Carolina was completely thwarted.

11. Colonel Innes died at Winchester soon after. The French occupied their fort and perfected those arrangements which resulted, shortly afterwards, in the terrible defeat of the army commanded by General Braddock.

12. Another army of Virginians and North Carolinians, about thirty years after these occurrences, was assembled to attack Colonel Patrick Ferguson's British and Tories at King's Mountain. A very different spirit prevailed there. The North Carolina officers, who greatly outnumbered those of the Old Dominion, insisted that as they were at home, Colonel Campbell, of the latter State, should assume command, and their knightly courtesy was followed by a glorious victory.

#### QUESTIONS.

1. Who infested the coast during Governor Johnston's term?
2. How was a fleet of pirates received by the Cape Fear men in 1748? What was done with the spoils? Point out Brunswick and Wilmington on the map.
3. What memorable event occurred in 1749?
4. Give an account of the settlement of Wachovia. In what part of the State is this settlement?
5. Who became Governor after the death of Governor Rice? What kind of man was Governor Rowan?

6. What were the English and French trying to accomplish in America at this period?

7. How were the French preparing for hostilities? What was stated by Governor Dinwiddie's messenger?

8. Of whom did Governor Dinwiddie ask aid? How did North Carolina respond to the call?

9. To what extent did the province prepare resistance?

10. What occurred at Winchester? How did this appointment affect the Virginians, and why? How did the effort of North Carolina to aid the Virginians terminate?

11. What was the result of the expedition against Fort Du Quesne?

12. What other occurrence is mentioned?

## **CHAPTER XIX.**

### **GOVERNOR ARTHUR DOBBS.**

**A. D. 1754 TO 1765.**

King George selected Major Arthur Dobbs, as Governor of North Carolina; and at New Bern, on November 1, 1754, he entered upon the discharge of his duties. He was a man of high temper, and very obstinate in support of his views, but devoted to whatever he believed his duty demanded. His greatest fault was filling public offices with members of his own family and a disposition to make jobs for his own benefit.

2. Governor Dobbs soon visited the new county of Rowan, which was established in 1753, and included in its area most of the western portion of North Carolina and a part of Tennessee. He found Presbyterians under Rev. Hugh McAden, and Baptists under Rev. Shubal Stearns, establishing churches and laying the foundations of towns in a region where, but a few years before, no white people were to be seen.

1757.

3. Colonel Hugh Waddell, of Brunswick, was put in command of troops raised in North Carolina for the French and Indian war. He had started to join General Braddock's column, but just previous to the fatal battle on Monongahela River was recalled by Governor Dobbs to repel the attack of

the Cherokees on Old Fort. This stronghold was built amid the western mountains to overawe the Indians and as a refuge for the settlers.

4. Governor Littleton, of South Carolina, by his bad management, had most wantonly provoked the Over-hill Indians into this condition of hostility. His foolish and unnecessary interference and cruelty had converted these usually peaceful neighbors into sufficient hostility to make it easy for French emissaries to obtain their active aid against the English settlers.

5. Captain Dennie, with his company, was also besieged at Fort Tellico. Colonel Waddell made haste with his battalion and drove off the Cherokees, burning their lodges and destroying all the corn he could find. Another battalion remained with General Forbes, as North Carolina's contingent in the expedition against Fort Du Quesne. These things occurred in 1757.

6. In England the administration of the Duke of Newcastle over American and foreign affairs terminated, and the first William Pitt succeeded to his place. In every portion of the world mighty consequences resulted from this arrangement. The fleets and armies of Great Britain were animated with the zeal and patriotism of that great statesman.

1759.

7. Of all the victories of the year, none was so important to America as that of General Wolfe over the French at Quebec. It broke the power of France in the Western Continent, and stopped, in a great measure, the war waged by Indians upon the frontier settlements.

8. At no period has the population of North Carolina increased relatively so fast as during these years now under consideration. Up to the death of Governor Johnston it had amounted to no more than thirty thousand souls,

but since that time had more than doubled. In 1754 the exports amounted to sixty-one thousand five hundred and twenty-eight barrels of tar, twelve thousand and fifty-five barrels of turpentine, seven hundred and sixty-two thousand staves, sixty-one thousand five hundred and eighty bushels of corn, besides much tobacco, pork, beef and other commodities.

9. The most discreditable thing in Governor Dobbs' administration was his effort to procure the General Assembly to locate the provincial capital on his farm, called "Tower Hill." This was the place where the Indians had been defeated by Colonel James Moore in 1712. He failed in his scheme, and Snow Hill, as the place is now called, never became the capital of North Carolina.

10. He was often at variance with the Legislature, or more properly, the House of Assembly, concerning the courts and judges. He wished things arranged to suit certain men in London, and the House resolved that this should not be done, and North Carolina was left, in the end, with no judges but the justices of the peace.

11. Even before this there was much complaint concerning the extortions of public officers. Although the people were very poor, the agents of the King and Earl Granville made them pay enormous license and poll taxes. Francis Corbin, one of the King's agents, was dragged from his home in Chowan to Enfield, then in Edgecombe county, to compel him to repay the sums which he had unlawfully exacted. He gave bail and promised to return the illegal tribute, but instead of complying he brought suit against the men who had seized him. The matter terminated in a riot, in which some of the chief friends of Governor Dobbs were concerned.

1765.

12. The Governor, being old, and weary of contests with the House of Assembly, at length asked for leave of absence; but died at his place on Town Creek, in Brunswick county, before sailing for England. He was devoted to his sense of duty to the King, and was in many ways deserving of public respect.

#### QUESTIONS.

1. Who took the oath of office of Governor in 1754? Can you give some traits of his character?

2. What visit was made by Governor Dobbs? How was the new county of Rowan becoming settled?

3. Who was put in command of the North Carolina troops? How was he prevented from joining General Braddock? Find Old Fort on the map.

4. Who had incited the Indians to the proposed attack on Old Fort?

5. Give an account of Colonel Waddell's expedition-against the Indians.

6. What noted man in England had charge of American affairs? What effect had his administration upon every portion of the world?

7. What great victory was gained in America at this period? What good resulted to the whole country from this victory?

8. What had been the increase of population in North Carolina? Can you name some of the exports?

9. Where did Governor Dobbs endeavor to have the capital of North Carolina located?

10. What trouble did the Governor have with the Legislature? With what result?

11. Of what extortions did the people complain? How was Francis Corbin treated, and why?

12. What is said of the close of Governor Dobbs' life?



## **CHAPTER XX.**

### **GOVERNOR TRYON AND THE FIRST RESISTANCE TO THE STAMPACTS.**

**A. D. 1765 TO 1766.**

Some months before the death of Governor Dobbs there had come over from England a handsome, polished and genial officer who wore the uniform of the Queen's Guards. This was Lieutenant- Colonel William Tryon, recently appointed Lieutenant-Governor of North Carolina. He succeeded Governor Dobbs, and left a name that will never be forgotten in North Carolina.

2. Governor Tryon was accompanied by his wife and her sister, Miss Esther Wake. They were ladies of great attractiveness, and were destined to become so much valued by the people that their family name is still preserved in our midst, as the name of our metropolitan county.

3. There was much gaiety seen at that time in the eastern counties. The Indians were all gone, beyond the Blue Ridge Mountains, and the rude huts of old had, in many instances, been replaced by large and costly buildings of brick. Weddings were generally celebrated by balls that lasted for a week. Hospitality was unstinted, and most men of means thought their establishments imperfect until provided with a private race course. With hound and horn, there was great diversion, for game was abundant and the sport open to all who could get a horse to ride.

4. In such society the brilliant family of the Governor was of course at once sure of unbounded influence. Perhaps no man was ever more warmly esteemed than Governor Tryon during the first years of his rule in North Carolina. He was gracious and wary at the same time. He knew whom to cultivate, and while smiling on all he was fast making friends who were almost ready to die in his behalf.

5. The great preacher, George Whitefield, came to the State in 1765, and moved thousands with his eloquence. His new sect, the Methodist, had until then made no progress in North Carolina, and his converts went to swell the numbers of the Baptists, who were more numerous than any other denomination.

6. There was the utmost kindness of feeling between the new Governor and the people, when the news came that the English Parliament had passed a law called the "Stamp Act." It had been much talked of and denounced in many portions of America, and now, with a unanimity that is still one of the strangest things recorded in history, the men of all conditions, in every colony, arose in frenzy and swore that this law should not be executed in America.

7. The Stamp Act required that all colonial legal instruments, such as deeds, bonds and notes, should be written only upon stamped paper, otherwise they were not binding, or of any effect. The paper was prepared in England, to be sold to the colonists at the heavy tax of one and two dollars upon each sheet. In addition to this, the act contained a great variety of other ruinous exactions. Newspapers and pamphlets were taxed more than such publications at present would cost. An advertisement in a newspaper paid the government fifty cents; almanacs, eight cents; college diplomas, ten dollars; and the fee charged for a marriage license was

sometimes as high as fifteen dollars. The act received royal assent on 22d March, 1765.

8. The law was oppressive upon the people because of the amount exacted, but was considered constitutional in England by many great lawyers who were warm friends of the American people. But in America it had been held for some time that no tax levied by Great Britain, without the consent of America, was just; and thus every man resolved that the Stamp Act should not be enforced.

9. When the news reached Governor Tryon, at New Bern, the General Assembly was in session at that place. A very bold and fearless man, Colonel John Ashe, was then Speaker of the House of Assembly. Governor Tryon asked of Ashe, in private conversation, what the House would do as to the new law." We will resist its execution to the death," said he, and that very day Governor Tryon sent them all home by proroguing the session. Nor did he permit them to assemble again until late in the next year, after the repeal of the Stamp Act. By this means he prevented the election of delegates from North Carolina to the Continental Congress which met in New York in 1765 to organize the opposition to that oppressive measure.

[Prorogue is to continue or adjourn a legislative body from one session to another by Royal or State authority. ]

10. The first step of the people in their resistance to the Stamp Act was to carry James Houston, who had been appointed Stamp Agent, before Moses John DeRosset, who was then Mayor of Wilmington. There, in the presence of many distinguished men of the Cape Fear country, on the 16th of November, 1765, he was obliged publicly to resign his office in the Court House of Wilmington, and make oath that he would have no further connection with it.

11. Twelve days later, on the 28th November, 1765, the ship of war Diligence arrived with stamps. The commander was told by armed men, under Colonels Ashe and Waddell, that they must not be landed; and no effort was made to do so. On the 21st December, 1765, the Governor issued his proclamation dissolving the General Assembly, and on the same day took the opinion of his Council and the Attorney-General "whether writs can issue for the election of a new Assembly, as the circulation of the stamps is obstructed." The Council and Attorney-General advised that the writs could go without stamps.

1766.

12. On the 6th January, 1766, Governor Tryon, taking fresh courage from some source, went so far as to issue a proclamation announcing that the stamps were on board the Diligence and ready for distribution. It did no good, however, for no one would use them. Comparative quiet now ensued for some weeks, but it was only the calm before the storm.

13. On the 14th of February, two vessels that had come up to the port of Brunswick without stamps upon their clearance papers were promptly seized by the Custom House officers, and then the storm arose. On the 19th, armed men broke open the desk of the Collector of the Port, and forcibly carried off the unstamped clearance papers of the two vessels. On the 20th, a committee of armed men appeared on board the Viper and demanded of Captain Lobb the two sloops he was guarding. Meanwhile armed men were continually coming into Brunswick from different counties.

14. On the evening of the 20th, Mr. Pennington, another stamp distributor, took refuge in Governor Tryon's house. Shortly after eight o'clock on the morning of the 21st, armed men appeared before the Governor's house and sent him a note desiring him to permit Mr. Pennington to appear before them, and informing him that it would "not be

in the power of the Directors appointed to prevent the ill consequences that may attend a refusal." The Governor replied that any gentleman who had business with Mr. Pennington might see him at the Governor's house. This, however, was by no means satisfactory, and in a short time, according to the Governor's statement, a body of some five hundred men in arms moved toward his house. A detachment of sixty then came down the avenue and the main body drew up in sight and within three hundred yards of the house.

15. Mr. Cornelius Harnett, a representative in the Assembly for Wilmington, came at the head of the detachment and sent a message asking to speak with Mr. Pennington; when he came into the house he told Mr. Pennington "the gentlemen wanted him." The Governor replied that Mr. Pennington was in his house for refuge and that he would protect him to the utmost. Mr. Harnett thereupon said he hoped the Governor would let Mr. Pennington go, as the people were determined to take him out of the house if he should be longer detained, an insult, Mr. Harnett said, they wished to avoid giving to the Governor.

16. The Governor protested it mattered not about that insult after they had already offered him every insult they could offer by investing his house and virtually making him a prisoner before any grievance had been made known to him.

17. Mr. Pennington growing apprehensive and showing a disposition to go with Mr. Harnett, the Governor suggested to him that he resign before he left. To this he agreed, and thereupon the Governor let him go. He was afterward compelled to take an oath that he would never issue any stamped paper in the province, as were all the clerks of the county courts and other public officers. The inhabitants, in the language of the Governor, having redressed, after the manner described, their grievances complained of, left the town of Brunswick about one o'clock on the 21st. These things were

done, it must be borne in mind, in the broad daylight, and by men perfectly well known, and without a particle of disguise. After this, vessels entered and left the ports of North Carolina as if no Stamp Act had ever been passed.

18. On June 13, 1766, came news from England of the repeal of the law that had so terribly excited and aroused America. Governor Tryon announced the fact in a proclamation, but he had been humiliated by the resistance at Wilmington, and from that hour, probably, determined on the revenge which he afterwards exacted at Alamance.

[NOTE—Governor Tryon desired to regain his influence, for political purposes, over the people whom he had so greatly offended; and he ordered a general muster at Wilmington. He prepared a feast for the militia, of whole oxen roasted, and barrels of beer. When the feast was ready the people rushed to the tables and threw the oxen into the river and emptied the beer upon the ground. A general fight ensued between the militia and the men of the English vessels, and perfect quiet was not restored for several days.]

#### QUESTIONS.

1. What distinguished person have we now under consideration? How did he become Governor of North Carolina?

2. Who accompanied Governor Tryon? What is said of the two ladies?

3. Tell something of life in the eastern counties at this time.

4. How did the Tryon family become very influential?

5. What great preacher came to North Carolina in 1765? How were his labors rewarded?

6. What memorable law was passed by Parliament? How was the news received in North Carolina?

7. What can you tell of the Stamp Act?

8. What is said of the law?

9. Under what circumstances did the news reach the Governor? What did the Governor do concerning the Assembly?

10. Mention the first act of resistance to this law.

11. When did the Diligence arrive? What occurred on her arrival?

12. What did the Governor do on January 6th? With what result?

13. What trouble befell the Viper?

14. What occurred on February 20th?

15. What further is said of this affair?

16. What did the Governor say of these things?

17. What was the conclusion of this affair?

18. What joyful news was received on June 13th, 1766? How had Governor Tryon been affected by the resistance of the people to the Stamp Act?

# **CHAPTER XXI.**

## **GOVERNOR TRYON AND THE REGULATORS.**

**A. D. 1766 TO 1771.**

In the middle and western counties of North Carolina in the period referred to, there was collected a large increase of population. Immigrants had come in large companies from Scotland, Ireland, England and Germany. Fully two hundred thousand inhabitants were by that time to be found east of the Blue Ridge Mountains. They were separated by that great barrier from the Cherokees, who latterly had well respected this line of separation.

2. A great portion of the western settlers had recently come to their new homes, and were very poorly provided with the means of living. They were hundreds of miles from market, and made nothing on their farms to sell but wheat. These farmers were taxed about twelve dollars apiece on the poll, and paid an annual rent of seventy-five cents on each one hundred acres of their land.

3. When they hauled wheat to Cross Creek, now Fayetteville, it realized but little more than enough to pay for the salt needed in the family. Sugar and coffee were luxuries in which they rarely indulged. It can thus be seen how cruel would have been even an honest collection of what the laws demanded of these recent settlers as taxes. When these sums were



enormously increased by dishonest sheriffs the farmers were in despair, for it was beyond their power to pay.

4. The farmers knew they were being cheated, and resolved to put an end to such practices. Colonel Edmund Fanning, of Hillsboro, in Orange county, was growing rich as Register of Deeds, and was the ringleader in this oppression of the people.

5. In this same county lived Herman Husbands, who was a Quaker preacher, and, though of limited education, was a man of considerable natural abilities. He prevailed on his neighbors at Sandy Creek to form an association for mutual protection against the wrongs of the public officers. His organization was known as the "Regulators," and they were to help each other in the lawsuits and indictments growing out of a refusal to pay unlawful demands.

6. This was wise and proper, as these men were not rebellious, but only desired relief from oppression, but Husbands should have joined the league he was thus creating, and thereby shared the liabilities of the members. This he would not do, but preached and harangued until the people were in a fever of excitement.

1768.

7. The first trouble grew out of a seizure of a horse from one of two men sent to Hillsboro on a mission to the sheriff. The Regulators retook the horse by force, and fired into the roof of Colonel Fanning's house. That night Husbands was arrested and carried to Hillsboro, and gave bail for his appearance at the next Superior Court. He had hardly left Hillsboro before seven hundred men came to his rescue; they went away with promises made by Isaac Edwards, who was Tryon's Secretary, that the Governor would redress their wrongs.

8. Governor Tryon went to Hillsboro in a few weeks, but condemned only the people who had asked his aid, and, after going further west, came back to the Superior Court with an army of eleven hundred men, which he had raised in Mecklenburg and Rowan counties. Husbands was acquitted on trial, but three other Regulators were heavily fined and imprisoned. Colonel Fanning was convicted in five cases of extortion in office, and the judges, to their shame, imposed a fine of only one penny in each case.

9. This marching of troops, and the failure of the court to do its duty, only made matters worse. The Regulators grew in numbers and violence until the courts could not be held in some counties. Husbands was expelled from his place in the House of Assembly and thrown into prison for a libel on Judge Maurice Moore. His release was effected in time to stop a crowd of several hundred men from going to New Bern, where they had declared they would release him and burn the splendid palace the Governor had just built.

1771.

10. Matters continued to grow worse until, in 1771, Governor Tryon raised an army in the eastern counties, under a law of the Assembly, and marched to Orange to put down what he called the "rebellion of the Regulators," Colonel Waddell, with another body of troops, marched from Salisbury to join him, but was met by the Regulators and driven back.

11. On the 16th of May, 1771, the force of Governor Tryon, numbering eleven hundred men, met about two thousand of the Regulators at a place called "Alamance," in Orange County. In the battle that ensued there was stubborn fighting until the ammunition of the Regulators was exhausted, and they were driven from the field. Many men lost their lives, and all that was gained by North Carolina, after a noble resistance to oppression, was that Edmund Fanning and others, who were largely responsible for all its disorders, left the province.

12. The brutal malice and cruelty in Governor Tryon's character was exhibited soon after the battle. Several prisoners were taken by him, and one of them, a poor half-witted youth named James Few, was, by Tryon's order, hung on the spot without trial. Twelve other prisoners were soon convicted of high treason and sentenced to death. Six of them were hanged almost immediately; the execution of the others was delayed for a few days in order that a grand military display might be made on the occasion, the details of which the Governor superintended in person.

[NOTE—It has been said that the battle of Alamance was begun by Governor Tryon, who fired the first gun at a prisoner named Robert Thompson, killing him instantly. The men seemed to hesitate about beginning the fight, and Governor Tryon, rising in his stirrups, exclaimed: "Fire! fire on them, or on me!"]

13. Governor Tryon left the province a month after the battle of Alamance to become, by the king's appointment, Governor of New York. He had signally failed to do his duty in compelling his subordinates to deal honestly with the people, but yet he retained the confidence of many able and patriotic men. Richard Caswell and many other leaders in the province were distressed that he had ceased to be the Chief Magistrate of North Carolina.

#### **QUESTIONS.**

1. How were the middle and western sections of North Carolina being peopled at this period?
2. Give some description of these people. How were they taxed?
3. What return did the sale of their crops bring them? How was theirs a hard lot?

4. By whom were the poor farmers being oppressed?
5. What noted man is now mentioned? Can you tell something of the acts of Herman Husband in the province?
6. How did he shrink from becoming a member of his league?
7. What was the first trouble? How did they settle the matter? Mention some circumstances of the trial of Husband?
8. What was the result of Governor Tryon's visit to Hillsboro? How did the trials at court terminate?
9. How were the Regulators affected by this "mock judgment"? Into what trouble did Husband next fall?
10. What steps were taken by Governor Tryon towards crushing the Regulators? By whom was his army reinforced?
11. Can you describe the memorable "Battle of Alamance"? What benefit was derived from it? Point out on the map the scene of the battle.
12. What was Governor Tryon's conduct after the battle?
13. When did Governor Tryon leave North Carolina, and for what purpose?

## **CHAPTER XXII.**

### **GOVERNOR MARTIN AND THE REVOLUTION.**

#### **A. D. 1771 TO 1774.**

James Hasell, as President of the Council, assumed the conduct of affairs until the arrival of the new Governor. This new Governor, Josiah Martin, was born 22d April, 1737, and had been a Lieutenant-Colonel in the British Army, which position he was obliged to resign on account of his health. He then sought civil employment and was appointed Governor of North Carolina. He was a far more honorable man than Tryon. He had no unworthy favorites, as Tryon had, and concocted no selfish schemes for his own benefit or that of his family, but was exceedingly obstinate and strict in the observance of royal prerogatives. Unattractive in his manners, and very positive in his opinions, he sometimes failed to withhold the manifestations of his displeasure towards those who might happen to differ with him, no matter how honestly. Perhaps, however, in the fierce antagonisms of the times in which he ruled in North Carolina, his real virtues were not appreciated as they deserved.

1771.

2. Governor Martin met the Assembly, for the first time, in New Bern, on the 19th of November, 1771. At his suggestion, the Legislature passed an act of amnesty toward all persons engaged in the war of the Regulation

except Husbands and a few other leaders. Such wise and merciful action, however, was not to be the rule of his life.

3. It had long been felt that the taxes were exceedingly burdensome, and, from a statement made to the Legislature at this time, by one of the public treasurers, of the real condition of the public funds, it was seen that these taxes had been, for a time at least, unnecessarily imposed. The treasurer showed that a full collection of the amounts in arrear, for which security had been given, would discharge the entire public debt and leave in the public treasury the sum of twenty thousand dollars. A bill was at once passed in both houses of the Legislature, and without opposition in either, discontinuing the special taxes that had been devoted to the extinguishment of the public debt. Governor Martin, however, vetoed the bill, and thus began a series of conflicts with the Legislature that lasted until his expulsion from the province.

4. The repeal of the Stamp Act had been gratefully received; but Parliament still excited great apprehension by an express and formal assertion of its powers to tax America. It had cost immense sums to the Crown to drive out the French, and much money was still needed to pay British expenses in America. It was insisted that the colonies ought to pay their fair share in these burdens. The great question was, how this was to be done. If Parliament could levy what it pleased, then Americans were no longer free, in that they were not masters of their own purses. Many propositions were made to arrange the difficulty, but none were satisfactory to both sides.

1773.

5. So dissatisfied was Governor Martin with his first Legislature that he speedily dissolved it, and did not permit a new one to meet until the last of January, 1773. The new Legislature met in New Bern, and the House gave

notice of its temper by electing as its speaker John Harvey, of Perquimans, admitted on all hands to be the most earnest supporter of colonial rights in all the province. Upon every important subject of legislation the Governor and the new Assembly were at variance, and he accordingly dissolved it on the 9th of March, declaring that it "had deserted its duty and flagrantly insulted the dignity and authority of the government."

6. The next Assembly met in New Bern, on the 4th of December, 1773, and continued in session seventeen days, when it shared the fate of its predecessor, and was sent home with the injunction to consult with the people and learn their will.

7. Short as was the session, however, its action was most important. On the day after the session began, letters were received from the Legislature of Virginia and other colonies, proposing that each province should appoint a Committee of Correspondence. The proposition was speedily agreed to by the House of Assembly, and a committee of nine appointed, with instructions to "obtain the most early and authentic intelligence of all such acts and resolutions of the British Parliament, or proceedings of administration, as may relate to or affect the British colonies in America, and to keep and maintain a correspondence and communication with all sister colonies, respecting these important considerations, and the result of such, their proceedings, from hour to hour, to lay before the House."

8. John Harvey, Richard Caswell, Samuel Johnston, Joseph Hewes, Edward Vail, Cornelius Harnett, John Ashe, William Hooper and Robert Howe constituted the committee, and certainly, in North Carolina at least, it may be said there was never an abler one. By this action the province took position with its sister colonies on the great question of the day. That the question was regarded as one of great importance and great gravity, if not of

great difficulty, we need no other assurance than that afforded by the character of the men into whose hands it was committed.

**QUESTIONS.**

1. On whom did the government next devolve? Who succeeded James Hasell? How is Governor Martin compared with some of his predecessors?

2. Where did Governor Martin first meet the Assembly? What law was passed?

3. What was the financial condition of the government at this period? What act was passed concerning taxes?

4. How were the people excited by the English Parliament? What was the trouble?

5. How did Governor Martin act concerning the Legislature? What declaration was made by him?

6. Where did the next Assembly meet, and what was done with it?

7. What letters were received during the session? What was done with the proposition?

8. Who composed the Committee of Correspondence? What is said of these men?



## **CHAPTER XXIII.**

### **FIRST PROVINCIAL CONGRESS.**

**A. D. 1774.**

1774. By this time the propriety of holding a general or Continental Congress, composed of delegates or representatives duly chosen by the several colonies, had suggested itself to men of sagacity in every portion of the country. Wherever made, the suggestion at once found a lodgment in public favor, and by the time summer had come it was a generally accepted fact that such a congress would be held, and the time and place of its session pretty well agreed upon. During the month of June, 1774, each colony, through its Committee of Correspondence, was invited to send delegates to a Continental Congress, to be held in Philadelphia during the coming September.

2. From its first agitation, the project of a Continental Congress, to consider the best ways and means of redressing the grievances of the colonists, was exceedingly distasteful to Governor Martin, for he regarded it as a most efficient way to organize rebellion. He resolved that he would prevent North Carolina from participating in such a Congress, as Governor Tryon had prevented her from participating in a similar one in 1765. To this end he determined that during the continuance of the existing disturbed

condition of the colonies no Legislature should meet in North Carolina, thinking thereby to prevent the due election of delegates from the province.

3. To this fixed purpose on the part of Governor Martin, made known to John Harvey through Mr. Biggleston, the Governor's Private Secretary, the Congress held at New Bern in August, 1774, owed its existence. When Mr. Biggleston told him the Governor did not intend to call another Legislature "until he saw a chance to get a better one," Harvey replied, "then the people will convene one themselves." Accordingly, about the first of July, in accordance with a plan agreed upon three months before between Willie Jones of Halifax, Samuel Johnston of Chowan and Edward Buncombe of Tyrrell, Harvey, the Speaker of the House of Assembly, issued handbills calling upon the people to elect delegates to a Provincial Congress, as it was called, to assemble in New Bern on the 25th of August, to express the sentiments of the people on the acts lately passed by the Parliament of Great Britain, and to appoint delegates to represent the province in a Continental Congress. The handbills of this bold Speaker also invited the people to invest the deputies whom they might send to New Bern "with powers obligatory on the future conduct of the inhabitants."

4. The elections for deputies were duly held about the first of August, and the Governor, finding himself thus completely checkmated, was furious. The calm audacity of the Speaker, in summoning such a body to meet in New Bern, in the very presence of the King's represent representatives, as the Governor said, "to concert treasonable schemes against the Crown," astounded him.

5. Up to this time Governor Martin had not at all realized how weak had become the ties that bound the people of the colony of North Carolina to the mother country. Nor did he believe they would, with any degree of unanimity whatever, take so bold and defiant a step in the direction of open

rebellion as that involved in the election of a Congress with powers obligatory on the people, but owing no obedience to the authority of the Crown. Yet, at the appointed times and places, with few exceptions, the people throughout the provinces openly assembled and elected delegates to the proposed Congress, clothing them with most extraordinary powers.

6. This evidence of the condition of popular sentiment in the province could neither be doubted nor disregarded. Accordingly, on the 12th of August, 1774, the Governor asked his Council to advise him what to do in a state of affairs so inconsistent with the peace and good order of the government and so injurious to the maintenance of the authority of the Crown. After deliberating for a day on the matter, the Council advised him to issue a proclamation, and he did so, condemning the elections just held as highly illegal, and warning all officers of the King, both civil and military, to do all in their power to prevent such assemblages of the people, and especially the meeting of the deputies or delegates at New Bern on the 25th instant.

7. In spite of all this, the first Provincial Congress in North Carolina met at New Bern, August 25th, 1774, and elected John Harvey as Moderator or President. Richard Caswell, Joseph Hewes and William Hooper were chosen as delegates to the Continental Congress. Protesting their loyalty to the Crown, but expressing a full determination to defend their rights as freemen, the members entered into an agreement that unless their grievances were redressed they would discontinue all trade with English merchants.

8. This Congress was the first great step in the Revolution, which was to deliver North Carolina and America from the dominion of a distant King and Parliament. The men of America were soon to be free from all foreign interference in their government. It was a bold and hazardous step in

Colonel Harvey and the men over whom he presided as Moderator, but safety in the end was the reward of those who thus dared to be free.

**QUESTIONS.**

1. What important step was suggesting itself to the people? How was the suggestion received? What was done in June, 1774?

2. How did Governor Martin regard this matter? What did he determine to do?

3. What was the result of the Governor's plan? What was done by John Harvey?

4. How was Governor Martin affected by Harvey's success?

5. What had the Governor begun to realize? What was done by the people?

6. What advice did the Governor seek? What was given?

7. When and where did the first Provincial Congress of North Carolina meet? Who was Moderator? Who were chosen as delegates to the Continental Congress?

8. What is said of this Provincial congress?

## **CHAPTER XXIV.**

### **THE SECOND PROVINCIAL CONGRESS.**

**A. D. 1775.**

After the meeting of the first Provincial Congress, at New Bern, there were, to all observers of intelligence throughout the world, evident signs of an approaching rupture between the Royal Government and the people of North Carolina. Each day widened the breach between them and rendered more difficult an arrangement of the troubles.

2. In the regular course of events, if North Carolina would continue to keep abreast of her sister colonies in the movement for the preservation of the inherent rights of British subjects, it was necessary that she should formally ratify and approve the action recently taken by the Continental Congress, and to elect delegates to that Congress for a new term. Accordingly, on the 11th of February, 1775, after the Governor had ordered an election to be held for a new Legislature to meet in New Bern on the 3d of April, Colonel Harvey also issued handbills for the election of another Congress to meet at the same time and place.

3. Both elections were held and both bodies met at the appointed time and place. Indeed the same individuals were members of both the House of Assembly and of the Congress. The records show that every member of the House of Assembly who was present was also present as a member of the

Congress, with only three exceptions. Colonel Harvey was chosen to preside over both bodies. When sitting at the House of Assembly the members called him "Mr. Speaker," but when sitting as a Congress they called him "Mr. Moderator." According to the journals of their proceedings, the Congress met at nine o'clock and the Assembly at ten o'clock in the morning. Upon the face of the journals of the two bodies their proceedings seem to have been entirely separate and distinct; it is said, however, to have been otherwise in fact, and that at one moment the members would be sitting with Mr. Speaker Harvey as a House of Assembly, under the authority of the Crown, and at another with Mr. Moderator Harvey, as a Congress in defiance of the Crown.

4. As the two Houses of the Legislature met Governor Martin in the palace, according to the custom of that day, at the beginning of a session, he saluted them with indignant remonstrances, which were, the next day, most ably answered in an address prepared by Captain Robert Howe, of Brunswick. A chief ground of his complaint was that the Assembly would take no action against the Congress. He was aptly reminded, however, in reply, that as the Assembly had no control over its sessions, holding them at his will and pleasure only, and remembering how that will and pleasure had been exercised, a Congress that did have control over itself was absolutely necessary for the protection of the people. The result was a proclamation dissolving the Assembly on the 8th of April, that being the fourth day of its session.

5. The Congress, however, could neither be dissolved nor dispersed, and proceeded in its work with much deliberation. The same delegation was returned to Philadelphia; and articles of association, pledging the members to abstain from all commerce with British marts, were signed by all except Thomas McKnight, of Currituck.

6. It was seen that a crisis was near at hand. Boston had been held, for months past, in a state of siege. At length, on April 19th, came the encounter at Lexington. Accidents are constantly heard of wherein more lives are lost, but this little skirmish, small as it was, was enough, with its tidings, to fire the hearts of a continent.

7. The tidings of such an occurrence in our day outstrips the winds. In less than an hour it is known all over the Mississippi Valley, across the Rocky Mountains, and along the shores of the Pacific Ocean. But our ancestors of that day had no railways or telegraphs; so, it was fully two weeks after the militiamen slain at Lexington had stiffened in their blood that Richard Caswell heard of it in Petersburg, Virginia.

8. A courier was hurrying southward with the tidings, but it was not until May 19th that the people of Mecklenburg, in North Carolina, became aware of what had occurred. At the village of Charlotte upon that day a large concourse of the leading men of that county had assembled. Fired at the nature of the startling intelligence, they held a convention, and after remaining in session all night, on the morning of the 20th, passed resolutions of independence that will immortalize their names.

9. All America, while arming for the war, was still protesting loyalty to the King, but these men of Mecklenburg leaped to a conclusion, the expediency of which more than a year of blood was required to impress on the minds of their countrymen. Abraham Alexander presided in the meeting, and the famous "Mecklenburg Declaration of Independence" was drawn by Dr. Ephraim Breyard.

[NOTE—The men of Mecklenburg held another meeting on May 31st, and adopted a system of government and military commissions. These people publicly declared themselves free from English rule nearly fourteen months before the Declaration of Independence at Philadelphia.]

10. The news from Boston was speedily followed, in North Carolina, by mournful tidings from Perquimans county. Colonel John Harvey, after so many strenuous efforts to put North Carolina in readiness for the storm, sank under disease, and died at his place in "Harvey's Neck," on the Albemarle Sound. No braver or wiser man has ever borne a part in the conduct of affairs in North Carolina.

11. Apprehensive for his own safety and that of his family, Governor Martin at once made preparations for leaving New Bern. He sent his family to New York by sea, but went himself by land to Fort Johnston, at the mouth of the Cape Fear. \* But even Fort Johnston proved unsafe as a place of refuge, and in July the Governor left it and went on board the war sloop Cruiser, then lying in the river before the fort. On the same day Colonel Ashe, with five hundred men, burned the fort to the ground.

\*Governor Martin took advantage of this journey to visit the Scotch settlements on the upper Cape Fear, and set on foot the insurrection that culminated in the battle of Moore's Creek Bridge.

#### QUESTIONS.

1. What signs were observed after the first Provincial Congress?
2. What was necessary for North Carolina to do? What was done on February 11, 1775?
3. What is said of this election ? Describe the Legislature and Congress?
4. How was the Legislature received by the Governor? How did Captain Howe answer him?
5. What was done by the Congress?



6. What startling news was received on April 19th.
7. How did the circulation of news in 1775 differ from the present? Who was first to receive the news of Lexington?
8. When did the tidings reach Mecklenburg? What great event occurred at Charlotte? Find this city on the map.
9. What was the attitude of the American people at this time? By what name have the Charlotte resolutions always been known?
10. What sad news next thrilled North Carolina?
11. What was done by Governor Martin? What occurred at Fort Johnston?

## CHAPTER XXV.

### THE CONGRESS AT HILLSBORO.

A. D. 1775.

It had been seen at New Bern that Colonel Harvey's days were numbered, and Samuel Johnston had been empowered, in case of the Moderator's death, to order an election for another Congress to meet at Hillsboro whenever he should deem it necessary. Accordingly (Colonel Harvey having died) the Congress met, at the call of Mr. Johnston, in Hillsboro, on the 20th of August, 1775, and a memorable Congress it was. Samuel Johnston was its President.

2. When Governor Martin left New Bern royal authority was virtually at an end in North Carolina, but it was at Hillsboro, and by the Congress there assembled, that its last vestige was swept away. The time had come when, if North Carolina intended to stand with her sister colonies, she must take up arms and appeal to the God of battles. This she was ready to do without any hesitation, and this she did do at Hillsboro, giving publicly to the world her reasons for so doing.

3. The Governor sent to Samuel Johnston a copy of his proclamation, dated on board His Majesty's ship Cruiser, at Cape Fear, on the 8th of August, 1775, in which he warned the people against the Hillsboro Congress as a dangerous and unconstitutional assembly, and of baneful

influence; and further, that to assemble men in arms in the province without authority from the King, was a violation of law for which they would be held answerable. In reply to this proclamation, which was duly laid before the Congress by the Moderator, Mr. Johnston, it was formally resolved that the proclamation was a false, scandalous, scurrilous and seditious libel, tending to disunite the good people of the province; "and further, that the said paper be burnt by the common hangman."

4. Accepting the recent flight of Governor Martin to the British war-sloop Cruiser as an abdication of the government of the Crown, the Congress proceeded to put in its place a government of the people, and established what in this day would be called a provisional government. Cornelius Harnett\* was at its head.

\*This man was the second of the name. His father came to Clarendon in Governor Burrington's time, and was all his life afterwards a member of the council. This Cornelius Harnett was well educated, and was so intensely devoted to the American cause that he was called in that day "the Samuel Adams of North Carolina."

5. On the third Tuesday in October in each year delegates to a Congress were to be elected, which Congress was to meet on the 10th of November following, unless otherwise directed. When in session Congress was, of course, supreme; when not in session, ample authority was vested in a general or provisional council and subordinate or district committees of safety. The province was divided into six military districts, and as far as possible, put on a war footing.

6. The ordinary militia organization was perfected and monthly drills ordered; a special organization of minutemen, as that class of troops was called, was provided for each district, and, in addition, two regiments of regulars were ordered as the contingent of the province for the Continental

army. Provision was also made for the purchase, anywhere and everywhere, of arms, powder, lead, salt and saltpetre; for the manufacture at home of salt, saltpetre, powder, and for the refining of sulphur; for the manufacture of brown and writing paper, cotton and woolen cards, linen and woolen cloths, pins and needles, and for the erection of furnaces for making iron and steel and iron hollow ware, and of rolling mills for making nails, large premiums were offered. A census, too, was ordered to be taken without delay.

7. An issue of money to meet expenses was also provided for. In a word, every function of government was from that time exercised in the name and by the authority of the people of North Carolina. Virtually the province was under martial law, but it was under martial law self-imposed.

8. It is evident that the men who constituted the Hillsboro, or third Provincial Congress, knew perfectly well what they were doing, and had fully counted the cost. Success meant freedom, and would make them patriots; failure meant abject submission to a foreign government, and would make them traitors. Knowing this, they deliberately put a government of the people in the place of the government of the King; they put an army in the field and provided it with arms and ammunition; and, as if looking ahead to a long and protracted struggle, during which their ports would be doubtless blockaded, they sought at once, by the offer of large bounties to encourage the manufacture at home of such articles as were of common use and prime necessity. They were indeed both bold and far-seeing, those men of the Hillsboro Congress, and well they might be, for they were the best and bravest of the province-men whose names are now household words throughout the State.

9. The Hillsboro Congress had not called out troops any too soon, for it was discovered that both Governor Martin, in North Carolina, and Lord

Dunmore, in Virginia, were engaged in schemes to excite insurrections among the negro slaves. Colonel Robert Howe, with the Second North Carolina Regiment, was sent to Norfolk, in Virginia, where the British troops, being beaten at Great Bridge, were soon driven from the soil of the "Old Dominion."

10. This occurred in December, 1775. About the same time Colonels Griffith Rutherford, Thomas Polk and James Martin embodied their militia regiments and went to South Carolina, where they speedily crushed a Tory insurrection of certain men called the "Scovillites." The militia were, of course, aided by Whig troops of that province. The readiness with which North Carolina marched troops both to Virginia and to South Carolina caused her to stand very high in the estimation of the Continental Congress.

11. The term "Tory" was applied to men who upheld the royal authority, and were opposed to any movement to defend the colonies against the exactions of the Crown and Parliament. The "Whigs," on the contrary, were at that day demanding that American commerce should be free, and that no taxes should be imposed by Great Britain upon the colonies. They were not enemies to the King, and only opposed to that which they considered oppressive in the designs of his ministers.

#### QUESTIONS.

1. Who had been selected to take Colonel Harvey's place? When and where did the third Provincial Congress meet?

2. In what condition were public affairs when the Congress met?

3. What proclamation did the Governor send to Samuel Johnston? What reply was returned?

4. What view was taken of the Governor's flight? Who was placed at the head of the provisional government?

5. Mention some laws which were passed concerning the Congress?

6. Mention some further acts of the Hillsboro Congress.

7. What about the issue of money?

8. What is said of the men who composed the Congress?

9. In what scheme was Governor Martin found engaged? What force was sent to Virginia?

10. Who were sent to South Carolina?

11. Define the terms "Tory" and "Whig."

## CHAPTER XXVI.

### THE BATTLE OF MOORES CREEK BRIDGE.

A. D. 1776.

1776. The new year, 1776, found Governor Martin still lingering on board the Cruiser in the Cape Fear River. He was closely watched by Colonel James Moore, who kept his Command (the First North Carolina Regiment) in that vicinity. In February came the news that the Scotch Highlanders and Regulators were gathering at a place called, at that day, "Cross Creek," and now the town of Fayetteville. This place and in this connection will be remembered as the home of the beautiful heroine, Flora McDonald, and her husband. Like her husband, she was a staunch Tory, and did all she could to promote the insurrection.

[This famous woman had won the world's admiration by her heroic efforts to aid the unfortunate Prince Charles Edward after his defeat at Culloden. He was being hunted like a wild beast by the troops of the king, but Flora McDonald bravely left her home and went off with the disguised Prince, until, after many perils, he reached a vessel on the coast and thus escaped to his friends in France. ]

2. A large fleet and army were said to be on their way from England to take the town of Wilmington. These Scotchmen, assembling at Cross Creek by Governor Martin's orders, were in arms to force their way across the

country and join the expected British army, Colonel Moore at once met them at Rockfish Creek, where he fortified his camp and awaited an attack. But he soon found this would not occur, so he sent Colonel Lillington and Captain Ashe with two hundred and fifty men to occupy a bridge over Moore's Creek that he supposed would intercept General Donald McDonald, who commanded the Tories.

3. Whigs in arms were assembling from different directions, and the Tories soon saw that unless they passed Colonel Moore they would be surrounded and captured. McDonald was an old and skillful officer, and he moved across the Cape Fear River to meet Colonel Caswell, who was coming up from New Bern with a command of eight hundred men which had been raised in that section.

4. Caswell made haste to join Lillington on Moore's Creek, and artfully led the enemy to believe that he was camping, on the evening of February 26, 1776, on the same side of the stream with him. He left his fires burning, and in the darkness crossed the bridge, removed the timbers except two log girders, and took up a position supporting Lillington and Ashe, who had already put themselves in the best place to prevent the passage of the Tories.

5. In the darkness of early dawn, on the 27th, Colonel Donald McLeod took the place of his sick commander, General McDonald, and fell upon what he had been led to believe was Colonel Caswell's camp; but his spies had been misled, and his foes were to be reached only by crossing the bridge before him. The prospect was appalling, but McLeod was brave, and putting himself at the head of a picked band of broadswordsmen, he charged across the remaining two logs of the bridge. It was a terrible moment when the Whigs saw these dauntless Highlanders, who had so often broken the strongest lines of troops in Europe, rushing furiously upon



them. But they were cool, and plied the deadly rifles upon the Scotchmen as fast as they came.

6. Colonel McLeod fell dead in his headlong charge, being pierced by twenty-six balls. The carnage was so frightful that the onset was stayed, and then, as the assailants wavered, Captain Ezekiel Slocumb, having crossed the creek with his company, rushed from the woods and charged their flank. A wild panic ensued, and the Tories fled in disorder from the fatal bridge.

7. The Whigs followed in hot pursuit, and the victory was overwhelming. Nearly two thousand Royalists were thus defeated by eleven hundred undisciplined Whigs. Eight hundred prisoners, including General McDonald, with all the camp stores, were taken.

8. There was not a more complete victory during the war. General Moore's strategy was brilliant in conception and daring in execution; but no strategy, however brilliant, and no courage however daring, would have availed anything had not North Carolina been prepared to put promptly in the field troops with the necessary munitions of war. These troops that took part in the campaign came some from above Greensboro in the west and others below New Bern in the east. Infantry, artillery and mounted troops were all engaged, and everything went on as smoothly as if the province had never known anything about war.

9. The successful conduct of the campaign, requiring as it did the rapid concentration of troops without railroad, steamboat or telegraph, and the readiness with which, ninety days previous, we had sent troops both to South Carolina and to Virginia, demonstrated beyond question the wisdom of the Congress in its work at Hillsboro during the summer and autumn before.

10. The defeat of the Tories thwarted the schemes of Governor Martin, and so dispirited the Scotch and Regulators that years elapsed before they gave further trouble. Lord Cornwallis came into the Cape Fear River with his army, but hearing of the disaster, sailed away, having effected nothing but an inglorious descent upon the farm of General Robert Howe.

11. Thus began and ended the first British invasion of North Carolina. Colonel Moore was made a General for his skill in planning the campaign, and Caswell, Lillington and Ashe, with their gallant commands, were everywhere honored for their bravery and success.

[NOTE—A proclamation was issued soon after this, giving pardon to all who would submit to the government of the King, except General Robert Rowe and Cornelius Harnett.]

#### **QUESTIONS.**

1. What was the situation in Wilmington in 1776? What important news was received?

2. What expedition was coming to Wilmington? How was it to be reinforced? How was Colonel Moore preparing to meet these men from Cross Creek?

3. Mention other preparations for a fight.

4. Give an account of Colonel Caswell's position on Moore's Creek.

5. Who commanded the Tories? Describe his charge upon the Whigs.

6. Give an account of the battle of Moore's Creek. When did this occur? Locate the scene of this battle on the map.

7. What was the result?

8. What is said of the victory at Moore's Creek? What was promptly done by North Carolina?

9. What is said of this campaign?

10. What distinguished British officer entered the Cape Fear?

11. How did the people feel towards Colonel Moore and other commanding officers?

## **CHAPTER XXVII.**

### **FOURTH PROVINCIAL CONGRESS DECLARES INDEPENDENCE.**

**A. D. 1776.**

The Hillsboro Congress of August, 1775, formally inaugurated a war of resistance to British oppressions, but to the Halifax Congress of April, 1776, was left the crowning glory of being the first in all the colonies to declare for absolute independence of the mother country and for foreign alliances.

2. It was quickly seen when the new Congress met at Halifax, on the 4th of April, 1776, that great progress had been made in public sentiment. At Hillsboro professions of loyalty and of a desire for continued connection with Great Britain, some honest, but many of questionable sincerity doubtless, were still to be heard. At Halifax there was neither halting nor hesitation in avowing that absolute independence from the mother country was the real aim of the people of the province.

3. The time for the final plunge had come, and North Carolina was quite ready for it. Accordingly, on the fourth day of the session, a committee was appointed to take into consideration the usurpations and violences attempted and committed by the King and Parliament of Britain against America, and the further measures to be taken for frustrating the same, and for the better defence of the province. Four days later, that is to say, on the

12th day of April, 1776, a day ever to be remembered in the annals of America, the committee reported as follows:

"It appears to your committee that pursuant to the plan concerted by the British Ministry for subjugating America, the King and Parliament of Great Britain have usurped a power over the persons and properties of the people unlimited and uncontrolled, and disregarding their humble petitions for peace, liberty and safety, have made divers legislative acts denouncing war, famine and every species of calamity against the continent in general. That British fleets and armies have been, and still are, daily employed in destroying the people and committing the most horrid devastations on the country. That Governors in different colonies have declared protection to slaves who should imbrue their hands in the blood of their masters; that the ships belonging to America are declared prizes of war, and many of them have been violently seized and confiscated, in consequence of which multitudes of the people have been destroyed or from easy circumstances reduced to the most lamentable distress.

"AND WHEREAS, the moderation hitherto manifested by the united colonies and their sincere desire to be reconciled to the mother country on constitutional principles have procured no mitigation of the aforesaid wrongs and usurpations, and no hopes remain of obtaining redress by those means alone, which have been hitherto tried, your committee are of opinion that the house should enter into the following resolve, to wit:

"Resolved, That the delegates for this colony in the Continental Congress be empowered to concur with the delegates of the other colonies in declaring independence and forming foreign alliances, reserving to this colony the sole and exclusive right of forming a constitution and laws for this colony, and of appointing delegates from time to time (under direction

of a general representation thereof) to meet the delegates of the other colonies for such purposes as shall be hereafter pointed out."

And thereupon the Congress did so resolve unanimously.

4. With the exception of the Mecklenburg Declaration of the year before, there had been, up to that time, nowhere in all America a single organized body to venture on such a proposition. Individuals like Samuel Adams, William Hooper and Christopher Gadsden had been heard advocating it; but every other assembly was yet protesting its loyalty to the King. It was more than a month before Virginia consented to Patrick Henry's demands, and the other colonies were to follow at intervals after her endorsement.

5. In the annals of the world there is no prouder record than the entry made on the journals of the Halifax Congress on the 12th day of April, 1776. A great fleet and army were yet upon the soil and within the waters of North Carolina, but this could not deter these resolute patriots from thus taking the lead in a doubtful and perilous departure from all the ties and obligations of the past.

6. It can then be understood how joyously the news was received at this same town of Halifax on July 22d, that the Continental Congress, at Philadelphia, had acceded to the wishes of North Carolina, and had, on the 4th day of the same month, declared the "Independence of America."

7. The "Council of Safety" was at that time in session at Halifax, and by it Thursday, the 1st of August, was set as a day for proclaiming the declaration at the courthouse in Halifax, and the people were invited to attend. On the day appointed, according to the vivid description of an eye-witness, a vast concourse of people assembled in front of the court house. The provincial troops and the militia were all drawn up in full array. At midday Cornelius Harnett ascended a rostrum that had been erected in front

of the courthouse, and even as he opened the scroll upon which was written the immortal words of the declaration, the enthusiasm of the immense crowd broke forth in one loud swell of rejoicing and prayer. When he had finished, all the people shouted with joy, and the cannon sounding from fort to fort, proclaimed the glorious tidings that all the thirteen colonies were now free and independent States. The soldiers seized Mr. Harnett and bore him on their shoulders through the town. The declaration was ordered to be read in all portions of North Carolina, and, except in one county, the mandate was everywhere obeyed.

8. All the North Carolina troops then in arms, including the two Continental regiments and the militia under General Ashe, were in Charleston. They were spectators of the combat in which the gallant Moultrie, within his fort of palmetto logs, signally defeated the same British fleet under Sir Peter Parker that had been so recently in Cape Fear River.

9. General James Moore marched northward from Charleston with his brigade, but died in Wilmington. His death was a serious loss to North Carolina and the cause of liberty, for in military genius, as in patriotic devotion, he had few equals and no superior in America. Colonel Francis Nash succeeded to his place. General Howe was sent to Savannah, having with him his old command, the Second North Carolina Regiment. Four new regiments were ordered by the Provincial Congress and were soon put in the field.

10. On the same day with the battle in Charleston Harbor, June 28th, 1776, the Cherokee Indians descended from their mountain homes and murdered two hundred western settlers. General Griffith Rutherford collected two thousand men of the militia regiments in his command, and took such swift and ample vengeance that from that time these Indians

ceased to trouble the frontier. They had been incited by British agents to their disastrous work.

**QUESTIONS.**

1. What is said of the fourth Provincial Congress? Where was it held?
2. In what condition was public sentiment when the Congress met?
3. What was done on the fourth day of the session? Why should the 12th day of April, 1776, ever be remembered? Can you state the substance of this memorable declaration of independence?
4. What is said of the Halifax declaration?
5. Tell something of the boldness of this declaration.
6. What was done by the Continental Congress on May 4th?
7. Describe the reading of the Declaration of Independence.
8. Where were the North Carolina soldiers at that time?
9. What other military movements were mentioned?
10. What occurred on January 28th, 1776?



## CHAPTER XXVIII.

### ADOPTION OF A STATE CONSTITUTION.

A. D. 1776.

After the public avowal by the people of North Carolina, through their newly organized Congress at Halifax, in April, 1776, of a fixed purpose to secure, by force of arms, absolute independence from the mother country, and of her desire to enter into foreign alliances to accomplish that end, there was no reason for any longer delay in establishing a permanent form of government for the colony. Hitherto, pride of consistency in form at least, to say nothing of a considerate regard for tender consciences, if not for weak nerves, might well have held them back. After the action of the Congress on the 12th of April, however, it was manifest that the day of provisional government was nigh its close, and that the people of North Carolina must abide the arbitrament of war to which they had appealed, whether in future they should be free, self-governing citizens or dependent subjects of a foreign government. The half-way ground and the time for temporary expedients were both left behind in North Carolina on the 12th of April, 1776. There was great division, however, among the wisest and best men in the province as to the true nature of the new system of government which had thus become necessary.

2. Samuel Johnston was a wise and patriotic leader. He was a man of wealth and experience in public affairs, and was devoted to his country, but he thought that new experiments in government were dangerous, and withal was long very much averse to a final separation from Great Britain. He wished to keep up the old system of rule as far as possible; among other reasons, because he doubted the ability of the people to govern themselves. These views were also held by General Allen Jones, of Northampton, and other prominent men.

3. On the other hand, Willie Jones, of Halifax, brother of General Allen Jones, was the leader of a majority of the legislators and the people. He held as the fundamental article of his political creed that the American people were capable of governing themselves, and that all political power belonged to and proceeded from them. Like Jefferson, of Virginia, he advocated religious freedom, separation of Church and State, liberty of the press and choice of rulers by the masses at the ballot-box.

4. Between these two champions of opposing theories stood Richard Caswell, a man of excellent discretion and great practical common sense, who, happily tempering the fierce democracy of Jones with the more cautious conservatism of Johnston, possessed, in a rare degree, the confidence of the people of North Carolina of every faction. A Marylander by birth, he came to North Carolina when quite a youth, without fortune or friends, and won his unbounded popularity by long years of unselfish, unstinted devotion to her service.

5. Men of strong convictions, especially when accustomed to shape public sentiment, do not readily yield to opposing views, and it was a happy thing for North Carolina that she possessed such a man as Caswell, whose commanding influence enabled him to control and finally to compose the fierce differences that prevailed in regard to the character of the proposed

new government. At his suggestion, the matter was postponed until the winter, when a new Congress would be in session, fresh from the people and in full possession of their views in the premises; and in this way the question at issue as to the character of the new government was remitted directly to the decision of the people,.

6. By formal resolution, adopted on the 9th of August, 1776, the Council of Safety called the attention of the people to the fact that the next Congress would frame a constitution for the State, and urged, for that reason, that the greatest care be taken in the selection of delegates at the ensuing election.

7. The election was held on the 15th day of October, and the Congress met at Halifax on the 12th day of November, and, on motion of Allen Jones, made Richard Caswell its President. Samuel Johnston, after a hot contest, had failed to be elected, and was consequently not a member. He was in Halifax, however, during the sitting of the Congress, and doubtless exercised but little less influence than he would have done had he been a delegate.

8. On the 17th of December, that most admirable enunciation of human rights, the bill of rights so-called, was adopted, and the next day the constitution was adopted.

9. The new constitution went into operation at once, with Caswell as the first Governor, and the great work of supplying the State with judges, sheriffs, magistrates and other officers began. For several years there had been no courts to administer justice, either civil or criminal, except military tribunals and the various committees of safety. Fortunately, while Governor Caswell, aided by the legislative authorities, was putting in motion the untried machinery of a new government, and evoking civil order from military disorder, our British foes were far away to the northward. At last

North Carolinians lived under a government of their own making, administered by officers of their own choosing.

**QUESTIONS.**

1. What was seen to be the next necessary step after the action of the Halifax Congress? Can you tell what difficulties had previously existed?

2. What views were held by Governor Johnston?

3. What did Willie Jones consider necessary for the people? What was advocated by him?

4. How did Caswell consider these things?

5. What good influence was exerted by his opinion?

6. What did the Council of Safety do?

7. When did the Congress meet? Who was chosen to preside? What was done on December 17th?

8. Who was the first Governor of North Carolina under the constitution? Describe the condition of affairs?

## CHAPTER XXIX.

### THE WAR CONTINUED.

A. D. 1777 to 1779.

All of the North Carolina Continentals were with General Washington early in the new year 1777. They reached him in a great emergency. His army had just been driven from New York across the State of New Jersey, and such had been his losses by battle and otherwise, that when he reached the Delaware River he could hardly muster five thousand men.

2. Sir William Howe, the British Commander-in-Chief, had twenty- nine thousand trained soldiers available, and when Lord Cornwallis, who had been pursuing the Americans, was halted by him, it was the salvation of the force left with General Washington. Had Sir William forborne to stop the pursuit of Cornwallis the struggle might have soon ended in the capture of Washington. After a week of delay, Cornwallis was permitted to advance, and even then came up in time to see the last boatloads of the American troops crossing the great river which so effectually stopped all further pursuit.

1777.

3. When General Nash arrived at the American camp, after his long march from the south, he brought six full regiments of North Carolina

Continental, nearly doubling the force upon which the hopes of America mainly depended. By this means General Washington was soon after able to confront the advancing enemy in the battle of Brandywine, on September 11th. At this and other engagements the North Carolina troops displayed both courage and discipline.

4. It was on the bloody occasion of the attack upon the British force at Germantown, October 4th, that their most glorious record was made. General Washington entrusted the post of honor on the extreme right flank of his line of attack to General Francis Nash. The British were driven by the North Carolinians a long distance on the right of the village, but the American divisions which had been sent in on the left failed to dislodge the enemy, and in this way left General Nash's force exposed both on his left and rear.

5. It was a glorious but bloody day for North Carolina. The brigade suffered heavy loss in advancing, but greater when compelled to fall back for want of support. General Nash and Colonel Edward Buncombe were mortally wounded. Lieutenant-Colonel Irwin and many other gallant officers were slain upon the field.

1778.

6. At length the British forces were directed again toward the south. On December 29th, General Robert Howe was driven from Savannah by General Prevost, on which occasion the Second Regiment of Continentals was confronted by a regiment of North Carolina Tories under Colonel John Hamilton. Howe and his command were transferred to West Point, on the Hudson River, of which important post he was soon commander, with the rank of Major-General.

1779.

7. After 1778 the courts were fully established, and Judges Ashe, Iredell and Spencer held terms at Wilmington and at five other towns twice a year. Waightstill Avery, as Attorney-General, was busy in trials for treason against the State. There were many men who yet labored to restore the King's authority, and against them was needed all the vigilance possible, both in the courts and at military headquarters.

8. More than three years of the war had passed away without serious disaster to North Carolina. No invaders disturbed her borders, and beyond the grief for friends slain in battle, there was cause for gratitude to God that so few evils of the war had yet visited the State.

9. General Washington had evinced such nobility of soul and great military capacity that all American hearts were soon filled with love and admiration. With far-seeing wisdom, he was patiently biding his time to strike his enemies, and in foreign lands other great soldiers were applauding the mingled caution and boldness of his military movements.

#### QUESTIONS.

1. Where were the North Carolina troops at this time? What was the condition of Washington's army?

2. How were the Continental troops benefited by an order of Sir William Howe?

3. What battle was fought on September 11th, 1777?

4. On what battle field did the North Carolina troops specially distinguish themselves on October 4th? Relate the circumstances.

5. How did General Nash and his troops suffer on this occasion?

6. What occurred at Savannah on December 29th, 1778? To what place was General Howe then transferred?

7. When were the courts of North Carolina fully established? Can you tell something of the judicial system in that period?

8. For what had North Carolina cause to be grateful?

9. What is said of General Washington?



## **CHAPTER XXX.**

### **STONY POINT AND CHARLESTON.**

**A. D. 1779 TO 1780.**

The capture of Savannah caused uneasiness in all the Southern States. It was seen at once that Georgia was but a starting point in a general scheme of transferring hostilities from the north. Early in 1779, General John Ashe reached Charleston with two or more brigades of militia. These were hurried off, at the importunate demand of the Governor of South Carolina, to attack the British at Augusta.

2. General Ashe remonstrated, saying his men were not yet ready for active service in the field; he obeyed orders, however, and took the field as directed. On his approach the enemy retired down the Savannah River, and Ashe, dividing his force, was so unfortunate as to fall into an ambush on Brier Creek, where his men, who were raw, undisciplined troops, were taken by surprise and routed.

3. A little later, and elsewhere, there was better fortune. At Stony Point, on the Hudson River, a strong American fortification had been recently captured by the British. General Wayne found that it was garrisoned by six hundred Scotch Highlanders, constituting one of the regular Royal regiments. The work was nearly surrounded by the river and by morasses, and the single approach was so swept by the guns of the work, and also by

those of several ships-of-war lying close by for the purpose of aiding in its defence, that it seemed wellnigh hopeless to attempt its capture.

4. But hopeless as it seemed, General Wayne determined to make the attempt. He drew near at midnight, and with unloaded muskets, and courage that has never been surpassed, captured the stronghold at the point of the bayonet.

5. Two columns of assault were sent in on the right and left; but to Major Hardy Murfree's two companies of the Second North Carolina Continental Regiment, as a forlorn hope, was the post of real honor and danger assigned. They charged full in front, up the steep hillside, through several lines of abattis, and in this way received the hottest of the enemy's fire. The capture of the fort was largely due to the gallantry of the North Carolina troops.

1780.

6. Governor Caswell being ineligible for the next term, was succeeded, at the beginning of the year, by Abner Nash as Chief Magistrate of North Carolina. The constitution provided that after three years' service the Executive became ineligible for the next term, and Caswell had served three terms. Governor Nash, like his predecessor, was a man of ability and patriotism, but did not equal him in the versatility of his powers or his consummate skill in the management of men.

7. In February, 1780, all of the North Carolina troops of the Continental Line had been ordered to the south. They were at Charleston with General Lincoln, being besieged there by an overwhelming force under Sir Henry Clinton. In addition to the army, the British commander had come down from New York with a great fleet.

8. The defence was a brave one, but unavailing, and on May 12th General Lincoln was forced to surrender. It was a direful day for North Carolina. All of her regular troops and a full thousand of her militia became prisoners of war. It was a fatal rashness in General Lincoln to allow himself to be cooped up in a city. Thus, while no real benefit resulted to the American cause, or to the State of South Carolina, North Carolina was, at one fell blow, stripped of all her defenders.

9. Sir Henry Clinton sailed back to New York after the capitulation, but he left a man of far superior ability with an army to continue the conquest of South Carolina. This was Lord Cornwallis, who was the bravest and most skillful British soldier then in the world. He was to remain this time long enough to be forever remembered and to take bloody vengeance for his inglorious experience with Sir Peter Parker four years before.

10. The first movement of Cornwallis, after capturing Charleston, was to send Lieutenant-Colonel Tarleton, with his dragoons, to intercept a column of infantry which was approaching from Virginia, under the command of Colonel Buford. These were surprised and cut to pieces. Among others, the North Carolina company of Captain John Stokes lost heavily in the sudden and bloody attack.

11. This disaster occurred in the Waxhaw settlement, on the State line, not far from Charlotte, in North Carolina. Thus, at a time when everything indicated another invasion, not a single troop of disciplined soldiers was left for the defence of this State, except the two companies of mounted infantry which were commanded by the gallant Major William R. Davie. This little band hovered continually in the neighborhood of the scene of Colonel Buford's defeat.

12. Governor Rutledge, of South Carolina, upon the fall of Charleston, offered to cease fighting the British if they would allow his State to remain

neutral for the remainder of the war; but a very different feeling actuated Governor Nash and his people when apprised of the great disaster. If her Continental veterans were all prisoners, there were still brave hearts and deadly rifles left with which to continue the struggle, and North Carolina had no thought of quailing.

#### QUESTIONS.

1. What was apprehended in North Carolina after the fall of Savannah, and why? Who was put in command of the brigades under General John Ashe? Where were these troops carried?

2. What befell the command on the route?

3. What victory was gained by the Americans on the Hudson River? Who was in command? Describe the situation of Stony Point.

4. Give an account of the attack on this stronghold?

5. What troops occupied the post of special danger? How did they perform their duty?

6. Who succeeded Governor Caswell? Why was Governor Caswell not re-elected?

7. Where were the North Carolina soldiers in 1780? What enemy was besieging them?

8. How did the siege terminate? Why was this surrender disastrous to North Carolina?

9. What did Clinton do after the capitulation? Who was left in command of the British? What is said of Lord Cornwallis?

10. What was his first military movement? Describe the engagement between Tarleton and Buford.

11. Where did this action occur? What was the condition of North Carolina's defences?

12. What proposition was made to the British by the Governor of South Carolina? What was the sentiment in North Carolina?

## **CHAPTER XXXI.**

### **THE BATTLES OF RAMSOUR'S MILL AND CAMDEN COURT HOUSE.**

**A. D. 1750.**

When the great disaster at Charleston became known to the North Carolina Tories, and they fully realized that British troops were close at hand, the spirit that had seemed crushed at Moore's Creek began to revive. They had suffered indignities from the Whigs on account of their support of the King, and they now determined on swift and bloody revenge.

2. John Moore, who was Lieutenant-Colonel in Hamilton's Regiment, returned to his former residence in Lincoln county and assembled, early in June, thirteen hundred Royalists at Ramsour's Mill. General Rutherford, hearing of this in his camp near the Waxhaws, thought it impolitic to leave that position because of a threatened movement of the British then in his front. He therefore sent orders to Colonel Francis Locke, of Rowan, to assemble his militia and at once attack the Tories.

3. No command was ever more promptly or bravely obeyed. Locke mustered four hundred of his neighbors and went through the darkness of the night in search of foes outnumbering him threefold. At early dawn on the 20th, with mounted men in front, he charged boldly upon the Tory camp that was pitched near Ramsour's Mill, in sight of the present village of Lincolnton. The Royalists fled at the first charge, but rallied on a hill and

checked the horsemen in pursuit. The Whigs on foot came to the rescue and drove the Royalists routed from the field.

4. This brilliant victory was all-important at that fearful juncture. It was a bloody and heroic affair; and was a timely foretaste of the spirit of the brave men of the west. It was a struggle between neighbors and old friends, and carried bitterness and sorrow to many North Carolina firesides.

5. Major Davie, with his small command, commenced a series of daring adventures, which gave him great reputation for bravery and military skill. At Flat Rock, and also at Hanging Rock, in South Carolina, he inflicted such stunning blows, that Tarleton's Legion learned to be very cautious of a foe so daring and so wary. Colonel Isaac Shelby also distinguished himself at Musgrove's Mill.

6. Thus the militia of North Carolina assumed the defence of their homes and inflicted such frequent and telling blows upon the enemy that Lord Cornwallis halted at Camden to receive further reinforcements before venturing to enter a State whose undrilled citizen-soldiers had shown themselves so formidable.

7. Upon the fall of Charleston, General Horatio Gates had been put in command in the South, in place of General Lincoln. His success at Saratoga had given him great popularity, and some misguided men were advocating his advancement even to the place of General Washington. A short time exposed the folly of all such views. He was, at best, but a martinet, who had learned something of military routine in the camps, but was as devoid of real ability as he was vain and rash.

8. He came to Deep River on July 25th, where in camp he found one Delaware and two Maryland battalions of Continentals, Colonel Armand's light-horse and three companies of artillery, under the command of the

Baron DeKalb. Learning that General Caswell had a considerable militia force at Cheraw, in South Carolina, he started, two days later, for the neighborhood of Lord Cornwallis and his army at Camden.

9. He reached Cheraw with some additional troops that had joined him on the march. On August 15th, taking a large portion of Caswell's militia, he set out with the purpose of surprising Cornwallis. Colonel Armand was marching in front, when, at midnight, his dragoons recoiled from an unexpected meeting with the British vanguard. The collision was unexpected on both sides, and threw General Gates's column into disorder.

10. His officers vainly besought him to retreat, as the veteran forces of the enemy had not been surprised. Both sides halted and prepared for battle. At dawn Lord Cornwallis sent his regulars with fixed bayonets to attack the militia on the right, and these untrained troops, unable to withstand so fierce an onset from regular veteran soldiers, abandoned the field.

11. Colonel Henry Dickson held his regiment of North Carolina militia firmly to the front, and with the Continental, or regular troops, they offered a stubborn and gallant defence, but the flight of so many made it necessary to withdraw the few who thus gallantly stood their ground.

12. The American defeat was complete. Two thousand men were killed, wounded and captured. All the stores and transportation were utterly lost. General Gates fled early in the action, and spurred on, without stopping, to Hillsboro, in this State. His defeat nearly ruined the American cause in the South, and his reputation as a military leader received a severe blow.

[NOTE—The capture of General Griffith Rutherford at Camden was one of the most deplorable incidents of the disaster. His courage, military ability and influence among his people made him invaluable to the American cause.]



## QUESTIONS.

1. What was the feeling of the Tories in North Carolina after the disaster at Charleston?
2. Where were the Tories assembling? Who was sent to attack them?
3. Describe the attack. What was the result?
4. In what respect was this an important victory?
5. Mention some of Major Davie's exploits.
6. How did these engagements affect Cornwallis?
7. Who was put in command of the Southern forces? What kind of man was General Gates?
8. What was his first military movement?
9. What occurred on August 15th, 1780?
10. How did the engagement result?
11. What was said of Colonel Dickson and his regiment?
12. What was the termination of this affair? How did General Gates act?

## **CHAPTER XXXII.**

### **SECOND INVASION OF THE STATE—BATTLE OF KING'S MOUNTAIN.**

**A. D. 1780.**

The disaster at Camden left North Carolina without defence against invasion by the British under Lord Cornwallis. But the spirit of Governor Nash and his people was high, and they did not for a moment relax their efforts for the support of the war. In a short time five thousand Continental and militia troops were in motion for the neighborhood of Charlotte.

2. Generals Jethro Sumner and William L. Davidson were put in command of two camps, where the raw levies were drilled and equipped for the field. Colonel Davie was still continually in the enemy's front, to watch and report every movement. Since the rout and dispersion of General Sumter's command by Tarleton, on August 19th, Davie's Battalion was the only mounted force left in the South.

3. In September, Lord Cornwallis at last moved forward from his camp at Camden. He sent Colonel Patrick Ferguson toward the scene of the late Tory defeat at Ramsour's Mill. This Colonel Ferguson was one of the ablest officers in the British army. He was cool, daring and well skilled in everything relating to the conduct of military affairs. He could command men in camp and in battle, and excelled all others in arousing the spirit of

the Tories. He induced hundreds of men to take sides with the King when another would have failed.

4. As Lord Cornwallis marched upon North Carolina, Colonel Davie hung upon his front and fell back only as compelled by the advance of the British. He made but one dash against his pursuers before reaching Charlotte; but on arriving there he and Major Joseph Graham halted under the courthouse, in the middle of the village, and surprised Cornwallis and the whole British army by a resistance so bloody and stubborn as to prove the right of that place to the name of "Hornet's Nest," which Cornwallis bestowed upon it.

[NOTE—Davie's whole force did not number more than two hundred men, and yet so cool and bravely did they meet the British assault that the enemy was several times driven back. Major Graham was, at that time, just twenty-one years old, and he exhibited such courage and conduct as have never been excelled. In one attack upon him he received nine wounds and was left for dead on the field, but made his escape.]

5. The English commander was so harassed by the daring attacks of the militia upon his men at McIntyre's Farm and elsewhere in that neighborhood that he concluded to remain at Charlotte until he could hear from Colonel Ferguson. That officer had halted at a place called Gilberttown, where his one hundred and fifty British Regulars were soon reinforced by large numbers of native Royalists, who came to the English flag to take service in its behalf.

6. Colonel Charles McDowell and others, hearing that Ferguson was enrolling the Tories, met at Watauga and took counsel against him. No general was present, and McDowell was so old they feared he would be unable to endure the probable hard marching necessary to overtake their wily foe. Colonel Campbell, of Virginia, as a courtesy to one belonging

outside of the State, was put in command by the North Carolina officers, and they set out with about eleven hundred men to look for the enemy.

7. Colonels Shelby, Sevier, Cleveland, and Major Joseph McDowell, of North Carolina, together with Colonel Williams, of South Carolina, selected nine hundred picked men from their mounted force, and through the stormy thirty hours of their march kept their saddles, until, on the morning of the 7th of October, they found the foe with eleven hundred and twenty-five men on the summit of King's Mountain. It was a strong position, but the heroic mountaineers at once surrounded it and began the attack.

8. Ferguson fought like a lion at bay, but the deadly rifles of the assailants were plied upon his ranks as the Royalists were pushed back step by step. Time and again the British commander headed the Regulars, and by desperate charges down the mountain side drove back a portion of the advancing Whig lines. At last Ferguson was slain, after being many times wounded, and soon the British fire slackened, and then to the nine hundred militiamen of the hills the remnant of the Royalists laid down their guns. Six hundred men became prisoners of war.

9. This was a bloody but a glorious victory. The number of British dead was unusually great. Their proportion of wounded was perhaps smaller than was ever seen in a modern battle. The Whigs lost three field officers, one captain and fifty-three privates.

10. It was a most opportune success, and apprised Lord Cornwallis of what dangers might await his further advance. He became so disheartened upon learning of the disaster that he at once fell back to Winnsboro, in South Carolina. North Carolina was again free from invaders, and the Tories of every section felt their hopes sink as they realized the swiftness and completeness of this overthrow. Every patriot heart, however, once more beat with hope and joy.

11. The victory of King's Mountain was the turning point of the war in the South, and foreshadowed the final success of the American armies in the following year. The arrival of General Nathaniel Greene, who now took command of the Southern army, in place of General Gates, secured every advantage of the situation. He was from Rhode Island, and had been a blacksmith, but was a man of rare military genius, and as such had been singled out by General Washington to occupy an important place.

12. General Greene soon proved himself a great commander. He was gentle, unselfish and true, and loved the cause for which he fought better than his own life. He was brave, cautious and quick to seize upon all the faults of his opponent. He could patiently wait until battle was proper, and even in apparent defeat was really more dangerous than less competent commanders with a foe beaten and in full flight.

#### **QUESTIONS.**

1. What number of troops did General Nash raise toward the defence North Carolina?

2. What generals were put in command? Where was Colonel Davie?

3. What move did Cornwallis make? To what place was Colonel Ferguson sent? What is said of him as a commander?

4. Where was Colonel Davie? Relate the exploit of Colonel Davie and Major Joseph Graham at Charlotte.

5. What were the movements of Cornwallis and Ferguson?

6. What preparations were made towards attacking Ferguson? Who is put in command of the troops, and why?

7. What was the strength of the command? Where did they find the Enemy? When did the battle begin?

8. Describe the battle of King's Mountain.

9. Mention some of the losses.

10. How did the victory affect Cornwallis?

11. What officer was sent to take the place of General Gates in the South?

12. What was General Greene's military ability?

## CHAPTER XXXIII.

### CORNWALLIS'S LAST INVASION.

A. D. 1781.

General Greene soon became aware that his great trouble would be in obtaining food in sufficient quantities to feed an army large enough to meet the British in open field. Generals Gregory and Jones were ordered back to their homes, and their brigades were disbanded because of this poverty of resources in that section of the country. General Morgan was sent west of the Catawba River; another camp was established at Cheraw, and the militia of Rowan and Mecklenburg, under General Davidson, were allowed to await at their homes for any call that might become necessary.

1781.

2. Such was the state of affairs in General Greene's command when Lord Cornwallis was reinforced by the arrival of another division of troops under the command of Major General Leslie. On January 17th, Lieutenant-Colonel Tarleton, with his famous Legion and the first battalion of the Seventy-first Regiment, assailed General Morgan at Cowpens. These men had so often cut to pieces such American forces that they expected an easy victory on this occasion.

3. They were received by the Americans with the utmost coolness and self-possession. Their deadly fire emptied so many British saddles that the boldest riders were thrown into confusion. Like a thunderbolt, then came a charge of the American lighthorse, under Lieutenant-Colonel William Washington. They rode down and sabred the terrified Britons, chasing them many miles from the field.

4. In less than an hour the eleven hundred British were so thoroughly routed that they lost five hundred and two prisoners, three hundred killed and wounded, with all their artillery and stores. General Morgan had but eight hundred men, and though flushed with victory, he remembered that the main army of the enemy was at Turkey Creek, only twenty-five miles away. He therefore prudently burned his captured stores, and leaving his and the enemy's wounded under protection of a flag, at once began his retreat through North Carolina.

5. He well knew that Lord Cornwallis would be enraged at Tarleton's disaster and would seek the recapture of his prisoners. During twelve days the victors fled from the scene of their glory, while the British were pushing on close behind them. At the expiration of that time, as the day was closing in, and General Morgan had just safely crossed the Catawba River, at the Island Ford, he looked back and saw the British vanguard on the other bank of the stream.

6. The exultant pursuers had overcome the twenty-five miles of start, and feeling sure of their prey, they encamped that night with the utmost confidence that on the next day they could easily overtake the fugitives. But they were doomed to disappointment. Soon a heavy rain began falling, and when the night was past the river had become a great and impassable flood.

7. The baffled foe was compelled to halt, for the passage of the stream was impossible. The high water remained in the river for forty-eight hours,



during which time the British were unable to effect a crossing. General Morgan sent his militia with the prisoners on to Virginia, and with his Continentals kept down the left bank of the river and joined General Greene at Sherrill's Ford. There they unhappily disagreed as to future operations, and General Morgan left the service.

8. During the two days that Lord Cornwallis was stopped by the rise in the Catawba River, General Greene made arrangements to dispute its passage. This was attempted at Cowan's Ford, and the British, after some loss, forced a passage. Unfortunately, brave General Davidson, who was in command of the militia, was killed, and upon his fall his men retreated, from the field. They were surprised by Tarleton at Torrence's Tavern, six miles away in the direction of Salisbury.

9. The chase was now renewed and General Greene was again in great danger. When he reached Salisbury he was so dejected at the condition of affairs that a good woman named Mrs. Elizabeth Steele sought to cheer him by words of hope. He explained to her his almost desperate condition, and that though in command of the Southern army, he was wholly without friends and without money. She generously pressed upon him a purse of gold, and, with hope revived by such an exhibition of womanly sympathy and generous patriotism, he resumed his retreat.

10. A rise in the waters of the Yadkin River, after the Americans had crossed, repeated the scenes witnessed on the Catawba; and thus, while General Greene was enabled to reach the forces from Cheraw that had been ordered to meet him at Guilford Court House, Lord Cornwallis was compelled to make a wide detour up the river to get across.

11. Again, in a few days, the Americans, still retreating, found their enemies once more close up in the rear. For several days on long stretches in the road, the two armies could see each other.

12. General Greene was so hotly pursued that he found it necessary to check the enemy in some way, and the gallant Colonel Otho H. Williams, of Maryland, with a corps of light troops numbering seven hundred men, was detailed to cover the retreat. This detachment most faithfully performed its duty. Taking but one meal each day, and six hours' sleep in forty-eight, they retarded the progress of the enemy so much; by frequent collisions, that Greene was enabled to considerably increase the distance between the two armies.

[NOTE—While General Greene was in the house of Mrs. Steele, at Salisbury, he caught sight of a picture of King George III. hanging upon the wall. The picture recalled many unpleasant memories and hardships to the General. He took it from the wall, and, with a piece of chalk, wrote upon the back: "O, George, Hide thy face and mourn." He then replaced the picture with its face to the wall and rode away. This picture, with the writing on the back still visible, is now thought to be in the possession of Mrs. Governor Swain. [Rumple's History of Rowan County. ]]

13. At last, on February 13th, Dan River was reached; and Lord Cornwallis came up only in time to see the last boatloads of the Americans safely landing on the other side of the wide stream which was too deep for the British to ford. Thus ended this famous retreat, extending more than two hundred miles. It gave General Greene great reputation, and the struggling Americans took fresh heart, for they knew they had at last a general in command who could provide wisely and well amid all the dangers so thickly environing him.

#### **QUESTIONS.**

1. What great trouble did General Greene foresee? How did he dispose of the forces?

2. At what place were the Americans attacked?
3. Describe the battle of Camden. Where is Camden?
4. What were the British losses? What was done by General Morgan?
5. Describe the events of the next twelve days.
6. What occurred during the night while the two armies were encamped on opposite sides of the river?
7. How did the rise in the river benefit the Americans? Find the Catawba River on the map. What occurred at Sherrill's Ford?
8. Give an account of the engagement at Cowan's Ford.
9. What happened to General Greene at Salisbury?
10. What river was next crossed?
11. Describe the retreat further.
12. What did General Greene find it necessary to do to cover his retreat? Who commanded this detachment?
13. What river was crossed on February 13th, 1781? How many miles had Greene been pursued by Cornwallis? Can you go to the map and trace the course of this famous retreat?

## **CHAPTER XXXIV.**

### **BATTLE OF GUILFORD COURT HOUSE.**

**A. D. 1781.**

When the British commander found that General Greene was completely beyond his reach, he marched to Hillsboro and there erected the Royal standard. In consequence of his proclamations and the retreat of General Greene across Dan River, several hundred Tories collected under Colonel John Pyle and started to join Lord Cornwallis. General Greene sent Lieutenant Colonel Henry Lee across Dan River to observe them.

2. Pyle and his Tories supposing Lee's force to be British troops, drew near, uttering cheers for King George. Suddenly the bugles of the lighthorse sounded a charge, and Pyle and his men were furiously assailed. In five minutes ninety lay dead upon the ground, and nearly all the others were prisoners of war. This bloody affair has been called "Pyle's Hacking Match."

3. Major Joseph Graham, with his mounted force, had just before captured a picket of twenty-five men a mile and a half away from Hillsboro. General Polk's militia were also in the same vicinity, and soon General Greene, having received reinforcements, recrossed the Dan and assumed a position on the Reedy Fork, a confluent of Haw River.

4. Cornwallis hearing of Pyle's disaster, left Hillsboro and moved westward to protect any Tories that might seek to reach him. The first time the two armies again saw anything of each other was at Whitsell's Mill. At that place Colonel Otho H. Williams was posted with a body of light troops, which Lord Cornwallis attempted to cut off from the main body. He failed in so doing, but both armies were filled with admiration at a display of personal gallantry.

5. Colonel Williams had posted sharpshooters in and around the millhouse. These discovered a British officer approaching a ford below them, and saw that he was leading men and trying to cross the stream. Many deadly rifles were soon hurling their missiles around him, but slowly, and as if unconscious of being under fire, he crossed in safety. This intrepid man was Lieutenant- Colonel William Webster, then a brigade commander under Cornwallis.

6. On March 15th, 1781, General Greene being at the courthouse of Guilford county, learned that the British army was approaching on the Salisbury road. He hosted his men in three lines and awaited the enemy's arrival, who came on in fine style, but the first American line, composed of militia, giving ground, only the men of the gallant Captain Forbis, of the Hawfields, gained credit for their conduct. The British found stubborn resistance in the second and third lines, where the Continentals were posted.

7. It was a furious and bloody conflict, and such havoc was wrought in the British ranks by a charge of Colonels Howard and Washington, that Lord Cornwallis opened fire with his artillery upon his friends and foes alike, and thus checked this dangerous American movement. General Greene at length gave orders for retreat, and the field was left in the possession of the British.

8. British valor was never more splendidly exhibited than upon this hard-fought field. With less than half of Greene's force, they won the field, but the victory was too costly. At least one-fourth of the British force was dead and disabled, including the gallant Webster, the hero of Whitsell's Mill. General Greene, having halted close by the scene of conflict, returned three days later to again offer battle, but Lord Cornwallis was flying towards Wilmington for safety. He who had so long sought to bring on an engagement was now the fugitive.

9. General Greene followed in pursuit, but failing to overtake his foe, he turned his course and marched against Lord Rawdon, in South Carolina. He had redeemed North Carolina from the grasp of her foes, and went to confer upon the two other Southern commonwealths a similar blessing. No more British armies were to bring ruin and terror to any portion of North Carolina.

10. Lord Cornwallis hurried to Wilmington. His stay was short there, for turning north in the month of April, 1781, he marched his army, by way of Halifax, to Virginia. There, ere long, this great soldier was to close his career in America. He had, with a small portion of the British force under the command of Sir Henry Clinton accomplished more than all compatriots.

11. On September the 8th a brilliant battle took place at Eutaw Springs, in South Carolina, between General Greene's army and the British under Colonel Stewart. It was the hardest fought and best conducted action of the war. The three North Carolina Continental regiments, led by General Sumner, bore the brunt of the conflict, and were greatly praised for their gallantry. About two thousand men each was the strength of the armies, and they lost twelve hundred in killed and wounded. This battle resulted in the retreat of the British to Charleston.

12. Governor Nash's term of office having expired, Thomas Burke, of Orange, became his successor. Burke was an Irishman by birth, of good family, well educated, and with fine abilities. He had been conspicuous in public affairs and had shown a warm devotion to the American cause. His home was in Hillsboro, which was then the capital of the State.

#### QUESTIONS.

1. Where did Cornwallis next go? What recruits were raised, and who was put in command? Whom had General Greene appointed to watch the enemy?

2. Describe the surprise and defeat of Colonel Pyle and his men.

3. Mention the movements of Major Joseph Graham. Of General Greene.

4. Give an account of the affair at Whitsell's Mill.

5. What special act of bravery is related?

6. What occurred on March 15th, 1781? Give some account of the battle of Guilford Court House?

7. How did the engagement terminate ?

8. What is said of the British victory? What did General Greene do three days later?

9. Where did he then go?

10. Where did Cornwallis carry his army?

11. Give an account of the battle of Eutaw Springs?

12. Who succeeded Governor Nash, and what is said of him?



## CHAPTER XXXV.

### FANNING AND HIS BRUTALITIES— CAPTURE OF GOVERNOR BURKE.

A. D. 1781.

When Lord Cornwallis left Wilmington, on his way to Virginia, there were no British troops left in North Carolina except about four hundred regulars and some Tory recruits, which constituted the garrison of Wilmington. Major James H. Craig was in command there, having captured the place in the preceding January.

2. He had been trained to arms, and when General Burgoyne surrendered at Saratoga, was his Adjutant-General. He was skillful as a soldier, but utterly unscrupulous as to the means he used to carry out his objects. Seeing the British driven from almost all the State, he determined to ruin a people he could not subdue, and began to stir up a warfare of neighborhoods.

3. He found in David Fanning, of Chatham county, a powerful aid in his inhuman scheme. Fanning was a man of low birth, ignorant and unscrupulous. He was a good partisan guerrilla leader, being brave, enterprising and swift to execute. Associating with himself a small band of Tories, whose sole objects were plunder and revenge, he was for a time the terror of Chatham and Orange counties. Well mounted and well armed, and continually on the alert, these marauders made havoc of the Whig settlements, murdering, burning and destroying, unrestrained by any

authority and with no sense of humanity. They did not spare even their own neighbors, many of whom they shot down or hanged at their own doors.

4. Many stories are told of Fanning's exploits, of his audacity, his cruelty, his arrogance, and his wonderful successes and hairbreadth escapes. Such a state of affairs existed at one time in the counties ravaged by his band that even the pitiless Colonel Tarleton deplored its continuance. Fanning was born in Johnston county about the year 1754, and was the vilest and bloodiest wretch ever seen in our limits, most richly deserving the punishment of the gallows. He continued his criminal courses as long as he lived, and was pardoned for a capital felony committed on the Island of Cape Breton not long before his departure from this world.

5. Fanning began his military operations by surprising a courtmartial in Chatham. His prisoners were disposed of by parole or sent to Wilmington. This was in July, 1781. His attack upon the house of Colonel Philip Alston, a few days later, was a more serious matter, for he encountered stubborn resistance and some loss before compelling the surrender of a force almost as large as his own, and protected by the walls of a large house. Four of the Whigs were killed, and those who remained alive were spared from butchery by Fanning only at the earnest appeals of Mrs. Alston.

6. Fanning's movements called for resistance, and Colonel Thomas Wade collected a force of more than three hundred men at McFall's Mill, in Cumberland county. These were speedily attacked and utterly driven from that portion of the country. It was afterwards learned by the victors that Colonel Dudley's Chatham regiment of cavalry was disbanded, and Fanning immediately pushed on to Hillsboro. On the morning of September 12th, his force entered the town, and succeeded in capturing Governor Burke and several other prominent persons. \*

\*David Fanning gives the account of this affair as follows: "We received several shots from different houses; however, we lost none and suffered no damage, except one man wounded. We killed fifteen of the rebels and wounded twenty, and took upwards of two hundred prisoners; amongst them was the Governor, his council, and part of the continental colonels, several captains and subalterns, and seventy-one Continental soldiers out of a church. We proceeded to the gaol and released thirty Loyalists and British soldiers."

7. The bold marauders who had thus seized the Governor and capital of the State, at once started with their prisoners for Wilmington; but tidings of this exploit had reached a body of men who hastened to Lindley's Mill, on Cane Creek, to receive them. The Whigs, nominally commanded by General John Butler, were really directed by Major Robert Mebane in their brave and bloody reception of the Tories.

8. The Tory Colonel, Hector McNeil, leading the attack, was slain, and his followers driven back in confusion. It seemed that Governor Burke would be rescued and the whole Tory column captured when Fanning, ever fertile in expedients, discovered a ford in Cane Creek, and having crossed with a portion of his command, attacked the Whigs in the rear. This soon ended the battle, which was a bloody one to both sides.

9. About the same time with the capture of Hillsboro, a most gallant and successful attack was made upon the Tory stronghold at Elizabethtown, in Bladen county. There sixty Whigs, in the favoring darkness of night, fell upon and drove out a largely superior force commanded by Colonel John Slingsby. He and many of his men were slain, and Major Craig was thus confined in his fortifications in Wilmington.

10. When Fanning captured Governor Burke at Hillsboro, the Chief-Magistracy of the State devolved upon Colonel Alexander Martin, of

Guilford. This latter gentleman had seen some service in the field as an officer of the Continentals. Governor Burke was treated, from the hour of his capture, with extraordinary harshness. He was compelled to march all the way to Wilmington, and, after some delay, was sent thence by ship to Charleston.

11. General Leslie, who commanded the British army in South Carolina, placed the captive Governor upon an island near Charleston, where the deadly malaria was supplemented by danger of assassination from certain Tories, who were loud in their threats of executing such a purpose. Burke made repeated applications for a change of quarters, or for exchange as a prisoner, but was told that he was kept as a hostage to be executed in case of the capture and punishment of David Fanning.

12. After months of torture from such treatment, Governor Burke, feeling that he was justified in disregarding his parole, effected his escape and returned to North Carolina. He resumed his office for the short interval between his return and the meeting of the Legislature. To his great discomfiture, he was defeated at the next election for Governor by Alexander Mafitin. The members of the General Assembly could not forgive this breach of his parole, and he regarded their act as evidence of public condemnation. His sensitive spirit brooded over this. His domestic relations were not such as to soothe and sustain his wounded mind, and the life that opened with such brilliant promise soon closed in gloom. Governor Burke died and was buried on his farm near Hillsboro. No stone has ever marked the spot. He left one child, a daughter, who died unmarried.

13. General Griffith Rutherford had been a prisoner in the battle of Camden. Upon his exchange, he at once renewed his efforts to deliver North Carolina from her foes. He soon collected a body of Mecklenburg and Rowan militia and marched for Wilmington.

14. On nearing the city he received news of Lord Cornwallis's surrender at Yorktown, on October 19, 1781. He pushed on his lines, and arriving in Wilmington he found that Major Craig had taken ship and was flying from the land he had so scourged by his presence.

15. The number of men enlisted from North Carolina in the Continental army during the Revolutionary war was: in 1775, 2,000; 1776, 4,134; 1777, 1,281; 1778, 1,287; 1779, 4,930; 1780, 3,000; 1781, 3,545; 1782, 1,105; 1783, 697. The State furnished, in Continental troops and militia, 22,910 men.

#### **QUESTIONS.**

1. What British forces were in North Carolina after the departure of Cornwallis? Who was in command at Wilmington?

2. Can you tell something of Major Craig?

3. Tell something of the character of David Fanning.

4. Give further description of his traits. Mention the horrible condition of the State under Fanning's exploits.

5. Relate Fanning's attack on the Chatham courtmartial. What occurred at Colonel Alston's house?

6. What officer went to attack Fanning? What was the memorable exploit of Fanning On September 12th, 1781?

7. What preparations were made for a fight at Lindley's Mill?

8. Describe the engagement.

9. What occurred at Elizabethtown?

10. Who became Governor after Governor Burke's capture? How was Governor Burke treated?

11. What further account is given of his treatment?

12. Mention the concluding events of his life.

13. What was done by General Rutherford upon his exchange?

14. What did he find upon his arrival at Wilmington?

15. State the number of men enlisted in North Carolina during the Revolution.

## **CHAPTER XXXVI.**

### **PEACE AND INDEPENDENCE**

#### **A. D. 1781 TO 1784.**

1. On the 19th of October, 1781, as has been previously stated, Lord Cornwallis surrendered himself and his army to General Washington, at Yorktown, in Virginia. The timely arrival of the friendly French fleet under Count Rochambeau enabled Washington to lay siege to Cornwallis and force him to surrender.

2. The English commander, who was a skillful soldier, complained that he had been forced, by the orders of his superior officer and against his own judgment, into a position from which he could not escape. General La Fayette, however, doubtless had at least an equal share in bringing about the result, for it was his skillful maneuvering of an inferior force that held Cornwallis checked so that Washington was enabled to bring his troops to their appointed places at the appointed times and cut off all hope of escape.

3. But a glorious day it was for the colonies, for it virtually put an end to the war, and everybody knew it. The only real questions henceforth were as to the terms of the peace. Independence and peace were now assured.

1782.

4. When the news reached England of Cornwallis's surrender, Lord North, the British Prime Minister exclaimed: "Oh, God! it is all over." He well knew that the stubborn King had exhausted the patience of the English people. They, and not the King and his ministers, at last put a stop to the bloodshed between the two countries. On November 30th, 1782, a treaty was signed in Paris by which American independence was acknowledged.

5. The war was over at last. The seven years of deadly conflict were ended. Thanks to their patient endurance, their undaunted courage and their untiring perseverance, the American colonies had at last achieved their independence. North Carolina was at last a free and independent State, owing neither allegiance or fealty to any prince or power in the world.

6. Of course there was great joy at the coming of peace, with the full recognition of the colonies as independent States. But there were still more difficulties to be overcome before the full tide of peace and prosperity could set in.

7. The agricultural interest of the State was doubtless affected by the war less than any other, owing to the employment of slave labor. But the soldiers had returned and wanted homes. Homes were not to be provided in a day, nor the implements of husbandry, rude though they were at that time. Cattle and horses, too, were to be obtained before the soldier became a farmer.

8. The finances of the country were in a wretched condition. There was no money to pay the current expenses of the government, and none even to pay the troops. In educational matters the condition was no better. There were only two chartered schools in the State, one at New Bern and one at Charlotte. The Constitution had, indeed, enjoined the establishment of schools and colleges, but with North Carolinians of that day it was freedom first and education afterwards.



9. The population, however, had increased steadily during the war, so that in spite of its casualties, the State was stronger in numbers in 1782 than in 1775. The Legislature met at its appointed times and places, and so did the courts, and civil law had resumed its sway. But swords are not turned into pruning-hooks in a moment, nor are the feuds of a long, bitter war to be settled or forgotten in an hour.

10. Naturally, the Whigs bitterly remembered how much they had suffered at the hands of the Tories during the long deadly struggle. Many of these latter had fled from the province, but now desired to return and be restored to citizenship, or at least to receive possession of their former homes. But the people resolved that this should not be so, for they wanted no Tories among them. Accordingly, when Tories who had left their homes desired to return to them after the peace, permission was refused them.

11. But it was necessary to reward the Whigs as well as to punish the Tories. A broad, fertile land, watered by great navigable rivers, and abounding in every possible resource for pleasure, wealth and prosperity, was secured to us by their courage and endurance. But if our brave soldiers desired reward, how much more did they deserve their pay, which was still largely in arrears.

12. Commissioners, therefore, were appointed to sell the lands of refugee Tories, and from that and other sources to pay up the arrears due the North Carolina soldiers. Furthermore, the land now known as Tennessee, then a part of our State, was also to be largely devoted to the same patriotic purpose. General Greene was given twenty-five thousand acres; one half that quantity to brigadier-generals, and so in a descending scale to the private soldiers.

**QUESTIONS.**

1. What is said of the surrender of Cornwallis?
2. Of what did the English commander complain? What credit is due La Fayette?
3. How were the colonies considering the question of peace and independence?
4. What was the effect, in England, of the news of Cornwallis's Surrender? When and where was the treaty of peace signed?
5. What had North Carolina gained by the war?
6. How did our people enjoy peace?
7. What is said of the agricultural interest of the State?
8. What was the financial condition? The educational?
9. What is said of the population?
10. What party was victor in the great struggle? What is said of the Tories?
11. What was deemed necessary?
12. What plan was adopted towards paying off the soldiers? Mention some payments that were made to commanding officers.

## **CHAPTER XXXVII.**

### **THE STATE OF FRANKLIN.**

**A. D. 1784 TO 1787.**

1. During the years that followed upon the close of the Revolution the people of North Carolina were busied with the restoration of their ravaged fields and the development of the new system of self-rule inaugurated by the Convention of Halifax in 1776. There were many good and wise men in America who had no confidence in the perpetuity or effectiveness of a polity which rested upon the wisdom and virtue of the masses for its enforcement.

2. Samuel Johnston and the leading lawyers of that day were full of apprehension as to the result, where the protection of life, liberty and property rested upon the ballots of men who were, as a general thing, poor and unlettered. The Halifax Constitution sought to provide for the education of the people, and had recommended the establishment of a university, but no steps had been taken by the Legislature to carry out this wise and beneficent ordinance.

3. The Rev. Drs. David Caldwell and Samuel E. McCorkle were conducting schools on their own responsibility in Guilford and Mecklenburg, in which many young men were receiving sound and useful preparation for life; and there were similar academies in Wilmington, New

Bern, Edenton and Charlotte; but as a general thing, education was almost entirely neglected.

4. Under the terms of the "Articles of Confederation" the General Congress continued to assemble, but its sessions resulted in little good to America. The government was continually embarrassed by the public debt contracted in the Revolution. It could only pay such liabilities by calling upon the several States for their proportions. These were regulated by the value of the real estate.

5. North Carolina, thus witnessing the helplessness of the general government to meet its pecuniary liabilities, was moved to the noble resolution of ceding the great body of land then belonging to the State west of the Allegheny Mountains. This princely domain, now constituting the great State of Tennessee, was at that period only settled in part by white people, and many millions of acres of fertile lands could be sold to settlers.

6. Such a resource would have brought a great fund to the State for education and other useful purposes; but with unexampled devotion to the general good, it was determined by the Legislature of 1784 that the Governor should tender to the Federal government, as a free gift, all the lands not already granted to soldiers and actual settlers.

1785.

7. To an embarrassed government, unable to meet its most solemn engagements, such a boon, it seems, would have been gladly received; but so great was the selfishness of certain States which were then struggling to secure for themselves such bodies of western lands, that the intended bounty of North Carolina proved a failure. The General Congress having failed to accept the offer, the act authorizing the cession was repealed.

8. The story of this patriotic munificence on the part of North Carolina ends not here. When it became known among the western settlers that their country had thus been offered to the general government much excitement followed. Colonel John Sevier, of King's Mountain fame, was a leader among the people of the territory in question. He had been a gallant soldier in the Revolution, and was trusted and beloved by his neighbors. He persuaded them that North Carolina, in thus offering to surrender her claims to their allegiance, had forfeited all right to further control their destinies.

9. He procured the support of many others, who elected members to a convention. This body met at Greenville, in November, 1785, and framed a government of a State which they called "Franklin," in honor of the illustrious statesman, Benjamin Franklin. Colonel Sevier was elected Governor, and judges and other officers were also chosen.

10. Richard Caswell had again been made Governor of North Carolina, when it became known that such things were being done in the West. He issued a proclamation forbidding the whole movement and denouncing it as revolutionary and unlawful. He was supported by a party there headed by Colonel John Tipton.

1787.

11. It often seemed that bloody civil war would ensue between the men who sided respectively with Sevier and Tipton, but happily there was little bloodshed amid so much brawling. There were many arrests and complaints, until finally, in October, 1788, Colonel Sevier was captured by the forces of Tipton, and brought to jail at Morganton, in Burke county. He was allowed to escape, and, in memory of his services as a soldier, his offences were forgiven. That there were no more serious results was greatly due to the influence of Richard Caswell. Sevier was afterwards in the

Senate of North Carolina, and, after Tennessee became a State, received all the honors a grateful people could confer.

[NOTE—There was no money in circulation in the "State of Franklin," and the following curious statement, taken from the old records, shows how payment was to be made to the public officers: "Be it enacted by the General Assembly of the State of Franklin, and it is hereby enacted by the authority of the same, that the salaries of the officers of this commonwealth shall be as follows: His Excellency, the Governor, per annum, one thousand deer skins; His Honor, the Chief-Justice, five hundred deer skins, or five hundred raccoon skins; the Treasurer of the State, four hundred and fifty raccoon skins; Clerk of the House of Commons, two hundred raccoon skins; members of Assembly, per diem, three raccoon skins."]

12. It was thus that the abortive State of Franklin arose and disappeared. The State of Vermont originated in the same way; and it is fortunate that such precedents have long since ceased in America. There is some limit to the doctrine of the people's right to self-government, just as liberty is not to be found in mere license.

#### QUESTIONS.

1. What matters occupied the attention of the people in North Carolina after the Revolution? How were some men disposed to view the new plan of government?

2. What was the opinion of Samuel Johnston? What had been provided for in the Halifax Constitution?

3. What private schools were in operation, and where were they?

4. How was the General Congress greatly embarrassed?

5. To what extent did North Carolina sympathize with the general government? What is the present name of that great territory?

6. What was done by the Legislature of 1784?

7. Why was this a very valuable and timely gift to the government? How did the offer succeed?

8. What excitement was created in the west by this donation? Who was the leader of the people? What was Colonel Sevier's opinion of the matter?

9. What was done in 1785? What name was given to the new State, and why?

10. What proclamation was issued by Governor Caswell? Who was the western leader of Governor Caswell's cause?

11. How did the whole matter end? What position did Colonel Sevier afterwards occupy?

12. What other State in the Union originated in this way?

## **CHAPTER XXXVIII.**

### **FORMATION OF THE UNION.**

#### **A. D. 1787 TO 1790.**

1. The new State of North Carolina now became divided and excited as to her position in the confederation of States. Each day was demonstrating more clearly the failure of the confederation. Its poverty and weakness were exciting the contempt of all civilized nations, and the General Congress amounted to little more than an arena for the display of jealousy and selfishness on the part of the individual States.

2. In North Carolina, as elsewhere, the people were divided as to what should be done to remedy this great need of a central and general government. Many were opposed to any change. Others were for creating a strong and overpowering central government that should overawe and control all of the States. These latter men were called the "Federalists."

3. Another, and a larger portion of the people of the State, were in favor of adding to the powers of the general government; but at the same time for going no further in that direction than was necessary for the general safety as against foreign nations, and for the execution of such regulations as pertained to all the States. These "Republicans," or "Democrats," were willing to empower the new government to carry the mails, control



commerce, carry on war, make treaties, and coin money; but they insisted that all other powers should be retained by the States themselves.

4. In 1787, in consequence of the action of the General Congress, a convention of all the States was ordered to meet in Philadelphia to prepare a new Constitution.

5. The Legislature of North Carolina selected Governor Richard Caswell, Colonel W. R. Davie, ex-Governor Alexander Martin, Willie Jones and Richard Dobbs Spaight as delegates to that body. Governor Caswell and Willie Jones declined the honor, and Dr. Hugh Williamson and William Mount were appointed in their places.

1788.

6. General Washington was chosen as President of the Convention, and in 1788 the result of their deliberations was submitted for the ratification of the several States. It was provided by the Convention framing the Constitution that nine States should ratify the new Constitution before it should go into operation, and that it should then be binding only upon those thus acceding to it.

7. A Convention for North Carolina was called and met at Hillsboro, July 21st, 1788, to consider the proposed Constitution. Samuel Johnston, who had been Moderator of several Provincial Congresses, and who had also succeeded Governor Caswell as Chief-Magistrate of the State, was chosen to preside. He and Judge James Iredell, Colonel Davie and Archibald Maclaine were earnest advocates of instant and unconditional ratification on the part of North Carolina.

8. Willie Jones, of Halifax, who had so long controlled much of the legislation and government of the State, was the leader of those who

opposed such action. They favored the addition of numerous amendments before committing the fortunes of North Carolina to such control. They insisted that without further specification, the powers reserved to the several States would not be sufficiently guarded; and the Convention, by a great majority, took the same view of the matter. The result was that while declining to ratify absolutely the Constitution as it then stood, the hope was held out that upon the adoption of proper amendments it would be ratified.

9. There was great excitement in the State upon North Carolina's thus failing to join the new government. Political animosities ran high, and renewed efforts were made to overcome the popular objections. The people became restless at the position they were occupying, being thus, with New York and Rhode Island, strangers to the great compact of their sister States.

1789.

10. The new government of the United States went into operation in the Spring of 1789, and General Washington took the oaths of office on March 4th as the first President of the Republic. In November the Legislature and a new Convention both met at Fayetteville, and on the 21st the Constitution of the United States was speedily ratified, and North Carolina was enrolled as a member of the new confederacy, which was to astonish all nations by the vigor of its rule and the splendor and rapidity of its growth as a nation. Before this, however, the first ten amendments to the Constitution had been proposed to the Legislatures of the several States for ratification, thereby allaying the apprehensions that had been felt at Hillsboro the year before.

1790.

11. Two important matters were also settled at this period. The Convention at Hillsboro limited the seat of the State government to some point in Wake county. The capital had been migrating from town to town for

nearly the whole period of North Carolina's existence. The Legislature also passed a bill creating the University of North Carolina, and the terms of the Halifax Constitution, as to popular education, were thus first put into some shape of accomplishment. Both of these measures were highly needed.

[NOTE—The State Convention of 1788 was commissioned to select a place for the seat of government, which had been migratory since the earliest days of the Carolina colony. The place selected for the capital was the farm of Isaac Hunter, at Wake Court House, or some other place within ten miles of that locality, to be determined by the General Assembly.]

#### QUESTIONS.

1. What question was exciting the people of North Carolina at this period? What was thought of the Confederation?
2. How were the people of the State divided upon this great question?
3. What other party was formed? What were they called, and what powers did they propose to give to the general government?
4. What convention was to meet in 1787?
5. Who were chosen to represent North Carolina in that body?
6. Who was chosen President of the Convention? How was the new Constitution to be submitted to the people?
7. What convention met in Hillsboro in 1788? How did some of the prominent members view the question?
8. What different opinion was held by other leading men? What did the Convention do with the Constitution?

9. What was the effect on the State? What other States also failed to ratify?

10. When did the new government go into operation? Who was chosen first President of the United States? When and where did North Carolina ratify the Constitution and become a member of the united government?

11. What two important matters were settled at this period?

## **CHAPTER XXXIX.**

### **FRANCE AND AMERICA.**

#### **A. D. 1790 TO 1794.**

1. When North Carolina had thus taken her place in the Federal Union, and the whole system of State and National polity became perfected in America, many hearts beat with gratitude to God for the promises of a glorious future. The magnificent realm won by the blood of heroes was at last guarded by a system of laws so wise and effective that peace and prosperity were soon to make it one of the greatest of civilized lands.

2. This example of freedom achieved in the wilds of America was speedily felt in Europe. General Washington had been in the discharge of his duties as President about a month, when the States-General of France met in the famous convention which was to pull down the ancient French monarchy and engulf all Europe in seas of blood. The overtaxed and excitable Frenchmen were maddened by the contrast afforded in their sufferings and the blessings achieved by their late allies on the other side of the Atlantic.

3. Governor Caswell, while in the discharge of his duties as a member of the State Senate, died at Fayetteville, in the month of December, 1789. He was shortly followed in death by William Hooper and Archibald Maclaine.

Willie Jones had retired from public life; and thus, four most conspicuous leaders almost simultaneously disappeared from public life.

4. Colonel William R. Davie, of Halifax, John Haywood, of the same county, and Alfred Moore, of Brunswick, were greatly influential, and were worthy successors of the older servants of the public who had been thus removed from the arena of their former usefulness. Governor Johnston having been elected United States Senator, was succeeded as Governor by Alexander Martin.

1792.

5. It was during this second term of Governor Martin's rule that Raleigh was selected for the State capital. A large tract of land at Wake Court House had been bought of Colonel Joel Lane, and upon it a city was laid off and the public buildings erected. Before that time, since Governor Tryon's palace at New Bern had been burned, the main question to be determined by every General Assembly was what town should be selected for the holding of the next session.

6. Fayetteville, Hillsboro, New Bern and Tarboro were sure to get up an excitement and contest as to which of them should be next favored with the presence of the State officers and the General Assembly. The Governor and his assistants had been dwelling wherever it best suited them, and the public records had thus been continually migrating over the State.

7. There was little church organization in America until after the Revolution. There was not a single Bishop of the Episcopal Church in all America before the Revolution, and not until 1789 was an effort made to supply such a prelate for the Church in North Carolina. The Rev. Charles Pettigrew was then elected Bishop of the Diocese by a Convention at Tarboro, but he died before consecration.

8. The Baptists had united their churches in this State and southern Virginia, in 1765, in a body which was called the "Kehukee Association." In 1770 the Presbyterians had formed the Presbytery of Orange; and in 1788 they set off the Synode of the Carolinas. The Quakers and Moravians were flourishing in certain sections, but as yet the Methodist missionaries had effected but little in the way of planting churches in North Carolina.

9. Richard Dobbs Spaight, in 1792, became Governor, and was the first native North Carolinian to fill that distinguished office. He possessed much ability and was familiar with the conduct of public affairs. He found that great excitement and division existed among the people as to the French Revolution. Because aid had been sent from that country to the struggling American colonists, many men insisted that it was the duty of America to take sides with France in the war then raging in Europe.

1794.

10. General Washington and other wise men resisted this dangerous opinion, and held that America should take no part in the affairs of foreign nations. The great struggle went on, with Napoleon Bonaparte rapidly growing more formidable to the allied kings.

11. The French had acquired a thirst for freedom from America, but they in turn exerted an influence upon the religious creeds of our people. French books and modes of thought and French fashions became popular, and the country debating clubs were heard repeating the doubts and sneers of Voltaire, Diderot and other French infidels.

12. The world's creeds were on trial. Kings and priests were as keenly criticised as in the sixteenth century, but out of all the turmoil and bloodshed a larger measure of liberty was to be won. Constitutional kings

and purified churches were the outgrowth and result of the most prodigious uproar yet witnessed among civilized nations.

**QUESTIONS.**

1. What was the feeling in North Carolina after the State had joined the Union?

2. How were the effects of American freedom felt in Europe?

3. What great leaders disappeared from North Carolina's councils at this time?

4. What then were fast rising to influence? Who became Governor?

5. When was Raleigh selected as the capital? Why was locating the capital of great good to the State? Go to the map and point out the city of Raleigh.

6. What contest would generally arise at meetings of the Assembly?

7. What mention is made of religious matters?

8. How were the Baptists, Presbyterians and other Christian bodies extending their fields of usefulness?

9. Who became Governor in 1792? What is said of him? What questions did Governor Spaight find agitating the people when he came into office?

10. How was this matter considered by General Washington and others?

11. How were the works of celebrated French writers affecting the people of America?



12. What was to be the conclusion of all these troubles?

# CHAPTER XL.

## THE FEDERALISTS AND THE REPUBLICANS.

### A. D. 1794 TO 1800.

1. In the last days of the eighteenth century men became more and more plainly divided into two political parties. Thomas Jefferson, of Virginia, a man of decided genius and consummate ability, was the leader of those who maintained that the government of the United States should be strictly limited to the powers expressly granted in the Federal Constitution and prohibited from the use of any of those reserved to the individual States.

2. Alexander Hamilton, of New York, another very able and patriotic statesman, took an entirely different view. He did not consider the people capable of ruling the country, and wished to subordinate the State governments to Federal authority. The "Federalists" were those who followed his views, while the "Republicans" were no less strenuous in upholding Mr. Jefferson and his policy.

3. The Superior Courts of this State, after the resignation of Judge Iredell, were held, as in old provincial times, at the six favored villages, by Judges Samuel Ashe, Samuel Spencer and John Taylor. In the year 1794, Judge Spencer came to his death in a singular manner. He was in extreme old age, and had suffered with a long and wasting illness. One warm evening he was carried out and laid upon the grass, beneath a tree in his yard. While lying

there the red flannel of his shirt infuriated a large turkey-gobbler, which attacked him with great violence. When Judge Spencer's feeble cries attracted attention, he had been so injured that he soon after died of nervous exhaustion.

4. In accordance with the law of 1790, the provisions of the Constitution of 1776 were first seen in process of fulfillment when the trustees, after mature deliberation, selected Chapel Hill, in Orange county, as the site of the State University. Here, upon one of a long range of great hills traversing that region, they secured several hundred acres on the crest of a noble elevation that overlooks the surrounding country.

5. In 1793 the cornerstone of the East Building was laid for the University at Chapel Hill. Colonel Davie, as Grand Master of the Masons in the State, officiated; as did also Rev. Dr. McCorkle, who delivered an eloquent address to the citizens who had assembled from all parts of the State to do honor to the occasion.

1795.

6. In 1795, the buildings and faculty having been made ready, the institution was regularly opened for the reception of students. The Rev. David Kerr and Samuel A. Holmes constituted the faculty, and Hinton James, of Wilmington, was the first student to arrive. Thus began an institution of learning in which distinguished men were to be prepared for usefulness in almost every honorable employment among civilized men.

7. Tennessee had been conveyed to the general government soon after the ratification of the United States Constitution, North Carolina reserving to herself the right to locate land warrants in a certain portion. During the administration of Governor Ashe, who had succeeded Alexander Martin, many and extensive frauds in land warrants were concocted by James

Glasgow, Secretary of State, Martin Armstrong, John Armstrong and Stokeley Donnelson.

1797.

8. Immense tracts of land were located under fictitious boundaries, and not only the Continental soldiers, but also the States and the United States were thus swindled by these officers, who had been long honored and trusted in North Carolina.

9. Courts were ordered to be held by the General Assembly for the trial of these distinguished culprits; and in 1799 they were convicted and punished by heavy fines and the loss of their offices. Judge John Haywood resigned his place on the bench, and instead of trying, defended the malefactors, one of whom paid him one thousand dollars as a fee for his services. \* A few years before a similar scene had occurred when Benjamin McCulloh was convicted at Warrenton and punished for like offences.

\*North Carolina had honored James Glasgow by giving his name to one of the counties of the State, but in consequence of his disgrace the name of Glasgow county was stricken from the list, and the county named in honor of General Nathaniel Greene.

10. The excitement between Republicans and Federalists grew in intensity. John Adams had succeeded General Washington as President, and he was one of the most violent of the Federal party. French agents and apologists became more offensive in their demands for American aid. President Adams procured the passage of laws by Congress that startled and confounded many good citizens.

11. These "Alien and Sedition Acts" armed Federal authorities with the power to seize and send out of the country, without trial, any foreigner who

might, become offensive to them; also to indict in the District or Circuit Courts of the United States any writer or publisher whom the grand juries might charge with libel.

1798-99.

12. Virginia and Kentucky thereupon hastened to pass the famous resolutions of 1798-99, according to which the Federal Constitution is simply a covenant between the States as States, and "each party has an equal right to judge for itself, as well of infraction as of the mode and measure of redress," and to put the battle in array for another great struggle as to the respective powers of the States and the Union. President Adams and the Federalists were overwhelmingly beaten in the contest of 1800, and the Republican party went into possession of all the offices by which State and Federal powers were to be defined.

13. A much greater portion of the wisest and most experienced statesmen had been ranked, until this time, with the Federalists, but that creed soon grew into such disfavor that few politicians could be found to do it reverence. And this, it may be safely asserted, has been the experience of the American people whenever the majority of them has differed from the learned few. The masses have been, in almost every instance, wiser than those who thus sought to control their views.

#### QUESTIONS.

1. What was observed towards the latter days of the eighteenth century? Who was one of the political leaders? What views did Mr. Jefferson hold?

2. Who was the leader of the other great political party? What was Mr. Hamilton's policy?

3. What is said of the Superior Courts and the Judges? Describe the singular manner of Judge Spencer's death.

4. What is said of the University? When was its seat selected, and where?

5. When was the cornerstone of the East Building laid? Who officiated? Who delivered the address?

6. When was the University regularly opened? Who constituted the faculty? Who was the first student to enter? What have been the labors of this institution?

7. What land frauds were perpetrated in 1795? Who were the guilty persons?

8. What was the nature of these frauds?

9. Give some account of the trial of these offenders.

10. What was the condition of affairs throughout the United States at this period?

11. What was the effect of the "Alien and Sedition Laws"?

12. What was done by Virginia and Kentucky? What were the resolutions of 1798-99? What party came into power in 1800?

13. What is said of the "Federalists"?

## CHAPTER XLI.

### CLOSING OF THE EIGHTEENTH CENTURY.

#### A. D. 1800 TO 1802.

General Davie ceased to be Governor to become one of three Commissioners to Paris. He had been appointed Major-General to command North Carolina's contingent, when it seemed that war with France was inevitable; but that danger had happily passed, and he was sent over to arrange the vexed questions growing out of the Berlin and Milan decrees. \*

\*These decrees were Napoleon's efforts to retaliate for British blockade measures against France. The great conqueror forbade all Europe from commercial intercourse with his English enemies.

2. Among the members sent from North Carolina to Congress, Nathaniel Macon, of Warren, soon became conspicuous for his virtue and weight of character. Perhaps no other member of Congress ever wielded so lasting and powerful an influence. His unquestioned sagacity, integrity and inflexible adhesion to what he believed to be right, and his unselfish devotion to the public good, made his opposition to any measure almost necessarily fatal to its passage in the House to which he belonged.

3. There was grief in the last hours of the century, when it became known that General Washington had died in his retirement at Mt. Vernon. Judge

James Iredell had also died about the same time. He had been one of the Associate Justices of the Supreme Court of the United States by the appointment of General Washington, and fell a victim to the enormous labors incurred in riding the great distances involved in attending his different Circuit Courts.

1800.

4. This was, perhaps, the golden age of social enjoyments in North Carolina. The Quakers were Abolitionists, as were also many other good people; but the question had not been agitated, and there was nothing to give uneasiness to masters or false hopes to the slaves. These latter, shared largely in the festivities of the white people, and were free for many years to come to conduct their religious services in any way that seemed best to their wild and fantastic notions.

5. The President had appointed Alfred Moore as the successor of Judge Iredell on the Supreme Court Bench. He was also a great lawyer. Judge Haywood had left North Carolina and was a citizen of Tennessee, but from William Gaston, Archibald Henderson and Archibald D. Murphy the Bar received fresh honors; while John Stanly, David Stone, Joshua G. Wright and Peter Browne had begun attendance upon the courts, in which they were to win great reputations.

6. There had been considerable change effected in the courts. By the statute of 1779 four ridings were established. The Judges, after riding these circuits, were required to meet in Raleigh to try appeals. The sheriffs were no longer obliged to march with drawn swords before the Judges as they went to and from the court- houses, nor were the lawyers compelled to appear arrayed in gowns in the trial of cases.

1802.



7. Governor Benjamin Williams had succeeded General Davie. Among Williams's last official acts was the pardoning of John Stanly for killing ex-Governor Spaight in a duel. This had occurred on Sunday, September 5th, 1802, and was the outgrowth of a bitter political controversy. Spaight was a Republican, and had warmly opposed the election of the able and impulsive young leader of the Federalists.

8. In the same year occurred the exodus of the remnant of the Tuscaroras from Bertie county. The reservation on Roanoke River, which had been granted them for good conduct in the Indian war of 1711, was sold by them to private parties, and they emigrated to New York where the other parts of the tribe had long been located.

9. Among the laws of the Legislature of 1802 was a statute providing for the payment, to the patentees of the cotton-gin, of a given sum for every saw used in each machine. This implement had been recently invented by Eli Whitney, who was a young man from New England, engaged in teaching school in Georgia

10. Before this time only small patches of cotton had been seen in the Southern States. The lint was picked from the seed only by hand, and so slow was the process that a shoe full of the seed cotton was a task usually given to be done between supper and bedtime. Whitney's invention was soon to affect the agriculture and commerce of the world. The cotton gin has greatly aided the development of all civilized nations. It has built cities, freighted mighty fleets, and given employment to many millions of the human race.

11. Attention has already been called to the effects of French atheism upon the United States. The tide of unbelief rolled on until many religious people trembled for the creed and morals of American people. Its terrible

influence was seen and felt in almost every department and employment of life.

12. In 1802 a mighty religious movement began in Kentucky, and spread over a large portion of the Republic. Vast assemblages of the people were seen at the camp meetings. For weeks together the ordinary avocations of life were abandoned by multitudes in order to engage in religious worship; and, in the end, the churches were reinforced by many thousands of new members.

#### QUESTIONS.

1. What honors were conferred upon Governor Davie?
2. Who was North Carolinas most able representative in Congress? Tell something of the character of Nathaniel Macon.
3. What great grief came upon the nation at this period? What prominent man died in North Carolina at this time? Can you state something of his life?
4. What is this period called in the history of North Carolina? What was the condition of the slaves?
5. What is said of prominent lawyers?
6. Mention some changes which were made in the court system.
7. Who had succeeded Governor Davie as Chief-Magistrate? What was one of his last official acts? Give an account of the duel?
8. To what place did the Tuscaroras emigrate in 1802?

9. What law was passed by the Legislature in favor of the inventor of the cotton gin? Who was the inventor?

10. Give an account of the preparation of the cotton for use both before and after this great invention.

11. What was the religious condition of the country?

12. Give an account of the great religious revival of 1802.

## **CHAPTER XLII.**

### **GROWTH AND EXPANSION.**

#### **A. D 1802 TO 1812.**

The Republic of America was wisely ruled during the eight years of Mr. Jefferson's administration as President. He was not only the greatest of political philosophers, but a consummate party leader. Under his management the Federalists were so completely won over that even ex-President John Adams was found among the electors who voted for Jefferson's re-election.

2. Vermont, Ohio, Kentucky and Tennessee were added to the list of States, and the vast territory known as "Louisiana" was purchased from France and made a portion of the American Union. For this magnificent territory the United States paid fifteen million dollars. But with all this evidence of internal advancement, there was unnecessary and ever-growing trouble with foreign powers.

1804.

3. Great Britain had not only failed to carry out the conditions of the treaty of Paris, but continual trouble and war with the western Indians were traced to the plotting of British agents. In Europe, on the high seas, American ships were frequently subjected to wrong and indignity by British

cruisers, which seized their cargoes or crews on various pretexts. These maddening interferences, were fast bringing the people of the United States to a determination to vindicate, by arms, their claims as a free and independent people. Europe was still convulsed by war. Napoleon Bonaparte had been crowned Emperor, and in the mighty struggle the claims of the aggrieved public were overlooked or despised.

4. The people of North Carolina were still in great want of general education. The University, at Chapel Hill, was sending out graduates who had already conferred honor upon that seat of learning, but the preparatory schools, so necessary as feeders to such an establishment, were few and far between.

5. Rev. William Bingham had begun a school in the eastern part of the State. He removed temporarily to Pittsboro, but finally settled at Hillsboro and established the academy which is even at this day continued near by, at Mebaneville, under the management of one of his descendants. This school, dating from 1793, was, even in its infancy, of marked excellence, and has won more reputation than any similar institution in the Southern States. Rev. Dr. David Caldwell's school in Guilford, Rev. J. O. Freeman's in Murfreesboro, and a few academies in the villages, however meritorious, produced but slight effect upon the great mass of the people.

6. There had not been opened a single free school in all the State. Occasionally there could be found neighborhoods where a few citizens joined in employing a man to teach the elementary branches of English education, but these were generally attended for only a few months, and were not very admirable either for discipline or in the matters taught.

1805.

7. The people of the interior and west were becoming anxious for some means of conveyance and travel to the outer world. The crops raised were generally too bulky to pay for expensive transportation over long distances, and for this reason were available to feed only the community in which they were grown. Tobacco from all the counties in the northern portion of the State was conveyed to market by rolling the hogsheads containing it along the roads, to markets at Petersburg, in Virginia, and Fayetteville.

8. In the regions of the long-leaf pine much attention was given to the preparation of turpentine and tar. Indeed, so large a trade grew up in these articles, that some people abroad came to think that North Carolina produced little else. There were no turpentine distilleries to be found, at this time, in North Carolina; and the crude product of the tree was shipped from our ports to be manufactured in other States.

9. In 1805, during the sessions of the Legislature, General James Wellborn, of Wilkes, introduced a proposition to build, at the State's expense, a turnpike from Beaufort Harbor to the mountains; but this and all other such improvements were neglected for some time to come.

1810.

10. The canal through the Dismal Swamp was to prove very beneficial to eastern counties; but this work, though authorized long before, was yet unfinished. Vessels to New York or Baltimore still passed out to sea by the dangers of Cape Hatteras, and not unfrequently both cargo and crew were engulfed amid its cruel sands.

11. There was, at this period of our history, a brisk trade between the West Indies and several of the eastern towns. Wilmington, New Bern, Washington and Edenton were all largely engaged in the shipment of staves and provisions; importing salt and tropical stores in return. This, and all

other foreign trade, was ruthlessly stopped by the embargo laid by Congress.

12. This embargo was the result of an act of Congress which forbade the exportation of all goods from the United States to Great Britain or her dependencies. It was very similar to the expedient resorted to by the Second Continental Congress for a like purpose, but was not enforced by any voluntary associations of the people, as it was in 1775.

1812.

13. This extreme measure failed to bring Great Britain to a surrender of her claim to search American ships; and on the 19th of June, for this and other just causes, war was declared against her. Mr. Madison would have temporized and still deferred the dreadful expedient, but the American people were resolved upon indemnity for the past and security for the future; and thus two kindred nations were to waste blood and treasure in an unnecessary quarrel.

#### **QUESTIONS.**

1. Who was President of the United States at this period? What is said of Jefferson's rule?

2. What States were added to the Union? What great territory was purchased?

3. How had Great Britain kept the treaty of Paris? What indignities were offered to the American people? How were these things affecting the people?

4. What is said of educational matters?

5. What mention is made of the Bingham school? What other schools are mentioned?

6. What was the condition of free education?

7. In what things were the people of the interior and west becoming specially interested?

8. What is said of the production of turpentine and tar?

9. What was proposed by General James Wellborn to the Legislature of 1805?

10. Give a general description of coast navigation at this time.

11. Give some particulars concerning trade.

12. Explain the embargo act.

13. What war was declared in 1812?



## **CHAPTER XLIII.**

### **SECOND WAR WITH GREAT BRITAIN.**

#### **A. D. 1812 TO 1815.**

James Turner, of Warren; Nathaniel Alexander, of Mecklenburg; David Stone, of Bertie, and Benjamin Smith, of Brunswick, had served in turn as Governors of North Carolina during the years of growth and expansion described in the last chapters. William Hawkins, of Granville, was chosen to the same high office in 1812, and, as Commander-in-Chief of all the State's forces, felt unusual responsibility in prospect of war even then begun between Great Britain and the United States.

1813.

2. It was the purpose of the American government to seize Canada and carry on hostilities, as much as possible, in that portion of America. As no great army was assembled at any one point, no call was made upon North Carolina for troops to be sent outside of her borders, except to Norfolk, in Virginia. At that place Major-General Thomas Brown, of Bladen, was in command of a division sent from North Carolina.

3. General Brown was a veteran of the Revolution, and had rendered heroic service at Elizabethtown and elsewhere during that long and arduous

struggle. His brigade commanders were General Thomas Davis, of Fayetteville, and General James F. Dickinson, of Murfreesboro.

4. Camps were also established and troops held for action at other points. The western levies were collected at Wadesboro, under General Alexander Gray, and were drilled and kept in readiness to be marched to the relief of either Wilmington or Charleston. Colonel Maurice Moore, at Wilmington, and Lieutenant- Colonel John Roberts, at Beaufort, commanded garrisons for the defence of these seaports.

1814.

5. In the American army on the northern frontier, where Winfield Scott, of Virginia, was winning laurels, were two North Carolina officers who were also rising to distinction. These were William Gibbs McNeill, of Bladen, and William McRee, of Wilmington. Both became Colonels in the corps of engineers. Amid the frequent disasters and exhibitions of incompetency on the part of other officers in that department, these gallant men were of great credit to America and to North Carolina.

6. On the sea, where the mighty fleets of Great Britain had at such fearful disadvantage the few cruisers of their opponents, were also to be found brilliant representatives of this Commonwealth. Captain Johnston Blakeley, of Wilmington, had been reared by Colonel Edward Jones, the Solicitor-General of North Carolina. He had already made reputation in the Mediterranean Sea under Commodore Preble.

7. Early in 1614 he went to sea in the United State's sloop-of- war Wasp, and captured, with great eclat, the British sloop- of-war Reindeer. Having burned this prize for fear of its recapture, he refitted in a French port, and in August encountered another British ship, the Avon. The British vessel had struck her colors, when a fleet of the enemy came upon the scene and the

victorious Wasp was forced to fly. In a few days Blakeley, thus cruising over the crowded seas surrounding England, captured fifteen merchant vessels. On one of these, the brig Atlanta, he put a prize crew and sent her to the United States.

8. This is the last that is known of this gallant and ill fated officer. He perished in some unknown manner at sea, but has left an imperishable name to our keeping.

9. Captain Otway Burns, of Beaufort, was the commander of a cruiser known as the Snap-Dragon. With this privateer he long roamed the seas, and was victorious in many well fought actions. He survived the war and was afterwards a member of the Legislature. The village of Burnsville was named in his honor.

10. In addition to the troops already mentioned, a regiment commanded by Colonel Joseph Graham, so highly distinguished in the Revolution, was sent against Billy Weathersford and his Creek warriors, who had massacred nearly three hundred white people in Fort Minims, on the Alabama River. Another North Carolinian by birth, General Andrew Jackson, of Tennessee, was in command of the force sent to avenge this outrage of the red men. \*

\*General Andrew Jackson was born in Mecklenburg county, on the 15th day of March, 1767,

11. So swiftly and completely had Jackson done his work, that when the North Carolina regiment arrived there was nothing left to do; for, as Weathersford declared, his braves were all dead, and the war ended. The Indians were required, as a preliminary to peace, to bring in their fugitive chief, Weathersford. That bold and able half-breed did not wait for arrest upon hearing these terms, but rode into General Jackson's camp, and in surrendering himself, boldly announced that he did so because he no longer

had warriors to continue the struggle." I have nothing to ask for myself," said he, "but I want peace for my people."

1815.

12. Peace was soon made between the United States and Great Britain, and the two nations, after struggling for each other's injury for three years, agreed to stop without settling a single one of the causes of the war. England did not even agree to cease impressing men from the United States navy, but this was no more practiced. The treaty of peace was ratified by the United States Senate, February 7th, 1815.

#### QUESTIONS.

1. What Governors had served in North Carolina during the years just considered? Who was Governor at the beginning of the year 1812?

2. How had the United States proposed to conduct the campaign? What troops did North Carolina furnish? Who was in command?

3. What is said of General Brown's past record? Who were his brigade commanders?

4. What military preparations were made in North Carolina?

5. What two North Carolina officers were winning distinction under General Winfield Scott? In what branch of the army were they serving?

6. What is said of affairs on the seas? What North Carolina naval officer was distinguishing himself?

7. Give an account of some of his bold and heroic exploits. How many English vessels did he capture?

8. What is known of him after this?

9. What other seaman was distinguishing himself for his bravery? How is his name commemorated in the State?

10. Who was sent against the Indians? What great general was in command of all this force?

11. What was the success of General Jackson's expedition?

12. What is said of the end of the war of 1812?

## CHAPTER XLIV.

### AFTER THE STORM.

#### A. D. 1815 TO 1821.

When hostilities ceased it seemed a great thing to the people of North Carolina once more to enjoy the full benefits of trade and commerce. British cruisers had made all foreign commodities very scarce and costly. Salt had been made on the seacoast in limited quantities, but of inferior quality. It was, therefore, gratifying to the people to see the stores again filled with goods of every description.

2. When this period of its history had been reached, the State was divided into sixty-two counties. Each of these sent annually to the General Assembly one Senator and two members of the House of Commons. Edenton, New Bern, Wilmington, Fayetteville, Hillsboro, Halifax and Salisbury were called "borough towns"; and, by virtue of this superior dignity, each sent, in addition to the county members, a representative to the lower House of Assembly.

3. The Moravian settlement at Salem had prospered, and though no great numbers of that sect had come over from Europe, yet much wisdom and thrift were seen in the affairs of Wachovia. A female seminary of real excellence and great popularity had been founded in 1804, and young ladies

from all the Southern States were receiving a good education in this retired and healthful region.

4. Raleigh then contained about eight hundred people: Fayetteville twice as many. Wilmington and New Bern were the largest and most important towns in the State, but were still limited in population and trade. Edenton and Halifax had each lost importance, and many villages were surpassing them both in number of inhabitants and in extent of trade.

1819.

5. Dr. Joseph Caldwell had been, for many years, President of the University. He came from New Jersey to make North Carolina his future home, and gave the State of his adoption so laborious and useful a devotion that his name will be cherished in its limits so long as learning and patriotism are valued. He was not only making the college famous for the excellence of its appointments, but internal improvement was advocated by him so intelligently and zealously that the general apathy on the two great subjects of education and intercommunication was passing away.

6. The churches were likewise providing for increased effect among the people. The Methodist conference was each year adding to the number of its churches and itinerant preachers. The Baptists had added the "Chowan" as a coadjutor to similar bodies known as "Sandy Creek" and "Kehukee" Associations.

7. The Episcopal Diocese of North Carolina, in 1816, perfected its organization by the election and consecration of Bishop John Stark Ravenscroft. He was a man of strong character and eminent piety and usefulness. As a preacher, he was held in equal reverence with another distinguished divine of that day, the Rev. John Kerr, of Caswell, a leader among the Baptists.

[NOTE—In 1827, Dr. Caldwell delivered an exceedingly able address before the Legislature, on the subject of railways, and a considerable interest was awakened. The first railway in the United States was built in 1826. This was in Massachusetts, and was only two miles long. It was known as the "Quincey Railroad." The first passenger railway was the Baltimore and Ohio road, fifteen miles long, and was regularly opened in 1830. The cars were drawn by horses until the next year, when a locomotive was used.]

8. The Presbyterian Synod also contained many able and excellent ministers. Rev. Drs. Samuel E. McCorkle, David Caldwell and James Hall were greatly esteemed for their learning; and devotion. This church was specially active and efficient in refuting the teachings of the French atheists.

9. William Gaston and Bartlett Yancey were leaders among the statesmen of North Carolina at this period. They were both greatly distinguished for eloquence and ability. For purity of character they had not been surpassed in all our annals. Another James Iredell had arisen in Chowan county, and in Craven were John Stanly and young George E. Badger. In Caswell appeared Romulus M. Saunders, another young lawyer of fine abilities, who became a distinguished citizen of the State.

10. The establishment of the Supreme Court, in 1818, on its present basis, was largely the work of Bartlett Yancey. John Louis Taylor, the Chief-Justice, with Leonard Henderson and John Hall, as Associates, constituted a tribunal which was soon to win the veneration of American lawyers.

1820.

11. This has been called the era of "Good Feeling" in American politics. But the question of slavery in the Territories was fast assuming a dangerous importance.



12. The Northern States objected to the admission of any more slave States. The Southern would consent to no such prohibition. The storm grew louder, until it was temporarily settled by the "Missouri Compromise" of March 3d, 1820, which provided that henceforward slavery should be forever forbidden north of the parallel of 36° 60' The news of which, however, Mr. Jefferson declared fell on his ears "like a fire-bell at night."

#### QUESTIONS.

1. What was the condition of North Carolina after the war of 1812?
2. How many counties were in North Carolina in 1815? What is said of the representation in the General Assembly? What towns had special privileges?
3. Give some account of the growth of the Moravian settlement at Salem.
4. Give some description of various towns and villages.
5. What efforts was Dr. Joseph Caldwell putting forth for the advancement of the State?
6. What growth was seen among the Methodist churches?
7. Who was at the head of the Episcopal Church? What is said of Bishop Ravenscroft?
8. Who were the most eminent Presbyterian divines? What benefit was derived from their labors?
9. Mention the political leaders.
10. Through whose efforts was the Supreme Court established? Who were the Justices?

11. What was this period called?

12. What question was greatly agitating the people?

## CHAPTER XLV.

### THE WHIGS AND THE DEMOCRATS.

A. D. 1821 TO 1827.

1821.

In the decade following the enactment of the Missouri Compromise there was prodigious material growth in every section of the American Union. In North Carolina the real prosperity of the people was imperceptible, by reason of the heavy emigration to the South and West. Not only population, but wealth, was continually withdrawing to more profitable fields of labor and speculation.

2. While the Northern and Western sections of the Union were receiving the thousands who came every year from Europe and elsewhere, there was no such accession to our numbers. For a century past there has been little or no immigration to North Carolina. The stream of settlers that once poured so steadily into the hill country had ceased even before the Revolution.

3. After the overthrow of the Federalists by Mr. Jefferson, in the year 1800, there was no national party struggle on the old issues, but in every portion of the country were individuals who adhered to the views of Alexander Hamilton as to the proper construction of the Constitution of the

United States. Many of these were men of great social and professional eminence.

4. Under Mr. Madison and his successors there was, in fact, no party but the Democratic-Republicans. Every one who hoped for political promotion professed the faith of that organization. There was no party division as to the Bank or the United States, or the tariff of duties on foreign imports.

5. In the year 1825 the State was graced by the visit of General La Fayette. A half century before he had left his wife and all the charms of life in Paris to do battle in behalf of the struggling American colonies. After acting a distinguished part in the French Revolution, he had returned as the Nation's guest, to receive the thanks of another generation for the great services he had rendered in the past. He went from State to State, every where greeted with the utmost love and veneration. He soon returned to France in the United States ship Brandywine, after receiving princely recognition and rewards from Congress.

6. In this year, also, a considerable excitement was created on account of an extraordinary advance in the price of cotton. In a few weeks the price went from twelve to thirty-two cents per pound. This great rise was only temporary, and many people were ruined by the sudden and unexpected fall.

7. In 1825 the election of John Quincy Adams, by The House of Representatives, to the Presidency, resulted in giving a new aspect to political matters. General Andrew Jackson, who had received the largest popular vote, and was then a Senator from Tennessee, became the leader of those who were called "Democrats." Those who were opposed to him assumed the name of "Whigs."

8. Mr. Adams, though elected as a Democrat-Republican, soon found that party arrayed against his administration. Henry Clay, and all of those who

had been Federalists, supported the President. In North Carolina many prominent men arrayed themselves with the new party. These Whigs, as they were called, advocated a continuance of the United States Bank, a tariff for protection on importations, and a distribution to the several States of the money realized by the sale of public lands.

9. General Jackson and the Democrats favored a tariff for revenue. They contended that the National Bank was not only unauthorized by the Constitution, but also dangerous to the liberties of the people. They were likewise unfriendly to the plan of making the States pensioners of the general government, as proposed in the policy of distribution.

10. Soon great rancor developed between the two parties, both of which had lately been included in the Republican ranks. Henry Clay and John Randolph inaugurated animosities by a duel; and soon, in North Carolina, as elsewhere, social amenities were but little regarded between the Whigs and Democrats.

11. This was very absurd. All were citizens of a free country, and were entitled to hold and express opinions as to what was the best policy for the government to pursue. God has so constituted men that, of necessity, they must differ in opinion on all subjects. How weak and wicked, then, is the man who hates his brother because of the failure to agree on matters that are, after all, involved in doubt.

12. It was not always so, however, for when the Constitution was framed in Philadelphia, in 1787, all the States but Massachusetts recognized the legality of slave property. Very soon afterwards, however, the "Society for African Emancipation" was formed, with Dr. Benjamin Franklin as its president. This body petitioned Congress to abolish slavery in the States and Territories, but was answered that the Constitution left this matter to the States, and that the Federal authorities had no powers.

13. The Northern States finding slave labor unprofitable, had all abolished this institution in their midst, and their slaves had been sent to the South and sold. Southern men, also, had been divided as to the policy of continuing a state of society so opposed to the general liberties of mankind; but this liberal spirit in the South was checked by the violent and unreasonable criticisms and denunciations of the Northern reformers.

#### **QUESTIONS.**

1. What growth was noticed in the Union during the years just considered?

2. What is said of immigration to North Carolina?

3. In what condition were the political parties of the country?

4. What is said of President Madison's administration?

5. What distinguished Frenchman visited North Carolina in the year 1825? How was he everywhere received by the people? How did Congress treat him?

6. What is said of the extraordinary rise in the price of cotton? How did it affect many people?

7. What was the effect of the election of John Quincy Adams? What two political parties then existed?

8. What troubles did Mr. Adams find? What party was led by Henry Clay? What were some of the Whig principles?

9. What did General Jackson and his party advocate?

10. What results were produced by the violent assertions of these opinions?

11. What is said of political animosities?

12. How was the question of slavery viewed? What State refused to recognize the legality of slave property? What society was organized?

## CHAPTER XLVI.

### THE CONDITION OF THE STATE.

#### A. D. 1827 TO 1836.

1. While the Republic of the United States was so divided and agitated as to matters of policy touching the interests of all the Union, there were, at the same time, many issues of local importance confined to North Carolina.

2. The old habit of annually changing the place for holding the sessions of the Legislature had first brought about a feeling of sectionalism between the eastern and western counties. Western men had first learned to combine in securing Hillsboro rather than New Bern for this purpose. It was natural and right for them to seek to lessen as much as possible the distance that separated the State capital from their homes.

1829.

3. The western counties were also anxious to change the system of representation, so that their weight in population should be felt in legislation. As it was, the east held control of both Houses of the General Assembly. Hertford, with five hundred voters, had exactly the weight of Buncombe or Orange, with its thousands. Eastern men would not consent to modify this hardship. They insisted that the Halifax Constitution was still to be adhered to, and refused to go into a constitutional convention for fear of



changes that might subject eastern wealth to taxation in order to secure the construction of highways in the west.

1831.

4. On the morning of the 21st of June the capitol at Raleigh was burned. The fire was caused by the carelessness of a workman who was covering the roof. The building was a total loss, as was also the beautiful statue of Washington, which stood in the rotunda. A new capitol was erected upon the site of the old building, by act of the Legislature of 1832. It is an elegant structure, and was built of native granite, at a cost of over a half million of dollars.

5. The burning of the Capitol, or State-House, as it was called, was a calamity and inconvenience, but the chief regret was over the loss of the marble statue of Washington. This fine work had recently been received from the famous sculptor Canova, in Italy, and was said to be one of his finest productions.

[NOTE—By a freak of liberality, unusual in those good old days, when the State never spent over ninety thousand dollars a year for all purposes, when taxes were six cents on the one hundred dollars value of real estate only, and personal property was entirely exempt, the General Assembly had placed in the rotunda a magnificent statue of Washington, of Carrara marble, by the great Canova. It was the pride and boast of the state. Our people remembered with peculiar pleasure that La Fayette had stood at its base and commended the beauty of the carving and fitness of the honor to the great man, under whom he had served in our war of independence, and whom he regarded with a passionate and reverential love. —(Hon. Kemp P. Battle. LL. D. ).]

1834.

6. On the 4th day of June, 1823, a political convention, composed of gentlemen from the western portion of the State, met in Raleigh. It was presided over by Bartle Yancey. The object of the convention was to devise measure to secure greater weight in the Legislature to their great and growing popular majorities. Many wise and desirable changes in the Constitution of 1776 were suggested, and the result was that sectional feeling ran very high. So much so, that in time the people of the west might have proceeded to extreme measures had not the Legislature of 1834 come to the rescue in the passage of the "Convention Bill."

7. On a close vote, aided by the votes of eastern borough members, the bill was passed which provided that, in case a call for a convention therein contained should be endorsed by a majority of the voters in the State, then a convention should be held; and each member chosen, before taking his seat should take oath that he would not be a party to any further alterations of the Constitution than those specified in the enabling act.

1835.

8. The Convention met in Raleigh on June 4th 1835, and Nathaniel Macon was made President. Many of the ablest men in the State were members. Judge Gastor, Governor David L. Swain and Judge J. J. Daniel were leaders in the debates. Borough representation and free negro suffrage were abolished. The election of Governor was taken from the Assembly and committed to the people. The legislative sessions were made biennial instead of annual, as of old. Each county was to send one member to the House of Commons, and more if its population justified so doing. One hundred and twenty members constituted this body, while the Senators were limited to fifty. The upper House was to represent taxation; and the lower, population.

9. These organic changes were ratified by a popular majority of more than five thousand votes. This change of Constitution was soon followed by the first popular election for Governor. Governors Miller, Burton, Owen and Swain had successively occupied the Executive Office in North Carolina, until the Legislature, in 1835, for the last time, selected a Governor in the person of Richard Dobbs Spaight, of Craven.

10. This gentleman did not equal his father in the brilliance of his endowments, but he was well fitted for the exigencies of a contest before the people. He was nominated for re-election by the Democrats the next year, but was beaten by the Whig nominee, Edward B. Dudley, of Wilmington. Mr. Dudley was not only a very able lawyer, but proved himself a statesman of enduring worth.

#### QUESTIONS.

1. What is said of these troublesome years?
2. What troubles were seen in North Carolina? What divisions had rung up between the eastern and western men of the State?
3. How did the men of the two sections view the question of representation?
4. What public building was burned on June 21st, 1831? What was the cause of the fire? What was lost with the building? Where was the new capitol built? Of what was it built?
5. What was the chief regret? Who was this work by?
6. What is said of the Western Convention of 1823?
7. What law was enacted concerning a convention?

8. What is said of the memorable convention of 1835? What changes were made in the Constitution?

9. What was the majority of the votes given to the amendments? Who was the last Governor selected by the Legislature?

10. What two candidates were before the people in 1836? Who was the first Governor elected by the people?

13. How had the Northern States acted in regard to slavery? What checked the liberal spirit of the South concerning slavery?

## CHAPTER XLVII.

### INTERNAL IMPROVEMENTS—THE COURTS AND THE BAR.

A. D. 1836.

There had been many changes effected among the people of North Carolina by the lapse of time when the year 1836 came in. Bartlett Yancey, the two Drs. Caldwell and Archibald Henderson were all dead, and their places filled by other men. Cotton was becoming more and more widely cultivated, and, year by year the value of slave property was increasing by reason of the profits realized in the cultivation of this great Southern staple.

2. The Dismal Swamp Canal was at last ready for traffic between the Albemarle country and Norfolk, in the State of Virginia. A change was soon apparent in the trade of the towns thus connected by a new watercourse with the outer world. The dangerous voyages through the inlets and out into the ocean were by degrees abandoned, and almost all direct trade with the West Indies ceased.

3. The first railway charter given in North Carolina was that of the Petersburg Railroad. This was in 1830, and was followed, two years later, by that of the Portsmouth and Roanoke route. Soon after, Governor Dudley and others organized the Wilmington Railroad, leading to Weldon, the same terminus fixed for the others. This was for some time the longest single line in the world.

4. A few lines had been constructed in the United States prior to these, but they were among the pioneer works of the vast network of railways now seen in every portion of the Republic. Wonderful changes have taken place in the travel and traffic of the States. The vast extent of the national territory once presented to wise observers of our institutions a bar to any unity of thought and interest; but steam and electricity have triumphed over space, and the Republic, in 1882, is far more compact and its parts greatly more accessible than were the Atlantic States in 1787.

5. In just a half century the iron lines, beginning at the sea, have reached and pierced the mountain barriers of Western North Carolina. From State to State rush the tireless ministers of our wealth and pleasure. Instead of the wagon toiling slowly in the rear of weary axemen, we see the long and well-appointed railroad train sweep by with the speed of the hurricane, bearing the wealth of States, and doing more in the course of twenty-four hours to diffuse civilization and luxury than our ancestors could have accomplished in as many years.

6. The Baptist churches of the greater portion of North Carolina, in 1830, formed what they called a "State Convention" and organized for missionary and other purposes. This important movement resulted in a great improvement to this denomination, for out of this combination learned periodicals, new churches and many colleges and schools were to have their origin.

7. Among public men of that day, Judge Willie P. Manguni, of Orange, held a distinguished position. His brilliant eloquence and gracious demeanor secured his election in 1830, over Governor John Owen, to the United States Senate. In this distinguished body he remained long and became highly influential. A personal difficulty came near resulting in a duel between these two gentlemen, but it was amicably settled. Governor

Owen was no further in public life, except to preside over the convention which nominated Harrison and Tyler for the chief executive offices of the United States in 1840.

8. Upon the death of Chief Justice Taylor, in 1829, the legal profession lost one of its greatest ornaments. His strong natural understanding was further improved by his learning; but in addition to this, he possessed qualities which peculiarly fitted him for framing the practice and precedents of a new tribunal. He was an eminently wise and just man, and well deserved to be called the "Mansfield of North Carolina."

9. Upon Judge Taylor's death, Leonard Henderson became Chief- Justice, and Judge J. D. Toomer, Associate-Justice. The latter only remained a member of the Court a few months, and having resigned, was succeeded by Thomas Ruffin, of Orange. No one in our history has brought higher judicial qualities to the bench than were seen in Judge Ruffin. Deep learning, wide grasp and luminous statement soon made him respected both at home and abroad.

10. Upon the death of Chief-Justice Henderson, in 1833, William Gaston, of Craven, was elected to the Supreme Court. The Court was then composed of Chief-Justice Thomas Ruffin, Joseph J. Daniel and William Gaston, Associates; and was unequaled in America as a legal tribunal. Judge Daniel was able, learned and upright; and in Gaston nature had combined her highest gifts. His Roman Catholic creed was not shared by many people of the State, but such were the purity and usefulness of his life, that no man of his time was more beloved or trusted.

11. The Judges of the Superior Courts were also men of integrity and ability. Henry Seawell, who was a powerful advocate in the courts, and had twice been clothed with the judicial ermine, had recently died, and the different circuits were then presided over by Thomas Settle, of

Rockingham; R. M. Saunders, of Wake; John M. T. Dick, of Guilford; John L. Bailey, of Pasquotank, and Richmond M. Pearson, of Rowan.

12. The Bar of North Carolina was never more respected for the learning and eloquence of its members than at the period now reached in this narrative. Gavin Hogg, Peter Browne and Judge Duncan Cameron were all men of renown. They were possessed of large fortunes and left names of unsullied honor.

13. Judge Badger, B. F. Moore, Thomas Bragg, and W. N. H. Smith, were all in full practice before the courts, and were the peers of Iredell, Davie and Archibald Henderson of former days. It is impossible to overestimate the influence for good or evil which has been and ever will be exerted by the lawyers in a free land. They are the sentinels and conservators of public liberty, and, next to the clergy, improve or impair the morality of the masses.

#### **QUESTIONS.**

1. What changes were noticed in North Carolina in 1836? What is said of cotton and slave property?
2. What canal had been completed? How did it benefit that section?
3. What is said of the railway charters?
4. In what condition were railroads at this time?
5. What is said of the present means of travel?
6. What religious convention had been formed in 1730?
7. What public man is now mentioned, and what is said of his abilities?



8. What mention is made of Chief-Justice Taylor?
9. What changes were made in the Supreme Court? What is said of Judge Thomas Ruffin?
10. Who succeeded Judge Henderson? Who composed the Supreme Court in 1833?
11. Can you name some of the Judges, of the Superior Court?
12. What is said of the Bar at this period?
13. How is the influence of lawyers always felt in a community?

## **CHAPTER XLVIII.**

### **ORIGIN OF THE PUBLIC SCHOOLS.**

#### **A. D. 1837 TO 1842.**

It will be remembered that in 1767 the first school was incorporated by the Legislature of North Carolina, by the act in favor of the academy at New Bern. In this, and subsequent legislation for schools at Edenton and elsewhere, it had provided that the teachers should all be communicants of the Church of England. This stipulation was, of course, part of the English Church and State system of government.

2. When, just previous to the outbreak of the Revolutionary war, the founders of the "Queen's Museum," at Charlotte, a school so named in honor of the queen of England, asked incorporation of the Colonial General Assembly, it was not granted, for the reason that this institution was Presbyterian, both as to trustees and faculty. Up to that period dissenting ministers had not been allowed any legal recognition, and it was considered a great concession that the Presbyterian clergy were allowed to officiate at marriages.

3. During the Revolution (in 1777) the useful seminary at Charlotte was first legally chartered as "Liberty Hall." It was in no way sustained by or connected with the State, but was to the Presbytery of Orange what Davidson College is now to the, Synod of North Carolina, and was

sustained solely by the contributions and patronage of private citizens. Indeed, this had been the case all along with the chartered schools of New Bern and Edenton.

4. In 1776, when the convention at Halifax framed the first Constitution for the State, among the leading ordinances of that instrument was that for the State's active aid to the education of the people. With this clause in the Constitution which they all swore to uphold, the legislators had done nothing so far, except to provide, in 1790, for the establishment of the University at Chapel Hill. \*

\*Section 41 of the Halifax Constitution declared "that a school or schools shall be established by the Legislature for the convenient instruction of youth, with such salaries to the masters, paid by the public, as may enable them to instruct at low prices. All useful learning shall be duly encouraged and promoted in one or more universities."

5. This disregard of their organic law, on the part of those constituting the State government, was deeply regretted by many wise and good men. But only a few dared to encounter the opposition to taxation for popular education. Governors Johnston and Davie in former days, and Judge Murphy and Bartlett Yancey of later times, had been strenuous for a larger compliance with the terms of the State Constitution, but the members of the several Legislatures, fearful of incurring popular displeasure, or for other reasons, had held back.

6. General Jackson and the Democratic party had opposed the distribution of the proceeds from the sale of national public lands as a fixed rule in the policy of the government, but in his last administration many millions of dollars had accumulated in the Federal treasury, for which the general government had no immediate use. In 1837 this fund was divided out to all the States except Virginia (that Commonwealth refusing her

share). North Carolina's proportion amounted to one and a half million dollars.

7. This fund, together with the amounts realized from the sale of swamp lands belonging to the State, and certain shares of bank stock, also the property of North Carolina, was set aside and invested for the benefit of the public schools of the State, and was known as the "School Fund."

8. It was not until the year 1840 that any effective legislation was had for the establishment of the free educational system. By an act of the Legislature of 1836, the Governor and three others, by him to be appointed, were constituted the "Literary Board." In 1839 an act was passed to divide the counties into school districts. It left to each county the option of schools or no schools. It showed considerable advance in popular wisdom, that all but one of the counties decided to have schools and to be taxed for the erection of such buildings as were necessary in the work.

[NOTE—The Presidential campaign of 1840 was an unusually exciting one. The Whig nominee, William Henry Harrison, was charged by his opponents as having lived in a "log cabin," with nothing to drink but "hard cider." His friends made good use of these charges. "Hard Cider" became a political watchword, and in the numerous Whig processions a "log cabin" on wheels occupied the most prominent and honored position. The "Log cabin Campaign" will long be remembered. President Harrison died within one month after his inauguration. His last words were, "The principles of the government; I wish them carried out. I ask nothing more."]

9. Not in the General Assembly alone was the subject of education receiving unusual attention. The Baptists, in 1826, established a high school on the farm of Colonel Calvin Jones, in Wake county. A little later it was changed in name and became Wake Forest College. The Presbyterians, in 1838, founded Davidson College, in Mecklenburg. These denominational

institutions became noble adjuncts to the University in affording opportunities for liberal culture in our own borders.

10. Thus, at last, the "old-field schools" were superseded as better institutions took their place. The old-fashioned country teacher, who passed from house to house for subsistence, and was wholly dependent upon the feelings or caprices of one or two employers, gradually disappeared as academies and common schools multiplied.

11. The Bingham School in Orange, the Lovejoy School in Raleigh, the Bobbitt School in Franklin, the Caldwell Institute in Greensboro, Trinity College near Raleigh, the Donaldson Academy in Fayetteville, and numerous other excellent male academies greatly added to the number of well-informed and useful men.

1842.

12. The Salem Seminary, so widely renowned for the host of cultured women sent out to every portion of the South, at last found a worthy rival in St. Mary's School. This institution was established at Raleigh, in 1842, under the patronage of Bishop Ives and the Episcopal Diocese of North Carolina. Rev. Dr. Aldert Smedes, who soon presided over its fortunes, was singularly fitted for such place; for in no other institution in America was intellectual training more largely supplemented by the moral and social graces. These popular institutions were soon reinforced by the excellent Methodist Female College at Greensboro.

13. Presbyterian's, a few years later, had a first-rate school for the education of their daughters in "Edgeworth," a noble seminary established by Governor Morehead at Greensboro.

**QUESTIONS.**

1. What is this chapter about? What laws has been enacted concert concerning education?

2. Why had incorporation been refused to the "Queen's Museum"?

3. What is said of the schools at Charlotte and Davidson?

4. What clause was in the first State Constitution? How had the intent of this clause been carried out?

5. What were some of the views in regard to popular education? What men had advocated the provisions of the Constitution?

6. What addition to the School Fund did North Carolina receive in 1837?

7. How was the fund further increased?

8. Can you mention the legislation at this period affecting school matters?

9. What denominational schools were founded about this time?

10. What is said of the "old-field schools"? 11. Where were the leading male schools, and what is said of the usefulness?

12. What female schools are mentioned? What is said of St. Mary's School? What is said of other schools?

## **CHAPTER XLIX.**

### **SLAVERY AND SOCIAL DEVELOPMENT.**

#### **A. D. 1842 TO 1844.**

1. When the year of our Lord 1842 had come, peace and prosperity were in all portions of North Carolina. Society was still divided into three classes. These were: the white people, the slaves and the free negroes. The latter class had originated by manumission, and were numerous in some of the eastern counties. They had lost the right of suffrage by the action of the State Convention of 1835.

2. This action on the part of the Convention was due in some degree, doubtless, to the constant agitation of the slavery question, though by no means due to that alone; but to the further fact, as well, that during the time they voted by sufferance they had plainly demonstrated their utter unfitness to appreciate or exercise the great right of suffrage.

3. As a class they were unthrifty and dishonest, and each year becoming more useless as members of the community; their association with the slaves was regarded as an evil to be avoided if possible; therefore, they were discriminated against in the legislation of the period. Virginia and Ohio had both enacted statutes which forbade them access to their borders. North Carolina provided by law that in case of their removal from the State they lost their residence, and were forbidden to return.

4. The right of the States to pass such laws for the protection of their slave property cannot be denied, unless the right of property in slaves be also denied. Nor can they properly be called unjust. The right of property in their slaves the people of North Carolina regarded as settled by the Constitution of the State and that of the United States. Theorists might speculate whether African slavery was consistent with the American Declaration of Independence as they pleased, but the right of property in slaves was undisputably recognized and secured in the fundamental laws of the land. As to the moral question involved, if any such there was, the Southern slave-owner regarded it as one between himself and his God, and not between himself and his Northern brother.

5. As a matter of course, slavery and intellectual culture are incompatible, and education was therefore denied the slaves. The right to testify in the courts against a white man, and even the right to defend himself from the assaults of white men, except in defence of life in the last extremity, were also necessarily denied him. These restrictions were necessary to the maintenance of the legal relations between the dominant and subject races.

6. Of course there were those who studied the slavery problem from every possible standpoint, except the constitutional legality of it. That, at least, was fixed. Some doubted the morality of it and others questioned the policy of it, and it is quite possible, had time and opportunity for gradual manumission and exportation offered, North Carolina would have been a free State, in the course of events, of her own accord.

7. The Northern States had sold their slaves rather than free them under their acts of manumission. It was not possible for this to be further repeated by the Commonwealths still retaining the institution; so in a blind ignorance of the future and in utter hopelessness of any practicable solution of their



difficulty, except in remaining as they were, the statesmen of the South contented themselves with a simple policy of resistance to change.

1844.

8. Among the white people of North Carolina were found all who participated in the conduct of public affairs. The means of popular education had been too recently adopted to show effects upon the community. The labors of a few wise men were just being crowned with success, and the children of the poor were receiving the rudiments of education in every portion of the State.

9. In religion, the great mass of the people belonged to country churches. These rural congregations, as a general thing, met on one Saturday and the succeeding Sabbath of each month, to attend the preaching of a minister who often served other churches as pastor the remaining Sundays. Beyond the Sunday schools and annual protracted meetings, there were no other religious observances except occasional funerals and prayer meetings at private houses.

10. The balls and horse-races of former days in the eastern counties had, in a large measure, ceased. In the growth of the Methodist and Baptist Churches in that section, such amusements had been so discouraged that festivities of this kind became rare. In the western sections of North Carolina they had never been countenanced by the Presbyterians.

11. The summers became more or less marked by great assemblages in the protracted or "camp-meetings." They were, to the devout, seasons of religious devotion, but to the young and thoughtless, opportunities for courtship and social enjoyment.

**QUESTIONS.**

1. What three classes of society existed in North Carolina in 1842?
2. What action was taken by the Convention of 1835 in regard to free negroes?
3. What is said of this class of our population?
4. How did our people view the question of slavery?
5. What privileges were denied the slaves? Why?
6. What would probably have been the final result in North Carolina?
7. What had the Northern States done with their slaves? How was the South compelled to act?
8. What educational progress was being made?
9. What was the condition of religious matters?
10. What effects were seen from the growth of the churches?
11. What great congregations were found in various places during the summer?

# CHAPTER L.

## THE MEXICAN WAR.

### A. D. 1844 TO 1846.

Governor Dudley was opposed by ex-Governor John Branch, of Halifax, as the candidate of the Democratic party in 1838. Governor Branch had been in the Cabinet of General Jackson, and upon his defeat in this contest, retired from public life in North Carolina to receive the appointment of territorial Governor of Florida. In the Gubernatorial contest, two years later, John Motley Morehead, of Guilford, as the nominee of the Whigs, likewise defeated the Democratic leader, Judge Romulus M. Saunders.

2. They were both men of large natural endowments, and have never been surpassed in the vigor of their debates before the people. They were both educated at Chapel Hill, and were types of public Southern men of their day. Judge Saunders made a high reputation as a member of Congress; and Governor Morehead so grew in favor that eloquent Louis D. Henry, who opposed his re- election, was also defeated by a considerable majority.

3. The loss of the State in the deaths of Judge Gaston, of Judge Daniel, and of Lewis Williams, long one of our Representatives in Congress, was not easily repaired. Michael Hoke, of Lincolnton, was rising to prominence

as a politician when his untimely death occurred. He had just concluded a brilliant canvass against William A. Graham, of Orange, for the office of Governor, and lost his election and his life in the summer of 1844.

4. This election of Governor Graham marked a new era in the development of the State. He was the son of General Joseph Graham, of the Revolution, and inherited many of his virtues. No public man in the history of the State has brought closer application or a higher elevation to his duties. Like Richard Caswell and Nathaniel Macon, his hold upon the public affections was never lost, and to the day of his death he was "first in the hearts of his countrymen" of North Carolina.

5. In 1844, James Knox Polk, of Tennessee, who was a native of North Carolina and a graduate of our University, was elected President of the United States. During his administration the United States and the neighboring Republic of Mexico went to war. The boundary line between Texas and Mexico had long been in dispute between those countries, a dispute that practically amounted to a constant border warfare. Of course as soon as Texas was annexed to the United States the Federal government took the place of Texas as a party to the quarrel, and undisguised, open war followed.

6. President Polk made a visit to the University during his term of office, which was highly appreciated and greatly redounded to the honor of that ancient institution. President Polk was born in Mecklenburg county in 1795, and died in 1849. The announcement of his nomination for the Presidency was the first message ever sent by telegraph. It was sent from Baltimore, where the National Democratic Convention was in session, to Washington City, on 29th May, 1844, over an experimental line, put up at the expense of the Federal government, to test Professor Morse's recent invention.

1846.

7. A regiment of North Carolina volunteers was sent to Mexico under Colonel Robert Treat Paine, of Chowan. It was stationed on the line of communication, but was not actively engaged in any of the battles. Two companies of North Carolina troops under Captains W. J. Clarice and Charles R. Jones, were mustered into the Twelfth Regiment United States Infantry, and did valiant service in the battle at National Bridge.

8. Louis D. Wilson, of Edgecombe, had been Captain of Company A, in Colonel Paine's regiment. He was promoted Major and assigned to duty in the Twelfth United States Infantry. He died on duty in Mexico, and left his estate to the benefit of the poor of his native county.

9. Captain Braxton Bragg gained great credit for his conduct at the battle of Buena Vista, where, with a single battery of light artillery, he resisted the attack of a large force upon General Taylor's left flank, and thus prevented a movement that would otherwise have caused the immediate retreat and probable destruction of the American army.

10. The smoke was so dense in this action that Captain Bragg was able to place his battery within fifty yards of the advancing column. He gave the foe a round of double canister shot, which opened great gaps in their ranks. They staggered and recoiled under this murderous fire. When the delighted American commander saw that the battle was won, he arose in his stirrups and joyfully shouted: "Give them a little more grape, Captain Bragg!"

11. Major Samuel McRee, of Wilmington, rendered valuable service as Quartermaster in the army under General Scott. Captain J. H. K. Burgwin, of the first United States Dragoons, died of his wounds at Taos. Lieutenant James G. Martin lost an arm and gained a brevet at Churusbusco. Captains T. H. Holmes and Gabriel Rains, and Lieutenant F. T. Bryan, all gave valuable and recognized service in the two columns under Generals Scott and Taylor.

## QUESTIONS.

1. What period have we now reached? Who were Governors at this time? What is said of Governor John Branch?

2. What mention is made of the candidates for Governor?

3. What deaths of prominent men occurred about this period?

4. What Governor was elected in 1844? How was he beloved in the State?

5. What troubles arose in national matters on the election of James K. Polk?

6. What is said, of his visit to the University? Of what State was President Polk a native? How was his nomination announced?

7. Can you mention the North Carolina troops sent to Mexico, and their commanders?

8. Tell something about Major Louis D. Wilson.

9. What valiant officer was with General Taylor at Buena Vista? Give an account of his timely aid to the American army.

10. Describe the action.

11. What other officers are spoken of?

# CHAPTER LI.

## THE NORTH CAROLINA RAILWAY AND THE ASYLUMS.

A. D. 1845.

No single year in human records has been more prolific of change and social advancement than that which witnessed the overthrow of King Louis Phillipe in France and the general upheaval of all Europe. It seemed that the spirits of the sixteenth century had revisited the earth, and that men were everywhere resolved on revolution or amendment.

1848.

2. North Carolina formed no exception to this general impulse of Christendom. A wise and patriotic disregard of old sectional and party traditions first led to the assumption by the State of a controlling part in the great work of internal improvement. The railroads that had been previously constructed from different points to Roanoke River, were all in a deplorable condition.

3. The Raleigh and Gaston route was so decayed and impaired in its equipments that a whole day was consumed in the passage of a mail train over the eighty miles traversed. The Seaboard route to Portsmouth, Virginia, was prostrate and out of use. The Wilmington Road, though it was in somewhat better plight, was still served by feeble engines, which drew a

few trains slowly along the track, ironed no more heavily than the wheels of a six- horse wagon.

4. The additional fact that no railway went further west than the village of Raleigh, also prevented the accumulation of such travel and traffic as to repay the outlay of construction and equipment. The Wilmington Road furnished the great route between the North and South, and in that way won richer returns than lines leading to the interior.

5. The long deferred hopes of Western North Carolina were at last to be realized. Ex-Governor Morehead and others besought the Legislature for the State's aid in a great line which should connect Charlotte, Greensboro, Raleigh and Goldsboro. This was to be called the "North Carolina Railroad," and was to be two hundred and forty miles long.

6. Eastern men, as a general thing, opposed this bill, but it was earnestly supported by William S. Ashe, of New Hanover, and others, in the House of Representatives; and, having passed that body, it was sent to the Senate. The vote in the upper House resulted in a tie. Calvin Graves, of Caswell, was Speaker. He had been a life-long Democrat, and knew that the people of his County were opposed to the State's aiding the proposed road, but he nobly discharged what he thought to be his duty, and, by his casting vote, the bill became a law.

7. This great step in building up the material prosperity of the Commonwealth did not satisfy the desires of this memorable Assembly. Measures that had been adopted at the previous session for the establishment of an institution for the education of the deaf, dumb and the blind children of the State were extended; and, at the earnest solicitation of Miss Dorothea Dix, of New York, a further appropriation was made for the erection of a hospital for the insane.



8. Miss Dix devoted her life to the amelioration of this unfortunate class of people. In North Carolina, as generally in the Republic, there had been no better disposition of lunatics than their confinement in the loathsome dungeons of county jails. Numbers who might have been restored to reason and usefulness were, in this way, condemned to the horrors of perpetual insanity. Instead of the comforts, kindness and restoration now to be found in the management of the Insane Asylums, the poor lunatic lay in chains in the murderer's cell and howled out his life amid the darkness and foetid exhalations of the hell to which he was doomed.

9. North Carolina was thus manfully meeting the requirements of both civilization and humanity; for as the condition of their highways affords the truest test of a people's advancement in civilization, so, also does the provision made for the care and comfort of the unfortunate and helpless afford the highest evidence of a people's progress in humanity.

10. In this memorable session of 1848-49, a still further exemplification of the wisdom of the North Carolina Legislature was seen in their statute for the protection of married women. Before that time the husband acquired by marriage absolute title to his wife's personal estate and a life interest in her real property, and these interests he could sell without her consent. He could also restrain her of her personal liberty.

11. The statute of this year provided that the husband's interest in the wife's lands should not be subject to sale by the husband without her full and free consent and joinder in the conveyance. This was to be attested by a privy examination and certificate appended to the deed conveying such lands.

12. A further much needed improvement took place when the ancient English rules allowing the husband the right of personal chastisement were

also abolished, and this infamous badge of inferiority numbered among the things of the past.

13. There have been periods in the history of all communities when extraordinary development was witnessed. The overthrow of one ancient abuse leads to the correction of another; and thus, in the awakening sympathies of the hour, reformatations give way to a new and higher humanity.

#### **QUESTIONS.**

1. What is this lesson about? What is said of the period now reached?
2. How was North Carolina feeling the general impulse of improvement?
3. In what condition were the railroads?
4. How far west were the railroads reaching? Which of the roads was obtaining most travel?
5. What important railway is now mentioned? What was to be its extent?
6. Can you describe the passage of the "Railroad Bill" through the Legislature?
7. What charitable institutions were provided for at this session? Through whose instrumentality was the appropriation made for the Insane Asylum?
8. What devotion did Miss Dix give to this subject? What had been the disposition of the insane before this?
9. What is said of these internal improvements?

10. What other important law was enacted at this session? Can you tell something of the rights of married women previous to this time?

11. What were the provisions of the new law?

12. What was indicated by these acts of the State?

13. What reflections are made upon this era?

## **CHAPTER LII.**

### **A SPECTRE OF THE PAST REAPPEARS.**

#### **A. D. 1848 TO 1852.**

1. The female seminaries of Salem, Raleigh and Greensboro were supplemented, in 1843, in the establishment, by the Chowan and Portsmouth Baptist Associations, of another female school of high grade, at Murfreesboro. This useful and popular institution soon gained reputation and attracted patronage from many of the Southern States. The Edgeworth Seminary at Greensboro was a similar institution under Presbyterian rule. It was a worthy rival of its compeers in the education of Southern girls. The University, Wake Forest and Davidson College were advancing their standards and growing in prosperity. The University, especially, under the sagacious administration of ex-Governor Swain, assisted by an able body of experienced teachers, made great progress. Several hundred students were in attendance, gathered from all the Southern and Southwestern States.

2. Governor Morehead had been succeeded in office by William A. Graham, of Orange. In the United States Senate, Judges Mangum and Badger were the peers of the best men of the Republic, and reflected honor on North Carolina.

3. In the House of Representatives, Colonel James I. McKay, of Bladen, had long been recognized as one of the leading men, and was chairman of

the Committee on Ways and Means. Messrs. Kenneth Rayner and Thomas L. Clingman were also men of recognized ability, the latter bringing varied accomplishments to aid his discharge of duty.

1849.

4. At the expiration of Governor Graham's term of office Charles Manly, of Wake, became Governor. The people of the State grew excited in the contest between Messrs. Manly and Reid over the Democratic proposition to abolish the freehold qualification of voters for State Senators. It had been, ever since 1776, necessary for a man to possess fifty acres of land to be entitled to this franchise. It was now proposed to allow all white men the privilege of suffrage.

5. Upon the election of General Taylor as President of the United States, Mr. Polk retired to private life, and soon died at Nashville, Tennessee. He was a pure and laborious man, but was not the equal of Andrew Jackson in those great natural gifts which immortalized the hero of New Orleans.

6. Upon the cessation of war with Mexico, it had been agreed in the treaty of peace that upon the payment of a large sum of money, Upper California should, with other Mexican territory, belong to the United States. The discovery of immense deposits of gold on the Pacific coast led to such immigration there that, in 1850, California was applying for admission as a State into the Union.

7. Again the spectre of coming strife and bloodshed was seen in the renewal of the struggle over the question of freedom or slavery in this new sister in the galaxy of States. Southern men like Henry Clay thought that the whole subject had been settled in 1820, when, by the Missouri Compromise, it had been ordained that involuntary servitude should not obtain north of the geographical line 36° 30' north latitude.

1850.

8. It was understood that the surrender of the right to own slaves north of this line was the consideration for the admission of the right to own them south of it, and that this was what the "compromise" meant. But they were told that the inhibition alone was effective, and that no such converse right was intended to be conveyed as that contended for by the men of the South. The most logical of these men said that Congress had exceeded its powers in the enactment mentioned, and that no power could settle the question but the people of the new State.

9. It was seen that "Wilmot's Proviso," which was an amendment continually offered by Mr. Wilmot, of Pennsylvania, excluding slavery from all future States, was the fixed determination of the Northern people. So, after a protracted and bitter struggle, Mr. Clay, as the last service of a long and illustrious life, procured the passage of the compromise of 1850, in which the only concession by Northern men was the "Fugitive Slave Law."

10. This statute provided that Federal courts and officers should arrest and return to their owners such slaves as should be found absconding in the different States of the Union, whether free or slave-holding. It was greeted by a prodigious outcry from the Northern press and people. They determined that this national law should not be executed, and the different legislatures of the free States began their enactment of personal liberty laws, which made it penal to aid in carrying out the law of Congress.

1851.

11. The people of the South were both exasperated and disheartened at such manifestations, and in view of such palpable violations of their plain constitutional rights, began seriously to consider whether in a union with the Northern States the arbitrary will of the people of those States was not

to be the rule of government rather than the Constitution solemnly agreed upon between their forefathers. If this were to be so, the dream of liberty, regulated by law in the Federal Union, was at an end.

#### QUESTIONS.

1. What educational institutions are mentioned?
2. Who was Governor in 1818? What two men were distinguished in the United States Senate?
3. Who were the representative men in the House?
4. Who succeeded Governor Graham in 1849? What proposition was agitating the people?
5. Who succeeded James K. Polk as President of the United States? What is said of President Polk?
6. What events were occurring in the West?
7. What spectre of the past reappears? Relate circumstances.
8. In what condition was the question now seen?
9. What is said of the "Wilmot Proviso" and "Fugitive Slave Law"?
10. What was the "Fugitive Slave Law"? How did the North legislate against this law of Congress?
11. How was the South affected by these troubles?

## **CHAPTER LIII.**

### **THE SOCIAL AND POLITICAL STATUS.**

#### **A. D. 1852 TO 1859.**

The election of General Franklin Pierce to the Presidency, in 1852, was considered by many as a rebuke to those who had been so clamorous in the North against the compromise of 1850. He was a warm supporter of the rights of the individual States, and the knowledge of this fact brought repose to the minds of Southern men.

2. North Carolina had just entered upon a career of rapid development in her mineral resources. The incorporation of a clause extending the right of suffrage in the State Constitution, the completion of the great central railway, the opening of the asylums and the large addition to the number of schools, were evidences of progress and widespread prosperity. Capitalists, for the first time, began to invest their wealth in cotton and woolen factories.

1853.

3. The creation of the office of Superintendent of Common Schools, in 1853, and the appointment of Calvin H. Wiley, of Guilford, to that position, marked an extraordinary advance in the matter of popular education. Mr. Wiley soon evinced so much discretion and devotion to his duties that his



propositions of improvement were adopted, and his views and wishes soon became those of the State government. The same year was further signalized by the Normal School, under charge of Mr. Craven, being empowered by the Legislature to grant literary degrees and the assumption of the full dignities of a college. After nearly thirty years of usefulness, this institution, now known as Trinity College, is still accomplishing great good under the auspices of the Methodists of the State.

4. With the new lines of railway and the restoration of the old routes, there was a large advance in the value of real estate and in the amount of productions sent abroad. The use of Peruvian Guano and other concentrated fertilizers was just being introduced, and the example of Edgecombe county in the use of compost heaps was being followed in every direction and adding immensely to the yield of exhausted fields.

5. It was a notable thing in the political history of the country, that in the Presidential contest of 1852 the candidates for Vice-President, of both the Whig and Democratic parties, were born in North Carolina and educated at Chapel Hill. Ex-Governor William R. King, Democrat, then of Alabama, was chosen over ex- Governor Graham, who had been Secretary of the Navy in the Cabinet of President Fillmore.

6. The churches were prospering under their increased attentions to education. A larger culture was coming to those who filled the pulpits at home, and devoted men like Dr. Matthew T. Yates were going to heathen lands to spend their lives for the good of other races. The Episcopal Church had abundant compensation in the wisdom and virtues of Bishop Atkinson for the loss of Bishop Ives, upon his leaving that communion for the Church of Rome. The great slavery controversy was bringing trouble and division to the Baptists and Methodists, and thus, not only statesmen and politicians, but ministers of the Gospel, were also set at variance.

1854.

7. From Massachusetts was sent, at this period, a new and startling impulse to the Northern pulpits and hustings. It had been the peculiar glory of the American people that they were the originators of the great doctrine and practice of religious liberty. A new party, calling themselves the "KnowNothings," had carried that State and were proclaiming their opposition to all Roman Catholics as public officers. The "Know-Nothings" were also called the "American Party," and their motto was "America for Americans."

8. This was to prove a short-lived and pernicious movement. It not only contravened the noblest American precedents, but at once combined all the ends and fragments of parties which had previously opposed the great organization that had been led by Jefferson and Jackson. Besides their hostility to the Roman Catholic religion, they inculcated one other principle; this was opposition to the naturalization of foreign immigrants until after a residence of twenty-one years within the borders of the United States. The success of this new party ended in the Virginia campaign between Governor Wise and T. S. Flournoy.

1855.

9. About this time another party began to be prominent in the Northern States. It was called the "Republican Party," and was the outgrowth of the notorious controversy over the passage of the Kansas-Nebraska Act through Congress. This statute was, in effect, but a continuance of the legislation in regard to California, and amounted to little beyond transferring the question of slave or free territory from Congress to the new States. The North, however, was fanatically bent on the destruction of slavery everywhere within the United States, and would not consent that each new State should settle the question for itself. On the contrary, it was determined to prohibit

the spread of slavery whether the people in the new States and Territories desired it or not.

10. It was soon seen, therefore, in the bloody conflicts between the settlers from the North and those from the South, especially in Kansas, that "Squatter Sovereignty" would neither afford protection to Southern immigrants in removing with their property there, nor any prospect of a fair solution of a vexed question.

1857.

11. On June 27th, 1857, an event occurred in North Carolina which brought sadness to the whole State. Rev. Elisha Mitchell, D. D., while making researches and surveys upon Black Mountain, in the darkness of night, lost his way and fell over a very steep precipice and waterfall, and was killed. His remains were found, eleven days after the accident, in a pool of clear water at the foot of the waterfall. They are now resting on the highest point of the mountain, and the spot is known as "Mitchell's Peak." Dr. Mitchell found, by measurement, that the Black Mountain was the highest point of land east of the Rocky Mountains. "Mitchell's Peak" is 6,672 feet above the level of the sea, and 244 feet higher than Mount Washington, in New Hampshire.

12. After the defeat of Charles Manly by David S. Reid, of Rockingham, for Governor in 1852, the Democrats continued to gain in strength in each succeeding election. In 1854, Governor Bragg was elected to succeed Governor Reid, by an increased majority, over Hon. John A. Gilmer, the Whig candidate. Messrs. Mangum and Badger were succeeded by Governor Reid and Colonel Asa Biggs, of Martin, as United States Senators; and when, in 1858, another Governor was to be chosen, both Judge John W. Ellis, of Rowan, and his competitor, Duncan K. MacRae, of Cumberland, claimed to be defenders of the Democratic faith. The differences between

the North and the South were fast bringing the people of North Carolina to one mind.

**QUESTIONS.**

1. Of what does this chapter treat ? How was the election of President, Pierce considered ?

2. What is said of internal improvements?

3. What educational progress was being made?

4. How was the value of lands increasing?

5. What is said of the Presidential campaign of 1852?

6. In what condition were religious matters?

8. How was the question of slavery affecting some of the religious denominations?

7. What new party was organized in Massachusetts? What was the main policy of the "Know-Nothings"?

8. What is said of this new party?

9. What party next originated?

10. How was the South affected by "Squatter Sovereignty"?

11. What fatal accident befell Dr. Elisha Mitchell in 1857?

12. What changes in the government of the State are now mentioned?

## CHAPTER LIV.

### PRESIDENT LINCOLN AND THE WAR.

#### A. D. 1860 TO 1861.

1860.

After seventy years of party struggles touching the relations of the General Government to the individual States, the Presidential contest of 1860 opened with such notes of violence and public confusion, that it was at once seen that at last the supreme crisis had come.

2. The only issue apparently before the American people was that of slavery in the Territories. The Democrats were divided into two fragments. Those supporting Judge Douglas for the Presidency advocated "Squatter Sovereignty." The Breckinridge men said that the question of slavery should only be settled as to the new States at their constitutional conventions; while Republicans supporting Abraham Lincoln, proclaimed that only the enactment of the "Wilmot Proviso" would satisfy them. The Whig candidates, Messrs. Bell and Everett, and the Whig party, were silent on all these stormy differences, and were not of much significance in the general upheaval.

3. Back of this question, however, about slavery in the Territories, and involved in it, was the real issue between the Republican and Democratic

parties, and that was whether the Federal Constitution should be the supreme law of the land. The right of property in slaves was guaranteed by that Constitution, and if the Republican party could thus destroy that right it might when it so pleased, destroy any and all other rights. The Democrats hold that the Constitution was supreme; the Republicans held that there was a still higher law unwritten and undefined. One was certainty, the other chaos.

4. It was seen at an early period of the contest, that the bulk of the Southern people would be found supporting Breckinridge and Lane. \* It was generally held in all the slave-holding States that the election of Mr. Lincoln would be significant of a purpose among Northern men to disregard their rights, and that the inauguration of the abolition policy by the Federal officers would compel and justify the secession of the Southern States from the Union.

\*Joseph Lane was born in Buncombe county in this State, and was the cousin of Colonel Joel Lane, who once owned the lands upon which Raleigh was built. He had served gallantly as a Brigadier General in Mexico, afterwards in Congress, and as Governor of Oregon.

5. When, in November, 1860, it was known that the Republicans had triumphed in the national election, and that Abraham Lincoln would be chosen President of the United States by a majority of the electors in the different State electoral colleges, then it was realized that the extreme Southern States would, at an early period, sever their connection with the government at Washington.

1861.

6. South Carolina and others said that protection of their property would now be impossible in the Union, and therefore, before the inauguration of

President Lincoln, on March 4th, 1861, seven States had assembled conventions, and by their ordinances declared the ties formerly binding them to the Republic of the United States null and void.

7. On the 1st of January, 1861, the Legislature then in regular session passed, by a large majority in each House, an act declaring that in its opinion the condition of the country was so perilous "that the sovereign people of the State should assemble in convention to effect an honorable adjustment of the difficulties whereby the Federal Union is endangered, or otherwise to determine what action will best preserve the honor and promote the interest of North Carolina."

8. At the same time that the delegates were to be elected the act required that the sense of the people should be taken whether there should be a convention at all or not. The election was held on 28th of February, 1861, and upon the question of convention or no convention, the official count showed a majority of 194 votes against convention, that is to say, 45,509 votes for convention and 45,603 votes against convention. The vote of Davie county, which was not received in time to be counted, would have increased the majority against convention some 200 votes.

9. How the delegates elected were divided in sentiment on the day of election cannot be ascertained, nor was such division to be relied upon, for changes were daily taking place, and men, no matter how reluctantly, were rapidly coming to believe that in United action by the South lay the only hope for the future.

10. In April, President Lincoln, in consequence of the attack upon and capture of Fort Sumter, required of Governor Ellis North Carolina's proportion of an army of seventy five thousand men, which was to be used in the coercion of the seceded States. This demand Governor Ellis promptly refused; and he at once convened the Legislature in special session,

declaring in his proclamation that the time for action had come, and, upon his recommendation, twenty thousand volunteers were called for by the General Assembly to sustain North Carolina in her course.

11. A State Convention was called by the Legislature on the first of May, and met on the 20th of May, 1861; in the hall of the House of Commons. On this anniversary of the Mecklenburg Declaration the Ordinance of Secession was passed, and North Carolina made haste to connect herself with the " Confederate States of America."

12. The Ordinance of Secession was as follows

**"AN ORDINANCE DISSOLVING THE UNION BETWEEN THE STATE OF NORTH CAROLINA AND THE OTHER STATES UNITED WITH HER UNDER THE COMPACT OF GOVERNMENT ENTITLED 'THE CONSTITUTION OF THE UNITED STATES. '**

"We, the people of the State of North Carolina, in Convention assembled, do declare and ordain, and it is hereby declared and ordained, That the ordinance adopted by the State of North Carolina in the Convention of 1789, whereby the Constitution of the United States was ratified and adopted; and also all acts and parts of acts of the General Assembly ratifying and adopting amendments to the said Constitution, are hereby repealed, rescinded and abrogated.

"We do further declare and ordain, That the Union now subsisting between the State, of North Carolina and the other States, under the title of 'The United States of America,' is hereby dissolved, and that the State of North Carolina is in full possession and exercise of all those rights of sovereignty which belong and appertain to a free and independent State."

13. The number of submissionists in North Carolina was very small, and the real differences of opinion did not so much regard final action in the crisis as they did the way and the time in which it should be reached. Many



preferred separate State action; many others preferred concert of action among the States. Some preferred immediate action; others thought it advisable to wait until some actual "overt act," as it was called, was committed by the new administration. But no matter how much people were divided on these points, on one point they were a unit, that is to say, in the desire that final action should represent as near as possible every phase of public sentiment. And to secure this greatly to be desired unanimity in action, many personal preferences and original opinions were sacrificed.

14. Many good people had hoped and prayed that the troubles between the North and South would be peaceably arranged; but all hope of such a blessing was now lost, and the whole State resounded with the notes of preparation for the war. In every county men pressed forward by thousands to enlist at the call of the State.

15. Governor Ellis was in the last stages of hopeless disease, but, with great resolution, he addressed himself to the discharge of the onerous duties of his station until his death, on June 9, 1861. He was succeeded by Colonel Henry Toole Clark, of Edgecombe, who became Governor of the State by virtue of his office as Speaker of the Senate.

16. Colonel John F. Hoke, of Lincoln, was succeeded as Adjutant-General by James G. Martin, of Pasquotank, late a major in the army of the United States. The forts, Johnston, Macon and Caswell, were seized, as was also the Federal arsenal at Fayetteville; and, in this way, fifty-seven thousand stand of small firearms and a considerable store of cannon and ammunition were secured.

17. After many years of peace and prosperity, the people of North Carolina were once again to exhibit their patriotism, courage and endurance under the most trying circumstances. In the first revolution they had contributed twenty-two thousand nine hundred and ten men to the defence

of the United Colonies; in this second upheaval more than a hundred and fifty thousand crowded to the fray, and grew famous on more than a hundred fields.

#### QUESTIONS.

1. How was the Presidential contest of 1860 viewed?
2. What was the issue? Who were the candidates; and what were their platforms?
3. What was the real issue between the Democrats and Republicans? What views were held by each party?
4. To whom were most of the Southern people giving support? How did they view the probable election of Mr. Lincoln?
5. Who were elected? What did some of the Southern States intend to do?
6. What occurred before the inauguration of Mr. Lincoln?
7. What act was passed by the North Carolina Legislature?
8. Can you tell the result of the vote upon this question?
9. What was the South beginning to realize?
10. What call was made upon North Carolina by Mr. Lincoln? With what result?
11. When did North Carolina leave the Union?
12. Can you repeat the Ordinance of Secession?

13. Mention the political opinions to be found in the State upon these questions?

14. What had been the hope of many of our people? How was the news of secession received?

15. What occurred on June 9th? Who succeeded Governor Ellis?

16. What seizures were made by North Carolina authorities?

17. What are the thoughts upon this period?

## CHAPTER LV.

### THE WAR BETWEEN THE STATES.

A. D. 1861.

The people of North Carolina loved the Union of States that had been in such large part constructed by the heroism and wisdom of their own fathers. They well knew its value to themselves under an unbroken Federal Constitution; they knew, too, the danger incurred in the attempt to absolve them selves from further Federal connections. But they knew, also, their rights under the Constitution, and were fully determined neither to surrender them nor to aid in the subjugation of their sister States. As the State had entered the Union by action of a convention of her own people, she now resolved to leave it in the same manner.

2. For more than a month before the memorable 20th day of May, 1861, when the secession ordinance was passed, troops were volunteering and being received by Governor Ellis from many portions of the State. The first ten companies were embodied in a regiment, of which Major Daniel H. Hill was elected colonel by the commissioned officers. They were at once sent to Yorktown, in Virginia.

3. On June 9th, General Benjamin F. Butler, who was in command of the United States forces at Fortress Monroe, in Virginia, sent a column of troops up the peninsula for the purpose of ascertaining the possibility of

reaching Richmond, which city had recently become the Capital of the Southern Confederacy. Early the next morning the Federal advance became confused in the darkness and two of their regiment, fired upon each other.

4. At Big Bethel, on the 10th, they found the regiment of Colonel Hill supporting a battery of the "Richmond Howitzers." There were also present two infantry and three cavalry companies belonging to Virginia. This force was assailed by the Federal army, but the attack was repelled and the assailants retired in disorder to Old Point Comfort. Only one Confederate soldier was killed in the action, and that was private Henry Wyatt, of Edgecombe county. He belonged to Captain J. L. Bridgers' company, and was the first Southern soldier slain in the war between the States.

5. The whole affair was insignificant, both as to the number engaged and the results achieved, but was hailed as a happy omen by the South. North Carolina, with all her deliberation in taking part in the struggle, was thus to afford the first martyr of the South, and was present with her troops to arrest the first Federal invasion of Southern soil.

6. On the 18th and 21st days of July occurred much greater and more serious conflicts at Manassas and Bull Run, also in Virginia. Another Federal army, commanded by General Irvin McDowell, and numbering more than forty thousand men, left Washington with orders to attack the Confederates under General G. T. Beauregard. The Fifth, Sixth and Twenty-first Regiments of North Carolina troops were present, and gallantly aided in the Federal defeat.

7. Colonel Charles F. Fisher was especially valuable in the aid he rendered in restoring a ditched train to the track, and thus making possible the timely approach of the reinforcements under General E. Kirby Smith, which so speedily resulted in the flight of General McDowell's army. It is mournful to add, that, after performing this signal service, and after

gallantly capturing the celebrated Rickett's Battery, Colonel Fisher was slain in the battle. He fell at the head of his regiment, beyond the battery and still in pursuit of the enemy. This memorable victory was very grateful to the South, but it did not delude the people into the belief that the war was at an end; it was useful, too, in that it gave them time to prepare for the greater conflicts still to come.

8. It had been hoped by Mr. Lincoln and his advisers that all Southern opposition would be overcome in ninety days, but at Bull Run and Manassas they were convinced that only by a great and prolonged struggle were such adversaries to be subdued. The short periods of enlistment were abandoned by both sides, and the winter was spent in preparation for a gigantic struggle in the spring.

9. It was early seen in North Carolina that fortifications were necessary at Hatteras for the defence of the many broad waters covering so large a portion of the eastern counties. A small sand-work, known as Fort Hatteras, with an outlying flank defence, called Battery Clark, was the only reliance for the protection of Albemarle and Pamlico Sounds.

10. Before these weak defences a large Federal fleet appeared on August 27th, 1861, and by means of its superior armament, lay securely beyond the range of the guns mounted in Fort Hatteras, while pouring in a tremendous discharge of shot and shell. The Federals having effected a landing on the beach, and most of the caution being dismounted in the fort, it was thought best by Colonel W. F. Martin, on the 29th, to surrender the fort.

11. In two days' operations the whole tier of eastern counties was thus laid bare to the incursions of Federal troops and cruisers. There was great sorrow for the captured garrison, and general alarm and uneasiness; but the spirit of resistance was undaunted, and troops continued volunteering by thousands.

## QUESTIONS.

1. What is the subject of this lesson? How did the North Carolinians consider their departure from the Union?
2. What preparations for war were made by the State, even before its secession? Who commanded the first regiment?
3. Relate General Butler's exploit.
4. Give an account of the battle of Big Bethel. What Confederate soldier was slain?
5. What is said of this event?
6. Where were North Carolina troops next engaged in battle?
7. What signal aid was rendered by Colonel Charles F. Fisher? What were the effects of this victory?
8. What did Mr. Lincoln learn from these battles?
9. At what point on the North Carolina coast were fortifications specially needed?
10. Describe the Federal attack on Fort Hatteras. Point out Hatteras on the map.
11. What was the result of the fall of Hatteras?

## CHAPTER LVI.

### THE COMBAT DEEPENS.

A. D. 1662.

1862.

By the fortune of war in the Revolution, as again in 1812, the State was nearly always left with a small proportion of her own troops to defend the home of their birth. So, also, when the spring opened in 1862, though fully forty thousand men of the State were under arms, they were to be found in Virginia and South Carolina, except a small force left at Wilmington and Roanoke Island.

2. This condition of affairs did not result, however, from any indifference on the part of the general government to us, but from the fact that the main strategic points were in other States, and fortunate it was for North Carolina that this was so; for whatever may have been the necessities of local defence, or the evils incident to an unprotected coastline, or those inseparable from its occupation by the enemy at various points, they cannot be compared to the evils resulting from the prolonged occupation of a State by large contending armies.

3. Roanoke Island was the only hope of defence for Albemarle Sound and the many rivers flowing therein. To defend it, General Henry A. Wise was



sent with a small force to be added to the Eighth and Thirty-first Regiments of North Carolina Volunteers. He was sick on February 7th, 1862, when General Burnside, with a great fleet and fifteen thousand Federal troops, sailed up Croatan Sound and began the attack.

4. Colonel Henry M. Shaw, of the Eighth North Carolina Regiment, was in command, and made a gallant but unavailing defence. The Federals landed and moved up the island in the rear of the forts which had been constructed to prevent the passage of vessels to the west of the defences. The only recourse left was to abandon the lower batteries and concentrate the Southern troops at a point near the centre of Roanoke Island.

5. It was hoped that the morasses, indenting both shores and leaving a narrow isthmus, would enable the small Confederate force to defend that position; but the bravery and enterprise of the enemy enabled him to turn both flanks, and nothing was left Colonel Shaw and his command but to fall back to the northern end of the island and there lay down their arms.

6. The battle had been bravely fought for two days, and the two thousand Confederate prisoners and their gallant leader became captives, but only after inflicting heavy loss upon the assailants. The place was untenable against superior naval appliances, and quite men enough had been sacrificed in view of the impossibility of preventing its isolation by Federal fleets.

7. Very different were the defensive capacities of the city of New Bern. It was immediately foreseen that this important place would be next assailed, and with enough troops it would have been an easy feat to have held it indefinitely, but whether its value as a strategic point would have justified such a defence may be doubted. The Confederate authorities entrusted its defence to General L. O'B. Branch, who had no experience in military affairs, and in whose command, like General Wise's, was not a single

regiment that had been under fire, though there were skillful officers of lower rank who had seen much service in the old army. On March 14th, General Burnside, with the army and fleet so lately the victors at Roanoke, moved to attack the forts which had been constructed just below the junction of Neuse and Trent Rivers.

8. General Branch had in his command the Seventh, Twenty-sixth, Twenty-seventh, Thirty-third and Thirty-fifth North Carolina Regiments, a portion of the Nineteenth (cavalry), with Brem's and Latham's light batteries and a small force of militia. These were disposed along a line stretching from Fort Thompson, on Neuse River, across the railroad to an impassable swamp, which afforded abundant protection to his right flank.

9. The battle began at seven o'clock in the morning and raged until noon. The Federal attacks were repeatedly repelled until, by the fatal flight of the militia in the centre, the Confederate lines were broken and a precipitate retreat ensued. General Branch lost two hundred prisoners and seventy men killed and wounded; and, besides these, all his guns and stores. He was beaten in his first battle, when perhaps naught but defeat was expected, but he soon won high reputation as a brave soldier and skillful officer. Victory is not always possible to the best generalship. He met, in a few days at Kinston, reinforcements that would have enabled him to hold his ground at New Bern; but like many other earthly succors, they came too late for real benefit.

10. The fall of New Bern sealed the fate of the Confederate forces at Fort Macon. Colonel M. I. White, with five companies of the Tenth Regiment (artillery), endured the Federal bombardment until the work was in danger of being blown up. He surrendered the fort on April 26th, 1862. These disasters at home were indeed calculated to dishearten, but the only visible effect upon the people at large was to increase the numbers of those who

were still volunteering by thousands to defend North Carolina and the Confederate States.

11. In the spring of 1862, General McClellan, the Federal commander, having determined to make his advance on Richmond by way of James River, and having made his preparations to that effect, General Johnston transferred the Confederate troops from Manassas to the peninsula between the James and York Rivers, thus placing his army between McClellan and Richmond.

12. At Williamsburg occurred the first memorable conflict of the year between the two great armies struggling on the soil of the Old Dominion. In this conflict the charge of the Fifth North Carolina Regiment, under Colonel D. K. MacRae, excited the admiration and its terrible losses the sympathy of both friend and foe.

13. In the bloody and glorious campaign in the Shenandoah Valley, General T. J. Jackson grew immortal before the coming of midsummer. The gallantry of the Twenty-first North Carolina Regiment at Winchester, like that of the Fourth at Seven Pines, was as conspicuous as bloody. In this latter battle, where so many other men of the State were slain, the Fourth Regiment, under Colonel George B. Anderson, lost four hundred and sixty-two men, out of five hundred and twenty.

14. In the last days of June nearly all of the North Carolina regiments and many Southern troops were concentrated around Richmond, under the command of General Robert E. Lee, in place of General Johnston, who had been wounded at Seven Pines. In the week of battle which ended in the overthrow of the great investing army of General McClellan, they lost thousands of their bravest and best. Ninety-two regiments constituted the divisions of Jackson, Longstreet, D. H. Hill and A. P. Hill. These were the forces that drove the Federals to their ships; and forty-six of these regiments

belong to North Carolina. It may be safely asserted that more than half the men actively engaged and disabled during that terrible week were citizens of North Carolina.

**QUESTIONS.**

1. What is said of North Carolina's forces in the wars?
2. What is said of this condition of affairs?
3. What force was sent to defend Albermarle Sound?
4. Can you tell of Burnside's attack?
5. What was the conclusion of the engagement?
6. What is said of this battle?
7. To what point was attention next directed? What officer was in command? When was the Federal attack made?
8. What composed General Branch's command?
9. Describe the battle.
10. What is said of the fall of New Bern? What fort was next surrendered? Where is Fort Mason?
11. What military movements were made in Virginia?
12. What is said of the gallant charge of the Fifth Regiment at Williamsburg?

13. What regiments are specially mentioned as participants at Winchester and Seven Pines?

14. What is said of the events at this period?

## CHAPTER LVII.

### THE WAR CONTINUES.

A. D. 1862.

Amid the exultation that filled the hearts of the people of North Carolina for the victories around Richmond, there was grief in many families for heroes fallen in the discharge of duty. Colonels Stokes, Meares, Campbell and C. C. Lee, like a great host of their compatriots, were gone to come no more. It seemed that the superior numbers and resources of the United States forces were to prove powerless before the fiery onsets of the Confederate troops.

2. In the month of August, 1862, Zebulon B. Vance, of Buncombe, then Colonel of the Twenty-sixth Regiment, was chosen Governor of North Carolina over William Johnston, of Charlotte, who had been of late Commissary-General of the State. By an ordinance of the Convention, Colonel Vance entered upon his duties as Chief- Magistrate on September 8th, 1862. He was to evince great zeal in the discharge of his official duties.

3. The first Maryland campaign, which occurred in the fall of the year, was the next event of general interest. In the battles fought in that memorable campaign the North Carolina regiments won great reputation, but a terrible loss of life. General Branch was killed and General Anderson received wounds at Sharpsburg of which he soon died, and left grief in

many hearts for their untimely end. Colonel C. C. Tew also fell in the same great battle, and increased the grief of his people at the loss by the mystery of his fate. He disappeared amid the storm of conflict, but exactly how and when was never known.

4. In North Carolina there had been comparative quiet through the spring and summer months. The Federal garrisons at Plymouth and New Bern were watched by small bodies of Confederates, but no fighting occurred except in Plymouth, which town was taken and held for a few hours by Colonel Martin, with the Seventeenth Regiment, and then abandoned because of the Federal gun-boats.

5. On Blackwater River, just below Franklin, in Virginia, there was a gallant conflict of a few cavalymen under Lieutenant Thomas Ruffin, of the Fourth Cavalry, and a Federal double-ender. The crew were all driven from deck and the ship lay at the mercy of the assailants until her consorts came up the stream from below and shelled the victors from their prey.

6. By the 1st of December the Federal army, this time under command of General Burnside, was confronting General Lee at Fredericksburg, Virginia. On the 13th, Burns attempted to carry our lines, but after repeated and desperate assaults and terrible slaughter, withdrew his troops. It was this battle that Marye's Heights won its bloody fame. The gallantry of the enemy, especially of Meagher's Irish Brigade was magnificent.

7. Simultaneously with the attack of General Burnside of the army of General Lee at Fredericksburg, the South Carolina Brigade of General Evans, then stationed at Kinston, North Carolina, was surprised to see a few mounted Federal soldiers make an attack upon the position then held by them. The Federals were driven back and pursued in the direction of New Bern. Suddenly the South Carolinians found themselves confronted by more than twenty thousand foes.

8. In the speedy retreat that ensued, General Evans was unable to burn the bridges across the river, and effected escape with some loss. He was, the next day, reinforced and awaited General Foster's approach on the road leading to Goldsboro. But the Federals were seeking to intervene between that place and the one occupied by Evans. All Tuesday morning (December 16th) the masses of the Union troops were seeking to cross Neuse River at White Hall; they were bravely met there by General Beverly H. Robinson who, with the Eleventh, Thirty-first, Fifty-ninth and Sixty-third Regiments, and Battery B, Third North Carolina Battalion, withstood all their attacks and inflicted severe loss on the baffled invaders. The contest lasted for eight hours during which General Foster persisted in his efforts to drive off the Confederates, so that pontoons could be laid forming a bridge across the stream, in place of the one burned the night before.

9. Failing to cross Neuse River at White Hall, General Foster marched in the evening for Goldsboro, and, having reached the bridge of the Wilmington & Weldon Railroad, succeeded in burning it, in spite of the gallant efforts of General Clingman and his brigade to prevent.

10. General Foster retired in great precipitation to New Bern, and the burned bridge was his only trophy in an expedition which seemed so threatening at its inception.

#### **QUESTIONS.**

1. What was the feeling concerning the victories around Richmond?
2. Who was chosen Governor in 1862? When did Colonel Vance enter upon the duties of Chief-Magistrate?
3. What losses had North Carolina sustained in the battle of Sharpsburg? What increased the grief of Colonel Tew's people?



4. What was the state of affairs in North Carolina during the spring and summer of 1862?

5. Describe the engagement on Blackwater River?

6. Where was the Federal army confronting General Lee on December 1st? What occurred on the 13th?

7. Can you tell of the surprise at Kinston?

8. What was the further result of this affair?

9. What is said of the conclusion of this matter?

10. Where did General Foster go?

## CHAPTER LVIII.

### WAR AND ITS HORRORS.

A. D. 1863.

1863.

When the year 1863 had come upon the American States in their bloody and wasting quarrel, there was nothing to indicate any solution of the great controversy. Many bloody battles had been fought, thousands of homes were saddened in the loss of brave and true men, and yet both sides were as intent as ever upon carrying on indefinitely the terrible and costly struggle.

2. Mr. Lincoln and the government at Washington said there should be no peace until the seceded States returned to their allegiance. Mr. Davis and the government at Richmond said, on the other hand, that the seceded States were, of right, free and independent States that had rightfully resumed their delegated powers, and owed no allegiance to the Federal government.

3. It was hoped that England and France would recognize the independence of the Confederate States; but beyond extending to the Southern government the rights of belligerents, this trust proved utterly fallacious. Confederate agents were received and armed vessels allowed to enter their ports, but no aid was extended to the Southern cause. The arrest of the Confederate Commissioners, Messrs. Mason and Slidell, on a British

mail steamer, by a United States war vessel, was resented by England and war seemed probable; but these Southern envoys were released, and no aid came from abroad except in the ships that were bought of private persons for the purpose of cruising against vessels belonging to citizens of the United States.

4. Among the earliest measures adopted by the Federal government was the blockade of the Southern seaports. Wilmington, Charleston, Savannah, Mobile and Galveston were all watched by armed ships that sought to exclude the vessels of all countries from entering these harbors. Cruisers swarmed along the whole Southern coast, and it became a matter of great peril and difficulty to send out or bring in any commodity by way of the ocean.

5. This soon led to a scarcity of salt, sugar, coffee, molasses and everything which had been formerly imported from Europe or bought of Northern merchants. Prices continually advanced as such things became more scarce in the South. Wilmington is so situated that an effective blockade there was almost impossible. There were two inlets, and, therefore, two blockade fleets were necessary, and even with this added difficulty the blockading squadron could not prevent, on dark nights, the passage of swift steamers that swept in and out of the Cape Fear River and brought from Nassau and Bermuda what was most needed for the armies and people.

6. Soon after his inauguration, Governor Vance, at General Martin's suggestion, sent Colonel Thomas M. Crossan to England for the purpose of procuring a ship to supply the wants of North Carolina. Crossan had been a naval officer in the service of the United States, and had judgment enough in such matters to select one of the swiftest ships in the world. It was called

the Lord Clyde abroad, but that name was changed to the Ad-Vance, and the vessel made many successful voyages before she was captured.

7. In the superior clothing and equipments of the North Carolina troops were the wisdom and activity of the State government manifested. And, too, not only were the necessities of our own soldiers supplied, but large aid was extended to the troops of other States. Besides this, cotton and woolen cards and many other necessities were brought in and distributed to the different sections of the State. Salt was the most important of all the domestic supplies excluded by the blockade. To procure this indispensable article, private factories on the seacoast were supplemented by others under State management; but these proved insufficient to meet popular wants, and arrangements were made to procure additional supplies from the salt wells of southwestern Virginia.

8. It was early foreseen that in so great a struggle enormous expenditures would become necessary; and to meet such liabilities, it would be necessary for the Confederacy and the individual States to use their credit in procuring supplies on the faith of future payments. Many millions of dollars were to be expended, and only Confederate and State obligations would be available to meet such purchases.

9. Unhappily, the great supply of cotton then in the South was not utilized by the authorities, and thus a solid basis of credit was lost; and a favorite theory is, that had all the cotton been promptly seized by the government and sent to foreign ports, the depreciation of its funds would have been averted, but whether this could have been done is, to say the least, by no means certain. As it was, in 1863, both Confederate and State money began to depreciate in value, and this depreciation once begun, had no stop in its downward tendency.

**QUESTIONS.**

1. What was the condition of the war in 1863?
2. What positions were taken by Presidents Lincoln and Davis?
3. From what countries had the South expected aid? What is said of the arrest of Mason and Slidell?
4. What Southern cities were blockaded? What was the effect of this blockade?
5. What is said of the port of Wilmington?
6. How did Governor Vance supply the wants of the people? What is said of the Ad-Vance?
7. What supplies were brought in by the Ad-Vance? How was salt obtained?
8. How did the Confederate government propose to obtain funds for carrying on the war?
9. What was the cause of the great depreciation in the value of money?

## **CHAPTER LIX.**

### **THE DEATH-WOUND AT GETTYSBURG.**

**A. D. 1863.**

In spite of the great Federal success in acquiring territory in North Carolina, Louisiana, Mississippi and elsewhere, and notwithstanding the increasing hardships everywhere felt, the government and people of the Confederate States were still undismayed and hopeful when the spring of 1863 permitted the vast armies of the United States to resume active military operations. No thought of submission was entertained by the Confederate soldiers, and among the people at home only in rare instances were individuals to be found who expressed hopelessness as to the result of the war.

2. In North Carolina a period of inactivity succeeded the raid by General Foster, which was only broken by the unsuccessful attack on the town of Washington. General W. B. C. Whiting, who had made reputation as a division commander in the Army of Northern Virginia, was sent to assume charge of the Department of the Cape Fear, with his headquarters in Wilmington. This city had been fearfully ravaged by yellow fever in the fall of 1862, and had now become all important to the Confederacy as a port. Other Southern sea ports were almost totally closed by blockade, and only at the Cape Fear was there left a hope of access.

3. Generals Braxton Bragg, D. H. Hill, Leonidas Poll, and Benjamin McCulloh had all risen to prominent commands and conferred honor by their connections with the Old North State. Among the younger officers, Generals Pender, Hoke, Pettigrew and Ramseur had all won distinguished notice and promotion for gallant and meritorious service.

4. Many thousands had been enrolled in the sixty-six regiments and ten battalions of North Carolina mustered in the Confederate service, and, though mourning was in many households, recruits were constantly going to fill the gaps occasioned by deaths on the field and in the hospitals. Dr. Charles E. Johnson had been succeeded as Surgeon General of the State by Dr. Edward Warren. Drs. E. Burke Haywood, Peter E. Hines, W. C. Warren and others of the leading physicians were placed in charge of great hospitals at Raleigh and other cities in the State. North Carolina sustained a similar institution at Petersburg, in Virginia. Of the latter the excellent lady, Miss Mary Pettigrew, a sister of the general of the same name, became matron; and, like another Florence Nightingale, cheered the sick and dying with her elegant presence.

5. General Burnside lost his place by his disaster at Fredericksburg, and was followed in command of the Army of the Potomac by General Joseph Hooker. This gallant commander was as signally beaten at Chancellorsville on May 2d and 3d. No battle of any age conferred greater honor upon the victors; but in the loss of Stonewall Jackson the South was deprived of a leader whose place could not be supplied. North Carolina was never more gloriously vindicated than on this famous field, and ex-Governor Graham, who was then in Richmond, said, a few days afterwards, in the Confederate States Senate, that half the men killed and wounded at Chancellorsville belonged to North Carolina regiments.

6. So astonishing was the result of this battle, and so crushing its effects upon the Federal authorities, that General Lee again resolved upon an invasion of the North. The invasion proved a failure, and after several severe battles General Lee was forced to return, with his defeated army, to Virginia. It was on that last dread day, the 3d of July, at Gettysburg, that he discovered that even his incomparable infantry could not accomplish everything he desired.

7. Thirty thousand of the bravest and best, who had so long made the Army of Northern Virginia unconquerable, were lost to our cause forever. Among the North Carolinians, Generals Pender and Pettigrew, Colonels Burgwin, Marshall and Isaac E. Avery were slain, and a host of subalterns likewise perished.

8. Another great disaster happened at this time in the surrender of Vicksburg, Mississippi, with the army there under command of General Pemberton, involving as it did the occupation of so large a portion of the Confederacy. These great losses, occurring as they did on the same day, and so vitally affecting our strength, were never retrieved, and from that day Southern fortunes waned, with occasional flickerings of hope, until the close at Appomattox.

9. But many gallant struggles were yet to be made. On different fields the great forces of the Union were to be bravely repelled, but the ranks of General Lee's army were so much thinned that it became daily more impossible to confront the increasing horde that gathered against it from all civilized nations. But the policy of attrition and exhaustion was not to be seen in full force until the next year.

10. During the month of June, Colonel Spear's cavalry raid in Hertford and Northampton counties was driven back by General M. W. Ransom, and,



beyond this, there were no movements of a hostile character in the State limits during the year.

**QUESTIONS.**

1. In what condition was the South in 1863?
2. How was the port of Wilmington specially important to the Confederacy? Who was in command at this place?
3. What North Carolinians are mentioned as having risen to prominence?
4. How many regiments had the State furnished up to this time? Who succeeded Dr. Charles E. Johnson as Surgeon General of the State? What doctors had charge of the hospitals? What noble woman is mentioned, and what is said of her?
5. What fierce battle was fought on May 2d and 3d? What did Governor Graham say of the North Carolina troops at Chancellorsville?
6. Upon what did General Lee resolve after the victory? What was the result of the invasion?
7. How many Southern soldiers were lost on this occasion? What North Carolinians are named among the slain?
8. What other great disaster happened at this time? How did it affect the Southern cause?
9. What is said of Lee's army?
10. What raid was driven back by General Ransom?

# CHAPTER LX.

## GENERAL GRANT AND HIS CAMPAIGN.

A. D. 1864.

1864.

The fourth year of the great war opened on North Carolina with grief in almost every family; still, with diminished hopes and increased exertions for the general defence, they looked forward to a campaign which they well understood was to be decisive of their fortunes. Perhaps not even General Washington was so trusted and beloved by the American people in the Revolution as was General Robert E. Lee by those of the South in the closing years of the struggle.

2. In his genius and capacity they felt sure they had the very highest human leadership, and in his splendid career and spotless renown they all took pride, as conferring reflected credit upon themselves. So noble, unselfish and wise, he had become the idol of his own people and the admiration of his foes. At the outbreak of the war he had declined the command of the Federal armies, because he believed it was his duty to take part with his own people.

3. Ex-Governor Thomas Bragg had been for some time in the Cabinet of President Davis, as Attorney-General. He resigned the position and was no

more in public life. Since 1854, when he had left the Bar to become the Governor of North Carolina, he had been continually growing in public favor, and now returned to the leadership of his profession. No lawyer in our annals has been more respected or successful. In the Confederate States Senate the polished and eloquent George Davis, of Wilmington, and W. W. Avery, of Burke, had served until the latter was succeeded, in 1862, by W. T. Dortch, of Wayne; and, a year later, Mr. Davis was succeeded by ex-Governor Graham; and later still, Mr. Dortch was succeeded by Thomas S. Ashe, of Anson, who did not take his seat by reason of the dissolution of the Confederate government.

4. In the midst of the great struggle there was, of course, a great diminution of attention to matters of education. Governor Swain, with a remnant of the faculty, remained at Chapel Hill, and, with a few boys too young for service, yet retained the name and semblance of the University. Professors Hubbard, James and Charles Phillips, Hepburn, Smith, Fetter and Judge Battle were still on duty at their old posts, but Professor Martin was Colonel of the Eleventh Regiment, and almost all the students were enrolled as soldiers of the Confederate army. The sectarian colleges, male and female, were nearly all closed, and even in the common schools there was small interest manifested amid the blood and excitement of the time.

5. Many of the ablest ministers of the gospel left their churches and were faithful chaplains in the army. Great religious interest was awakened by them among the men who were so bravely battling in Virginia, and many thousands were converted and added to the churches during the revivals in the camps.

6. The recapture of Plymouth, in Washington county, on April 20th, 1864, was one of the most brilliant and successful affairs of the war. The youthful and gallant Brigadier General R. F. Hoke was sent by General Lee, in

command of a division, with which he surrounded the strong fortifications and took them by assault, capturing more than three thousand prisoners. The help of the iron-clad Albemarle was very efficacious on this occasion, and her combat at the mouth of Roanoke River, a few days later, was one of the most stubborn naval engagements on record. Single-handed, Captain Cook fought and defeated a strong fleet of double-enders, and drove them, routed, from the scene. This expedition of General Hoke secured his promotion, and was in marked contrast with that of General Pickett against New Bern a few weeks before; the only incident of which, creditable to the Confederates, was General Martin's well-fought battle at Shepardsville.

7. When the spring opened, tidings came from the Wilderness of fresh battles in that region, which had been made famous the year before. General U. S. Grant had been made Commander-in- Chief of all the Federal armies, to assume the direction of affairs in Virginia. With the vast numbers at his command, he resolved upon such strategy as fell with fearful results upon his army, but it weakened the reduced ranks of the Confederates at the same time. General Grant lost more men in his march from the Rapidan to the James River than General Lee had confronting him, but it mattered not, for still fresh Federal thousands poured in to fill the places of those who fell at the Wilderness, Spottsylvania, Cold Harbor and the minor combats. On our side, however, there were none to take the places of those who were killed.

8. In this terrible campaign, which was not ended even when General Grant began the siege of Petersburg, the North Carolina regiments were fearfully reduced. Generals Ramseur, Daniel and Godwin, together with Colonels Andrews, Garrett, Brabble, Wood, Spear, Blacknall, C. M. Avery, Jones, Barbour and Moore were among those who sealed their faith with their blood.

9. No battle of the war was more brilliant in its particulars and results than that of Reams' Station, fought on August 24th, 1864. General W. S. Hancock, of the Federal army, had seized and fortified a position, from which General Lee ordered Lieutenant-General A. P. Hill to dislodge him. So stern was Hancock's resistance that two bloody assaults had been repelled, when the privates of Cooke's, MacRae's and Lane's North Carolina brigades demanded to be led to the attack in which their comrades had failed. Their officers complied; and, with seventeen hundred and fifty muskets in the charge, they took the works and captured twenty-one hundred prisoners and thirteen pieces of artillery. \*

\*The North Carolina cavalry regiments were also greatly applauded by General Hampton for service on the same occasion.

10. In the steady depreciation of Confederate and State money was the greatest calamity of all. The cry of distress from famishing women and children was increasing in volume, and the State and county authorities were finding it more and more impossible to meet, by public charity, the pressing wants of their people.

11. The pay of Confederate soldiers in the ranks was \$15 and \$17 per month, in "Confederate money." During the latter days of the war flour sold for \$800 per barrel; meat \$3 per pound; chickens \$15 each; shoes (brogans) \$300 per pair; coffee \$50 per pound; tallow candles \$15 per pound. It may be easily imagined how great was the suffering in the South when it is remembered that numbers of soldiers' wives were almost entirely dependent upon the pay of their husbands for support. There were relief committees throughout the State, but the great scarcity of provisions made them almost helpless.

12. Almost all the white men in North Carolina were in the ranks of the different regiments and battalions mustered into the Confederate service.

Their families were largely dependent upon the pay they received as soldiers. When the Confederate money became worthless, want and suffering appeared in every section, and unhappy wives were clamorous for their husbands' return to avert starvation at home.

13. The suffering families were ever in the minds of the dauntless men who were away facing the enemy, for a direr foe was thinning the blood and blanching the cheeks of wife and child. Therefore, many a hero turned his back on the scenes of his glory and incurred personal ignominy, and sometimes the punishment of death, for desertion.

14. The case of Edward Cooper was in point. He was tried by court-martial for desertion. He declined the aid of a lawyer to defend him, and, as his only defence, handed the presiding judge of the court the following letter, which he had received from his wife:

"My Dear Edward: I have always been proud of you, and since your connection with the Confederate army I have been prouder of you than ever before. I would not have you do anything wrong for the world, but before God, Edward, unless you come home, we must die. Last night I was aroused by little Eddie's crying. I called and said, "What is the matter, Eddie? " And he said, "O mamma, I am so hungry." And Lucy, Edward, your darling Lucy, she never complains, but she is growing thinner and thinner every day. And before God, Edward, unless you come home, we must die. YOUR MARY."

15. General Cullen Battle and his associate members of the court were melted to tears. Although the prisoner had voluntarily returned to his command, they found him guilty, and sentenced him to death, but recommended mercy. General Lee, in reviewing the case, approved the finding but pardoned the unhappy artilleryman, who was afterwards seen by

General Battle, standing, pale and bloody, as he fired his last round into the retreating Federals. He then fell dead at his post in battle.

**QUESTIONS.**

1. What year of the war have we now reached? What is said of North Carolina's hopes?

2. What tribute is paid to General Robert E. Lee?

3. What is said of ex-Governor Bragg? What changes were made in the Confederate States Senate?

4. What is said of educational matters at this period?

5. How were the ministers of the gospel faithfully performing their duties?

6. Can you describe the capture of Plymouth by General R. F. Hoke's command?

7. Where was the principal fighting in the spring of 1864? What is said of Grant's campaign?

8. What losses had North Carolina sustained in this campaign.

9. Describe the battle of Reams' Station. What North Carolina troops captured General Hancock's position?

10. What is said of the depreciation of the Confederate currency? How was it affecting the people?

11. What was the pay of Confederate soldiers? Mention the prices of some of the necessities of life.

12. How were the soldiers' families suffering?
13. What is said of the terrible struggle of the women and children?
14. Can you mention the case of Edward Cooper?
15. What was the verdict of the court-martial? What was the ending of this sad case?



# CHAPTER LXI.

## NORTH CAROLINA AND PEACE-MAKING.

### A. D. 1864 TO 1865.

In 1864 Colonel Vance was re-elected Governor of North Carolina. At his first election he was personally very popular, was a soldier in the field, had been in actual battle, had been by no means a strong "Union" man in the earlier portions of the year 1861, and, indeed, in May of that year, was in camp at the head of his company. Mr. Johnston, his opponent, was a secessionist, but neither popular nor a soldier, and comparatively but little known to the mass of the people, except in his own immediate section of the State. Everybody of every shade of opinion had the fullest confidence that Colonel Vance would do his whole duty. There was no expectation that Mr. Johnston would be elected, nor any serious effort made in his behalf.

2. In his course as Governor such strenuous support was given to the Confederate States that when his term of service approached conclusion, and a new election was to be held, a few men who had been among his most zealous friends two years before, but who now opposed the determined attitude of the Confederacy and of North Carolina, were found opposing his continuance as Governor.

3. These comprised a small fragment of the people, and William W. Holden, of Wake, was their candidate, and this was all the opposition

Governor Vance had. Mr. Holden was the editor of the Standard, a newspaper that had, in years past, been extreme in Southern proclivities, and he had advocated and signed the Ordinance of Secession, but of late he had advocated North Carolina's withdrawal from the Confederacy and the making of separate terms with the powers at Washington.

4. Governor Vance and the people, except the handful of Holden's followers, both in and out of the army, opposed this project as dishonorable and unjust to their compatriots of other States. They held that North Carolina's fortunes were inseparable from those of the other Southern States, and that she must share their fate, whatever that might be.

5. About this time several propositions looking to overtures to Mr. Lincoln for peace were communicated to Governor Vance from certain members of the Confederate Congress from other States, but he refused to take any part in such a scheme. He was re-elected by an overwhelming majority, after a thorough exposition of his views by many addresses both to the people at home and to the North Carolina soldiers in their camps.

6. As General Grant day-by-day massed fresh thousands of troops before Petersburg, and the Confederate resistance grew more feeble in the Shenandoah Valley, the conference which took place at Old Point Comfort was arranged to no purpose. After a mighty struggle, the South, in utter exhaustion, was soon to lay down the arms that had been so bravely wielded.

7. The importance of Wilmington to the waning fortunes of the Confederacy had long been evident in the closing of other seaports by blockade. General Whiting was an able and experienced engineer, and his main defence, Fort Fisher, on New Inlet, was pronounced by General Beauregard as almost impregnable. Forts Caswell and Holmes, at the mouth of Cape Fear River, and the numerous works fringing both banks of the

stream from Wilmington to the ocean, had apparently rendered hostile approach from that direction a thing almost impossible to any naval expedition.

8. On December 25th the same General Butler who had been at the capture of Fort Hatteras in 1861, came with an army which was borne in a great fleet commanded by Admiral D. D. Porter. This vast armada, carrying six hundred of the heaviest cannon modern science has been able to construct, opened fire upon Fort Fisher.

9. The fort was reinforced by a few companies from other portions of General Whiting's command, and later, the division of General Hoke arrived from Petersburg and took position in the intrenched camp at Sugar Loaf, four miles distant up the river. General Braxton Bragg had been for some time in command of the department and was present on this occasion.

10. All day, on that Christmas Sabbath, a fiery storm of shot and shell was rained upon the fort, which answered slowly and deliberately from its different batteries. In the midst of the bombardment, General Butler landed his army on the peninsula above the land-face of the work, but upon inspection of its strength he grew hopeless of his undertaking, and on the night of December 26th, having re-embarked his force, the fleet returned to Beaufort.

1865.

11. There was much joy and relief in this evident Federal confirmation of the reported impregnability of the great work, and congratulations went around among the Confederates over this defeat of the costly undertaking of the invaders. General Bragg withdrew Hoke's Division and all the force at Sugar Loaf, except Adams' light battery and the cavalry, with the intention of attacking the garrison of New Bern.

12. He was signally interrupted in this undertaking, when, on the night of the 12th of January, 1865, Colonel William Lamb telegraphed from Fort Fisher that the fleet had returned and the troops were disembarking for a renewal of the attack. General Bragg hurried Hoke's and all other available commands back to the rescue, but found the Federal army in complete possession of the ground between the fort and intrenched camp. Upon a reconnaissance, the Enemy were found too strongly posted to be assailed.

13. The great fleet opened fire upon the land-face, and having dismounted all but one of the twenty-two heavy guns defending that flank, on the evening of the 15th, General Terry by signal, changed the fire of the fleet to the sea-face batteries. The three Federal brigades that had worked their way close up, sprang forward in a charge that resulted in the capture of seven traverses and four hundred prisoners. The assailants lost their three commanders and five hundred men. It was a fatal blow. The Federals could not be dislodged, and, after brave and unavailing combat within the works, Fort Fisher was taken; and its garrison, numbering two thousand men, became prisoners of war. General Whiting and Colonel Lamb were both badly wounded, and the former soon died of his injuries.

#### QUESTIONS.

1. What is said of the re-election of Governor Vance in 1864?
2. What course had Governor Vance pursued? What is said of the approaching election?
3. Who was Governor Vance's opponent? What measures were being advocated by Mr. Holden and his followers?
4. How did Governor Vance and the people consider these measures?

5. What proposition had certain members of the Confederate Congress communicated to Governor Vance, and how had he received them? What was the result of the election?

6. Where was General Grant placing fresh troops? What was the result?

7. What is said of Wilmington and its defences?

8. What occurred on December 25th, 1864?

9. Describe the attack on Fort Fisher.

10. What was the conclusion of the attack?

11. How did the state receive the news of this Federal failure? What forces were removed from Fort Fisher?

12. Describe the preparations for renewal of attack on January 12th.

13. Give an account of the engagement. What was the sad result?

## CHAPTER LXII.

### THE WAR DRAWS TO A CLOSE.

A. D. 1865.

1. With the fall of Fort Fisher the fate of Wilmington was sealed. With the Federal troops in such a position the port was most effectually closed. The last connection of the beleaguered Confederacy with the outer world was thus broken, and North Carolina, with beating heart, listened to the approaching footsteps of countless invaders. General Lee, who had been made General-in-Chief of all the Southern armies, selected General Joseph E. Johnston to command in North Carolina.

2. General Bragg's forces having retired from Wilmington, met the corps of Major-General Schofield in an ineffectual engagement at Kinston on March 8th, and retired upon Goldsboro. This command, with the troops lately in Charleston and Savannah, the remnant of the Army of Tennessee and Hampton's Division from Virginia, soon made an army of twenty-five thousand men, under the command of General Johnston.

3. Against him were coming, from South Carolina, the great army under General W. T. Sherman; from Wilmington, the corps of General Terry, and from Kinston, the army of General Schofield. In addition to these overwhelming forces, another column was approaching from the west, under General Stoneman.

4. As this great array gathered toward Raleigh as a common focus, the first conflict was between the division commanded by General Hardee and the army of General Sherman at the hamlet of Averasboro. After a stubborn fight, Hardee withdrew, and, having joined General Johnston, the latter collected fifteen thousand men at Bentonsville, in Johnston county, on March 19th, and awaited Sherman's approach.

5. General Sherman, on that day, made six successive attacks upon Johnston's left, composed of Hoke's and Cheatham's divisions and the late garrisons on the Cape Fear. The Federal assaults were all repelled, and, at the order for our troops to advance, three lines of the enemy's field works were carried and several batteries captured. This success, however, was not bloodlessly effected.

6. General Sherman withdrew to Goldsboro to meet Schofield and Terry, and Johnston halted near Smithfield to await developments. With such a force it seemed impossible that he would be able to meet the combined strength of the three, armies assembling at Goldsboro, but the result at Bentonsville had greatly elated his troops, and they resolutely awaited General Sherman's return to the shock of arms.

7. After so much bloodshed the end of hostilities, however, was near at hand. General Sheridan, with heavy cavalry reinforcements, having assailed the right flank of General Lee's defences at Petersburg, after hard fighting, succeeded in winning a decisive battle at Five Forks on the 28th of March. The loss, of the six thousand Confederates made prisoners on that day was fatal to longer hold on the thinly-manned lines around the city that had been so long and nobly defended.

8. On the morning of the 2nd of April, in the general assault, General Lee's lines were pierced in three places, General A. P. Hill was slain, and, at nightfall the doomed Army of Northern Virginia began its famous retreat.

After incredible hardships, having fought their way to Appomattox Court House, the small remnant of the heroes who had for four years so dauntlessly held their ground against all comers, were enveloped in the masses of pursuing hosts, and, on April 9th, at the command of their beloved leader, they there laid down their arms.

9. General Lee was never greater or more loved or more revered than in the hour of his fall. He had not taken part in the struggle to gratify ambition or for love of war; but in the conscientious discharge of sacred duty. Into that struggle North Carolina had sent more than a hundred and fifty thousand of her sons, and to them all he was ever the ideal of the soldier, the gentleman and the Christian. At his command they laid down their arms, returned to their homes and in time renewed their allegiance to the United States.

#### **QUESTIONS.**

1. What was the effect of the fall of Fort Fisher?
2. What occurred at Kinston? What was the size of General Johnston's army?
3. What great forces were marching against Johnston?
4. Where was the first conflict between these armies? When was the battle of Bentonville fought? Point out Averagesboro on the map. Bentonville.
5. Can you tell something of the fight at Bentonville? What was done by the Federal and Confederate commanders after this battle?
6. What occurred at Petersburg?



7. How did the battle result?
8. What took place at Appomattox?
9. What is said of the great General Lee?

## **CHAPTER LXIII.**

### **CONCLUDING SCENES OF THE WAR.**

**A. D. 1865.**

When General Johnston became aware of General Lee's retreat, he was informed that his next duty would be to effect a junction of his forces with those withdrawn from Petersburg. In accordance with this object a movement was begun at Raleigh, April 10th. The army, Governor Vance accompanying it, having passed the capital, ex-Governors Graham and Swain, accompanied by Surgeon-General Warren, met General Sherman at the head of his vast army a few miles from Raleigh and asked him to protect the city.

2. General Sherman and his accumulated army of more than a hundred thousand men entered the capital city on April 13th, and encamped near it. As the advance, under General Kilpatrick, moved up Fayetteville street, a Confederate cavalryman, Lieutenant Walsh, of Texas, before his flight, halted near the State House and fired several times at Kilpatrick and his staff. His horse falling in his effort to escape, he was captured and taken before Kilpatrick, who ordered him to be immediately hanged. This outrageous order for the murder of a Confederate prisoner of war was speedily obeyed.

3. General Johnston was soon apprised of General Lee's capitulation, and, after conference with President Davis at Greensboro, he resolved to end the war by surrender of his army. To this end, having communicated with General Sherman, they met on April 18th, at the house of a Mr. Bennett, near Durham, and agreed upon conditions of surrender, subject to the approval of President Lincoln. Most unhappily for the Southern people, Mr. Lincoln never had an opportunity to express his opinion concerning this military convention; for he having just been assassinated at Washington by John Wilkes Booth. Andrew Johnson, the Vice-President, had become President in his place.

4. Mr. Johnson was a North Carolinian by birth. He had lived in Raleigh until he reached manhood and then emigrated to Tennessee, where he became a very prominent citizen. When the war came on he adhered to the Federal side, and was very bitter and harsh, in his hostility to the South. He was rewarded for his course by election to the Vice-Presidency of the United States in 1864. In the violent excitement which followed upon the killing of President Lincoln, Mr. Johnson would not sanction the liberal terms of surrender which General Sherman had granted to General Johnston, although General Sherman had been in conference with the deceased statesman just previous to his death, and was following his directions as to the treatment of the conquered South.

5. Notwithstanding this refusal of the President of the United States to carry out the agreement of the military commissioners, the army of General Johnston was surrendered at Greensboro on April 26th, 1865, and sent home on parole on like terms with the Confederate troops at Appomattox.

6. General Schofield was made military Governor of North Carolina, and his first official act was a proclamation declaring freedom to the slaves in the State. After two centuries of servitude, these people were at last

delivered from their bondage. It is difficult at this day to say who were the more blessed in this deliverance—the slaves or their masters.

7. It was a hard thing for men who had been reared in the South to realize that their principal property, guaranteed to them as it was, in the fundamental law of the land, was founded in injustice; and still harder was it to accept poverty on the strength of a sentiment. Human nature is selfish in all regions, and, that Southern men should have clung to their property is no more than what their opponents would have done had the circumstances been exchanged. It will be difficult for posterity to understand what a mighty revolution in the domestic life of the people was involved in this single act of an army officer.

[NOTE—In the State election of 1860 the total vote polled was 112,586—the largest that had ever been polled. North Carolina furnished to the Confederacy over 150,000 men, or quite as many soldiers as she had voters, during the four years of the war. The total number of troops furnished by all the States of the Confederacy was about 600,000, and it will be seen that North Carolina furnished one-fourth of the entire force raised by the Confederate government during the war. At Appomattox North Carolina surrendered twice as many muskets as did any other State, and at Greensboro more of her soldiers were among the paroled than from any of her sister States. North Carolina's losses by the casualties of the war were largely over 30,000 men —Our Living and Our Dead.]

8. The slaves had been looking forward with hope, since the beginning of the war, that freedom might be in store for them, yet almost all of them had remained in quiet subjection at their homes while the war was progressing. It seemed hard for them to realize, for some time, that they were at last the masters of their own movements. As a general thing, they continued quietly

at labor on the farms of their former owners until the crops that were growing were complete in their tillage, or, as they expressed it, "laid by."

9. Governor Vance was soon arrested and imprisoned in the "old capitol" at Washington. President Davis was also captured and imprisoned. Mr. Johnson appointed Vance's late political antagonist, W. W. Holden, Provisional Governor, and, at the same time, removed from office every State and county official in North Carolina. For some weeks no officer with civil powers was to be seen, and to the commanders of the many Federal posts alone could the peaceful have looked for protection against violence and fraud.

10. No man ever had so great an opportunity for fixing himself in the esteem and affection of the people as Governor Holden had during his administration as Provisional Governor, and no man ever so completely threw golden opportunities away. Had he risen to the full height of a patriot, his name would today be a loving household word in every section of the State. But he did not, and such opportunities rarely occur twice to any man.

11. His career had not been an uneventful one. Of humble origin, he had, by dint of his own work and his own brains, carried himself to the control of the Democratic party in the State. He was not satisfied with the position of the editor of the chief organ of the dominant party, and the pecuniary profits that then resulted from such a position, but desired to be made Governor of the State. He was defeated for the nomination by Judge Ellis before the Democratic State Convention at Charlotte, and from that period dates his downward career. He advocated the Douglas movement, and then supported Breckinridge and Lane. He voted for and signed the Ordinance of Secession, declaring he intended to preserve as an heirloom in his family the pen with which he attached his name to the ordinance; and then he became the head and front of the Union element in the State during the war.

At the close of the war, as we have seen, he was made Provisional Governor by President Johnson.

12. No man knew better than Governor Holden that on our side the war was entirely at an end when the troops laid down their arms, and that when the people of North Carolina renewed their allegiance to the Federal government, they intended to stand to it honestly and faithfully. None better than he knew that they desired nothing so much as to set themselves to the task of rebuilding their fallen fortunes. He knew, too, that they were well aware that before this could be done, civil government, with all its varied machinery, must be re-established, and that in all that was right and proper for a people so situated, they were ready to aid him in doing this. The returned soldiers, too, especially felt that of them some recognition was due for the honorable terms and respectful treatment accorded to them at Appomattox and Greensboro.

13. In such mood it would have been an easy task for a ruler who was both patriot and statesman to re-establish Federal authority in North Carolina. It was simply impossible to punish all who had fought against the Federal government. It was quite as impossible to expect the many who had fought against it to take part in punishing the few. Amnesty and oblivion on one side, renewed allegiance and strict observer of the laws on the other, plainly constituted the true solution of the problem. Unfortunately, the partisan prevailed over the patriot. Instead of granting amnesty and oblivion, treason was to be made odious and traitors to be punished. Instead of making the path easy back to the Union, it was constantly blocked up in every possible way by both State and Federal authority. Of course an era of bitterness began, which the long imprisonment of Mr. Davis, the judicial murders of Mrs Surratt and Henry Wirz, the protracted exclusion of the Southern States from all participation in the general government, and the harsh policy of reconstruction, daily served to intensify.

## QUESTIONS.

1. What movement did General Johnston attempt after the surrender of General Lee? What men met General Sherman's army in behalf of the city of Raleigh?

2. When did Sherman's army reach Raleigh? What event is mentioned?

3. What was done by Johnston after learning of Lee's surrender? What occurred at Washington City?

4. What is said of President Andrew Johnson? How did he act concerning Johnston's surrender?

5. When and where did General Johnston surrender?

6. Who became military Governor of North Carolina? What was his first official act? What is said of the freedom of the slaves?

7. How is the question of slavery further considered?

8. How had the slaves acted during the war? How did they receive the news of freedom?

9. What befell Governor Vance? To what office was W. W. Holden appointed? What was the condition of civil affairs in North Carolina?

10. What is said of Governor Holden?

11. Can you tell something of his life?

12. How should Governor Holden have viewed the situation?

13. What would have been the proper course to pursue towards North Carolina?



## CHAPTER LXIV.

### REFITTING THE WRECK.

A. D. 1865 TO 1867.

1. When the bulk of the vast armies that had effected the overthrow of the Confederacy was marched northward and disbanded, the full extent of the ruin that had been wrought was at last realized. So many Federal troops had been collected in North Carolina that their subsistence and depredations had consumed nearly all the food in the State, and the utmost scarcity was disclosed in broad districts contiguous to the line of march and occupation by General Sherman's great armies.

2. Grief for the ruined South, the desolated homes and slain kinsmen was further supplemented by the pangs of want and hunger. Famishing men and women were forced to solicit rations of the Federal officers. Aid was given generally to needy applicants, upon their taking the oath of allegiance to the United States.

3. In the liberation of the slaves ruin was brought upon the banks and other fiscal corporations of the State, and, as a consequence, the endowments of the University and the colleges were, to a great extent, forever lost. Even the large Literary Fund, by which the whole system of common schools was sustained, being invested in similar securities, also disappeared in the general bankruptcy.

4. When the Provisional Governor had entered upon the discharge of his official duties, North Carolina was reduced to a small supply of cotton as the sum of her available means to discharge the current expenses of the new government, and even that was seized by the agents of the United States, and to Governor Holden's appeals for its release, the Secretary of the Treasury and President Johnson proved deaf and inexorable.

5. Judges Pearson and Battle were re-instated in their places of Supreme Court Justices, but Judge M. E. Manly was replaced by Edwin G. Reade, of Person. By orders from Washington, a proclamation was issued for an election of a Convention to restore the State to its former relations. This body met October 2nd, 1865, and selected Judge Reade as its president. Ordinances were passed repealing and declaring null and void the secession ordinances of May 20th, 1861, abolishing slavery and invalidating all contracts made in furtherance of the late war.

1866.

6. In the same election, Jonathan Worth, of Randolph, was chosen over Governor Holden as Chief-Magistrate. The State was apparently resuming its self-government, and was soon to show that some spirit was left in the people. They refused to ratify the ordinances of the late Convention by a decided majority; and while accepting the situation and submitting in all quietude to the authorities imposed, they were yet resolved to take no part in these constrained reformatations.

7. The general government had been for four years declaring the Ordinances of Secession, passed by the several States, null and void. It had been repeatedly announced that no State could thus sever her connection with the Union; but when the legally elected Senators and Representatives from North Carolina reached Washington, they found that this doctrine was

reversed, and were told that they could not take part in national legislation until Congress should restore the Southern States to their lost privileges.

8. In the Southern elections that were held, every man was required to take oaths of allegiance and for the support of the amended Federal Constitution. Some refused to attend the polls and a few left the country for foreign lands. A vast majority were resolved to support the Union in good faith, but, unhappily, this was not so understood by the men who controlled at Raleigh and Washington. They were impressed with the belief that only hostile sentiments actuated Southern white men, and, therefore, the proper policy was to confer political power upon the negroes, and in that way establish a new system of rule and social life in the Southern States lately in revolt.

1867.

9. This was a great and cruel mistake in policy. It was not only impossible of execution, but necessarily entailed trouble and suffering on both races thus put in antagonism. It could not be expected that white people would quietly submit to the domination of negroes who had so recently been their slaves, even if such rulers had been equally intelligent and socially respected. When the race feeling was added to the late subjection and present ignorance of the negroes, it was the most futile and abortive scheme ever proposed in America, and was at war with all the precedents and spirit of the great Republic.

#### QUESTIONS.

1. What was the condition of the State after the departure of Federal troops?

2. How were the people enduring mental and bodily suffering?

3. What had become of the various educational funds?

4. What was the only means by which North Carolina could meet the expenses of the State government? What became of the small supply of cotton?

5. What changes did Governor Holden make in the Supreme Court? What orders did the Governor receive from Washington? What was the Work of the Convention?

6. Who. was chosen to succeed Governor Holden? What political opinions were expressed by the people in their votes?

7. What inconsistencies were observed in the management of affairs at Washington?

8. How did the men of the South feel concerning the laws of Congress?

9. How are the events of this period considered?

## **CHAPTER LXV.**

### **GOVERNOR WORTH AND PRESIDENT JOHNSON.**

**A. D. 1867 TO 1868.**

President Andrew Johnson, as has already been stated, was born and reared in the city of Raleigh. He went to Tennessee after reaching manhood, and, though blessed with small advantages as to early culture, devoted himself to political life. He is said to have mastered the rudiments of education with his wife's help. His native ability soon gave him position as a politician and eventually great popularity and control over the Tennessee people.

2. He soon relaxed in the severity of his feelings toward the late Confederates, and thereby incurred the resentment of the leaders in the party which had elected him Vice-President. In the bitterness of the mutual recriminations, between him and his late friends in Congress, there was, unhappily, evil to result to North Carolina and the South; for to the old resentments against the South was added a desire in many men to thwart the President who had become their ally.

3. Governor Worth had ever been marked as a public man by the utmost devotion to the Federal Union. He had constantly opposed the doctrine and necessity of secession. He was now to show his wisdom and attachment for the State of his birth. As Governor, he was continually pressed to secure

legal protection for the people against the interference of military commanders and courts-martial, which were constantly intruding upon the jurisdiction of the State courts.

4. The whole system of education in the common schools had perished in the loss of the Literary Fund. The University still continued its ministrations, but with a diminished faculty and patronage. The colleges, male and female, belonging to the different religious denominations, were re-opened and generally were slowly regaining their former efficiency.

5. Among the first enactments by the Legislature after the war, was the law allowing negroes to testify against or for white parties in courts of justice. This was a great change in our law, but was now necessary for their protection, as they no longer had masters to care for them.

6. The agriculture of the period was rapidly advancing in the perfection of its details. Concentrated fertilizers were coming into general use and the area of cotton culture was immensely expanding. The farms were about equally divided as to the style of their management. The best farmers still hired their "hands" and superintended the details of operation in person, but many leased their lands to laborers and furnished the teams and supplies needed by the tenants.

7. Under the sensible and moderate rule then seen in the State, prosperity seemed rapidly returning, but as the United States Congress still refused to allow any representation in that body, there was great and increasing uneasiness as to the terms that would be finally exacted from the South in the proposed reconstruction measures.

1868.

8. Early in the year 1868 a convention, so-called, was held to frame a new Constitution under the Reconstruction Act of Congress. The election for the delegates was held under General Canby's orders, and the returns were sent to him at Charleston. Upon his order the Convention met and upon his order its delegates were seated and unseated.

9. In the latter part of April the Constitution thus framed was submitted to such of the people as were allowed to vote, at an election held as before, under General Canby's order, and by him, in Charleston, South Carolina, the returns having been sent to him there, declared to have been adopted. It is now generally known as the "Canby Constitution." In June, by order by telegram from General Canby, Governor Worth, who had been elected Governor by the people in 1866, was turned out of his office and Governor Holden put in his place. The only authority for this and other outrages was the might of Federal bayonets.

10. The Legislature elected under the recently adopted Constitution met on the 1st of July, 1868. It was comprised largely of negroes and of men from the North who had lately come to North Carolina. These latter were popularly known as "carpetbaggers," and as a class were mere birds of prey who came here for plunder. As might have been expected, the legislation of such a body was both corrupt and injurious. Ignorant of the resources of the State, of its people and their necessities, it would have been a miracle almost, no matter how honest, had their legislation not been harmful. Unfortunately, there was added to gross ignorance the most unblushing corruption and wanton extravagance. Many millions of debt, in the shape of "Special Tax Bonds," as they were called, were attempted to be fastened upon the State by this Legislature, but the people have persistently refused to recognize them.

11. The Convention and elections of 1868 will ever be remembered. The act of Congress, passed on February 20th, 1867, was in vain vetoed by the President. It was made the law of the land, and under its provisions, while twenty thousand white men of North Carolina were deprived of the right to vote, that privilege was extended to every colored male in the State who had attained the age of twenty-one years.

12. The year closed with great apprehensions to all classes. The new State government possessed neither the confidence nor the affection of the people, and in the pandemonium of bribery and corruption there was justification for the fears of men, who, in corrupt and reckless appropriations and corrupt and reckless expenditures, foresaw ruin to all material interests of the State.

12. In Robeson county, life and property were so insecure that extraordinary measures were adopted to extirpate the bandits who slew and plundered as if no legal restraints were left in the land. The story of Henry Berry Lowery and his "Swamp Angels" will ever stand as a convincing proof of the incompetency of the government of that day or of its wanton disregard of its duties to its citizens.

#### **QUESTIONS.**

1. Where was President Andrew Johnson born? To what State did he go? To what profession did he devote himself? How is he said to have mastered the rudiments of education? What position did his native ability give him?

2. How did his feelings toward the South undergo a change? What did he incur thereby? How did this affect North Carolina and the South?

3. What is said of Governor Worth?



4. In what condition were the institutions of learning at this period?
5. What legislation is mentioned favoring the colored people? Why was this now necessary?
6. How were agricultural matters progressing? How were the farms conducted?
7. What was the general condition of the State?
8. For what was the Convention of 1868 held? Under whose order was the election for delegates held?
9. When was the Constitution thus framed submitted to the people? How is this Constitution now known? How was Governor Worth removed from office, and who was put in his place? What was the authority for this and other high-handed measures?
10. When did the Legislature of 1868 meet, and of whom was it composed? What is said of this Legislature? What is said of the "Special Tax Bonds"?
11. What is said of the Convention and elections of 1868?
12. In what condition were public affairs?
13. What is said of Robeson county, and Henry Berry Lowery and his "Swamp Angels"?

## **CHAPTER LXVI.**

### **THE RESULTS OF RECONSTRUCTION.**

#### **A. D. 1868 TO 1870.**

There was in North Carolina great indignation at the result of the enforced changes wrought in the polity of the State by means of the various congressional enactments. Strangers from other States, and men entirely unused to legislation, had effected many alterations in our government and laws. It was to be expected that such things, done in such manner, would prove distasteful to a proud race that had so lately withstood so stoutly on the field of battle, and so long, such superior numbers.

2. Among the many unnecessary changes that were rendered more distasteful by the harsh manner of their accomplishment, were those made by Governor Holden and his party at the State University at Chapel Hill. This venerable institution, which had given education to many men of renown, was taken in hand, and, with a new management and a new faculty, made up of carpetbaggers and unsuitable native North Carolinians, re-opened its doors. Its late president, ex-Governor David L. Swain, had died shortly after his removal, his colleagues in the Faculty had dispersed in search of new homes, and silence had usurped the halls so long thronged by students from many States. The village of Chapel Hill, depending on the existence of the University for its support, became almost deserted. No less

than thirty of its best families removed within two years. The people of North Carolina refused to patronize the new organization, and the institution was for seven years prostrate.

3. The changes did not stop with the University. The judges of all the courts had been, since 1776, elected by the Legislature. This was altered, so that they were in future to be selected by the votes of the people. The name of the lower branch of the General Assembly, so long known as the House of "Commons," became that of the "Representatives." The meeting of the Assembly was made annual instead of biennial, and the pay of the members and State officials largely increased. Our county government system, too, was changed, and so was the mode of electing magistrates, who had hitherto been elected by the Legislature. In future they were to be elected by the people. In many portions of the State the effect was to put the white race at once under the domination of the black race. Bitterness and great excitement were the inevitable results. But of all the innovations, none, perhaps, was so startling as that made in the procedure and practice of the courts. It was distasteful both to client and counsel, but to the older lawyers it was especially objectionable.

1869.

4. The distinguishing event of this year in North Carolina was the appearance, in various parts of the State, of well-organized bodies of horsemen, commonly called Ku-Klux, who rode about at night in full disguise and punished crimes that the law had failed to punish. The mystery attending their coming and their going, the silence they preserved in their marches, the disguises they wore, coupled with the terrible punishment they inflicted, struck terror into the hearts of men with guilty consciences.

5. These midnight riders were doubtless in their origin the natural outgrowth of the condition of society that had prevailed in North Carolina

for some time past—that is to say, they were originally nothing more nor less than local mutual protective associations, with little form about them and but little more secrecy. The first step having been taken in that direction, the next followed as a matter of course. Next came associations to prevent future crime by punishing past crime. These organizations were more complex in their character and of wider range in their operations.

6. The condition of society was very bad, but not worse than might have been expected under a government which, obnoxious in its creation, daily became more hateful in its conduct. Negro suffrage had just become a reality. Spies and eavesdroppers were everywhere catching up men's words and watching men's actions for report to the government at Raleigh. Corruption and licentiousness stalked openly in the legislative halls and sat unblushingly on the judicial bench, while in the Executive office was a Governor ready to obey the behests of his party at any cost. It was an era of extravagance, bribery, corruption, oppression, licentiousness and lawlessness. Of the negroes, ignorant slaves but yesterday, with all their passion stirred to the utmost, large numbers blindly believed that freedom and suffrage would make them masters tomorrow were it not for the native white race. First suspicious, then sullen, then aggressive, they soon came under the bad teaching of the men who were their leaders, to regard the native white men as their born enemies. The result was the murder of men, the outraging of women, the burning of barns and other like destruction of property, then of vital importance, for the law had no terror for an evil doer who had friends at court or in the Executive chamber. It is but just to the negroes, however, to say that it is not believed that if they had been left to themselves they would have acted as they did, but that they were influenced to bad deeds by bad white men, who used them as tools to accomplish political ends. Under such circumstances as these, good citizens felt that they were tried beyond human endurance, and justified themselves to their own consciences for taking the law into their own hands.

7. The evils the Ku-Klux came to cure were indeed unbearable; but it must be said, also, that while the disease was desperate, the remedy was fearful. It is a fearful thing for men to band themselves together in secret and take the law into their own hands, and nothing but the direst necessity and the gravest emergency can ever justify it. Inseparable from every such organization, and this proved no exception to the rule, is the danger of its easy perversion to the gratification of personal malice or the improper punishment of petty offences, and this alone ought to be warning that in such a remedy lies terrible danger.

8. Governor Holden quailed before the Ku-Klux, and from his guarded house issued proclamation after proclamation, but they would not down at his bidding. When winter came and with it the Legislature, Senator Shoffner, of Alamance, at the instance of the Governor, introduced a bill into the Senate, in its terms conferring upon the Governor the right to declare any and every county in the State to be in insurrection, and to recruit and maintain an army whenever he saw proper. In other words, the bill sought to confer upon the Governor the power to declare martial law at will. Of course this was unconstitutional.

1870.

9. The Shoffner bill was ratified on the 29th of January, 1870. On the night of the 26th of February, Wyatt Outlaw, a negro, was hung in the county town of Alamance, by the Ku-Klux. On the 7th of March the county was declared to be in a state of insurrection. Federal troops were sent there, but beyond eating their rations they had no occupation, for quiet and good order prevailed throughout the county.

10. A striking fact, true of every place during these unhappy times, is that whenever white Federal troops were sent to a troubled section, whether in Alamance, Caswell, Orange or elsewhere, there was straightway an end of

trouble. The law- breakers were awed into good behavior, and those who in self- protection had forced, in their own judgment, to take into their own hands the administration of justice, of course had no further occasion to do so.

11. Governor Holden, however, seemed not to be satisfied with the Shoffner bill, for on the 10th of March he wrote\* to the President, asking that stringent orders be sent to the commanding general, and stating that if "criminals could be arrested and tried before military tribunals and shot, there would soon be peace and order throughout the country. The remedy," he said, "would be a sharp and bloody one, but indispensable as was the suppression of the rebellion." The 14th he wrote to the members of Congress from North Carolina\*\*, beseeching them to induce Congress to author the President to declare martial law in certain localities, so that he might "have military tribunals, by which assassins and murderers can be summarily tried and shot," and telling them at the same time that he could not have such tribunals unless the President was authorized to suspend the habeas corpus.

\*For letter in full, see Governor's Letter-book, page 328.

\*\*For letter in full, see Governor's Letter-book, page 329.

12. At the time when the Governor was so anxious thus "summarily" to try and shoot people, not a single man had been killed in Caswell, and only one in Alamance. It might be borne in mind, too, that the men whom he refers to, and whom he afterwards arrested as assassins and murderers, were among the best men in all the land, many of them venerable for age as well as respected for personal integrity and Christian character.

**QUESTIONS.**

1. How did our people take the many changes in State polity?
2. What was done with the University?
3. How was the manner of electing judges changed? What was the effect of this change?
4. What secret organization was formed at this time?
5. What is said of the Ku-Klux?
6. Can you tell something of the condition of society?
7. How are the doings of the Ku-Klux considered?
8. What was done by the Governor in regard to the Ku-Klux?
9. What occurred in Alamance county?
10. What was the general effect produced by the Federal troops?
11. What was the next step taken by Governor Holden?
12. Who were the men arrested by order of the Governor?

## CHAPTER LXVII.

### THE RESULTS OF RECONSTRUCTION—Continued.

A. D. 1868 TO 1870.

On the 21st of May, John W. Stephens, then a Senator from Caswell county, was secretly murdered in an unused room in the courthouse at Yanceyville. A large concourse filled the house when the deed was committed, the occasion being a Democratic political gathering, and Stephens was seen and talked to at the meeting, being there as a spectator. Strange to say, however, it is a mystery to this day as to who committed the crime.

2. It was insisted by Governor Holden and his party that Stephens had been murdered by the Ku-Klux. This however, was as stoutly denied, and the assertion added that, as Stephens was an object of derision and contempt rather than of hatred, there was neither desire nor cause to put him to death.

3. Meanwhile, Congress had refused to confer upon the President the power to declare martial law, and the August elections kept drawing near. A new Attorney-General and a new Legislature and new Congressmen were to be elected. The Governor and his party were therefore compelled to rely on the Shoffner bill alone.



4. State troops, as they were called, were now recruited, and, on the 21st of June, George W. Kirke, a brutal ruffian of infamous character, and known to be such, who had commanded a regiment of Federal troops during the war, was brought from his home in Tennessee and commissioned Colonel. This man Kirke, in his public posters calling for recruits, the original of which was found in Governor Holden's own hand-writing, appealed to his old comrades to join him, saying that "the blood of their murdered countrymen, inhumanly butchered for opinion's sake, cried to them from the ground for ensconce."

5. On the 8th of July, the county of Caswell was declared to be in a state of insurrection. Meanwhile, however, a company of Federal troops had been stationed at Yanceyville, and had found use for neither ball nor bayonet, and in both Alamance and Caswell the courts were open and not the slightest obstruction to any process of the law.

6. On the 13th of July, Kirke having organized his regiment, was ordered to take command of the counties of Alamance and Caswell. In a few days more than a hundred citizens of Alamance and Caswell were arrested and imprisoned by Kirke and his subordinates. In some instances persons thus seized were hung up by the neck, or otherwise treated with great brutality. Among these prisoners were many men who had been for years of the first respectability as citizens, and were known and honored in every portion of the State.

7. Application was speedily made to Chief-Justice Pearson for a writ of habeas corpus, that Adolphus G. Moore, and others thus imprisoned, might know the cause of their detention and receive the protection of the laws. Judge Pearson granted the writ, but when it was served on Kirke, he directed the messenger to inform the Chief-Justice that such things "had played out," that he was acting in accordance with Governor Holden's

orders, and he refused to obey the command of his Honor. The lawyers of the imprisoned men then asked for further process of the Judge to punish Kirke for his disregard of his orders; but Judge Pearson passed over his contemptuous message as the "flippant speech of a rude soldier," and held that his powers were exhausted, as the Governor had ordered Kirke to seize the men, and the judiciary could not contend with the Executive, and in this he was sustained by the other members of the court.

8. The conspiracy against the Constitution, the laws and the liberties of the people developed rapidly, now that the highest judges in the State had declared the courts of the State to be impotent. The military tribunals that the Governor failed to get from Congress in March, he now proceeded to organize under the Shoffner act. The court was to consist of thirteen members, seven of whom Governor Holden selected from among his own partisans in the militia and six he left to Kirke to select from the officers of his command. \* The 25th day of July was first selected for the meeting of the court, and then the 8th of August. [!] It was a terrible state of affairs. The Chief Executive of the State was daily making his preparations for holding a drum head court-martial to try the best men in all the land, tie them to stakes and shoot them like dogs, while the judiciary, standing in sight and in hearing, declared itself helpless!

\*For full letter, see Impeachment Trial, Volume I, page 238.

[!]For full letter, see Impeachment Trial, Volume II, page 1147.

9. Fortunately, Chief-Justice Pearson and those who sat with him were not the only judges in North Carolina. There proved to be at least one judge who did not think his powers exhausted. That judge was George W. Brooks, Judge of the United States District Court for North Carolina, and application was accordingly made to him for a writ of habeas corpus. He came to Raleigh, and was told by the Governor that if he interfered civil

war would ensue; but Judge Brooks was inflexible, and, on August 6th he ordered Marshal Carrow to notify Colonel Kirke that in ten days his prisoners should be brought before his Honor at Salisbury.

10. Governor Holden then appealed to President Grant, informing him of the situation; and the President, after advising with the Attorney-General, replied that the authority of Judge Brooks must be respected. Kirke accordingly brought a portion of his prisoners as ordered, to Salisbury, and as no crimes were alleged for their detention, they were all set at liberty.

11. As soon as Governor Holden was informed of the decision of the President, he sent a messenger in haste to the Chief Justice, who thereupon came to Raleigh, and the prisoners who had not been brought before Judge Brooks at Salisbury were carried before him and the other Judges of the Supreme Court at Raleigh.

12. But it was Judge Brooks who broke the backbone of this great conspiracy against the government of North Carolina. No man ever lived on our soil who deserved to be held in more grateful remembrance by the people of North Carolina than he. Whatever others may have done in building up the State, it was he that saved her Constitution and her laws and the liberties of her people. The scenes of horror that would have been witnessed but for his timely interference cannot be thought of, even now, without a shudder. It is greatly to be hoped that the Legislature will speedily erect a suitable monument in the capitol square in token of the gratitude of the people for whom he did so much.

#### **QUESTIONS.**

1. What occurred at Yanceyville on May 21st?

2. Who were accused as the murderers of Stephens? Upon what ground was this denied?

3. What had Congress done concerning martial law?

4. What man was put in charge of the state troops? Where was Kirke from, and what was his character?

5. What was the condition of affairs in Alamance and Caswell counties?

6. Give an account of Kirke's exploits in these counties?

7. To whom did the people apply for aid? With what result?

8. What was next done by the Governor?

9. To what judge did the people next go for protection? What did Judge Brooks do?

10. What was Governor Holden's next step? Where were Kirke's prisoners taken?

11. Where were the prisoners then carried?

12. What tribute is made to Judge Brooks? What are the reflections upon this matter?

## **CHAPTER LXVIII.**

### **THE IMPEACHMENT OF GOVERNOR HOLDEN.**

**A. D. 1870 TO 1872.**

The election of 1870 resulted in a great triumph for the people. Opponents of the administration were elected to the Legislature in overwhelming majorities, and a determination to bring Governor Holden to trial for his crimes against the Constitution and liberties of the people was at once apparent.

2. Nothing can be more important; in a civilized government than protection to the liberties of the people. Nothing is truer than that "eternal vigilance is the price of liberty," Even in the royal government of England, for more than two centuries the King has had no power to deprive a citizen of the right to be heard in the courts, when restrained by legal process or otherwise. Neither there nor in America could anything but foreign invasion or positive insurrection justify even Parliament or Congress in suspending the right to this palladium of civil liberty.

3. Upon motion in the House of Representatives, the Legislature having assembled, a committee was appointed to inquire into the facts, and soon, articles of impeachment were presented to the Senate, charging the Governor of the State with the commission of "high crimes and misdemeanors."

1871.

4. By the terms of the State Constitution, this worked a disability in Governor Holden; and Tod R. Caldwell, of Burke, then Lieutenant-Governor, assumed control of the Executive Department.

5. In a court of impeachment in North Carolina, when the Governor is on trial, the Chief-Justice is the president of the body. The members of the Senate are triers and the House of Representatives act as prosecutors in behalf of the people, and a two-thirds vote is required to convict.

6. Thus, with Judge Pearson presiding, there was a long and deliberate examination as to the charges made against the Chief- Magistrate of North Carolina. After hearing the testimony presented both by the accusers and by the respondent, Governor Holden was convicted of the charges made against him, deprived of his office, and declared incapable of holding any further honor or dignity in the State.

7. Such a trial has been seen but in this single instance in all the history of the State, and it attracted considerable attention in its progress. It involved great and important issues, and was happily followed by peace and quiet in every portion of the State.

8. After eight years' absence, a delegation was again seen in the Federal capital representing the State of North Carolina in the Congress of the United States. For two years past her members of Congress had been allowed to participate in the national legislation, and thus an ignominious disability had at last been removed from her Federal relations. A mighty convulsion, that had stirred the nation to its depths, was being slowly hushed into calm by the adoption of wiser and more peaceful methods. A broader nationality was coming alike to the Northern and Southern people, and the wounds of the war were fast healing in the lapse of time.

9. The census of 1870 showed vast improvement in many departments of human industry. North Carolina, in the many alterations wrought by the war, was learning the wisdom of diversifying the pursuits of the people. Slowly public attention was being turned to the opening of new industries. The Western North Carolina, the Raleigh & Augusta and the Carolina Central Railroads were opening up a new era in the history of such interests in the Old North State.

10. With a greatly extended area of production in cotton, there was, besides, an enormous addition, of railroad profits from the increase both of travel and freights. As the railway lines lengthened to the west, it was found that they would repay the cost of construction, and each of the rival political parties pledged itself to the completion of the great Western Road which was to pierce the extreme mountain barriers and find outlets into Tennessee, both at Ducktown and the Warm Springs, in Madison county.

11. Slowly this great dream of the wise men of the past approaches the day of its accomplishment. A half century has gone by since Dr. Joseph Caldwell and Governor Dudley first impressed this scheme upon the public mind as a work of the future.

#### **QUESTIONS.**

1. What was the result of the election of 1870? Upon what was the Legislature determined?

2. Can you tell what is said about protection of the liberties of the people?

3. What was done by the House of Representatives?

4. How did these charges affect the Governor? Who assumed control of the Executive Department?

5. Who constitutes a court of impeachment in North Carolina, and what vote does it take to convict?

6. Who presided at the trial of Governor Holden? How did the trial terminate? What was the punishment?

7. What is said of this great trial? What did it involve? By what was it followed?

8. What political changes were seen at Washington City? How was the condition becoming better?

9. What is said of industrial pursuits in North Carolina? Of railroads? Can you trace the route of these railroads on the map?

10. How was the State being agitated upon the question of internal improvements?

11. What is said of the accomplishment of these improvements? How long has it been since this scheme was impressed upon the public?



## **CHAPTER LXIX.**

### **RESUMPTION OF SELF-GOVERNMENT.**

**A. D. 1872.**

In the years that had passed since the close of the war between the States, the people of North Carolina had been continually looking forward to the hour when the State should be fully restored to its old relations with the Federal government. In the consummation of the reconstruction policy, inaugurated and carried out by Congress, this had been partially attained, but, in the provisions of the Constitution adopted in 1868, there were many particulars that were unsuited to the habits of the people, and amendment was eagerly desired in this respect.

2. Political animosities were being softened by the lapse of time, and general prosperity was fast extending to different sections. Towns and villages were being built along the lines of railroads, and cotton and other factories were constantly being added.

3. Just previous to the outbreak of the late war the Masonic Grand Lodge of North Carolina had reared at Oxford a large and costly building, which was called "St. John's College," and was intended for the education of young men. In 1872 this building was devoted, by the fraternity that had erected it, to the education of the orphan children of North Carolina. This noble charity was placed in the care of John H. Mills, who has abundantly

justified the wisdom of those who were parties to his being chosen for so responsible a place.

4. This school, which educates so many who would otherwise grow up in ignorance and vice, is aided now by an annual appropriation from the State and another from the Grand Lodge of Masons, but on individual contributions of the charitable it is mainly dependent for its support. Perhaps no other charity ever so much enlisted popular sympathy in North Carolina, and none ever more richly repaid the unselfish contributions of the people.

5. At the period now reached the University had ceased to be attended as a college. Rev. Solomon Pool still remained its President, but the buildings were silent, and the famous seat of learning no longer held its proud position among American institutions. Meanwhile, the denominational colleges were vigorously at work, and were receiving a larger patronage than formerly.

6. Among the female seminaries of the State a new and formidable rival for popular favor arose—Peace Institute, at Raleigh. This institution, like the Orphan Asylum, had originated before the war, but, during the years of strife the building was used as a hospital. It is controlled by the Presbyterians, and under their excellent management it has become one of the best appointed and most popular institutions in all the State.

7. In the nomination and re-election of General Grant as President of the United States in 1873, there were many incidents to show the alteration in Southern sentiment. The white men of the South, as a general thing, voted in that contest for Horace Greeley, of New York. He had been long identified with all the movements that were specially obnoxious to Southern people, and yet, after so many bitter differences in the fifty years past, the

old leader of the Abolitionists became the nominee of the Democrats and received their votes for the Presidency.

8. This strange course was said by those who pursued it to be dictated by the desire on their parts to show that they did not harbor resentment toward old enemies, and were not now disaffected toward the Union, but were willing for "the dead past to bury its dead," and well might they pursue such a course. With the close of the war had passed all reason for the existence of another Republic. In the abolition of slavery the States had become uniform in interest, and it was soon patent that it ought to need only a little time to heal the breaches of the war and restore concord to the two great sections of the mighty American Commonwealth.

9. Unfortunately, however, the men who swayed the destinies of the country were more partisans than patriots, and sought to perpetuate the domination of their party more than the restoration of peace and concord.

10. In the sober, second thought of the American people it is to be hoped that patriotism will prevail. That hatred and malevolence can continue indefinitely in the relations of the two grand divisions of the Republic, is as impossible as it would be unwise and wicked. Their destiny is too grand for the people of America to think of marring it by a continuance of strife. Year by year the traces of blood disappear from the face of the land, and more closely grow the bands that make us a free and united people.

#### **QUESTIONS.**

1. To what period had the people of North Carolina been looking forward since the close of the war? What acts had somewhat prevented the arrival of this state of affairs?

2. What is said of political animosities and the general prosperity of the State? Of towns and factories?

3. What charitable institution had been opened by the Masons? Who was put in charge?

4. What is said of the Orphan Asylum?

5. In what condition was the University? What is said of other colleges?

6. What female school is now mentioned?

7. What political changes were seen in the Presidential campaign of 1872?

8. What was said to have dictated this course? What was the general position of the people since the close of the war?

9. What was the cause of sectional prejudices continuing to exist?

10. In what characteristics do the American people stand high? Why should all sectional animosities be speedily removed?

# CHAPTER LXX.

## THE COTTON TRADE AND FACTORIES.

A. D. 1878.

1873.

Previous to the introduction of Whitney's cotton gins there had been much attention bestowed by the people of the State upon the cultivation of flax. This crop was never reared for exportation, but for family use at home. Few of the ancient spinning-wheels can now be found, but they were once abundant and the manufacture of home made linen was common in North Carolina. This was even more the case than is now the preparation of woolen fabrics upon the handlooms of the families.

2. So soon as the lint cotton was cheaply separated from its seed, the great question of its universal use was solved. It could be so easily produced that no woolen or linen fabrics could hope to compete with it in the markets of the world. The good women of the State soon learned the economy of buying the cotton warp of the cloth wove at the farmhouses, but it was long before even this common domestic necessity was prepared for use in the South.

3. The cotton yarns were, until about 1840, almost all spun in New England and bought by the merchants in the large cities when laying in their semi-annual supplies of goods for the retail trade. The purchase of slaves and the cultivation of cotton so completely absorbed the energies of our people that no one invested capital in anything else, except, perhaps, some who preferred real estate for such a purpose.

4. But even before the civil war and the liberation of the slaves there were wise men who urged the propriety and profit of cotton mills in the South. Since the war there has been an immense development of this industry, and now the sound of the loom and spindle may be heard throughout the State. Hundreds of persons are employed in a single one of the cotton mills. In this way not only the wealth but the population of the section is increased by bringing in new settlers. The railways find added employment, and in some cases private residences are seen that are rural paradises in the beauty and comfort of their appointments. There is, in some of the western counties, large capital invested in mills for the manufacture of woolen yarns and cloth, from which satisfactory profits are realized. Another one of the important industries of the State is the manufacture of paper. The daily and weekly newspapers of North Carolina are now largely supplied with printing papers by the mills of the State. The first paper mill in North Carolina was erected near Hillsboro, in 1778; the second one was built at Salem, in 1789, by Gottleib Shober.

5. North Carolina has ever been slow to change in the habits of her people. The ways of their forefathers always seem best to most of them until abundant example has shown the wisdom of an innovation. Steam, however, is usurping a place in every species of labor and motion. The great seines of Albemarle Sound, the printing press, the cotton gin and nearly everything else is now obedient to the tireless energies of this great motor.

6. When North Carolina shall have developed her system of transportation so that the coal and iron mines shall be more largely worked, and when, as now in Vermont, not only cotton but woolen factories shall be found in every section where such staples are produced; then, and not until then, will the civilization of the State be complete. They who merely produce raw material will ever be "hewers of wood and drawers of water" to others who prepare such things for market.

7. Second alone in importance to the State at large, after the cotton factories, are those devoted to the handling and preparation of tobacco for the market. The western powers of Europe had, for many years, realized immense revenues by means of their imports and monopolies of the Virginia weed, before the government of the United States ever realized a dollar from all the vast production of this crop in the different States. So, too, in North Carolina, enterprise and capital had remained almost completely blind to the possibilities of the situation.

8. Though great quantities of tobacco had been grown in many of the counties, and the soil and climate were suited to the production of the finest and costliest grades, yet the farmers were content to raise such as commanded but humble prices, and but a small proportion of this was prepared for use in the vicinity of its production. In a few villages and on some of the farms were to be found small factories, which, with the rudest appliances, converted into plugs of chewing tobacco such portions of the crop of the neighborhood as could be probably sold from itinerant wagons.

9. These vehicles were sent to the eastern counties and even to portions of South Carolina and Georgia, to supply the farms and country stores. This traffic continued until the strong arm of the Federal government, by means of "Internal Revenue Laws," was interposed between the peddlers and their ancient profits. The bulk of the crop was sent, before this, to be

manufactured at Richmond, Lynchburg and Danville, in Virginia. The fine brands of plug and all smoking tobacco used in North Carolina were received from these cities.

10. If he who adds to the number of grass blades is a public benefactor, then the creators of new industries and towns may well claim consideration along with the warrior and statesman. In many towns and vast productions are modern States enabled to sustain the great and costly appliances of our new civilization. With the railroad and factory come population and those advantages that can never be enjoyed by the people who lack numbers and wealth.

#### QUESTIONS.

1. What was a principle crop in North Carolina before the cotton gin was invented? What is said of the cultivation of flax?
2. Why did the production of cotton so rapidly take the place of flax?
3. How did the people invest nearly all their means?
4. What can you tell of the various cotton factories?
5. Why have not our people entered more largely into this class of industry?
6. What better future prosperity is yet to be attained by the State?
7. What other great industry is now considered?
8. What had been the production in North Carolina?
9. What is said of the tobacco peddlers?



10. What sentiment animates the people of North Carolina?

## **CHAPTER LXXI.**

### **PROGRESS OF MATERIAL DEVELOPMENT.**

#### **A. D. 1876 TO 1878.**

1876.

In this state of advancement as to her material interests, North Carolina again became excited in 1876 over the choice of new men for Chief-Magistrates, both of the Republic and of the State.

2. After eight years of service as President of the United States, General Grant was retired to private life, and Governor Brogden, who had succeeded Governor Caldwell upon the death of the latter in 1874, was also near the end of his service as Governor of North Carolina. No Gubernatorial election was ever more exciting to the State. It resulted in the choice of ex-Governor Z. B. Vance over Judge Thomas Settle of the Supreme Court.

1877.

3. In the complications which resulted in the seating of Governor Hayes as President of the United States, there was such a change effected that the Federal army was no longer employed to uphold the reconstructed officials in Louisiana and South Carolina, and the people of those States, at last, were left to the management of their own affairs. With this consummation,

so long and devoutly wished, came that peace and contentment to all sections which had been unknown since 1861.

4. The enormous increase in the amount and quality of cotton grown in North Carolina since the late war has been dependent upon the use of various fertilizers and other appliances of a better cultivation of the soil. The old habit of educated men, in committing their plantations and slaves to the management of overseers, has been almost wholly abandoned. Many individuals of the largest culture are now devoting their time and skill to the discovery of improved methods in agriculture, and North Carolina is reaping a golden harvest thereby.

1878.

5. No employment, except agriculture, exceeds in importance that of the merchant. North Carolina is shut off from foreign commerce by the sand barriers on the coast, Only at Beaufort, on Old Topsail Inlet, can be found such an entrance to internal waters as promises safety to the mariner who would approach with his deep-laden vessel. But, while this has precluded the possibility of great commercial activity in North Carolina, there has not been a lack of men, at any period of our history, to illustrate the dignity and importance of legitimate traffic. Cornelius Harnett and Joseph Hewes were as conspicuous for financial success as they were for patriotism during the Revolution.

6. With the return of peace to the belligerent States, North Carolina was commercially prostrate. The merchants and the banks were almost all ruined in the general impoverishment of their debtors. The supply of cotton which remained on hand at the cessation of hostilities was about all that had been left, in the general wreck, upon which trade could be again commenced with parties at a distance.

7. Raleigh had never been recognized as a trade centre. A few stores on Fayetteville street, between the State House and where the Federal building now stands, were the representatives of their class in the city. Cotton was very little grown in that region of the State, and no market for its sale had even existed nearer than Norfolk and Petersburg.

8. But this state of things was not to continue. Numbers of young men, combining great energy and judgment with small capital, came to the city and began the work of expanding its trade and resources. It has not, like Durham, risen up in a few years from almost nothing, but so great a change has been wrought, that the story of its growth is one of the most striking incidents in the State's history. The extension of the railway lines has opened up new custom in many counties that had never previously dealt with merchants of the place.

9. The development of commerce and manufacture is the great hope of the "Old North State." The enterprise and capital of this and other communities are seeking opportunities of investment, and the day is fast coming when North Carolina will rival Pennsylvania in the variety and excellence of her manufactures. The "Cotton Exchange" of Raleigh is aiding very largely in building up the business of the city to vast proportions. The quantity of cotton sold in Raleigh has been rapidly increasing annually since the war, and the receipts for the year 1880 amounted to over seventy-six thousand bales. In 1869 the entire product of the State was only one hundred and forty-five thousand bales.

10. In the towns and cities of North Carolina may be found a considerable number of Israelites engaged in the various branches of trade; and this class of our citizens has added no little to the general growth and material prosperity of the State. They have synagogues at Wilmington, Charlotte, Raleigh, Goldsboro and New Bern.

11. About the year 1878 the example of the Federal government and that of certain Northern States induced the State Commissioner of Agriculture to establish a fish hatchery at a mouth of Salmon Creek in Bertie county. This establishment has hatched and liberated a very large number of shad and other varieties of fish, and valuable returns are seen in some of the rivers that have been in this manner replenished with this savory and abundant source of food. It has been satisfactorily demonstrated by Seth Green, of New York, and other naturalists, that fish which are spawned in fresh water and reared at sea almost invariably seek the place of their birth in the spring, when they reach maturity.

12. In addition to this artificial increase of the supply of fish, there have been large additions made to the means of their capture. The use of steam in the handling of the long seines and the great weirs known as "Dutch Nets," have opened the way to an indefinite increase of the amount taken, while the use of ice and rapid transportation make it possible to deliver the fish fresh in the markets of the Northern and Western cities.

13. This trade is also supplemented in the same region by such attention to the growth and sale of vegetables. All the requirements as to position, soil and climate are abundantly filled by the counties with alluvial soils along the seacoast. Heavy crops of Irish potatoes and garden peas are reared on the same land which, later in the year, supplies a second crop of cotton and corn.

14. In the same eastern counties the products of the farms have been increased by a large and rapidly extending area devoted to the production of peanuts and highland rice. With the exception of a limited supply of the former article, grown above Wilmington, there was seen in other communities only a few small patches for the use of the family, but with no design of sale or shipment. In many eastern counties the fields of peanuts

are, of late year, almost as numerous as those of cotton. The same history belongs to the highland rice. This great staple of human diet is rapidly becoming a favorite crop, and mills for its preparation are fast making their appearance in different localities.

15. Nowhere else in the State has there been so great an increase in trade as in the city of Wilmington. Many ships from foreign ports began to visit Cape Fear River, and, from different cities in other States, regular lines of steam packets were established, which greatly facilitated the means of communication.

16. Repeated appropriations, but never in sufficient amount, were made from time to time by the United States Congress for the improvement of Cape Fear and other watercourses in North Carolina. The closing of New Inlet is believed to be entirely efficacious in the effort to deepen the approach by way of the river's mouth. A stone barrier of great length and stability shuts off the flow of water, except past Fort Caswell, and the happiest results are already realized.

17. In the city of New Bern another shipping point of importance had been largely developed in the years since the close of the war. There, too, is the terminus of prosperous freight lines, employing many large steam vessels, that yet ply regularly between Neuse River and cities beyond the borders of the State. A great trade in lumber and garden produce is improved by cotton and other factories, that add largely to the population and means of the city.

#### **QUESTIONS:**

1. How was the State excited in 1876?

2. What was the result of this election?

3. What is said of the events of the past few years?
4. How have the agricultural pursuits of the State been benefited?
5. What are the most important employments in a State? What are some of North Carolina's commercial advantages?
6. What was the financial condition of the people at the close of the war?
7. What is said of Raleigh as a trade centre?
8. In what way did trade matters begin to improve at the capital?
9. What else is said of North Carolina's commercial prospects? What advantage has Raleigh derived from the Cotton Exchange?
10. What is said of the Israelites?
11. What new enterprise was inaugurated in 1878? What have been the results of the hatchery? What fact has been proven concerning fish?
12. What is said of the improvement in the means of catching fish?
13. What other species of trade is found in the eastern counties?
14. What is said of the production of peanuts?
15. Can you tell something of the growth and trade of Wilmington?
16. How has the navigation of the Cape Fear River been improved?
17. What other seaport city is now mentioned? What is said of its commercial interests?

## CHAPTER LXXII.

### THE RAILROADS AND NEW TOWNS.

A. D. 1879.

1879.

The Raleigh & Gaston Railroad originally connected the two places that gave name to the route. It was necessary in reaching Raleigh from the Albemarle region to go to Weldon, and then, by the Petersburg Railroad, the junction in Greenville county, Virginia, gave access by a short line to Gaston. It was not until about 1853 that the Raleigh & Gaston route was extended directly down the Roanoke River to Weldon. This was a great facility to both trade and travel on this important line, yet twenty years elapsed in the progress of internal communication before this short link could be added.

2. A great trunk line, extending east and west through the whole length of the State, has long been a favorite scheme of many statesmen in the effort to build up a seaport at Beaufort. But in the progress of the late war it became all-important to the Confederate government to tap the North Carolina Road at Greensboro, in order that troops and military freights might be speedily conveyed to Petersburg and Richmond by way of Danville.



3. The completion of the lines leading from Charlotte to Wilmington, from Charlotte to Statesville, from Raleigh to Hamlet, the Cape Fear & Yadkin Valley from Fayetteville to Greensboro; and the Western North Carolina Road from Salisbury to Asheville, and the Paint Rock branch, have enormously increased the facilities for travel in the State. In addition to these lines, new routes from Jamesville to Washington, from Rocky Mount to Tarboro, from Norfolk to Elizabeth City and Edenton, from Durham to Chapel Hill, from Henderson to Oxford, from Goldsboro to Smithfield, have also been recently added to the railway system.

4. The road from Winston to Greensboro has resulted in the creation of a city alongside of ancient Salem which is, in every respect the compeer of Durham in the swiftness of its growth and the amount of its trade and manufactures. Winston, Durham and Reidsville have arisen almost like magic, and are expanding into such importance that Charlotte, Salisbury and Greensboro have all felt the consequences of their growth in trade and population.

5. The city of Charlotte has greatly prospered and has become important for its large trade and railway interests. Perhaps, nowhere else in the State have the citizens of a city shown greater enterprise. Its merchants, lawyers and editors have all won the respect and admiration of other communities, and have raised their city to such prosperity that it is now rapidly becoming a rival of Wilmington and Raleigh, and taking place in the front rank among North Carolina's emporiums.

6. One of the most remarkable scenes ever witnessed in North Carolina was the famous centennial anniversary of the signing of the Mecklenburg Declaration. It filled Charlotte with thousands of visitors, among whom were the Governors of several States and many other distinguished American citizens. Ex-Governor W. A. Graham, Judge John Kerr, Governor

Brogden and others delivered orations, and the citizen-soldiers of the State were gathered to do honor to an event "that had made Charlotte forever sacred to history and song." This occurrence was, of course, on May 20th, 1875, and just one hundred years later than the concourse ordered by Colonel Thomas Polk.

7. Fayetteville, Asheville and Statesville have also afforded remarkable instances of thrift and expansion in the busy latter years of our State's history. Now, besides being a favorite resort as a watering place, supplements its summer festivities with large numbers of visitors avoiding the rigors of winter months elsewhere. It is becoming a railway centre and is fast developing a large and lucrative trade.

8. The tendency toward the erection of manufactories and the recent influx of foreign immigrants are happy auguries for the continued prosperity and growth of towns in the State. The wondrous diversity of products of the soil, the extent of the forests and the richness of the mines, all combine to demonstrate the ease with which the success of other American states can be rivalled in our own.

9. Already the mountains have been pierced by the railway from Salisbury. Other lines from Virginia, South Carolina and Tennessee are being constructed, so that every portion even of the mountainous region will soon be within easy reach of the markets of the world. The Cranberry iron ores, the matchless Mica quarries and the Corundum deposits are all being made available to commerce, and will realize valuable returns for the capital employed upon them.

10. Not the least remarkable among the new industries of the western counties is the collection and shipment of Ginseng and other valuable medicinal roots and herbs. A firm in Statesville have been, for years past, employing large capital in this business, which seems capable of indefinite

extension. The preparation of dried fruits is another lucrative addition to the resources of the same region.

11. Years ago, attention was called to the fact that at certain elevations in the mountains there was no frost to be seen at any period of the year; and this immunity has been turned to valuable account by the fruit growers, and now great orchards are found in many parts of the westerns counties, and shipments of very fine apples show the cultivation given to them.

12. North Carolina is not only the original habitation of the Scuppernong grape, but also of the luscious Catawba. This latter fine fruit, which has proven so valuable to the nurseries of Cincinnati, is at home in this latitude.

13. Yadkin county was, before 1860, famous for the production of a stronger beverage, derived from rye and corn. Since the war many distilleries have been carried on in the State, in spite of the government regulations that carry so many men as culprits to the Federal prisons. The offenders, known as "Moonshiners," are those who make and sell whisky without paying the United States for a license in the trade. These transgressors of the law have for years been hunted like Italian bandits or ferocious wild beasts, and not unfrequently blood has been shed in defence of the hidden distilleries and quite as often in attacking them and their owners.

14. In February of this year the Secretary of State, Joseph A. Engelhard, died, after a brief illness. In the death of Major Engelhard, the State sustained a great loss. As a soldier he was faithful, capable and brave. At once made a conspicuous leader in the fierce struggles that followed the war by his control of a prominent journal, he proved ever courageous, far-seeing and of rare judgment. And to him, for the happy termination of those terrible struggles, the State owes a deep debt of gratitude that now, unhappily, she can repay only in honorable remembrance.

## QUESTIONS.

1. What is the subject of this lesson? What is said of the extension of the Raleigh & Gaston Railroad? Go to the map and point out this road.

2. What favorite trunk-line has long been desired? What road was specially important to the Confederate government? Point out this road on the map.

3. What roads are mentioned as having been recently completed? Point out these on the map.

4. What towns are now mentioned, and what is said of their growth? Locate them on the map.

5. What is said of the prosperity of the city of Charlotte?

6. What is said of the centennial celebration at Charlotte? When did it occur?

7. What mention is made of Fayetteville, Asheville and Statesville? Find these towns on the map.

8. What have been the causes of the rapid growth of the towns in the state?

9. What further prosperity is noticed?

10. What other industry is described? Can you tell anything of this valuable production? (Teacher will explain).

11. What is said of the western fruit growers?

12. What excellent varieties of grape are natives of North Carolina? What is said of the Catawba grape?

13. What mention is made of the manufacture of stronger liquors?

14. What State officer died at this period? What is said of Major Engelhard?

## CHAPTER LXXIII.

### LITERATURE AND AUTHORS.

A. D. 1880.

1880.

It would seem natural that the connection of Sir Walter Raleigh with the history of North Carolina should have added to the literary tendencies of a people blessed with such a godfather. He was so full of genius and devotion to letters that a special impetus ought thereby to have been given to the cultivation of a similar spirit among those who were to inhabit the land of his love. But, though Hariot, Lawson, and quaint Dr. Brickell were moved by such a spirit, the muses have not made the Old North State very remarkable in this respect.

2. North Carolina has always been, since its settlement, the home of some highly cultivated people, but all the while the mass of the population has possessed but little knowledge of books. This fact has been a great discouragement to the production of authors. Professions are not eagerly sought when not encouraged by the sympathy and support of the public.

3. In the period just preceding the revolt from British rule, Edward Moseley and Samuel Swann had been succeeded by men who possessed better literary opportunities and were more devoted to general culture than

had been these two able and accomplished lawyers. Moseley, with every requirement, could never bring to any of his many controversies with Governor Pollok and others such flowers of rhetoric as Judge Maurice Moore lavished upon his famous "Atticus Letter."

4. That production was just such an attack upon Governor Tryon, for his conduct toward the Regulators, as, a few years later, immortalized the English writer who is to this day only known by his signature, "Junius." When Judge Moore and his compeer, Cornelius Harnett, were growing old, William Hooper, Archibald Maclaine and the first James Iredell were young lawyers, who travelled to all the Superior Courts in the State and mingled belles-lettres largely with their inspections of Coke and the new lectures of Dr. Blackstone.

5. No man or woman then in North Carolina wrote books, as a profession, but the copious correspondence of that day, which yet survives, and upon which fifty cents were paid as postage for each letter, proves that, what was called "polite literature" engaged much of their attention. They made fine speeches, and Judge Iredell wrote a law book and frequent dissertation for the newspapers; but, beyond this and an occasional pamphlet, no literary tasks were undertaken.

6. Dr. Hugh Williamson was a man of similar habits. He was not only a skillful physician, but served with credit as a college professor and a member of the Convention at Philadelphia which formed the Federal Constitution, and he was also a member of the United States Congress. After ceasing to be a citizen of this State, he undertook to write its history, but achieved very moderate success as an author.

7. In the lapse of years, this task was again undertaken by judge Francois Xavier Martin. He came from France when a boy, and practiced law for seventeen years at New Bern. His compilation of the statutes and history of

North Carolina were invaluable labors, and will ever render him memorable in our annals. His dry statement of facts was generally correct, and he fell into very few errors, considering that he was the first to attempt anything like a full record of the State's history; and this was accomplished in his new home in Louisiana.

8. Joseph Seawell Jones was a remarkable man in many respects. He was brilliant in social life, and became well known to the literary and fashionable circles of New York and Washington. His love for North Carolina was intense, and the "Defence of the Revolutionary History of the State of North Carolina" that he wrote exhibits both talent and research. His infirmities of temper impaired his judgment, but his memory should ever be cherished in his native State for the services he rendered. After the gay scenes of his early manhood he spent many years on a Mississippi plantation. His last book was entitled "My Log Cabin in the Prairie."

9. Early in the present century the literary aspects of the State were brightened by men who had attended as students on Dr. Joseph, Caldwell's ministrations at Chapel Hill. His tendencies were all so practical that scientific and mechanical development was more encouraged than lighter subjects, but Hardy B. Croom, Joseph A. Hill, Judge A. D. Murphey and Rev. Drs. William Hooper and Francis L. Hawks were early distinguished for the elegance of their literary acquirements.

10. Judge William Gaston left just enough literary memorials to cause us to regret that he did not attempt more things of the kind. His ode to Carolina, and certain orations, will never be forgotten. Judge Robert Strange was also possessed of similar gifts. Philo Henderson, Walker Anderson and Abraham F. Morehead were largely gifted in poetic power. Each of them, at rare intervals, indulged in compositions that show what might have been accomplished had they been authors by profession and not



mere literary amateurs. The State, while possessing a number of excellent musicians, has not produced many musical compositions of special merit; but the two songs, the "Old North State," by Hon. William Gaston, and "Ho! for Carolina," by Rev. William B. Harrell, will ever remain favorites with our people.

11. Colonel John H. Wheeler and Rev. Dr. Calvin H. Wiley have both executed tasks that will render their names household words for ages to come. The historical contributions of the former are of the greatest possible value and are highly prized in every portion of the State. Rev. Drs. Hubbard, Foote, Hawks and Caruthers, and ex-Governors Graham and Swain have each been large contributors to the same cause. Rev. Dr. Charles F. Deems, Theo. H. Hill and the lamented Edwin W. Fuller added much to the fame of our writers. Professors Richard Sterling, William Bingham and Brantley York have contributed excellent educational textbooks, which do great credit to the talented authors. The recent "History of Rowan County," by Rev. Jethro Rumble, is both pleasing and valuable as a tribute to our local traditions.

12. In addition to the authors mentioned, there have been members of the Bar of North Carolina who have produced legal works of very great importance and value, not only to our own practitioners, but also to lawyers of other States. The most prominent writers of this class of literature were James Iredell, Edward Cantwell, Benjamin Swam, William Eaton, Jr., B. F. Moore, S. P. Olds, William H. Battle and Quentin Busbee, of former years; followed, in later times, by William H. Bailey and Fabius H. Busbee. These law books have been chiefly digests, revisals and manuals of practice.

13. Gifted women have not been wanting amid these literary people. Mrs. Cornelia Phillips Spencer, Mrs. Cicero W. Harris, Mrs. Mary Mason and Mrs. Mary Bayard Clarke have made valuable contributions to the literature

of their era. In the case of Miss Frances Fisher, under the assumed name of "Christian Reid," a most signal success is to be chronicled. She has given to the press many excellent stories and established a national fame as a novelist.

14. North Carolina has produced many able newspaper editors. Joseph Gales and his two sons, Edward J. Hale, ex-Governor W. W. Holden, Joseph A. Engelhard, William J. Yates, P. M. Hale, William L. Saunders, S. A. Ashe, T. B. Kingsbury, R. B. Creecy, Dossey Battle, C. W. Harris and other gifted men have wielded a wide influence on the people of this State.

#### QUESTIONS.

Of what does this lesson treat?

1. Who is the first literary man known to North Carolina? What is said of him? What others are mentioned in this connection?

2. What has been the general condition of literary matters in the State? Why have so few professional authors been seen?

3. What is said of Samuel Swan and Edward Moseley? Who was author of the "Atticus Letter? "

4. What mention is made of the "Atticus Letter? " Who were the literary men of that period?

5. What is said of the correspondence of that day? What was the extent of Judge Iredell's literary efforts?

6. What is said of the attainments of Dr. Hugh Williamson?

7. What other historians are mentioned, and what is said of them?

8. Tell something of the labors of Joseph Seawell Jones.
9. What produced an improvement in literary affairs early in the present century?
10. What is said of the ode to Carolina and its author? What writers of similar gifts are named? What is said of musical compositions?
11. What is said of the literary efforts of Colonel Wheeler and Dr Wiley? What other historical writers are mentioned who have contributed to the State valuable series of school books?
12. What members of the Bar have produced legal works of great value?
13. Can you tell something of the gifted women of the State?
14. What prominent editors has the State furnished?

## CHAPTER LXXIV.

### THE COLLEGES AND SCHOOLS.

A. D. 1880.

As was intended by the men who framed the Constitution of North Carolina at Halifax in 1776, the University of the State has long held the leadership of such institutions in the Commonwealth. The unfortunate and inexcusable interference of politicians with its management during the years of reconstruction only resulted in its temporary eclipse. The public refused it patronage when the new managers had installed a strange faculty in the seats of Governor Swain and his long honored coadjutors; but since the restoration of the ancient order of things, prosperity has returned both to the University and the beautiful village in which it is situated.

2. Many useful reforms have been accomplished in its curriculum and management. Perhaps never before was seen each devotion to study and compliance with the rules on the part of the students. The President, Dr. Kemp P. Battle, had been much identified with the institution, before assuming charge of its fortunes. His learning, combined with public experience, made him a wise ruler of the literary community over which he was called to preside; and the excellence of the new faculty is becoming every day more evident in the scholarship and bearing of the young men who are sent out from its halls.

3. Wake Forest College is the oldest of the sectarian colleges of the State, and has long vindicated its usefulness among the Baptist churches. Its first intended end was the education of young men for the ministry, but this has been largely augmented by the successes of its graduates in every other branch of human usefulness in our midst. The councils of the State, and the learned professions, have been greatly illustrated by men who laid the foundations of their success by diligent application to their duties while attending as students at Wake Forest.

4. In the recent death of Rev. Dr. W. M. Wingate, the institution lost a president who had given long and signal service; but, in his successor, Rev. Dr. T. H. Pritchard, perhaps even higher executive qualities are seen. Wake Forest catalogue has latterly contained about two hundred names of students, and, through the munificence of certain friends, the college has received handsome additions to the buildings and appliances.

5. Davidson College has also immensely developed in the last few years. Not only in increased patronage, but in the grade of scholarship a great advance has been achieved, so that few institutions in America afford higher and more thorough instruction than is now enjoyed by the young men who avail themselves of the advantages here offered.

6. The same things may be said of Trinity College, under the direction of Rev. Dr. B. Craven. The pulpits of the Methodist churches in North Carolina have long borne evidence of the literary and moral excellence imparted to the graduates, and in many respects the whole State has been benefited and elevated by contact with such men.

7. The female seminaries at Salem, Greensboro, Raleigh, Murfreesboro, Thomasville, Wilson, Kittrell, Oxford and Louisburg have also prospered in this era of general advancement among the North Carolina schools. Large

numbers of young ladies from other States are sent to them for education, and, in the noble emulation thus evolved, admirable instruction is obtained.

8. Among preparatory schools, that of Major Robert Bingham, at Mebaneville, in Alamance county, is, by common consent, supreme in North Carolina, and perhaps in the South, not only in number of students, but in the excellence of tuition, discipline and drill. On the catalogue of this institution will be found the names of young men from almost every State in the Union, and even some foreign countries are represented.

9. Other similar institutions have long flourished at Raleigh, Oxford, Greensboro, Kinston, LaGrange, Oak Ridge and elsewhere, and all of them are having a large influence for good upon the young men of the State. The Normal Schools at Chapel Hill and other towns have been largely attended by teachers, and great interest is also manifested in the graded schools. At no previous period has so much attention been bestowed upon matters of this kind by the people of North Carolina.

10. One of the most prominent of the graded schools in the State was organized at Raleigh in 1876, through the efforts of Capt. John E. Dugger, and named the "Centennial Graded School." The great success of this institution has led the citizens of other towns in the State to establish schools of like character. There are now to be found flourishing graded schools at Salisbury, Fayetteville, Goldsboro, Wilson, Greensboro, Charlotte, Wilmington, New Bern, Rocky Mount and Franklinton. Several towns also contain excellent schools of this description for the colored people, and their effectiveness is rapidly becoming apparent.

11. Soon after the conclusion of the late war—in the month of December, 1865—a colored school for both sexes was founded through the exertions of the Rev. H. M. Tupper, at the State capital, and called the "Raleigh Institute." On account of large donations from Elijah Shaw, of

Massachusetts, and Jacob Estey, of Vermont, it was, in 1875, changed in name; the male school then became "Shaw University," and the female department was called "Estey Seminary." Spacious and well-built edifices were reared on different portions of the grounds, and hundreds of colored pupils have been in attendance since its foundation.

12. In a different section of the city exists another seminary of similar character for the colored people, founded in 1867, by the Rev. Dr. James Brinton Smith. This is called "St. Augustine Normal School and Collegiate Institute." It has been for some years under the charge of Rev, John E, C. Smedes, and is under Episcopal patronage. Though not so largely attended as Shaw University, it is still of great benefit to the race it was intended to educate, and in this way is also a blessing to the community at large. Another excellent school for the colored people is located in Fayetteville, and others are to be found in various sections of the State.

13. Ever since the close of the late war, the colored people of North Carolina have shown a remarkable unanimity in their efforts to procure education for themselves and their children. In this desire they have been nobly aided by the white men and women, and their progress has been rapid. It is the belief of all that only in enlightened public sentiment can safety be found for our peace and liberties; and thus the State is doing all that can be effected for the culture and mental improvement of all classes of its population.

#### **QUESTIONS.**

1. What is this lesson about? What was the intent of the Halifax Constitution concerning the University? What is said of this institution during the years of reconstruction? When was it re- established?

2. How has the University been benefited by its new management?

3. What is said of the success of Wake Forest College?
4. Tell something of its management.
5. Give an account of the progress of Davidson College.
6. What is said of Trinity College and its work?
7. What female seminaries are now mentioned? What has been the result of their labors?
8. What have been the peculiar successes of the Bingham School?
9. Where are other fine schools for boys to be found? What other schools are mentioned?
10. What is said of the graded schools?
11. Give an account of the Raleigh institute for colored people? By what name is this institution now known?
12. What is said of the St. Augustine Normal School? Where are other excellent schools for the colored people to be found?
13. What is said of the efforts of the colored people to secure education? How have they been aided in their efforts?



## CHAPTER LXXV.

### CONCLUSION.

A. D. 1881.

In the financial prostration consequent upon the late war, a large debt was due from North Carolina to creditors who held the bonds of the State. That portion of these bonds which had been issued before the war was considered an honorable burden, that should be discharged by such payment as might be fixed by agreement between the State and the bondholders.

2. In this way a compromise was effected, and new bonds have been issued, which embrace a large portion of what was honestly due from the State to her creditors. For those which were made in defiance of the terms of the Constitution, and appropriated almost entirely by dishonest officials, no provision has been made, and doubtless, will never be.

3. When, in 1876, the great quadrennial contest for the Presidency of the Union again recurred; it was rightly considered one of the most momentous crises that had yet occurred in American history. The great issue was as to the continuance of State governments. The recent habits of General Grant in his dealing with Southern Commonwealths had virtually ignored their separate existence. In the strange and unprecedented action of Congress that resulted in the seating of Governor Hayes as President, the Federal troops

were withdrawn, and the people of the States left to administer their own affairs, and State governments were recognized.

4. Ex-Governor Vance was this year elected over Judge Thomas Settle to the Chief-Magistracy, as has already been stated. General M. W. Ransom and ex-Judge A. S. Merrimon were sent to the United States Senate, in the place of John Pool and General J. C. Abbott. Through the efforts of our Congressmen, many needed appropriations by Congress have been secured to North Carolina, and their result is specially noticeable in the great improvement of the ship channels of the Cape Fear and other rivers.

5. Upon the election of Governor Vance to the United States Senate, February 8th, 1879, he was succeeded by Lieutenant- Governor T. J. Jarvis. The latter had served as a captain in the Eighth North Carolina Regiment in the late war, and subsequently, as Speaker of the House of Representatives. Chief- Justice Pearson died in 1878, on his way to attend the session of the Supreme Court at Raleigh. W. N. H. Smith was appointed by Governor Vance as Chief-Justice in the place of Judge Pearson. At the next election by the people, Judge Smith, with John H. Dillard and Thomas S. Ashe as Associate Justices, was elected without opposition. Judge Dillard having resigned in 1881, Judge Thomas Ruffin was appointed his successor.

6. The public charities of the State have been enlarged and elevated in their ministrations. The recent adoption of the Orphan Asylum at Oxford as a recipient of the State's bounty, the erection of a colored Deaf and Dumb Asylum, the erection of an hospital for the insane of the colored race, and the great building at Morganton for additional accommodation to white lunatics, are only a portion of the recent humanities inaugurated by the General Assembly.

7. Perhaps in no other respect is so much physical improvement possible as in the development of the mining interests of the State. Capital from

abroad is flowing in, and from many counties fresh discoveries of mineral deposits are leading to the establishment of companies and firms for the purpose of working such mines. No other State of the Union presents such a variety of these rich and beautiful gifts of nature. The recent discovery, in the western part of the State, of a new gem, called the "Hiddenite," is attracting general attention and increasing the influx of visitors to the romantic scenery of the mountains.

8. For years past, it has been evident to intelligent observers that no bar exists to illimitable progression, both to North Carolina and the great American Republic, except in the senseless and cruel sectional hostilities. If the people, North and South, could only be induced to surrender their mutual distrust and aversion, thereby would disappear the last danger left to the American people.

1881.

9. God has blessed them year by year with over flowing barns. They are already one of the most numerous and wealthy of all nations; and yet, with so many blessings, sectional hatred had become the ruling emotion in countless breasts. Amid such a state of affairs, General James A. Garfield became President of the United States. On the 2d day of July he was shot down in Washington by an assassin. The news of this crime, when flashed over the electric wires, carried sorrow to the whole civilized world—and of all the cities of the Union, Raleigh was the first to express, by public meeting, the indignation of her people at the deed. In the weeks of the President's subsequent agony, as he lay battling with death, the hearts of the American people were strangely drawn together in the presence of this common national calamity.

10. When, on September 19th, it was announced that the long and painful struggle was ended, and the smitten statesman was at last eased of his

agony by death, such grief was seen in all America as had never before been witnessed. In the presence of such a death all cries of dissension ceased to be heard, and every party and race united in the general mourning.

11. The people of North Carolina, with one accord, desire that such a spirit may continue to animate the American people. As they were the first of all the States to urge the independence of America, so may they ever be found sustaining the Constitution and the Union that guarantee its perpetuity.

#### QUESTIONS.

1. What is said of the State at this period? What portion of this debt was considered an honorable burden?

2. How was a compromise effected in 1879? How does the State consider the unconstitutional debts?

3. What is said of the Presidential contest of 1876? What was the great issue? How had General Grant acted towards the Southern Commonwealth? What followed the seating of Governor Hayes as President?

4. What changes had been made in 1876 in North Carolina public officers? What appropriations from Congress has North Carolina received through efforts of her Senators?

5. Who succeeded Governor Vance? Who became Supreme Court Judges?

6. What mention is made of the public charities?

7. What tends greatly to the physical improvement of the State? What is said of North Carolina's mineral wealth?

8. What has retarded the State's progress?

9. What was the condition of this sectional feeling during the late Presidential campaign? What calamity befell the country on July 2d, 1881? How did the news of this event affect the whole world?

10. When did President Garfield die? What are the concluding reflections upon this great national calamity?

11. What is the sincere desire of every true North Carolina patriot?

## **APPENDIX.**

### **REMARKS.**

The Constitution of North Carolina is an important instrument to the people of the State. It contains all the fundamental principles of our State government, and ought to be carefully read and studied by every citizen of North Carolina.

In order that the boys and girls who study this history may more thoroughly understand the meaning and provisions of the State Constitution, a series of "Questions" has been prepared with great care by a distinguished citizen of the Commonwealth who is well acquainted with the subject.

The pupils will become better informed on this subject if only short lessons are given to them for preparation. About one page of the text will be sufficient for a lesson if properly studied, and by this means a much greater amount of information will be retained than if larger space is rapidly passed over.

### **CONSTITUTION OF THE STATE OF NORTH CAROLINA. PREAMBLE.**

WE, the people of the State of North Carolina, grateful to Almighty God, the Sovereign Ruler of nations, for the preservation of the American Union, and the existence of our civil, political and religious liberties, and

acknowledging our dependence upon Him for the continuance of those blessings to us and our posterity, do, for the more certain security thereof, and for the better government of this State, ordain and establish this Constitution:

#### **ARTICLE I. DECLARATION OF RIGHTS.**

That the great, general and essential principles of liberty and free government may be recognized and established, and that the relations of this State to the Union and government of the United States, and those of the people of this State to the rest of the American people may be defined and affirmed, we do declare:

**SECTION 1. That we hold it to be self-evident that all men are created equal; that they are endowed by their Creator with certain unalienable rights; that among these are life, liberty, the enjoyment of the fruits of their own labor, and the pursuit of happiness.**

SEC. 2. That all political power is vested in, and derived from, the people; all government of right originates from the people, is founded upon their will only, and is instituted solely for the good of the whole.

SEC. 3. That the people of this State have the inherent, sole and exclusive right of regulating the internal government and police thereof, and of altering and abolishing their Constitution and form of government whenever it may be necessary for their safety and happiness; but every such right should be exercised in pursuance of law and consistently with the Constitution of the United States.

SEC. 4. That this State shall ever remain a member of the American Union; that the people thereof are part of the American nation; that there is no right on the part of the State to secede, and that all attempts from

whatever source or upon whatever pretext, to dissolve said Union, or to sever said nation, ought to be resisted with the whole power of the state.

SEC. 5. That every citizen of the State owes paramount allegiance to the Constitution and government of the United States, and that no law or ordinance of the State in contravention or subversion thereof can have any binding force.

SEC. 6. The State shall never assume or pay, or authorize the collection of, any debt or obligation, express or implied, incurred in aid of insurrection or rebellion against the United States, or any claim for the loss or emancipation of any slave; nor shall the General Assembly assume or pay, or authorize the collection of any tax to pay either directly or indirectly, expressed or implied, any debt or bond incurred, or issued, by authority of the Convention of the year one thousand eight hundred and sixty-eight, nor any debt or bond incurred, or issued, by the Legislature of the year one thousand eight hundred and sixty-eight, either at its special session of the year one thousand eight hundred and sixty-eight, or at its regular sessions of the years one thousand eight hundred and sixty-eight and one thousand eight hundred and sixty-nine, and one thousand eight hundred and sixty-nine and one thousand eight hundred and seventy, except the bonds issued to fund the interest on the old debt of the State, unless the proposing to pay the same shall have first been submitted to the people, and by them ratified by the vote of a majority of all the qualified voters of the State, at a regular election held for that purpose.

SEC. 7. No man or set of men are entitled to exclusive or separate emoluments or privileges from the community but in consideration of public services.

SEC. 8. The legislative, executive and supreme judicial powers of the government ought to be forever separate and distinct from each other.



SEC. 9. All power of suspending laws, or the execution of laws, by any authority, without the consent of the representatives of the people, is injurious to their rights, and ought not to be exercised.

SEC. 10. All elections ought to be free.

SEC. 11. In all criminal prosecutions every man has the right to be informed of the accusation against him and to confront the accusers and witnesses with other testimony, and to have counsel for his defence, and not be compelled to give evidence against himself, or to pay costs, jail fees or necessary witness fees of the defence, unless found guilty.

SEC. 12. No person shall be put to answer any criminal charge, except as hereinafter allowed but by indictment, presentment or impeachment.

SEC. 13. No person shall be convicted of any crime but by the unanimous verdict of a jury of good and lawful men in open court. The Legislature may, however, provide other means of trial for petty misdemeanors, with the right of appeal.

SEC. 14. Excessive bail should not be required, nor excessives fines imposed, nor cruel or unusual punishments inflicted.

SEC. 15. General warrants, whereby any officer or messenger may be commanded to search suspected places, without evidence of the act committed, or to seize any person or persons not named, whose offence is not particularly described and supported by evidence, are dangerous to liberty, and ought not to be granted.

SEC. 16. There shall be no imprisonment for debt in this State, except in cases of fraud.

SEC. 17. No person ought to be taken, imprisoned or disseized of his freehold, liberties or privileges, or outlawed or exiled, or in any manner deprived of his life, liberty or property but by the law of the land.

SEC. 18. Every person restrained of his liberty is entitled to a remedy to inquire into the lawfulness thereof, and to remove the same, if unlawful; and such remedy ought not to be denied or delayed.

SEC. 19. In all controversies at law respecting property, the ancient mode of trial by jury is one of the best securities of the rights of the people, and ought to remain sacred and inviolable.

SEC. 20. The freedom of the press is one of the great bulwarks of liberty, and therefore ought never to be restrained, but every individual shall be held responsible for the abuse of the same.

SEC. 21. The privileges of the writ of habeas corpus shall not be suspended.

SEC. 22. As political rights and privileges are not dependent upon, or modified by property, therefore no property qualification ought to affect the right to vote or hold office.

SEC. 23. The people of the State ought not to be taxed, or made subject to the payment of any impost or duty, without the consent of themselves, or their representatives in General Assembly, freely given.

SEC. 24. A well regulated militia being necessary to the security of a free State, the right of the people to keep and bear arms shall not be infringed; and, as standing armies in time of peace are dangerous to liberty, they ought not to be kept up, and the military should be kept under strict subordination to, and governed by, the civil power. Nothing herein contained shall justify

the practice of carrying concealed weapons, or prevent the Legislature from enacting penal statutes against said practice.

SEC. 25. The people have a right to assemble together to consult for their common good, to instruct their representatives, and to apply to the Legislature for redress of grievance. But secret political societies are dangerous to the liberties of a free people, and should not be tolerated.

SEC. 26. All men have a natural and unalienable right to worship Almighty God according to the dictates of their own consciences, and no human authority should, in any case whatever, control or interfere with the rights of conscience.

SEC. 27. The people have the right to the privilege of education, and it is the duty of the State to guard and maintain that right.

SEC. 28. For redress of grievances, and for amending and strengthening the laws, elections should be often held.

SEC. 29. A frequent recurrence to fundamental principles is absolutely necessary to preserve the blessings of liberty.

SEC. 30. No hereditary emoluments, privileges or honors ought to be granted or conferred in this State.

SEC. 31. Perpetuities and monopolies are contrary to the genius of a free State, and ought not to be allowed.

SEC. 32. Retrospective laws, punishing acts committed before the existence of such laws, and by them only declared criminal, are oppressive unjust and incompatible with liberty, wherefore no ex post facto law ought to be made. No law taxing retrospectively sales, purchases, or other acts previously done, ought to be passed.

SEC. 33. Slavery and involuntary servitude, otherwise than for crime whereof the parties shall have been duly convicted, shall be, and are hereby, forever prohibited within the State.

SEC. 34. The limits and boundaries of the State shall be and remain as they now are.

SEC. 35. All courts shall be open; and every person for an injury done him in his lands, goods, person or reputation, shall have remedy by due course of law, and right and justice administered without sale, denial or delay.

SEC. 36. No soldier shall in time of peace be quartered in any house without the consent of the owner; nor in time of war but in a manner prescribed by law.

SEC. 37. This enumeration of rights shall not be construed to impair or deny others retained by the people; and all powers not herein delegated remain with the people.

## **ARTICLE II. LEGISLATIVE DEPARTMENT.**

**SECTION 1. The legislative authority shall be vested in two distinct branches, both dependent on the people, to wit: A Senate and a House of Representatives.**

SEC. 2. The Senate and House of Representatives shall meet biennially on the first Wednesday after the first Monday in January next after their election; and when assembled shall be denominated the General Assembly. Neither House shall proceed upon public business unless a majority of all the members are actually present.

SEC. 3. The Senate shall be composed of fifty Senators, biennially chosen by ballot.

SEC. 4. The Senate Districts shall be so altered by the General Assembly, at the first session after the return of every enumeration by order of Congress, that each Senate District shall contain, as near as may be, an equal number of inhabitants, excluding aliens and Indians not taxed, and shall remain unaltered until the return of another enumeration, and shall at all times consist of contiguous territory; and no county shall be divided in the formation of a Senate District, unless such county shall be equitably entitled to two or more Senators.

SEC. 5. The House of Representatives shall be composed of one hundred and twenty Representatives, biennially chosen by ballot, to be elected by the counties respectively, according to their population, and each county shall have at least one Representative in the House of Representatives, although it may not contain the requisite ratio of representation; this apportionment shall be made by the General Assembly at the respective times and periods when the districts for the Senate are herein before directed to be laid off.

SEC. 6. In making the apportionment in the House of Representatives, the ratio of representation shall be ascertained by dividing the amount of the population of the State, exclusive of that comprehended within those counties which do not severally contain the one hundred and twentieth part of the population of the State, by the number of Representatives, less the number assigned to such counties; and in ascertaining the number of the population of the State, aliens and Indians not taxed shall not be included. To each county containing the said ratio, and not twice the said ratio, there shall be assigned one Representative; to each county containing twice but not three times the said ratio, there shall be assigned two Representatives, and so on progressively, and then the remaining Representatives shall be assigned severally to, the counties having the largest fractions.

SEC. 7. Each member of the Senate shall not be less than twenty- five years of age, shall have resided in the State as a citizen two years, and shall have usually resided in the district for which he is chosen one year immediately preceding his election.

SEC. 8. Each member of the House of Representatives shall be a qualified elector of the State, and shall have resided in the county for which he is chosen for one year immediately preceding his election.

SEC. 9. In the election of all officers, whose appointment shall be conferred upon the General Assembly by the Constitution, the vote shall be viva voce.

SEC. 10. The General Assembly shall have power to pass general laws regulating divorce and alimony, but shall not have power to grant a divorce or secure alimony in any individual case.

SEC. 11. The General Assembly shall not have power to pass any private law to alter the name of any person or to legitimate any person not born in lawful wedlock, or to restore to the rights of citizenship any person convicted of an infamous crime, but shall have power to pass general laws regulating the same.

SEC. 12. The General Assembly shall not pass any private law, unless it shall be made to appear thirty days' notice of application to pass such a law shall have been given, under such directions and in such manner as shall be provided by law.

SEC. 13. If vacancies shall occur in the General Assembly by death, resignation or otherwise, writs of election shall be issued by the Governor under such regulations as may be prescribed by law.

SEC. 14. No law shall be passed to raise money on the credit of the State, or to pledge the faith of the State, directly or indirectly, for the payment of any debt, or to impose any tax upon the people of the State, or to allow the counties, cities or towns to do so, unless the bill for the purpose shall have been read three several times in each House of the General Assembly, and passed three several readings, which readings shall have been on three different days, and agreed to by each House respectively, and unless the yeas and nays on the second and third reading of the bill shall have been entered on the journal.

SEC. 15. The General Assembly shall regulate entails in such manner as to prevent perpetuities.

SEC. 16. Each House shall keep a journal of its proceedings, which shall be printed and made public immediately after the adjournment of the General Assembly.

SEC. 17. Any member of either House may dissent from, and protest against, any act or resolve which he may think injurious to the public, or any individual, and have the reason of his dissent entered on the journal.

SEC. 18. The House of Representatives shall choose their own Speaker and other officers.

SEC. 19. The Lieutenant-Governor shall preside in the Senate, but shall have no vote unless it may be equally divided.

SEC. 20. The Senate shall choose its other officers, and also a Speaker (pro tempore) in the absence of the Lieutenant-Governor, or when he shall exercise the office of Governor.

SEC. 21. The style of the acts shall be: "The General Assembly of North Carolina do enact"

SEC. 22. Each House shall be judge of the qualifications and elections of its own members, shall sit upon its own adjournments from day to day, prepare bills to be passed into laws; and the two Houses may also jointly adjourn to any future day, or other place.

SEC. 23. All bills and resolutions of a legislative nature shall be read three times in each House before they pass into laws; and shall be signed by the presiding officers of both Houses.

SEC. 24. Each member of the General Assembly, before taking his seat, shall take an oath or affirmation, that he will support the Constitution and laws of the United States, and the Constitution of the State of North Carolina and will faithfully discharge his duty as a member of the Senate or House of Representatives.

SEC. 25. The terms of office for Senators and members of the House of Representatives shall commence at the time of their election.

SEC. 26. Upon motion made and seconded in either House, by one-fifth, of the members present, the yeas and nays upon any question shall be taken and entered upon the journals.

SEC. 27. The election for members of the General Assembly shall be held for the respective districts and counties, at the places where they are now held, or may be directed hereafter to be held, in such manner as may be prescribed by law, on the first Thursday in August in the year one thousand eight hundred and seventy, and every two years thereafter. But the General Assembly may change the time of holding the elections.



SEC. 28. The members of the General Assembly for the term for which they have been elected, shall receive as a compensation for their services the sum of four dollars per day for each day of their session, for a period not exceeding sixty days; and should they remain longer in session, they shall serve without compensation. They shall also be entitled to receive ten cents per mile, both while coming to the seat of government and while returning home, the said distance to be computed by the nearest line or route of public travel. The compensation of the presiding officers of the two Houses shall be six dollars per day and mileage. Should an extra session of the General Assembly be called, the members and presiding officers shall receive a like rate of compensation for a period not exceeding twenty days.

#### **ARTICLE III. EXECUTIVE DEPARTMENT.**

**SECTION 1. The Executive Department shall consist of a Governor, in whom shall be vested the supreme executive power of the State, a Lieutenant Governor, a Secretary of State, an Auditor, a Treasurer, a Superintendent of Public Instruction, and an Attorney-General, who shall be elected for a term of four years, by the qualified electors of the State, at the same time and place, and in the same manner as members of the General Assembly are elected. Their term of office shall commence on the first day of January next after their election, and continue until their successors are elected and qualified: Provided, that the officers first elected shall assume the duties of their office ten days after the approval of this Constitution by the Congress of the United States, and shall hold their offices four years from after the first day of January.**

SEC. 2. No person shall be eligible as Governor or Lieutenant- Governor, unless he shall have attained the age of thirty years, shall have been a citizen of the United States five years, and shall have been a resident of this State for two years next before the election; nor shall the person elected to either of these two offices be eligible to the same office more than four years in any term of eight years, unless the office shall have been cast upon him as Lieutenant-Governor or President of the Senate.

SEC. 3. The return of every election for officers of the Executive Department shall be sealed up and transmitted to the seat of government by the returning officers, directed to the Speaker of the House of

Representatives, who shall open and publish the same in the presence of a majority of the members of both Houses of the General Assembly. The persons having the highest number of votes respectively shall be declared duly elected; but if two or more be equal and highest in vote for the same office, then one of them shall be chosen by joint ballot of both Houses of the General Assembly. Contested elections shall be determined by a joint ballot of both Houses of the General Assembly, in such manner as shall be prescribed-by law.

SEC. 4. The Governor, before entering upon the duties of his office, shall, in the presence of the members of both branches of the General Assembly, or before any Justice of the Supreme Court, take an oath or affirmation that he will support the Constitution and laws of the United States, and of the State of North Carolina, and that he will faithfully perform the duties appertaining to the office of Governor to which he has been elected.

SEC. 5. The Governor shall reside at the seat of government of this State, and he shall, from time to time, give the General Assembly information of the affairs of the State, and recommend to their consideration such measures as he shall deem expedient.

SEC. 6. The Governor shall have power to grant reprieves, commutations and pardons, after conviction, for all offences (except in case of impeachment), upon such conditions as he may think proper, subject to such regulations as may be provided by law relative to the manner of applying for pardons. He shall biennially communicate to the General Assembly each case of reprieve, commutation or pardon granted, stating the name of each convict, the crime for which he was convicted, the sentence and its date, the date of commutation, pardon or reprieve, and the reasons therefor.

SEC. 7. The officers of the Executive Department and of the public institutions of the State shall, at least five days previous to each regular session of the General Assembly, severally report to the Governor, who shall transmit such reports, with his message, to the General Assembly; and the Governor may, at any time, require information in writing from the officers in the Executive Department upon any subject relating to the duties of their respective offices, and shall take care that the laws be faithfully executed.

SEC. 8. The Governor shall be Commander-in-Chief of the militia of the State, except when they shall be called into the service of the United States.

SEC. 9. The Governor shall have power, on extraordinary occasions, by and with the advice of the Council of State, to convene the General Assembly ? ? into? ? extra session by his proclamation, stating therein the purpose or purposes for which they are thus convened.

SEC. 10. The Governor shall nominate, and by and with the advice and consent of a majority of the Senators elect, appoint all officers, whose offices are established by this Constitution, and whose appointments are not otherwise provided for.

SEC. 11. The Lieutenant-Governor shall be President of the Senate, but shall have no vote unless the Senate be equally divided. He shall, whilst acting as President of the Senate, receive for his services the same pay which shall, for the same period, be allowed to the Speaker of the House of Representatives; and he shall receive no other compensation except when he is acting as Governor.

SEC. 12. In case of the impeachment of the Governor, his failure to qualify, his absence from the State, his inability to discharge the duties of his office, or, in case the office of Governor shall in anywise become

vacant, the powers, duties and emoluments of the office shall devolve upon the Lieutenant- Governor until the disabilities shall cease, or a new Governor shall be elected and qualified. In every case in which the Lieutvaant-Governor shall be unable to preside over the Senate, the Senators shall elect one of their own number President of their body, and the powers, duties and emoluments of the office of Governor shall devolve upon him whenever the Lieutenant- Governor shall, for any reason, be prevented from discharging the duties of such office as above provided, and he shall continue as acting Governor until the disabilities are removed, or a new Governor or Lieutenant-Governor shall be elected and qualified. Whenever, during the recess of the General Assembly, it shall become necessary for the President of the Senate to administer the government, the Secretary of State shall convene the Senate, that they may elect such President.

SEC. 13. The respective duties of the Secretary of State, Auditor, Treasurer, Superintendent of Public Instruction and Attorney General shall be prescribed by law. If the office of any of the officers shall be vacated by death, resignation or otherwise, it shall be the duty of the Governor to appoint another until the disability be removed or his successor be elected and qualified. Every such vacancy shall be filled by election at the first general election that occurs more than thirty days after the vacancy has taken place, and the person chosen shall hold the office for the remainder of the unexpired term fixed in the first section of this Article.

SEC. 14. The Secretary of State, Auditor, Treasurer and Superintendent of Public Instruction shall constitute, ex officio, the Council of State, who shall advise the Governor in the execution of his office, and three of whom shall constitute a quorum; their advice and proceedings in this capacity shall be entered in a journal to be kept for this purpose exclusively, and signed by the members present, from any part of which any member may enter his

dissent; and such journal shall be placed before the General Assembly when called for by either House. The Attorney-General shall be, ex officio, the legal adviser of the Executive Department.

SEC. 15. The officers mentioned in this Article shall, at stated periods, receive for their services a compensation to be established by law, which shall neither be increased nor diminished during the time for which they shall have been elected, and the said officers shall receive no other emolument or allowance.

SEC. 16. There shall be a seal of the State, which shall be kept by the Governor, and used by him, as occasion may require, and shall be called "the Great Seal of the State of North Carolina." All grants and commissions shall be entered in the name and by the authority of the State of North Carolina, sealed with the "Great Seal of the State," signed by the Governor and countersigned by the Secretary of State.

SEC. 17. The General Assembly shall establish a Department of Agriculture, Immigration and Statistics, under such regulations as may best promote the agricultural interests of the State, and shall enact laws for the adequate protection and encouragement of sheep husbandry.

#### **ARTICLE IV. JUDICIAL. DEPARTMENT.**

**SECTION 1. The distinctions between actions at law and suits in equity, and the forms of all such actions and suits, shall be abolished; and there shall be in this State but one form of action for the enforcement or protection of private rights or the redress of private wrongs, which shall be denominated a civil action; and every action prosecuted by the people of the State as a party, against a person charged with a public offence, for the punishment of the same, shall be termed a criminal action. Feigned issues shall also be abolished, and the fact at issue tried by order of Court before a jury.**

SEC. 2. The judicial power of the State shall be vested in a Court for the trial of Impeachments, a Supreme Court, Superior

Courts, Courts of Justices of the Peace, and such other courts inferior to the Supreme Court as may be established by law.

SEC. 3. The Court for the trial of impeachments shall be the Senate. A majority of the members shall be necessary to a quorum, and the judgment shall not extend beyond removal from and disqualification to hold office in this State; but the party shall be liable to indictment and punishment according to law.

SEC. 4. The House of Representatives solely shall have the power of impeaching. No person shall be convicted without the concurrence of two-thirds of the Senators present. When the Governor is impeached, the Chief-Justice shall preside.

SEC 5. Treason against the State shall consist only in levying war against it, or in adhering to its enemies, giving them aid and comfort. No person shall be convicted of treason unless on the testimony of two witnesses to the same overt act, or on confession in open court. No conviction of treason or attainder shall work corruption of blood or forfeiture.

SEC. 6. The Supreme Court shall consist of a Chief-Justice and two Associate Justices.

SEC. 7. The terms of the Supreme Court shall be held in the city of Raleigh, as now, until otherwise provided by the General Assembly.

SEC. 8. The Supreme Court shall have jurisdiction to review, upon appeal, any decision of the courts below, upon any matter of law or legal inference. And the jurisdiction of said Court over "issues of fact" and "questions of fact" shall be the same exercised by it before the adoption of the Constitution of one thousand eight hundred and sixty-eight, and the

Court shall have the power to issue any remedial writs necessary to give it a general supervision and control over the proceedings of the inferior courts.

SEC. 9. The Supreme Court shall have original jurisdiction to hear claims against the State, but its decisions shall be merely recommendatory; no process in the nature of execution shall issue thereon; they shall be reported to the next session of the General Assembly for its action.

SEC. 10. The State shall be divided into nine judicial districts, for each of which a Judge shall be chosen; and there shall be held a Superior Court in each county at least twice in each year, to continue for such time in each county as may be prescribed by law. But the General Assembly may reduce or increase the number of districts.

SEC. 11. Every Judge of the Superior Court shall reside in the district for which he is elected. The Judges shall preside in the Courts of the different districts successively, but no Judge shall hold the Courts in the same district oftener than once in four years; but in the case of the protracted illness of the Judge assigned to preside in any district, or of any other unavoidable accident to him by reason of which he shall be unable to preside, the Governor may require any Judge to hold one or more specified terms in said districts, in lieu of the Judge assigned to hold the Courts of the said districts.

SEC. 12. The General Assembly shall have no power to deprive the Judicial Department of any power or jurisdiction which rightfully pertains to it as a coordinate department of the government; but the General Assembly shall allot and distribute that portion of this power and jurisdiction, which does not pertain to the Supreme Court, among the other courts prescribed in this Constitution or which may be established by law, in such manner as it may deem best; provide also a proper system of appeals; and regulate by law, when necessary, the methods of proceeding in

the exercise of their powers, of all the courts below the Supreme Court, so far as the same may be done without conflict with other provisions of this Constitution.

SEC. 13. In all issues of fact, joined in any court, the parties may waive the right to have the same determined by a jury; in which case the finding of the Judge upon the facts shall have the force and effect of a verdict by a jury.

SEC. 14. The General Assembly shall provide for the establishment of Special Courts, for the trial of misdemeanors, in cities and towns where the same may be necessary.

SEC. 15. The Clerk of the Supreme Court shall be appointed by the Court, and shall hold his office for eight years.

SEC. 16. A Clerk of the Superior Court for each county shall be elected by the qualifier voters thereof, at the time and in the manner prescribed by law for the election of members of the General Assembly.

SEC. 17. Clerks of the Superior Courts shall hold their offices for four years.

SEC. 18. The General Assembly shall prescribe and regulate the fees, salaries and emoluments of all officers provided for in this Article; but the salaries of the Judges shall not be diminished during their continuance in office.

SEC. 19. The laws of North Carolina, not repugnant to this Constitution, or the Constitution and laws of the United States, shall be in force until lawfully altered.



SEC. 20. Actions at law, and suits in equity, pending when this Constitution shall go into effect, shall be transferred to the courts having jurisdiction thereof, without prejudice by reason of the change; and all such actions and suits commenced before, and pending at the adoption by the General Assembly of the rules of practice and procedure herein provided for, shall be heard and determined according to the practice now in use, unless otherwise provided for by said rules.

SEC. 21. The Justices of the Supreme Court shall be elected by the qualified voters of the State, as is provided for the election of members of the General Assembly. They shall hold their offices for eight years. The Judges of the Superior Courts, elected at the first election under this amendment, shall be elected in like manner as is provided for Justices of the Supreme Court, and shall hold their offices for eight years. The General Assembly may, from time to time, provide by law that the Judges of the Superior Courts, chosen at succeeding elections, instead of being elected by the voters of the whole State, as is herein provided for, shall be elected by the voters of their respective districts.

SEC. 22. The Superior Courts shall be, at all times, open for the transaction of all business within their jurisdiction, except the trial of issues of fact requiring a jury.

SEC. 23. A Solicitor shall be elected for each Judicial District by the qualified voters thereof, as is prescribed for members of the General Assembly, who shall hold office for the term of four years, and prosecute on behalf of the State, in all criminal actions in the Superior Courts, and advise the officers of justice in his district.

SEC. 24. In each county a Sheriff and Coroner shall be elected by the qualified voters thereof, as is prescribed for members of the General Assembly, and shall hold their offices for two years. In each township there

shall be a Constable elected in like manner by the voters thereof, who shall hold his office for two years. When there is no Coroner in the county, the Clerk of the Superior Court for the county may appoint one for special cases. In case of a vacancy existing for any cause in any of the offices created by this section, the Commissioners for the county may appoint to such office for the unexpired term.

SEC. 25. All vacancies occurring in the offices provided for by this Article of the Constitution shall be filled by the appointments of the Governor, unless otherwise provided for, and the appointees shall hold their places until the next regular election for members of the General Assembly, when elections shall be held to fill such offices. If any person, elected or appointed to any of said offices, shall neglect and fail to qualify, such office shall be appointed to, held and filled as provided in case of vacancies occurring therein. All incumbents of said offices shall hold until their successors are qualified.

SEC. 26. The officers elected at the first election held under this Constitution shall hold their offices for the terms prescribed for them respectively, next ensuing after the next regular election for members of the General Assembly. But their terms shall begin upon the approval of this Constitution by the Congress of the United States.

SEC. 27. The several Justices of the Peace shall have jurisdiction, under such regulations as the General Assembly shall prescribe, of civil actions founded on contract, wherein the sum demanded shall not exceed two hundred dollars, and wherein the title to real estate shall not be in controversy; and of all criminal matters arising within their counties where the punishment cannot exceed a fine of fifty dollars, or imprisonment for thirty days. And the General Assembly may give to Justice of the Peace jurisdiction of other civil actions wherein the value of the property in

controversy does not list? exceed fifty dollars. When an issue of fact may be joined before a Justice, on demand of either party thereto, he shall cause a jury of six men to be summoned, who shall try the same. The party against whom judgment shall be rendered in any civil action may appeal to the Superior Court from the same. In all cases of a criminal nature, the party against whom judgment is given may appeal to the Superior Court, where the matter shall be heard anew. In all cases brought before a Justice, he shall make a record of the proceedings, and file the same with the Clerk of the Superior Court for his county.

SEC. 28. When the office of Justice of the Peace shall become vacant otherwise than by expiration of the term, and in case of a failure by the voters of any district to elect, the Clerk of the Superior Court for the county shall appoint to fill the vacancy for the unexpired term.

SEC. 29. In case the office of Clerk of a Superior Court for a county shall become vacant otherwise than by the expiration of the term, and in case of a failure by the people to elect, the Judge of the Superior Court for the county shall appoint to fill the vacancy until an election can be regularly held.

SEC. 30. In case the General Assembly shall establish other courts inferior to the Supreme Court, the presiding officers and clerks thereof shall be elected in such manner as the General Assembly may from time to time prescribe, and they shall hold their offices for a term not exceeding eight years.

SEC. 31. Any Judge of the Supreme Court, or of the Superior Courts, and the presiding officers of such courts inferior to the Supreme Court, as may be established by law, may be removed from office for mental or physical inability, upon a concurrent resolution of two thirds of both Houses of the General Assembly. The Judge or presiding officer against whom the General Assembly may be about to proceed, shall receive notice thereof,

accompanied by a copy of the causes alleged for his removal, at least twenty days before the day on which either House of the General Assembly shall act thereon.

SEC. 32. Any Clerk of the Supreme Court, or of the Superior Courts, or of such courts inferior to the Supreme Court as may be established by law, may be removed from office for mental or physical inability: the Clerk of the Supreme Court by the Judges of said courts, the Clerks of the Superior Courts by the Judge riding the district, and the Clerks of such courts inferior to the Supreme Court as may be established by law, by the presiding officers of said courts. The Clerk against whom proceedings are instituted shall receive notice thereof, accompanied by a copy of the causes alleged for his removal, at least ten days before the day appointed to act thereon, and. the Clerk shall be entitled to an appeal to the next term of the Superior Court, and thence to the Supreme Court, as provided in other cases of appeals.

SEC. 33. The amendments made to the Constitution of North Carolina by this Convention shall not have the effect to vacate any office or term off office now existing under the Constitution of the State, and filled, or held, by virtue of any election or appointment under the said Constitution, and the laws of the State made in pursuance thereof.

#### **ARTICLE V. REVENUE AND TAXATION.**

**SECTION 1. The General Assembly shall levy a capitation tag on every male inhabitant of the State over twenty-one and under fifty years of age, which shall be equal on each to the tax on property valued at three hundred dollars in cash. The commissioners of the several counties may exempt from capitation tax in special cases, on account of poverty and infirmity, and the State and county capitation tax combined shall never exceed two dollars on the head.**

SEC. 2. The proceeds of the State and county capitation tax shall be applied to the purposes of education and the support of the poor, but in no

one year shall more than twenty-five percent thereof be appropriated to the latter purpose.

SEC. 3. Laws shall be passed taxing, by a uniform rule, all moneys, credits, investments in bonds, stocks, joint-stock companies, or otherwise; and, also, all real and personal property, according to its true value in money. The General Assembly may also tax trades, professions, franchises and incomes, provided that no income shall be taxed when the property from which the income is derived is taxed.

SEC. 4. Until the bonds of the State shall be at par, the General Assembly shall have no power to contract any new debt or pecuniary obligation in behalf of the State, except to supply a casual deficit, or for suppressing invasion or insurrection, unless it shall in the same bill levy a special tag to pay the interest annually. And the General Assembly shall have no power to give or lend the credit of the State in aid of any person, association or corporation, except to aid in the completion of such railroads as may be unfinished at the time of the adoption of this Constitution, or in which the State has a direct pecuniary interest, unless the subject be submitted to a direct vote of the people of the State, and be approved by a majority of those who shall vote thereon.

SEC. 5. Property belonging to the State or to municipal corporations shall be exempt from taxation. The General Assembly may exempt cemeteries, and property held for educational, scientific, literary, charitable or religious purposes; also wearing apparel, arms for muster, household and kitchen furniture, the mechanical and agricultural implements of mechanics and farmers; libraries and scientific instruments, or any other personal property, to a value not exceeding three hundred dollars.

SEC. 6. The taxes levied by the commissioners of the several counties for county purposes shall be levied in like manner with the State taxes, and

shall never exceed the double of the State taxes; except for a special purpose, and with the special approval of the General Assembly.

SEC. 7. Every act of the General Assembly levying a tax shall state the special object to which it is to be applied, and it shall be applied to no other purpose.

#### **ARTICLE VI. SUFFRAGE AND ELIGIBILITY TO OFFICE.**

**SECTION 1. Every male person born in the United States, and every male person who has been naturalized, twenty-one years old or upward, who shall have resided in the State twelve months next preceding the elections, and ninety days in the county in which he offers to vote, shall be deemed an elector. But no person, who, upon conviction or confession in open court, shall be adjudged guilty of felony, or any other crime infamous by the laws of this State, and hereafter committed, shall be deemed an elector, unless such person shall be restored to the rights of citizenship in a man, nor prescribed by law.**

SEC. 2. It shall be the duty of the General Assembly to provide, from time to time, for the registration of all electors; and no person shall be allowed to vote without registration, or to register, without first taking an oath or affirmation to support and maintain the Constitution and laws of the United States, and the Constitution and laws of North Carolina not inconsistent therewith.

SEC. 3. All elections by the people shall be by ballot, and all elections by the General Assembly shall be viva voce.

SEC. 4. Every voter, except as hereinafter provided, shall be eligible to office; but before entering upon the discharge of the duties of his office, he shall take and subscribe the following oath: "I, —, do solemnly swear (or affirm) that I will support and maintain the Constitution and laws of the United States, and the Constitution and laws of North Carolina not inconsistent therewith, and that I will faithfully discharge the duties of my office. So help me, God."

SEC. 5. The following classes of persons shall be disqualified for office. First, All persons who shall deny the being of Almighty God. Second, All persons who shall have been convicted of treason, perjury, or of any other infamous crime, since becoming citizens of the United States, or of corruption, or malpractice in office, unless such person shall have been legally restored to the rights of citizenship.

#### **ARTICLE VII. MUNICIPAL CORPORATIONS.**

**SECTION 1. In each county, there shall be elected biennially by the qualified voters thereof, as provided for the election of members of the General Assembly, the following officers: a Treasurer, Register of Deeds, Surveyor and five Commissioners.**

SEC. 2. It shall be the duty of the Commissioners to exercise a general supervision and control of the penal and charitable institutions, schools, roads, bridges, levying of taxes and finances of the county, as may be prescribed by law The Register of Deeds shall be, ex officio, Clerk of-the Board of Commissioners.

SEC. 3. It shall be the duty of the Commissioners first elected in each county to divide the came into convenient districts, to determine the boundaries mud prescribe the name of the said districts, and to report the same to the General Assembly before the first day of January, one thousand eight hundred and sixty- nine.

SEC. 4. Upon the approval of the reports provided for in the foregoing section, by the General Assembly, the said districts shall have corporate powers for the necessary purposes of local government, and shall be known as townships.

SEC. 5. In each township there shall be biennially elected, by the qualified voters thereof, a Clerk and two Justices of the Peace, who shall constitute a Board of Trustees, and shall, under the supervision of the

County Commissioners, have control of the taxes and finances, roads and bridges of the townships, as may be prescribed by law. The General Assembly may provide for the election of a larger number of the Justices of the Peace in cities and towns, and in those townships in which cities and towns are situated. In every township there shall also be biennially elected a School Committee, consisting of three persons, whose duty shall be prescribed by law.

SEC. 6. The Township Board of Trustees shall assess the taxable property of their townships and make return to the County Commissioners for revision, as may be prescribed by law. The Clerk shall be, ex officio, Treasurer of the township.

SEC. 7. No county, city, town or other municipal corporation shall contract any debt, pledge its faith, or loan its credit, nor shall any tax be levied, or collected by any officers of the same, except for the necessary expenses thereof, unless by a vote of a majority of the qualified voters therein.

SEC. 8. No money shall be drawn from any county or township treasury except by authority of law.

SEC. 9. All taxes levied by any county, city, town, or township, shall be uniform and ad valorem, upon all property in the same, except property exempted by this Constitution.

SEC. 10. The county officers first elected under the provisions of this Article shall enter upon their duties ten days after the approval of this Constitution by the Congress of the United States.

SEC. 11. The Governor shall appoint a sufficient number of Justices of the Peace in each county, who shall hold their places until sections four, five



and six of this Article shall have been carried into effect.

SEC. 12. All charters, ordinances and provisions relating to municipal, corporations shall remain in force until legally changed, unless inconsistent with the provisions of this Constitution.

SEC. 13. No county, city, town or other municipal corporation shall assume to pay, nor shall any tax be levied or collected for the payment of any debt, or the interest upon any debt, contracted directly or indirectly in aid or support of the rebellion.

SEC. 14. The General Assembly shall have full power by statute to modify, change, or abridge any and all of the provisions of this Article, and substitute others in their place, except sections seven, nine and thirteen.

#### **ARTICLE VIII. CORPORATIONS OTHER THAN MUNICIPAL.**

**SECTION 1. Corporations may be formed under general laws; but shall not be created by special act, except for municipal purposes, and in cases where, in the judgment of the Legislature, the object of the corporations cannot be attained under general laws. All general laws and special acts, passed pursuant to this section, may be altered from time to time, or repealed.**

SEC. 2. Dues from corporations shall be secured by such individual liabilities of the corporation and other means, as may be prescribed by law.

SEC. 3. The term corporation, as used in this Article, shall be construed to include all association and joint-stock companies, having any of the powers and privileges of corporations, not possessed by individuals or partnerships. And all corporations shall have the right to sue, and shall be subject to be sued in all courts, in like cases as natural persons.

SEC. 4. It shall be the duty of the Legislature to provide for the organization of cities, towns and incorporated villages, and to restrict their

power of taxation, assessment, borrowing money, contracting debts and loaning their credits, so as to prevent abuses in assessment and in contracting debts by such municipal corporations.

#### **ARTICLE IX. EDUCATION.**

**SECTION 1. Religion, morality and knowledge being necessary to good government and the happiness of mankind, schools and the means of education shall forever be encouraged.**

SEC. 2. The General Assembly, at the first session under this Constitution, shall provide by taxation and otherwise, for a general and uniform system of public schools, wherein tuition shall be free of charge to all the children of the State between the ages of six and twenty-one years. And the children of the white race and the children of the colored race shall be taught in separate public schools; but there shall be no discrimination in favor of, or to the prejudice of either race.

SEC. 3. Each county of the State shall be divided into a convenient number of districts, in which one or more public schools shall be maintained at least four months in every year; and if the Commissioners of any county shall fail to comply with the aforesaid requirements of this section they shall be liable to indictment.

SEC. 4. The proceeds of all lands that have been or hereafter may be granted by the United States to this State, and not otherwise appropriated by this State or the United States; also, all moneys, stocks, bonds, and other property, now belonging to any State fund for purposes of education; also, the net proceeds of all sales of the swamp lands belonging to the State, and all other grants, gifts or devises that have been or hereafter may be made to the State, and not otherwise appropriated by the State, or by the term of the grant, gift or devise, shall be paid into the State treasury; and, together with so touch of the ordinary revenue of the State as may be by law set apart for

that purpose, shall be faithfully appropriated for establishing and maintaining in this State a system of free public schools, and for no other uses or purposes whatsoever.

SEC. 5. All moneys, stocks, bonds, and other property, belonging to a county school fund; also, the net proceeds from the sale of ? ? estrays? ? ; also, the clear proceeds of all penalties and forfeitures, and of all fines collected in the several counties for any breach of the penal or military laws of the State; and all moneys which shall be paid by persons as an equivalent for exemption from military duty, shall belong to and remain in the several counties, and shall be faithfully appropriated for establishing and maintaining free public schools in the several counties of this State: Provided, That the amount collected in each county shall be annually reported to the Superintendent of Public Instruction.

SEC. 6. The General Assembly shall have power to provide for the election of Trustees of the University of North Carolina, in whom, when chosen, shall be vested all the privileges, rights, franchises and endowments thereof, in anywise granted to or conferred upon the Trustees of said University; and the General Assembly may make such provisions, laws and regulations from time to time, as may be necessary and expedient for the maintenance and management of said University.

SEC. 7. The General Assembly shall provide that the benefits of the University, As far as practicable, be extended to the youth of the State free of expense for tuition; also, that all the property which has heretofore accrued to the State, or shall hereafter accrue, from escheats, unclaimed dividends, or distributive shares of the estates of deceased persons, shall be appropriated to the use of the University.

SEC. 8. The Governor, Lieutenant-Governor, Secretary of State, Treasurer, Auditor, Superintendent of Public Instruction and

Attorney-General shall constitute a State Board of Education.

SEC. 9. The Governor shall be President, and the Superintendent of Public Instruction shall be Secretary of the Board of Education.

SEC. 10. The Board of Education shall succeed to all the powers and trusts of the President and Directors of the Literary Fund of North Carolina, and shall have full power to legislate and make all needful rules and regulations in relation to free public schools and the educational fund of the State; but all acts, rules and regulations of said Board may be altered, amended or repealed by the General Assembly, and when so altered amended or repealed, they shall not be re-enacted by the Board.

SEC. 11. The first session of the Board of Education shall be held at the capitol of the State, within fifteen days after the organization of the State government under this Constitution; the time of future meetings may be determined by the Board.

SEC. 12. A majority of the Board shall constitute a quorum for the transaction of business.

SEC. 13. The contingent expenses of the Board shall be provided by the General Assembly.

SEC. 14. As soon as practicable after the adoption of this Constitution, the General Assembly shall establish and maintain, in connection with the University, a Department of Agriculture, of Mechanics, of Mining, and of Normal Instruction.

SEC. 15. The General Assembly is hereby empowered to enact that every child, of sufficient mental and physical ability, shall attend the public

schools during the period between the ages of six and eighteen years for a term not less than sixteen months, unless educated by other means.

#### **ARTICLE X. HOMESTEAD AND EXEMPTIONS.**

**SECTION 1. The personal property of any resident of this State, to the value of five hundred dollars, to be selected by such resident, shall be, and is hereby exempted from sale under execution, or other final process of any court issued for the collection of any debt.**

SEC. 2. Every homestead, and the dwellings and buildings used therewith, not exceeding in value one thousand dollars, to be selected by the owner thereof, or in lieu thereof, at the option of the owner, any lot in a city, town or village, with the dwellings and buildings used thereon, owned and occupied by any resident of this State, and not exceeding the value of one thousand dollars, shall be exempt from sale under execution, or other final process obtained on any debt. But no property shall be exempt from sale for taxes, or for payment of obligations contracted for the purchase of said premises.

SEC. 3. The homestead, after the death of the owner thereof, shall be exempt from the payment of any debt during the minority of his children or any one of them.

SEC. 4. The provisions of sections one and two of this Article shall not be so construed as to prevent a laborer's lien for work done and performed for the person claiming such exemption, or a mechanic's lien for work done on the premises.

SEC. 5. If the owner of a homestead die, leaving a widow, but no children, the same shall be exempt from the debts of her husband, and the rents and profits thereof shall inure to her benefit during her widowhood, unless she be the owner of a homestead in her own right.

SEC. 6. The real and personal property of any female in this States acquired before marriages and all property, real and personal, to which she may, after marriage, become in any manner entitled, shall be and remain the sole and separate estate and property of such female, and shall not be liable for any debts, obligations or engagements of her husband, and may be devised and bequeathed, and, with the written consent of her husband, conveyed by her as if she was unmarried.

SEC. 7. The husband may insure his own life for the sole use and benefit of his wife and children, and in the case of the death of the husband, the amount thus insured shall be paid over to his wife and children, or to the guardian, if under age, for her or their own use, free from all the claims of the representatives of her husband, or any of his creditors.

SEC. 8. Nothing contained in the foregoing sections of this Article shall operate to prevent the owner of a homestead from disposing of the same by deed; but no deed made by the owner of a homestead shall be valid without the voluntary signature and assent of his wife, signified on her private examination according to law.

#### **ARTICLE XI. PUNISHMENTS, PENAL INSTITUTIONS AND PUBLIC CHARITIES.**

**SECTION 1. The following punishments only shall be known to the laws of this State, viz.: death, imprisonment, with or without hard labor, fines, removal from office, and disqualification to hold and enjoy any office of honor, trust or profit under this State. The foregoing provisions for imprisonment with hard labor shall be construed to authorize the employment of such convict labor on public works, or highways, or other labor for public benefit, and the farming out thereof, where, and in such manner as may be provided by law; but no convict shall be farmed out who has been sentenced on a charge of murder, manslaughter, rape, attempt to commit rape, or arson: Provided, That no convict whose labor may be farmed out, shall be punished for any failure of duty as a laborer, except by a responsible officer of the State; but the convicts so farmed out shall be at all times under, the supervision and control, as to their government. and discipline, of the Penitentiary Board or some officer of this State.**

SEC. 2. The object of punishments being not only to satisfy justice, but also to reform the offender, and thus prevent crime, murder, arson, burglary, and rape, and these only, may be punishable with death, if the General Assembly shall so enact.

SEC. 3. The General Assembly shall, at its first meeting, make provision for the erection and conduct of a State's Prison or Penitentiary, at some central and accessible point within the State.

SEC. 4. The General Assembly may provide for the erection of Houses of Correction, where vagrants and persons guilty of misdemeanors shall be restrained and usefully employed.

SEC. 5. A House, or Houses of Refuge, may be established whenever the public interest may require it, for the correction and instruction of other classes of offenders.

SEC. 6. It shall be required, by competent legislation, that the structure and superintendence of penal institutions of the State, the county jails, and city police prisons, secure the health and comfort of the prisoners, and that male and female prisoners be never confined in the same rooms or cell.

SEC. 7. Beneficent provisions for the poor, the unfortunate and orphan being one of the first duties of a civilized and Christian State, the General Assembly shall, at its first session, appoint and define the duties of a Board of Public Charities, to whom shall be entrusted the supervision of all charitable and penal State institutions, and who shall annually report to the Governor upon their condition, with suggestions for their improvement.

SEC. 8. There shall also, as soon as practicable, be measures devised by the State, for the establishment of one or more Orphan Houses, where

destitute orphans may be cared for, educated and taught some business or trade.

SEC. 9. It shall be the duty of the Legislature, as soon as practicable, to devise means for the education of idiots and inebriates.

SEC. 10. The General Assembly may provide that the indigent deaf mutes, blind and insane of the State shall be cared for at the charge of the State.

SEC. 11. It shall be steadily kept in view by the Legislature, and the Board of Public Charities, that all penal and charitable institutions should be made as nearly self-supporting as is consistent with the purposes of their creation.

#### **ARTICLE XII. MILITIA.**

**SECTION 1. All able-bodied male citizens of the State of North Carolina, between the ages of twenty-one and forty years, who are citizens of the United States, shall be liable to duty in the militia; Provided, That all persons who may be averse to bearing arms, from religious scruples, shall be exempt therefrom.**

SEC. 2. The General Assembly shall provide for the organization, arming, equipping and discipline of the militia, and for paying the same when called into active service.

SEC. 3. The Governor shall be Commander-in-Chief, and shall have power to call out the militia to execute the law, suppress riots or insurrections, and to repel invasion.

SEC. 4. The General Assembly shall have power to make such exemptions as may be deemed necessary, and to enact laws that may be expedient for the government of the militia.

#### **ARTICLE XIII. AMENDMENTS.**



**SECTION 1. No Convention of the people of this State shall ever be called by the General Assembly, unless by the concurrence of two-thirds of all the members of each House of the General Assembly, and except the proposition "Convention" or "No Convention" be first submitted to the qualified voters of the whole State, at the next general election, in a manner to be prescribed by law. And should a majority of the votes cast be in favor of said Convention, it shall assemble on such a day as may be prescribed by the General Assembly.**

SEC. 2. No part of the Constitution of this State shall be altered, unless a bill to alter the same shall have been agreed to by three fifths of each House of the General Assembly. And the amendment or amendments so agreed to shall be submitted at the next general election to the qualified voters of the whole State, in such manner as may be prescribed by law. And in the event of their adoption by a majority of the votes cast, such amendment or amendments shall become a part of the Constitution of this State.

#### **ARTICLE XIV. MISCELLANEOUS.**

**SECTION 1. All indictments which shall have been found, or may hereafter be found, for any crime or offence committed before this Constitution takes effect, may be proceeded upon in the proper courts, but no punishment shall be inflicted which is forbidden by this Constitution.**

SEC. 2. No person who shall hereafter fight a duel, or assist in the same as a second, or send, accept, or knowingly carry a challenge therefor, or agree to go out of the State to fight a duel, shall hold any office in this State.

SEC. 3. No money shall be drawn from the treasury but in consequence of appropriations made by law; and an accurate account of the receipts and expenditures of the public money shall be annually published.

SEC. 4. The General Assembly shall provide, by proper legislation, for giving to mechanics and laborers an adequate lien on the subject matter of their labor.

SEC. 5. In the absence of any contrary provision, all officers of this State, whether heretofore elected or appointed by the Governor, shall hold their positions only until other appointments are made by the Governor, or if the

officers are elective, until their successors shall have been chosen and duly qualified according to the provisions of this Constitution.

SEC. 6. The seat of government of this State shall remain at the City of Raleigh.

SEC. 7. No person, who shall hold any office or place of trust or profit under the United States or any department thereof, or under this State, or under any other State, or government, shall hold or exercise any other office or place of trust or profit under the authority of this State, or be eligible to a seat in either House of the General Assembly: Provided, that nothing herein contained shall extend to officers in the militia, Justices of the Peace, Commissioners of Public Charities, or commissioners for special purposes.

SEC. 8. All marriages between a white person and a negro, or between a white person and a person of negro descent to the third generation inclusive, are hereby forever prohibited.

QUESTIONS ON THE CONSTITUTION OF NORTH CAROLINA,  
PREPARED BY HON. KEMP P. BATTLE., LL. D. PRESIDENT OF THE  
UNIVERSITY OF NORTH CAROLINA.

### **PRELIMINARY QUESTIONS.**

1. When was the first Constitution of North Carolina adopted? Answer—On December 18, 1776.

2. When was it first amended? Answer—In 1835.

3. When was it again amended? Answer—In 1854, 1861 and 1865.

4. When was a new Constitution adopted? Answer—In 1868.

5. Was there not a Constitution adopted in 1866? Answer—A new Constitution was adopted in 1866 by the Convention of 1865-'66, but the people voted it down.

6. Has the Constitution of 1868 been amended? Answer—Yes, it was partially amended in 1874, and greatly amended by the Convention of 1875. The people adopted these amendments in 1876- -a hundred years after the adoption of the first Constitution.

7. Is there further amendment? Answer—Yes; in 1880

8. What is a Constitution? Answer—" The principles or fundamental laws which govern a State." Another definition is: "The body of rules and maxims in accordance with which the powers of sovereignty are habitually exercised."

9. Is the Constitution of North Carolina the highest law? Answer—No; the Constitution of the United States, and the laws of the United States passed in pursuance thereto, are the supreme law.

10. Is the Constitution of North Carolina higher than the Acts passed by the General Assembly? Answer—Yes; acts contrary to the Constitution are null and void.

11. Who decides whether acts are constitutional and binding or not? Answer—The Courts.

12. Give a simple explanation of the Constitution of North Carolina. Answer—It is a written document in which the people of North Carolina have laid down their plan of government of the State. It designates what officers are to make the laws, what officers are to interpret the laws, and

what officers are to enforce the laws. It lays down laws for the guidance of these officers. If any officer acts contrary to it he is liable to punishment: It is the organic or fundamental law—the foundation stone on which our State government rests. It guards and enforces the liberties of the people. If officers are allowed to disobey it, our liberties will be in danger. Hence every citizen should understand it, so that he may watch the officers and hold them to their duties.

13. Can it be changed? Answer—Yes; the people of the State can change or amend it. The manner in which the people can change it is prescribed in the Constitution itself, as will be seen hereafter.

14. Can it be changed in any other way? Answer—Yes; if an amendment to the Constitution of the United States, contrary to any provision of the State Constitution, is made according to law, the latter must yield.

## **PREAMBLE.**

1. Who made the Constitution?
2. For what purpose was it made?
3. Is there recognition of God in it?
4. For what blessings is gratitude to God expressed?

## **ARTICLE I.**

### **DECLARATION OF RIGHTS.**

1. For what purpose is this declaration made?

2. What fundamental truths are declared? Section 1. \* (NOTE— Most of the language of this section is taken from the Declaration of Independence).

3. In whom is political power vested? Section 2.

4. For what good is government instituted? Section 2.

5. Who has the right to regulate the State government? Section 3.

6. Under what circumstances can the people change the form of government? Section 3.

7. Are the people under any restrictions in changing the form of government? If so, what? Section 3.

8. Has the State the right to secede from the Union? Section 4.

9. Is the American Union a confederacy of States, or a nation of the people of the States? Section 4.

10. Is this State bound to prevent other States from seceding from the Union? Section 4.

11. Is our allegiance first due to the United States or to North Carolina? Section 5.

12. Can the General Assembly or a Convention of the people release us from our primary allegiance to the United States? Section 5.

13. Can the State pay a debt incurred in rebellion against the United States? Section 6.

14. Can such a debt be collected in our courts? Section 6.

15. Does this prohibition apply to past as well as future debts? Section 6.
16. Can the State pay for emancipated slaves? Section 6.
17. What debts are forbidden to be paid or assumed in any way unless by a vote of the people? Section 6.
18. What majority must be had to sanction such payment or assumption? Section 6.
19. Is there no exception to this? Section 6.
20. Can this vote be taken at a special election? Section 6.
21. By what name are most of the bonds mentioned in the answer to question 17 known? Answer—Special Tax bonds.
22. Was this prohibition in the Constitution of 1876? Answer— No; it was inserted by amendment submitted to the people by the General Assembly of 1879, and adopted by the people in 1880.
23. What provision in regard to exclusive emoluments and privileges? Section 7.
24. What provision in regard to the legislative, executive and judicial branches? Section 8.
25. Can the Governor or Judges suspend laws? Section 9.
26. Who can suspend laws? Section 9.
27. What provision about election? Section 10.
28. What rights has one who is charged with a crime? Section 11.

29. If acquitted, does he pay the costs of his own witnesses, &c. ? Section 11.

30. What modes of prosecution are prescribed? Section 12.

31. By whom must conviction be made? Section 13.

32. Where must the verdict be rendered? Section 13.

33. What right has the Legislature in regard to petty misdemeanors? Section 14.

34. Can those accused of petty misdemeanors be utterly deprived of right of trial by jury? Section 13. Answer—No; they must have right of appeal and thus getting a jury.

35. What provision about bail? About fines and punishment? Section 14.

36. What are "general warrants"? Section 15.

37. Are they allowed? If not, why not? Section 15.

38. What provision about imprisonment for debt? Section 16.

39. Repeat the section guarding the life, liberty and property of citizens. Section 17.

40. From what great historical document is this section taken? Answer—From Magna Charta—wrested from King John, A. D. 1215.

41. What rights has one restrained of his liberty? Section 18.

42. Should he have a speedy trial? Section 18.

43. In law suits about property, what kind of a trial is declared best?  
Section 19.

44. What is said about trial by jury in controversies about property?  
Section 19.

45. What is declared about freedom of the press? Section 20.

46. Can the press be lawfully used for libelous and immoral publications?  
Section 20.

47. What provision about the writ of Habeas Corpus? Section 21.

48. What do you mean by the "privileges of the writ of Habeas Corpus"?  
Answer—The right of one restrained of his liberty to be brought before a Judge in order that the cause of imprisonment may be inquired into and be dealt with according to law.

49. Must a man own property in order to vote or hold office? Section 22.

50. Why not? Section 22.

51. What safeguard against improper taxation? Section 23.

52. Did the people claim this when we achieved our independence of Great Britain? Answer—Yes; the denial of this right was one of the chief causes of the Revolutionary war.

53. Is the right to bear arms secured? Section 24.

54. What reason is given why the people should have this right? Section 24.

55. Are standing armies allowed? Section 24.



56. Why should they not be allowed? Section 24.
57. Which should be superior, the civil or military power? Section 24.
58. Can the practice of carrying concealed weapons be prohibited, and how? Section 24.
59. For what purposes may the people assemble together? Section 25.
60. What is said of secret societies? Section 25.
61. What provision securing religions liberty? Section 26.
62. What provision about education? Section 27.
63. Why should elections be often held? Section 28.
64. What is necessary to preserve the blessings of liberty? Section 29.
65. What provision in regard to hereditary privileges, &c. ? Section 30
66. About perpetuities and monopolies. Section 31. (See Article II section 15).
67. What are ex-post facto laws? Section 32.
68. Are they proper? Section 32.
69. What retrospective laws are forbidden? Section 32.
70. Are all slavery and involuntary servitude abolished? Section 33.
71. What not abolished? Section 33.
72. What provision about the State boundaries? Section 34.

73. What provision about the courts? Section 35 and section 17.

74. What redress for injuries? Section 35 and section 17.

75. How shall justice be administered? \* Section 35.

\*Note—These words are from Magna Charta.

76. How are householders protected from quartering of soldiers? Section 36.

77. Does the Declaration of Rights enumerate all the rights possessed by the people? Section 37.

78. Who have the powers not delegated in the Constitution? Section 37.

## **ARTICLE II.**

### **LEGISLATIVE DEPARTMENT.**

1. How is the legislative authority vested? Section 1.

2. When these two bodies meet according to law what is their joint name? Section 2.

3. When is their regular meeting? Section 2.

4. How many members required in order to proceed to public business? Section 2.

5. What name is given to this majority? Answer—Quorum.

6. How many Senators? Section 3.

7. How chosen? Section 3.
8. How often chosen? Section 3.
9. How are the Senate districts formed? Section 4.
10. Who are excluded from the count? Section 4.
11. When can a county be divided in forming a Senatorial district? Section 4.
12. How are the members of the House of Representatives chosen? Section 5.
13. What is the rule as to counties not having a hundred-and- twentieth part of the population? Section 5.
14. How is the apportionment of Representatives made? Section 6.
15. What are the qualifications of a Senator? Section 7.
16. What of members of the House? Section 8.
17. How does the General Assembly elect officers? Section 9; and Article VI, section 3.
18. How do the people vote for Senators and members of the House? Sections 3 and 5; and Article VI, section 3.
19. What is the provision about divorce and alimony? Section 10.
20. What legislation is prohibited to the General Assembly? Section 11. (See Article V, section 1).

21. How can the General Assembly pass private laws other than those mentioned in sections 10 and 11? Section 12.

22. How are vacancies in the General Assembly filled? Section 13.

23. What laws must be read three times in each House, on three separate days? Section 14. (See Article V, section 6).

24. Must the names of the members voting be entered on the journal when these laws are passed? Section 14.

25. How must entails be regulated? Section 15. (See Article J, section 31).

26. What must be done with the journals of each House? Section 16.

27. When can a member have the reasons of his dissent entered on the journal? Section 17.

28. Who chooses the Speaker and other officers of the House of Representatives? Section 18.

29. Who presides in the Senate ordinarily? Section 16.

30. When has the Lieutenant-Governor the right to vote? Section 19.

31. What power has the Senate, independent of the House of Representatives? Sections 20 and 22. (See Article IV, section 3).

32. When does the Senate choose a Speaker? Section 20. In Article II, section 12, he is called President.

33. What is the style of the acts of Assembly? Section 21.

34. What powers has each House by itself? Section 22.

35. Can one House by itself adjourn to any future day, or other place? Section 22.

36. How often must bills be read before becoming laws? Section 23.

37. What else must be read three times? Section 23.

38. Who signs these bills and resolutions? Section 23. They must be signed in the presence of the Houses.

39. What are bills called after such signatures? Sections 21 and 23.

40. What oath or affirmation must each member take? Section 23.

41. When must be take this oath or affirmation? Section 24.

42. When do the terms of office begin? Section 25.

43. When must the names of the members be entered on the journal? Sections 14 and 21.

44. What is this proceeding termed? Answer—"Calling the yeas and nays."

45. What time is designated in the Constitution for holding the election of members? Section 27.

46. Can the General Assembly change this? Section 27.

47. Has the change been made? Answer—Yes; to the first Tuesday after the first Monday in November.

48. What authority determines the places of voting? Section 27.
49. What compensation do members receive, and how long? Section 28.
50. What mileage? Section 28.
51. What do the presiding officers receive? Section 28.
52. What provision about compensation during extra session? Section 28.

### **ARTICLE III.**

#### **EXECUTIVE DEPARTMENT.**

1. In whom is the supreme executive power? Section 1.
2. Who constitute the Executive Department? Section 1.
3. Who chooses these officers? Section 1.
4. How long do they serve? Section 1.
5. At what times and places are the elections held? Section 1.
6. When does their term of office begin? Section 1.
7. How long do they serve? Section 1.
8. What are the qualifications for the offices of Governor and Lieutenant-Governor? Section 2.
9. Can they ever serve two terms in succession? Section 2.
10. To whom are all the returns of election sent? Section 3.

11. To what post-office? Section 3.
12. Before whom are they opened and published? Section 3.
13. Who must be declared elected? Section 3.
14. What is done in case of a tie? Section 3.
15. In such case how do the Houses vote? Section 3.
16. What must be done about contested elections? Section ? ?
17. What oath does the Governor take? Section 4.
18. Before whom taken? Section 4.
19. Where must the Governor reside? Section 5.
20. What duties has he to perform in regard to the General Assembly?  
Section 5.
21. In what case can the Governor grant pardons, &c. ? Section 6.
22. Can he pardon before the offender is convicted? Section 6.
23. Can he pardon one impeached? Section 6.
24. What is the Governor's duty in regard to pardons, &c., after granted?  
Section 6.
25. What officers report to the Governor? Section 7.
26. What is done with these reports? Section 7.

27. Supposing the Governor desires information regarding the duties of officers of the Executive Department, what can he require? Section 7.

28. What is the greatest duty of the Governor? Section 7.

29. Who is commander-in-chief of the militia? Section 8.

30. Can the militia ever pass out of his authority? Section 8.

31. Under what circumstances can an extra session of the General Assembly be called? Section 9

32. Who nominates officers not otherwise provided for in the Constitution? Section 10.

33. To what body are the nominations sent? Section 10.

34. Can the Senate reject the nominations. Section 10.

35. What duty has the Lieutenant-Governor in regard to the Senate? Section 11; and Article II, section 19.

36. Is he a Senator? Answer—No.

37. What is his compensation? Section 11; and Article II, section 28.

38. Under what circumstances does the Lieutenant-Governor assume the powers, &c., of the Governor? Section 12.

39. What is done when the Lieutenant-Governor cannot preside in the Senate? Section 12.

40. Who succeeds the Lieutenant-Governor, and under what circumstances? Section 12.



41. What is done if the Lieutenant-Governor loses the office of Governor during the recess of the General Assembly? Section 12.

42. Who prescribes the duties of the officers of the Executive Department? Section 13.

43. What is done in case of a vacancy? Section 13.

44. How long does the officer so appointed hold his office? Section 13.

45. Who constitute the Council of State? Section 14.

46. What is done with their proceedings? Section 14.

47. Who is the legal adviser of the Executive Department? Section 14.

48. Who establishes the compensation of these officers? Section 15.

49. How is their independence secured? Section 15.

50. What is the seal of the State called? Section 16.

51. Who has charge of it? Section 16.

52. In what name are grants of lands, &c., issued, and how are they authenticated? Section 16.

53. In what manner are commissions to officers, &c., authenticated? Section 16.

54. What department besides those heretofore named must be established by the General Assembly? Section 17.

55. What laws must be enacted? Section 17.

## **ARTICLE IV.**

### **JUDICIAL DEPARTMENT.**

1. What is done in regard to distinctions between actions at law and suits in equity? Section 1.

2. Do the old forms of actions and suits remain? Section 1.

3. What is the name of the form of actions in use? Section 1.

4. What is the name of the actions prosecuted by the State for a public offence? Section 1.

5. What is done with feigned issues? Section 1.

6. How is the fact at issue tried? Section 1.

7. In what courts is the judicial power vested? Section 2.

8. Can the General Assembly establish any courts? Section 2.

9. What is the court for trial of impeachments? Section 3.

10. How many Senators must be present? Section 3.

11. Who presides when the Governor is impeached? Section 4.

12. What sentence can the Senate inflict? Section 3.

13. Does the impeachment for a crime indictable in the courts prevent prosecution in the courts? Section 3.

14. Can a less number than thirty-four Senators convict on impeachment? Section 4.

15. What is the least number which can possibly convict? Answer- -Two-thirds of a bare quorum—eighteen Senators.

16. What is treason against the State? Section 5.

17. In what modes can traitors be convicted? Section 5.

18. Can the punishment be made to extend to forfeiture of land or goods? Section 5.

19. Can it extend to corruption of blood? Section 5.

20. What officers constitute the Supreme Court? Section 6.

21. Are they called Judges? Section 6, but see sections 18 and 31.

22. Where are the terms of the Supreme Court held? Section 7.

23. What is the jurisdiction of this Court on appeals? Section 8.

24. What jurisdiction over issues and questions of fact? Section 8.

25. Over what courts has it control? Section 8.

26. What writs may it issue to effectuate this control? Section 8.

27. What are some of these writs called? Answer—Mundamus, Procedendo, Certiorari, Recordari, &c.

28. What original jurisdiction has the Supreme Court? Section 9.

29. Can the Court issue execution against the State? Section 9.

30. What is done with the decisions of the Court in such cases? Section 9.

31. Is the General Assembly bound to carry out the decision of the Court?  
Section 9; and Article I, section 8.

32. Into how many districts is the State divided by the Constitution?  
Section 10.

33. What chief town or towns in First District?

Answer—Elizabeth City, Edenton.

In Second District? Raleigh, New Bern.

In Third District? Wilmington, Goldsboro.

In Fourth District? Fayetteville.

In Fifth District? Greensboro, Durham.

In Sixth District? Charlotte, Monroe.

In Seventh District? Winston, Salisbury.

In Eighth District? Statesville, Morganton.

In Ninth District? Asheville.

34. Can the General Assembly change the number of districts? Section 10.

35. How often in each county must the Superior Court be held? Section 10.

36. Where shall be the residence of the Judge? Section 11.

37. Do the Judges preside always in the same district? Section 11.

38. How often can a Judge preside in the same district? Section 1

39. Is there any exception to this? Section 11.

40. Can the General Assembly deprive the Judicial Department of its rightful powers, &c ? Section 12; and Article I, section 8.

41. What is allowable for the General Assembly to do ? Section 12.
42. Does this power extend to the Supreme Court? Section 12.
43. Can the General Assembly regulate appeals? Section 12.
44. What power has the General Assembly in regard to methods of proceedings ? Section 12.
45. Are parties in a law suit bound to submit issues of fact to the jury. Section 13.
46. What effect has the finding of the Judge in such case upon the facts? Section 13.
47. What duty has the General Assembly in regard to courts for citie and towns? Section 14.
48. Can these courts be allowed to try capital cases and other felonies Section 14.
49. Who appoints the Clerk of the Supreme Court? Section 15. 50. What is his term of office? Section 16.
51. How is the Clerk of a Superior Court appointed? Section 16.
52. When is the election ? Section 16.
53. What is the term of office? Section 17.
54. Who prescribes the salaries, fees, &c., of Judges, Clerks, &e. Section 18.
55. How is the independence of the Judges secured ? Section 18.

56. What laws of North Carolina are in force? Section 19.

57. Where may these laws be found ? Answer. -Same may be found in the acts of Assembly, State Codes, &c. but besides these we have the "Common Law," inherited from our ancestors, not found in any statute book.

58. Where are the principles of this " Common Law" to be looked for Answer. -In the reports of judicial decisions, writings of eminent lawyers, &c.

59. Who can alter these laws? Article II, section 1.

60. What was done with actions and suits pending when the Constitution went into effect ? Section 20.

61. How were these old suits to be-heard and determined ? Section 20

62. Who appoints the Justices of the Supreme Court? Section 21.

63. When does the voting take place? Section 21.

64. What is the term of office ? Section 21.

65. How are Judges of the Superior Courts elected ? Section 21.

66. What is their term of office? Section 21.

67. Are they necessarily elected by all the voters of the State? Section 21.

68. When are the Superior Courts open ? Section 22.

69. Is there exception to this? Section 22.

70. Who elects the Solicitors of the Judicial Districts? Section 23.

71. What is their term of office? Section 23.

72. What are their duties? Section 23.

73. Can a Justice of the Peace call on the Solicitor for legal advice?  
Section 23.

74. How are Sheriffs and Coroners chosen ? Section 24.

75. What is the term of office? Section 24.

76. Who elects Constables? Section 24.

77. What are their terms of office? Section. 24.

78. Suppose there is no Coroner and one is needed. what is done? Section  
24.

79. Who may fill vacancies in the offices of Sheriff, Coroner and  
Constable? Section 24.

80. Who fills vacancies in offices created under this Article not specially  
provided for? Section 25.

81. How long do Judges, &c., so appointed, hold office? Section 25.

82. Suppose no election is held for such offices? Section 25.

83. Suppose those elected refuse to qualify? Section 25.

84. Suppose successors do not qualify? Section 25.

85. Is section 26 obsolete?

86. What jurisdiction have Justices of the Peace over civil actions?  
Section 27.

87. Suppose the title to land is in question? Section 27.

88. Suppose the action is not founded on contract, where is it to be tried?  
Section 27.

89. Of what criminal matters have they jurisdiction ? Section 27.

90. Who has power to regulate the fines and imprisonments? Answer. -  
The General Assembly.

91. Can the General Assembly give jurisdiction to Justices of the Peace  
over any other matters whatever? Section 27.

92. Suppose an issue of fact is joined before a justice, can he decide it?  
Section 27.

93. Suppose either party demands a jury? Section 27.

94. Is not this provision for a jury of six violating Article I, section 19?  
Answer—No; right of appeal is allowed. Section 27.

95. Is appeal allowed in criminal cases also? Section 27.

96. Must the Justice write down the proceedings? Section 27.

97. What must he do with the record? Section 27.

98. Who fills vacancies in the office of Justice of the Peace? Section 28.

99. Who fills vacancies in the office of the Superior Court Clerk? Section  
29.



100. Supposing the General Assembly to establish other courts, who chooses the Judges and other officers? Section 30.

101. What is their term of office? Section 30.

102. For what may Judges be removed? Section 31.

103. What vote is necessary? Section 31.

104. What notice must be given? Section 31.

105. Supposing two-thirds of one House, and a majority not two-thirds of the other House, vote for removal, what is the result? Section 31.

106. For what can Clerks of Courts be removed? Section 31.

107. Who have the power of removal? Section 31.

108. What notice must Clerks have of proceedings against them? Section 31.

109. Can the Clerks of the Courts inferior to the Supreme Court appeal? Section 32.

110. Is section 33 obsolete?

## ARTICLE V.

### REVENUES AND TAXATION.

1. What is another name for "capitation tax"? Answer—"Poll tax."

2. Is the General Assembly bound to levy such tax? Section 1.
3. On whom must it be levied? Section 1.
4. To what amount must it be equal? Section 1.
5. What is the maximum capitation tax under this section? Section 1.
6. What is the maximum property tax? Answer—Sixty-six and two-thirds cents on the one hundred dollars valuation.
7. What is the object of the "equation of taxes"? Answer—To protect property from excessive taxation by those owning no property, and vice versa.
8. Who can exempt from capitation tax, and for what reason? Section 1.
9. To what purpose must the capitation tax be applied? Section 2.
10. What is the maximum amount which can be applied to the support of the poor? Section 2.
11. How must property be taxed? Section 3.
12. What has the General Assembly power to tax without being compelled to do so? Section 3.
13. Can the income of a farmer from his lands be taxed? Section 3.
14. What provisions in regard to contracting new debts? Section 4.
15. Is the special tax to be levied when the bonds of the State are at par? Section 4.

16. Supposing the bonds are not at par, in what cases are the special taxes not required? Section 4.

17. What is necessary before the General Assembly can give or lend the credit of the State to individuals or corporations? Section 4.

18. What exception to the general rule? Section 4.

19. Does it require a majority of all the qualified voters to sanction such loan? Section 4.

20. Can the General Assembly take stock in a corporation and pay for the same by bonds of the State accepted at par? Section 4. (The Supreme Court says they cannot).

21. What property the General Assembly cannot tax? Section 5.

22. What property does the General Assembly have power to exempt to an unlimited extent? Section 5.

23. What property to a limited amount only? Section 5.

24. What is the limit? Section 5.

25. In what mode are county taxes to be levied? Section 5.

26. What is the limit of county taxation, for general purposes? Section 6

27. Supposing the county desires to exceed this limit for a special purpose? Section 6.

28. What must be observed in levying tax acts, i.e., "Revenue Acts"? Section 7.

29. Can tax money raised for one purpose be used for another? Section 7.

## **ARTICLE VI.**

### **SUFFRAGE AND ELIGIBILITY TO OFFICE.**

1. State the qualifications of an elector, i.e., a voter. Section 1.
2. What exception to this rule? Section 1.
3. Does the mere commission of an infamous crime disqualify? Section 1.
4. What authority lays down the rule for restoration to rights of citizenship? Section 1.
5. What step is requisite preliminary to voting? Section 2.
6. What oath is necessary to registration? Section 2.
7. What authority provides rules for registration? Section 2.
8. How do the people vote? Section 3.
9. How do members of the General Assembly vote in elections of officers? Section 3; and Article II, section 9.
10. What is the general rule as to qualifications for holding office? Section 4.
11. What oath does the officer take? Section 4.
12. What persons are disqualified? Section 4.

13. Does mere disbelief in an Almighty God disqualify, if such disbelief be not expressed? Answer—No; the word "deny" is held to mean assertion of disbelief by word, writing or otherwise. (See Article I, section 26)

## **ARTICLE VII.**

### **MUNICIPAL CORPORATIONS.**

[Note—By authority conferred in section 14 of this Article the General Assembly has materially changed its provisions (Laws of 1876-'77, chapter 141). The attention of the pupil will be called to the most important of these changes.]

1. What county officers are to be elected? Section 1. By act of 1876-'77, chapter 141, section 5, the Justices of the Peace elect three, four or five County Commissioners. The Justices may abolish the office of County Treasurer, and then the Sheriff takes his place.

2. How often and when does the election take place? Section 1.

3. What are the duties of the County Commissioners by the Constitution? Section 2.

4. How is this changed by act of 1876-'77: chapter 141? Answer—By this act, section 5, the Commissioners cannot levy taxes, purchase land, remove or designate new sites for county buildings, contract or repair bridges, if the cost may be over \$500, or borrow money, or alter, or make additional townships, without the concurrence of a majority of the Justices of the Peace sitting with them. Moreover, by the same act the Board of County Commissioners have the powers of the Township Trustees. Section 6.

5. Who is Clerk of the Board of Commissioners? Section 2.

6. What duty, did the Commissioners of 1868 have? Section 3.

7. What is the name of the districts so formed? Section 4.

8. What powers did they have, and for what purpose? Section 4. By act of 1876-'77, chapter 141, section 3, these powers are to be under supervision of the Board of County Commissioners; and the said Board can alter boundaries of said townships and create additional ones.

9. Who constituted the Board of Trustees of the Township by the Constitution, and by whom and when were they to be chosen? Section 5.

10. How is this by act of 1876-'77, chapter 141? Answer—By act of 1876-'77, chapter 141, the General Assembly appoints three Justices for each township, who are divided in three classes and hold their offices for two, four and six years, but the successors of each class, as its term expires, hold office for six years. For each township in which any city or incorporated town was situated, one Justice of the Peace is appointed by the General Assembly, and one for each one thousand inhabitants of the city or town. When new townships are created, the General Assembly, not being in session, the Governor appoints until the next meeting of the Assembly.

11. What other officers were to be elected in the townships? Section 5.

12. How has section 6 been changed? Answer—The Board of Commissioners appoint one Justice of the Peace, or other suitable person, in each township, to list lands and personal property therein. Laws of 1881, chapter 117, section 1. The tax list is revised by the Board of County Commissioners. Same; section 18.

13. What is necessary to enable a county or other municipal corporation to contract debts, pledge its faith, or loan its credit? Section 7.

14. What is necessary in order to levy and collect taxes more than for necessary expenses? Section 7.

15. Will a majority of those actually voting be always sufficient? Section 7.

16. What is necessary to enable money to be drawn from county or township treasuries? Section 8.

17. What is the rule of taxation in county and other municipal corporations? Section 9; and Article V, section 6.

18. What exemptions are required? Section 9, and Article V, section 5.

19. What exemptions are allowed, and to what extent? Section 9; and Article V, section 5.

20. Is section 10 obsolete?

21. Is section 11 obsolete?

22. Did all charters, &c., relating to municipal corporations, become of no effect on the adoption of this Article? Section 12.

23. What debts are counties, &c., forbidden to pay, or levy taxes for? Section 13.

24. What provision of this Article can the General Assembly change or abrogate? Section 14.

25. What is section 7?

26. What is section 9?

27. What is section 13?

[NOTE—By Act of 1881, Chapter 200, "County Superintendents of Public Instruction" are to be elected by the County Board of Education and County Board of Magistrates in joint session. The County Commissioners constitute the County Board of Education. Same; section 15.]

28. Suppose the General Assembly should attempt to change either of these sections? Answer—It would be the duty of the Courts to decide their action invalid.

## ARTICLE VIII.

### **CORPORATIONS OTHER THAN MUNICIPAL.**

1. In what way may corporations be formed? Section 1.
2. In what case may they be created by special act? Section 1.
3. Can charters of corporations granted under this section be amended or repealed? Section 1.
4. How shall debts of corporations be secured? Section 1.
5. What authority has the right to prescribe rules for so securing corporation dues? Section 2.
6. What is the meaning of the term "corporation" as used in this Article? Section 3.
7. Can corporations sue and be sued like natural persons? Section 3.



8. On whom is the duty of organizing cities, towns and incorporated villages? Section 4.

9. What powers should the General Assembly restrict? Section 4.

10. For what purpose are these restrictions? Section 4.

## ARTICLE IX.

### EDUCATION.

1. Why should schools, &c., be encouraged? Section 1.

2. What is the duty of the General Assembly in regard to public schools? Section 2.

3. How must they provide such schools? Section 2.

4. What are the school ages? Section 2.

5. What charge shall be made for tuition? Section 2.

6. Are "mixed schools" allowed? Section 2.

7. Is it lawful to have the schools for one race superior to those of the other? Section 2.

8. How shall the counties be divided for school purposes? Section 3.

9. How long must the schools be maintained? Section 3.

10. What punishment do the Commissioners incur by failing to comply with this? Section 3.

11. What funds are set apart for support of the schools? Section 4.
12. Can these funds be used for any other purpose? Section 4.
13. What officer has charge of these funds? Section 4.
14. What funds do the counties have charge of for school purposes? Section 5.
15. How is the Superintendent of Public Instruction to know about these county funds? Section 5.
16. Who provides for the election of Trustees of the University? Section 6.
17. What is vested in these Trustees? Section 6.
18. Who has power to provide for the maintenance and management of the University? Section 6.
19. What is the duty of the General Assembly in regard to education at the University? Section 7.
20. What is their duty in regard to escheats, unclaimed dividends and distributive shares? Section 7.
21. Who constitute the State Board of Education? Section 8.
22. Who are its officers? Section 9.
23. To what does the Board of Education succeed? Section 10.
24. What power of legislation has the Board? Section 10.

25. Is such legislation final? Section 10.
26. Who fixes the times of meeting of the Board? Section 11.
27. How many necessary for the transaction of business? Section 12.
28. Who provides for the contingent expenses of the Board? Section 13.
29. What departments in connection with the University must the General Assembly establish? Section 14.
30. Can the General Assembly enact "compulsory education"? Section 15.
31. Over what ages would this compulsory education extend? Section 15.
32. For what length of time? Section 15.

## ARTICLE X.

### **HOMESTEADS AND EXEMPTIONS.**

1. How much personal property is exempted from execution? Section 1.
2. Who chooses this property? Section 1.
3. Is it exempt from execution only? Section 1.
4. What land is exempt, and of what value? Section 2.
5. Who selects the homestead? Section 2.
6. Can a lot in a city, &c., be set apart? Section 2.

7. Is the homestead liable for taxes? Section 2.
8. Is it liable for any other debt besides taxes? Section 2.
9. After death of the owner is the homestead exempt any longer? Section 2.
10. If work is done on a homestead, is such homestead exempt from the mechanic's or laborer's lien? Section 4.
11. Supposing the owner dies leaving a widow, but no children— from what is the homestead exempt, and how long? Section 5.
12. What privileges does the widow enjoy, and how long? Section 5.
13. Is every widow entitled to such privileges? Section 5.
14. What becomes of the property of a woman marrying? Section 6.
15. Suppose she acquires property after marriage, does she or her husband own it? Section 6.
16. What kind of property so belongs to the wife? Section 6.
17. Cannot such property be made to pay the husband's debts? Section 5.
18. Can she give her property away by will? Section 6.
19. Is her husband's assent necessary to the validity of her will? Section 6.
20. Can she sell or give away her property before her death? Section 6.
21. Is her husband's assent necessary to such sale, &c. ? Section 6.

22. Can her husband signify such assent "by word of mouth"? Section 6.

23. Can the husband insure his life for the benefit of his wife and children and pay for the policy out of his own money, rather than pay his creditors? Section 7.

24. What is done with the money when he dies? Section 7.

26. Can the owner of the homestead sell it? Section 8.

26. What is necessary to the validity of the deed? Section 8.

27. Suppose he is not married. Section 8.

## **ARTICLE XI.**

### **PUNISHMENTS, PENAL INSTITUTIONS AND PUBLIC CHARITIES.**

1. What are the punishments lawful in North Carolina? Section 1.

2. Can convicts be made to labor on public works, &c. ? Section 1.

3. Can convicts be hired (or farmed) out to individuals or corporations? Section 1.

4. Can all convicts be farmed out? Section 1.

5. What authority prescribes the rules in regard to farming out convicts? Section 1.

6. What convicts cannot be farmed out? Section 1.

7. Can those hiring convicts punish them as they please? Section 1.

8. For what can they be punished by the proper officer? Section 1.
9. Under whose supervision, &c., are these convicts? Section 1.
10. Can the General Assembly abolish capital punishment? Section 2.
11. For what offences can the punishment of death be inflicted? Section 2.
12. What are the objects of punishment? Section 2.
13. What is the duty of the General Assembly in regard to a penitentiary? Section 3.
14. For what may houses of correction be provided? Section 4.
15. For what may houses of refuge be established? Section 5.
16. How must the structure and superintendence of penal institutions, &c., be arranged? Section 6.
17. What provision in regard to male and female prisoners? Section 6.
18. What is one of the first duties of a civilized State? Section 7.
19. What must the General Assembly do to carry out this duty? Section 7.
20. What are the duties of this Board? Section 7.
21. What must the General Assembly do for destitute orphans? Section 8.
22. What must the General Assembly do in regard to idiots? Section 9.
23. Can idiots be educated? Answer—Yes; they can be taught many things of value to them and to others.

24. What other unfortunates are classed with idiots? Section 9.

25. What classes may be provided for at the expense of the State? Section 10.

26. Has this section been changed since 1876? Answer—By amendment to the Constitution, adopted in 1880, the word "may" was substituted for the word "must" in this section.

27. Should the penal and charitable institutions be made self- supporting? Section 11.

## **ARTICLE XII.**

### **MILITIA.**

1. Who is liable to militia duty? Section 1.

2. Who are exempt? Section 1.

3. What duties has the General Assembly in regard to militia? Section 2.

4. Who is Commander-in-Chief of the militia? . Section 3; and Article III, section 8.

5. For what may he call them out? Section 3; and see Article III, section 7.

6. What authority can make exemptions from militia duty? Section 4.

7. What other duty has the General Assembly in regard to the militia? Section 4.

## **ARTICLE XIII.**

### **AMENDMENTS.**

1. In what manner must a convention of the people be called? Section 1.
2. What is the number of votes necessary in the Senate? Answer— Two-thirds of fifty—thirty-four at the least.
3. What number in the House of Representatives? Answer—Two- thirds of one hundred and twenty-eighty votes at the least.
4. What authority directs the manner of submission to the people? Section 1.
5. What authority prescribes the day of meeting? Section 1.
6. Can a convention so called to alter the Constitution? Answer- -Yes; it can amend the Constitution or make a new one.
7. What is a "restricted convention"? Answer—One in which the General Assembly provides that the members shall confine their action to certain specified matters, or shall refrain from making changes in certain particulars. Some have doubted the power of the General Assembly to bind the members in this way, but it has been done several times in this State.
8. Can the Constitution be altered without calling a Convention? Section 2.
9. By what vote must the proposed change pass the General Assembly? Section 2.
10. Does this mean three-fifths of all the members of each House? Section 2.



11. What is the least vote by which it could pass in the Senate? Answer— Three-fifths of twenty-six—sixteen votes.

12. What is the least in the House of Representatives? Answer— Three-fifths of sixty-one—thirty-seven votes.

13. What must then be done with the proposed amendment? Section 2.

14. Does it require a majority of all the qualified voters to pass it? Section 2.

15. Which is the most, two-thirds or three-fifths?

## **ARTICLE XIV.**

### **MISCELLANEOUS.**

1. Supposing indictments to be pending at the adoption of the Constitution, what is the rule in regard to their punishments? Section 1.

2. What is the rule in regard to dueling? Section 1.

3. Is the challenger disqualified if the other party declines to fight? Section 2.

4. Is the challenged party, who accepts the challenge, disqualified if no fight occurs? Section 2.

5. Is the person who carries the challenge disqualified if no fight occurs? Section 2.

6. Is it any offence against the laws of North Carolina for its citizens to fight in another State? Answer: No; but it is an offence to agree to go out of

the State for the purpose of fighting.

7. What is necessary to enable money to be drawn from the Treasury of the State? Section 3. (See Article V, section 7).

8. What must be done with the account of receipts and expenditures? Section 3.

9. What protection to mechanics and laborers must be given? Section 4; and Article X, section 4.

10. What is the general provision in regard to terms of office? Section 5.

11. Where shall be the seat of government? Section 6.

12. What is the rule in regard to double office? Section 7.

13. What exception to the general rule? Section 7.

14. What marriages are prohibited? Section 8.

16. What proportion of negro blood comes within the prohibition? Section 8. Answer—One-eighth negro blood (octoroon) will prohibit.

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